

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[923 NE2d 582, 896 NYS2d 299]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v CHARLES
ZARATE, Respondent.

Decided February 11, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 10, 2009. The Appellate Division affirmed an order of the Suffolk County Court (Barbara Kahn, J.), which had granted a motion by defendant to dismiss the indictment against him on speedy trial grounds.

People v Zarate, 59 AD3d 577, affirmed.

HEADNOTE

Crimes — Right to Speedy Trial

An order of the Appellate Division, which affirmed an order granting defendant's motion to dismiss the indictment against him on speedy trial grounds, was affirmed (*see People v Price*, 14 NY3d 61 [2010]).

APPEARANCES OF COUNSEL

Thomas J. Spota III, District Attorney, Riverhead (*Thomas C. Costello* of counsel), for appellant.

Bassett & Bassett, P.C., Central Islip (*Kerry Sloan Bassett* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed (*see People v Price*, 14 NY3d 61 [2010] [decided today]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[923 NE2d 582, 896 NYS2d 299]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ANDREW LUCIERE, Respondent.

Decided February 11, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 10, 2009. The Appellate Division affirmed an order of the Suffolk County Court (Barbara Kahn, J.), which had granted a motion by defendant to dismiss the indictment against him on speedy trial grounds.

People v Luciere, 59 AD3d 568, affirmed.

HEADNOTE

Crimes — Right to Speedy Trial

An order of the Appellate Division, which affirmed an order granting defendant's motion to dismiss the indictment against him on speedy trial grounds, was affirmed (*see People v Price*, 14 NY3d 61 [2010]).

APPEARANCES OF COUNSEL

Thomas J. Spota III, District Attorney, Riverhead (*Thomas C. Costello* of counsel), for appellant.

Christopher J. Cassar, P.C., Huntington (*Christopher J. Cassar* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed (*see People v Price*, 14 NY3d 61 [2010] [decided today]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[923 NE2d 582, 896 NYS2d 299]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v HENRY
COZZANI, Respondent.

Decided February 11, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 10, 2009. The Appellate Division affirmed an order of the Suffolk County Court (Barbara Kahn, J.), which had granted a motion by defendant to dismiss the indictment against him on speedy trial grounds.

People v Cozzani, 59 AD3d 563, affirmed.

HEADNOTE**Crimes — Right to Speedy Trial**

An order of the Appellate Division, which affirmed an order granting defendant's motion to dismiss the indictment against him on speedy trial grounds, was affirmed (*see People v Price*, 14 NY3d 61 [2010]).

APPEARANCES OF COUNSEL

Thomas J. Spota III, District Attorney, Riverhead (*Thomas C. Costello* of counsel), for appellant.

Aaron M. Wallenstein, New York City, for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed (*see People v Price*, 14 NY3d 61 [2010] [decided today]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[926 NE2d 591, 900 NYS2d 237]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DAIVERY
TAYLOR et al., Respondents.

Argued January 5, 2010; decided February 11, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme

Court in the Second Judicial Department, entered October 7, 2008. The Appellate Division order, insofar as appealed from, reversed, on the law, so much of a judgment of the Nassau County Court (Jeffrey S. Brown, J.), as had convicted defendant law firm, after a nonjury trial, of offering a false instrument for filing in the first degree (four counts), and dismissed those counts.

People v Taylor, 55 AD3d 640, reversed.

HEADNOTE

Crimes — Offering False Instrument for Filing — Reliance of Receiving Office

In a prosecution under Penal Law § 175.35, offering a false instrument for filing in the first degree, arising out of defendant law firm's filing of retainer statements with the Office of Court Administration containing allegedly false representations, section 175.35 requires an "intent to defraud," but does not require that the receiving agency take action in reliance upon the filing of such information and itself be misled to its detriment. The statute, by its plain terms, contains no such element. "Intent to defraud" refers only to a defendant's state of mind in acting with a conscious aim and objective to defraud (see Penal Law § 15.05 [1]).

APPEARANCES OF COUNSEL

Andrew M. Cuomo, Attorney General, New York City (Monica Wagner, Barbara D. Underwood and Roseann MacKechnie of counsel), for appellant.

Anderson, Moschetti & Taffany, PLLC, Latham (Peter J. Moschetti, Jr., of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, the conviction of the Law Offices of Silverman & Taylor of four counts of offering a false instrument for filing in the first degree reinstated, and the case remitted to the Appellate Division for further proceedings in accordance with this memorandum.

Defendant Law Offices was convicted, following a nonjury trial in Nassau County Court, of four counts of offering a false instrument for filing in the first degree under Penal Law § 175.35, a class E felony. The People's theory of the case was that defendants, working with numerous others, engaged in a scheme to submit fraudulent claims to no-fault insurance carriers by having illegally solicited automobile accident victims exaggerate their injuries, receive excessive medical treatment,

and file inflated claims. As relevant to this appeal,* defendant Law Offices allegedly filed retainer statements with the Office of Court Administration (OCA) containing false representations as to the source of client referrals.

In reversing the conviction against defendant Law Offices, the Appellate Division concluded that the element of “intent to defraud” as required by Penal Law § 175.35 was not established because OCA did not itself “check, verify, or rely upon th[e] information” contained in the retainer statements (55 AD3d 640, 642 [2d Dept 2008]). We disagree with the Appellate Division’s legal conclusion that Penal Law § 175.35 requires that the receiving agency take action in reliance upon the filing of such information and itself be misled to its detriment. The statute, by its plain terms, contains no such element. “Intent to defraud” refers only to a defendant’s state of mind in acting with a conscious aim and objective to defraud (*see* Penal Law § 15.05 [1]; Donnino, Practice Commentary, McKinney’s Cons Laws of NY, Book 39, Penal Law § 175.30, at 79-80).

We therefore remit to the Appellate Division for consideration of the facts under the proper legal analysis and, if necessary, of other issues raised but not determined on the appeal to that court.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order, insofar as appealed from, reversed, etc.

[926 NE2d 589, 900 NYS2d 235]

In the Matter of DAVID S. VETTER, Appellant, v BOARD OF EDUCATION, RAVENA-COEYMANS-SELKIRK CENTRAL SCHOOL DISTRICT, et al., Respondents.

Argued January 5, 2010; decided February 11, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third

* Defendants were additionally convicted by County Court of a scheme to defraud under Penal Law § 190.65 (1) (b), which was reversed by the Appellate Division; the People do not challenge this here. Nor do the People appeal the Appellate Division’s dismissal of the indictment against defendant Daivery Taylor.

Judicial Department, entered July 10, 2008. The Appellate Division modified, on the law, a judgment of the Supreme Court, Albany County (Richard M. Platkin, J.), entered in a proceeding pursuant to CPLR article 78, which had denied petitioner's application for an award of salary upon respondent's violation of the notice provisions of Education Law § 3019-a, and granted petitioner's application for attorneys' fees with respect to that portion of the petition seeking a name-clearing hearing. The modification consisted of reversing so much of the judgment as awarded petitioner attorneys' fees and dismissing the petition to that extent.

Matter of Vetter v Board of Educ., Ravena-Coeymans-Selkirk Cent. School Dist., 53 AD3d 847, modified.

HEADNOTE

Schools — Teachers — Termination of Probationary Teacher — Notice

A probationary teacher who was terminated for misconduct but not notified of his termination until two days prior to the effective date thereof, was entitled to an award of 28 days' salary since the school district failed to comply with the 30-day notice provision of Education Law § 3019-a, and the proper remedy was one day's pay for each day the notice was late. The compensation remedy was appropriate notwithstanding that the 28 days fell during summer vacation.

APPEARANCES OF COUNSEL

James D. Bilik, Latham, and *James R. Sandner* for appellant.
Shaw, Perelson, May & Lambert, LLP, Poughkeepsie (*Mark C. Rushfield* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by remitting to Supreme Court for further proceedings in accordance with this memorandum and, as so modified, affirmed.

Petitioner David Vetter was employed for the 2005-2006 school year as a probationary teacher by respondent Ravena-Coeymans-Selkirk Central School District. On June 21, 2006, respondent Board of Education voted to terminate petitioner as of July 21, 2006 based on allegations of misconduct. The Board did not provide petitioner with written notice of its action until almost a month later—two days before his termination was to be effective. Petitioner commenced this CPLR article 78 proceeding seeking an award of salary for 28 days due to the Board's

violation of Education Law § 3019-a; a name-clearing hearing under federal due process principles; and counsel fees pursuant to 42 USC § 1988.¹

Supreme Court denied petitioner's Education Law § 3019-a claim but granted his application for attorneys' fees. The Appellate Division modified by reversing the award of counsel fees and otherwise affirmed, reasoning that petitioner was not entitled to 28 days of pay because the applicable notice period occurred during summer vacation, a period when petitioner would not have received compensation (53 AD3d 847 [3d Dept 2008]). We granted petitioner leave to appeal (12 NY3d 713 [2009]).

Education Law § 3019-a requires school authorities to give probationary teachers written notice of termination at least 30 days before the effective date of termination.² Similarly, where a probationary teacher is not recommended for tenure, the superintendent must issue written notice of that decision no later than 60 days before the probationary period expires (*see* Education Law § 2573 [1] [a]). The purpose underlying these notice provisions is to allow teachers whose services are to be discontinued a period of time to seek other employment (*see Matter of Zunic v Nyquist*, 48 AD2d 378, 380 [3d Dept 1975], *affd on op below* 40 NY2d 962 [1976]). Although the 30-day and 60-day notice statutes do not specify a remedy in the event of noncompliance, we determined in *Matter of Tucker v Board of Educ., Community School Dist. No. 10* (82 NY2d 274 [1993]), an Education Law § 2573 (1) (a) case, that teachers are entitled to "one day's pay for each day the notice was late" (*id.* at 278).

Here, the Board concedes that it failed to comply with Education Law § 3019-a but contends that a compensation remedy is inappropriate because the 28 days fell during summer vacation, a period when petitioner would not have been paid any salary had he received timely notice. But the same was true in *Tucker*, where a portion of the 52-day period extended into July and

1. The Board subsequently agreed to grant petitioner a name-clearing hearing.

2. Education Law § 3019-a correspondingly obligates probationary teachers to provide at least 30 days' written notice prior to leaving their positions. Failure to comply with this mandate subjects the teacher to disciplinary sanctions imposed by the Commissioner of Education (*see Matter of Union Free School Dist. No. 5 of Town of Greenburgh, Westchester County*, 8 Ed Dept Rep 31, 32 [Decision No. 7893] [1968]; *see also Matter of Board of Educ. of City School Dist. of City of Port Jervis v Burke*, 94 Misc 2d 369, 371 [Sup Ct, Orange County 1978]).

August. In that petitioner was only given two days' notice, we conclude that a remittal is necessary for the calculation of an award of 28 days' salary.

We agree, however, with the Appellate Division that petitioner was not entitled to counsel fees under 42 USC § 1988 (*see Buckhannon Board & Care Home, Inc. v West Virginia Dept. of Health & Human Resources*, 532 US 598 [2001]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order modified, etc.

[923 NE2d 583, 896 NYS2d 300]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JERRY FRANCOIS, Appellant.

Decided February 11, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 16, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (John Cataldo, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of stolen property in the fourth degree.

Appellant was observed by a police officer repeatedly attempting to use a credit card in a MetroCard vending machine. Each time the machine prompted defendant to enter a ZIP code, defendant seemed to be unable to enter a ZIP code matching the credit card. The officer, experienced in detecting suspicious use of such machines, approached defendant, who stated that he was having problems with the credit card. The officer then asked defendant to accompany him and his partner to a nearby wall of the subway station, and, without any use of force, physically guided defendant by briefly grasping his elbow.

The Appellate Division concluded that the police had a founded suspicion of criminality warranting a level-two common-law inquiry. The Court further concluded that even though the officer made slight physical contact with defendant, none of the police conduct elevated the encounter to a seizure requiring reasonable suspicion, that the officer lawfully asked to see the credit card and a form of identification, and that the

discrepancy between the identification card and defendant's actual appearance provided probable cause for his arrest.

People v Francois, 61 AD3d 524, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure

In a prosecution for criminal possession of stolen property in the fourth degree arising from defendant's attempted use of a credit card in a vending machine, the Appellate Division's determination that the officer's conduct did not elevate his encounter with defendant from a common-law inquiry to a seizure necessitating reasonable suspicion constituted a resolution of a mixed question of law and fact that was supported by the record evidence, and was therefore beyond the further power of review of the Court of Appeals.

APPEARANCES OF COUNSEL

Legal Aid Society, Criminal Appeals Bureau, New York City (*Laura Liberman Cohen, Blaine [Fin] V. Fogg, Steven Banks and Seymour W. James, Jr.*, of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Lindsey M. Kneipper and Eleanor Ostrow* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

The Appellate Division's determination that the officer's conduct did not elevate his encounter with defendant from a common-law inquiry to a seizure necessitating reasonable suspicion constitutes a resolution of a mixed question of law and fact that is supported by the record evidence (*see generally People v Wheeler*, 2 NY3d 370, 373 [2004]), and is therefore beyond this Court's further power of review (*see People v Battaglia*, 86 NY2d 755, 756 [1995]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

[925 NE2d 867, 899 NYS2d 65]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL EDWARDS, Appellant.

Decided February 11, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered October 3, 2008. The Appellate Division affirmed a judgment of the Monroe County Court (Richard A. Keenan, J.), which had convicted defendant, upon a jury verdict, of sexual abuse in the first degree (Penal Law § 130.65 [2]) and wilful violation of health laws (Public Health Law § 12-b [2]).

The Appellate Division concluded that County Court did not err in refusing to suppress defendant's statements to investigators from the Attorney General's office since the record supported the court's determination that the comments of defendant that his union representative and a friend who was a sheriff's deputy advised him not to speak to the police, and his comment that he did not have an attorney and could not afford one, did not constitute an unequivocal assertion of his right to counsel. The Appellate Division also concluded that County Court did not abuse its discretion in refusing to give a missing witness charge.

People v Edwards, 55 AD3d 1411, affirmed.

HEADNOTES**Crimes — Right to Counsel**

1. In a prosecution for first degree sexual abuse and a related offense, the order of the Appellate Division affirming defendant's conviction was affirmed. Whether defendant's request for counsel was or was not unequivocal presented a mixed question of law and fact which was beyond further review in the Court of Appeals since there was record evidence to support the finding below.

Crimes — Witnesses — Failure to Call Witness

2. In a prosecution for first degree sexual abuse and a related offense, the order of the Appellate Division affirming defendant's conviction was affirmed. Defendant requested a missing witness charge, and although he argued that the uncalled witness could have either contradicted or corroborated the complaining witness, he did not demonstrate that her testimony would have been noncumulative or expected to be favorable to the People.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (*Grazina Myers* of counsel), for appellant.

Andrew M. Cuomo, Attorney General, New York City (*Roseann B. MacKechnie* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

[1] The order of the Appellate Division should be affirmed. Whether a particular request for counsel “is or is not unequivocal is a mixed question of law and fact,” which, if supported by record evidence, is beyond further review by this Court (*People v Glover*, 87 NY2d 838, 839 [1995]). Such record evidence exists here.

[2] A missing witness charge is warranted for a party’s failure to produce a witness, under its control, where his or her testimony would have been material and noncumulative of other testimony or evidence (*see People v Macana*, 84 NY2d 173, 177 [1994]; *People v Gonzalez*, 68 NY2d 424, 427 [1986]). “[T]he party seeking the missing witness charge must sustain an initial burden of showing that the opposing party has failed to call a witness who could be expected to have knowledge regarding a material issue in the case and to provide testimony favorable to the opposing party” (*Macana*, 84 NY2d at 177). Here, defendant argued that the uncalled witness could have either contradicted or corroborated the complaining witness, but did not demonstrate that her testimony would have been noncumulative or expected to be favorable to the People.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

In the Matter of MADELINE ACOSTA, Respondent, v NEW YORK CITY DEPARTMENT OF EDUCATION et al., Appellants.

Submitted January 19, 2010; decided February 11, 2010

Reported below, 62 AD3d 455.

Motion by Community Service Society et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of MADELINE ACOSTA, Respondent, v NEW YORK CITY DEPARTMENT OF EDUCATION et al., Appellants.

Submitted January 19, 2010; decided February 11, 2010

Reported below, 62 AD3d 455.

Motion by New York City Bar Association for leave to file a

brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

AMARANTH LLC et al., Appellants, v J.P. MORGAN CHASE & Co.
et al., Respondents.

Submitted December 9, 2009; decided February 11, 2010

Reported below, 71 AD3d 40.

Motion, insofar as it seeks leave to appeal as against J.P. Morgan Chase & Co., dismissed upon the ground that as to said party the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal as against J.P. Morgan Futures, Inc., denied.

CAYUGA INDIAN NATION OF NEW YORK, Respondent, v DAVID S.
GOULD, Cayuga County Sheriff, et al., Appellants, et al., De-
fendants.

Submitted February 8, 2010; decided February 11, 2010

Reported below, 66 AD3d 100.

Motion by United States of America for leave to file a brief amicus curiae on the appeal herein etc. granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

SUSAN COBAUGH, Appellant, v COUNTY OF ONONDAGA et al.,
Respondents.

Submitted December 14, 2009; decided February 11, 2010

Reported below, 2009 NY Slip Op 87255(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DEBRA H., Appellant, v JANICE R., Respondent.

Submitted January 19, 2010; decided February 11, 2010

Reported below, 61 AD3d 460.

Motion by Family Watch International for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

DIGITAL BROADCAST CORPORATION, Appellant, v LADENBURG, THALMANN & CO., INC., et al., Respondents, et al., Defendants.

Submitted December 7, 2009; decided February 11, 2010

Reported below, 63 AD3d 647.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MIC PROPERTY & CASUALTY CORP., Appellant, v MERQUI G. AVILA et al., Defendants, and KAREN SINGLETON BEARDS, Respondent.

Submitted December 7, 2009; decided February 11, 2010

Reported below, 65 AD3d 1303.

Motion to dismiss appeal granted and appeal dismissed with \$400 costs and \$100 costs of motion upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GARY ALFORD, Appellant.

Submitted February 8, 2010; decided February 11, 2010

Reported below, 65 AD3d 1392.

Motion for assignment of counsel granted and Paul J. Connolly, Esq., 2 Wedge Road, Delmar, New York 12207 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMEL BLACK, Appellant.

Submitted January 25, 2010; decided February 11, 2010

Reported below, 65 AD3d 1370.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FATIN JOHNSON, Appellant.

Submitted February 8, 2010; decided February 11, 2010

Reported below, 67 AD3d 448.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT MOTHERSELL, Appellant.

Submitted February 8, 2010; decided February 11, 2010

Reported below, 59 AD3d 995.

Motion by Frank H. Hiscock Legal Aid Society to be relieved as appellant's counsel on the appeal herein granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MUJAHID MUHAMMAD, Appellant.

Submitted February 8, 2010; decided February 11, 2010

Reported below, 66 AD3d 424.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARI-BEL OTERO, Appellant.

Submitted February 1, 2010; decided February 11, 2010

Reported below, 56 AD3d 350.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
MICHAEL EDWARD PRINDLE, Appellant.

Submitted January 19, 2010; decided February 11, 2010

Reported below, 63 AD3d 1597.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
REGINALD RABB, Appellant.

Submitted February 8, 2010; decided February 11, 2010

Reported below, 66 AD3d 487.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ALBEIRO
VALENCIA, Respondent.

Submitted February 8, 2010; decided February 11, 2010

Reported below, 58 AD3d 879.

Motion by New York State Association of Criminal Defense Lawyers et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

PINO ALTO PARTNERS, Individually and on Behalf of all Others
Similarly Situated, Respondent, v ERIE COUNTY WATER AU-
THORITY, Appellant.

Submitted December 28, 2009; decided February 11, 2010

Reported below, 67 AD3d 1375.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PORTFOLIO RECOVERY ASSOCIATES, LLC, Respondent, v JARED KING, Appellant.

Submitted January 1, 2010; decided February 11, 2010

Reported below, 55 AD3d 1074.

Motion by AARP et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

ALEJANDRO ROSA, Appellant, v STATE OF NEW YORK, Respondent.

Submitted December 28, 2009; decided February 11, 2010

Reported below, 63 AD3d 1383.

Motion for reargument denied [*see* 13 NY3d 856 (2009)].

In the Matter of ROBERT T. STEWART, a Candidate for the Public Office of Chautauqua County Legislator, Seventh Legislative District, Respondent, v CHAUTAUQUA COUNTY BOARD OF ELECTIONS et al., Respondents, and LEON H. BEIGHTOL et al., Appellants.

In the Matter of LEON H. BEIGHTOL, a Candidate for the Public Office of Chautauqua County Legislator, Seventh Legislative District, Appellant, v CHAUTAUQUA COUNTY BOARD OF ELECTIONS et al., Respondents, and NORMAN P. GREEN, Appellant.

In the Matter of LEON H. BEIGHTOL, a Candidate for the Public Office of Chautauqua County Legislator, Seventh Legislative District, Appellant, v CHAUTAUQUA COUNTY BOARD OF ELECTIONS et al., Respondents, and NORMAN P. GREEN, Appellant.

Submitted January 25, 2010; decided February 11, 2010

Reported below, 69 AD3d 1298.

Motion by Leon H. Beightol for leave to appeal denied as unnecessary (*see* CPLR 5601 [a]). Motion by Leon H. Beightol for a stay granted. Motion by Norman P. Green for leave to appeal denied as unnecessary (*see* CPLR 5601 [a]).

[925 NE2d 576, 898 NYS2d 538]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v THOMAS EDWARDS, JR., Respondent.

Decided February 16, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered August 28, 2009. The Appellate Division (1) reversed, on the law, a judgment of the Erie County Court (Sheila A. DiTullio, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the first degree and assault in the third degree, (2) vacated the plea, (3) granted that part of a motion by defendant to suppress tangible property, (4) dismissed the first through fourth counts of the indictment, and (5) remitted the matter to County Court for further proceedings on the fifth count of the indictment.

People v Edwards, 65 AD3d 829, reversed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Search of Vehicle after Stop for Traffic Infraction

The trial court properly denied defendant's motion to suppress crack cocaine discovered after police stopped the car he was driving based on probable cause to believe that a traffic infraction had occurred. The initial stop of defendant's vehicle was permissible and the police officers' subjective motivation to investigate possible drug activity did not negate the objective reasonableness of their actions. As a matter of law, the officers did not inordinately prolong the detention beyond what was reasonable under the circumstances to address the traffic infraction. Because drug residue was first seen while the police had a justifiable basis to continue the detention for the traffic infraction, that observation provided probable cause to arrest and search defendant, and the subsequent impoundment and inventory search of the vehicle were valid.

APPEARANCES OF COUNSEL

Frank A. Sedita, III, District Attorney, Buffalo (*Michael J. Hillery* of counsel), for appellant.

Law Office of Susan V. Tipograph, New York City (*Susan V. Tipograph* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, the motion to suppress tangible property denied and the judgment of County Court reinstated.

Defendant was driving a vehicle that was stopped by the police based on probable cause to believe that a traffic infraction had occurred. During the course of the officers' investigation, cocaine residue was observed on defendant's hand and he was arrested. Crack cocaine was discovered in his pocket and there was over a half pound of the drug in the car.

Defendant moved to suppress the drugs, claiming that the police unlawfully extended the investigation of the traffic infraction because they suspected he might be involved with narcotics. Supreme Court denied the motion and defendant later pleaded guilty to drug and assault charges. The Appellate Division reversed, concluding that once the police officers determined that a traffic infraction had occurred, the purpose for the detention was exhausted and the continued seizure was unlawful. We disagree.

The initial stop of defendant's vehicle was permissible and the police officers' subjective motivation to investigate possible drug activity does not negate the objective reasonableness of the officers' actions (*see People v Wright*, 98 NY2d 657, 658-659 [2002]; *People v Robinson*, 97 NY2d 341, 350 [2001]). In addition, here, as a matter of law, the officers did not inordinately prolong the detention beyond what was reasonable under the circumstances to address the traffic infraction (*cf. People v Banks*, 85 NY2d 558, 562 [1995], *cert denied* 516 US 868 [1995]). Rather, it was proper for the police officers to return to defendant's vehicle in order to complete the traffic stop. Because drug residue was first seen while the police had a justifiable basis to continue the detention for the traffic infraction, that observation provided probable cause to arrest and search defendant, and the subsequent impoundment and inventory search of the vehicle were valid. Consequently, suppression of the drugs is not required.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[925 NE2d 80, 899 NYS2d 748]

In the Matter of ALAN KACHALSKY, Appellant, v SUSAN CACACE,
a Judge of the Westchester County Court, Respondent.

Decided February 16, 2010

SUMMARY

APPEAL, on constitutional grounds, from a judgment of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 8, 2009, in a proceeding pursuant to CPLR article 78 (initiated in that Court pursuant to CPLR 506 [b] [1]). The Appellate Division (1) confirmed a determination of respondent County Court Judge denying petitioner's application for a pistol permit, (2) denied the petition, and (3) dismissed the proceeding on the merits.

Matter of Kachalsky v Cacace, 65 AD3d 1045, appeal dismissed.

HEADNOTE

Appeal — Dismissal

An appeal from a judgment of the Appellate Division confirming a determination to deny petitioner's application for a pistol permit was dismissed upon the ground that no substantial constitutional question was directly involved.

APPEARANCES OF COUNSEL

Alan N. Kachalsky, Rye Brook, appellant pro se.

Andrew M. Cuomo, Attorney General, New York City (*Sasha Samberg-Champion*, *Barbara D. Underwood* and *Benjamin Gutman* of counsel), for respondent.

OPINION OF THE COURT

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, PIGOTT and JONES. Judge SMITH dissents and votes to retain jurisdiction in an opinion.

SMITH, J. (dissenting). I dissent because I think the dismissal of this appeal exemplifies an amorphous definition of

“substantial constitutional question” that is at odds with CPLR 5601 (b) (1) and the New York Constitution.

Article 6, § 3 (b) (1) of the New York Constitution says that appeals to this Court may be taken in civil cases and proceedings:

“As of right, from a judgment or order entered upon the decision of an appellate division of the supreme court which finally determines an action or special proceeding wherein is directly involved the construction of the constitution of the state or of the United States”

CPLR 5601 (b) tracks the Constitution:

“Constitutional grounds. An appeal may be taken to the court of appeals as of right:

“1. from an order of the appellate division which finally determines an action where there is directly involved the construction of the constitution of the state or of the United States”

Neither the Constitution nor the statute says that the constitutional question involved must be “substantial,” but we have interpreted them to mean that. And the interpretation makes sense, if “substantial” is taken literally. The authors of the Constitution and the statute surely did not intend to burden our Court with appeals as of right based on questions that are without substance, i.e., frivolous. As Karger points out, the substantiality requirement “is an obviously necessary safeguard against abuse of the right to appeal on constitutional questions, for otherwise the right to appeal would turn on the ingenuity of counsel in advancing arguments on constitutional issues, howsoever fanciful they might be” (Karger, Powers of the New York Court of Appeals § 7:5, at 226 [3d ed rev]).

But we have at times followed the practice—one in which, I confess, I have joined—of giving “substantial” a much more flexible meaning, so flexible that it confers on us, in effect, discretion comparable to that we have in deciding whether to grant permission to appeal under CPLR 5602. I am convinced that this practice is inconsistent with both the constitutional provision and the statute implementing it.

This case illustrates the point. Petitioner’s argument, rejected by the courts below, is that Penal Law § 400.00 (2) (f), which requires “proper cause” for the issuance of a license to carry a concealed pistol or revolver, violates the Second Amendment to

the United States Constitution. Two constitutional questions are directly involved: (1) whether the Second Amendment limits the powers of the states, as well as of the federal government; and (2) whether a prohibition on carrying concealed weapons without a showing of proper cause is consistent with the Second Amendment. I make no comment on the merits of either issue, except to say that neither is insubstantial. The first is of such great substance, and current importance, that the Supreme Court has granted certiorari to consider it (*McDonald v City of Chicago*, 557 US —, 130 S Ct 48 [2009]). The second issue, in light of *District of Columbia v Heller* (554 US —, 128 S Ct 2783 [2008]), unquestionably presents fair ground for litigation. On neither issue could petitioner's case, by any remote stretch, be called frivolous or fanciful.

There is, I recognize, a perfectly reasonable argument that, if we had discretion about whether to take up these issues now, we should choose not to do so; it might make sense to wait to see how the Supreme Court decides *McDonald*. I would not quarrel with that exercise of discretion, if I thought the discretion existed. I think, however, that petitioner has a constitutional right to have us hear this appeal, and that's all there is to it.

Appeal dismissed, etc.

[925 NE2d 81, 899 NYS2d 749]

TRAVIS J. BRIGHT, an Infant, by His Parent and Guardian, GARY BRIGHT, et al., Appellants, v NANCY E. MCGOWAN et al., Respondents, et al., Defendant.

Decided February 16, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 4, 2009. The Appellate Division affirmed an order of the Supreme Court, Sullivan County (Robert A. Sackett, J.), which had granted a cross motion by defendants Nancy E. McGowan and First Student, Inc. for summary judgment dismissing the complaint as against them.

Plaintiffs' negligence action arose out of a head-on collision between a vehicle driven by the plaintiff and a school bus as both vehicles reached the crest of a rural road with no center

line markings. The majority at the Appellate Division concluded that defendant bus driver had submitted sufficient evidence that the accident was caused by the plaintiff crossing into the lane of travel of the bus. The dissent concluded that the examination before trial testimony of a passenger in plaintiff's vehicle created a question of fact as to whether the bus was partially over the center line at the time of the accident.

Bright v McGowan, 63 AD3d 1239, reversed.

HEADNOTE

Motor Vehicles — Collision

In a negligence action arising from the head-on collision of two vehicles as they approached the crest of a rural road, an order of the Appellate Division, which affirmed defendants' motion for summary judgment dismissing the complaint as against them, was reversed and the motion denied. In opposition to defendants' prima facie case, plaintiffs raised a triable issue of fact.

APPEARANCES OF COUNSEL

Basch & Keegan, LLP, Kingston (*Derek J. Spada* of counsel), for appellants.

Gordon & Silber, P.C., New York City (*Shadrach A. Stanleigh* and *Andrew B. Kaufman* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and defendants' motion for summary judgment denied. In opposition to defendants' prima facie case, plaintiffs raised a triable issue of fact.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of MADELINE ACOSTA, Respondent, v NEW YORK CITY DEPARTMENT OF EDUCATION et al., Appellants.

Submitted January 19, 2010; decided February 16, 2010

Reported below, 62 AD3d 455.

Motion by Senator Bill Perkins for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of RAMON ALVAREZ, Appellant, v NEW YORK STATE
DIVISION OF PAROLE et al., Respondents.

Submitted December 21, 2009; decided February 16, 2010

Reported below, 63 AD3d 1402.

Motion for reconsideration of this Court's October 22, 2009
dismissal order denied [*see* 13 NY3d 823 (2009)].

JASON ANDREWS, Respondent, v NORTHWEST AUTO MALL et al.,
Appellants.

Submitted December 28, 2009; decided February 16, 2010

Reported below, 67 AD3d 1466.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

LESLIE BARNAVE, Appellant, v UNITED AMBULETTE, INC., et al.,
Respondents.

Submitted December 14, 2009; decided February 16, 2010

Reported below, 66 AD3d 620.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

JOHN CHAMBERS et al., Plaintiffs, and PETER LEIDEL et al., Ap-
pellants, v OLD STONE HILL ROAD ASSOCIATES et al., Respon-
dents.

Decided February 16, 2010

Reported below, 66 AD3d 944.

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that the order appealed from does not
finally determine the action within the meaning of the Consti-
tution, and is not a nonfinal order which is appealable as of
right within the Court of Appeal's practice for enforcement of
its remittitur.

MARIBEL CUADRADO, Respondent, v NEW YORK CITY TRANSIT
AUTHORITY et al., Appellants.

Submitted December 14, 2009; decided February 16, 2010

Reported below, 65 AD3d 434.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. An order denying a CPLR 4404 motion to set aside a verdict is nonfinal. The final and appealable paper to the Court of Appeals is the judgment entered after the denial of the motion.

In the Matter of DEVELOP DON'T DESTROY (BROOKLYN) et al.,
Appellants, v URBAN DEVELOPMENT CORPORATION, Doing
Business as EMPIRE STATE DEVELOPMENT CORPORATION, et
al., Respondents.

Submitted January 11, 2010; decided February 16, 2010

Reported below, 59 AD3d 312.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 13 NY3d 713 (2009)].

Chief Judge LIPPMAN taking no part.

In the Matter of the Adoption of JOHN DOE, an Infant. LMB,
Respondent; ERJ, Appellant.

Submitted December 21, 2009; decided February 16, 2010

Reported below, 58 AD3d 186.

Motion to strike respondent's brief denied.

GARTECH ELECTRICAL CONTRACTING CORP., Respondent, v
COASTAL ELECTRIC CONSTRUCTION CORP., Appellant.

Submitted January 4, 2010; decided February 16, 2010

Reported below, 66 AD3d 463.

Motion to dismiss appeal granted and appeal dismissed with \$400 costs and \$100 costs of motion upon the ground that the

two-Justice dissent at the Appellate Division is not on a question of law (*see* CPLR 5601 [a]).

In the Matter of ANGELA LABITA, Also Known as ANGELICA J. LABITA, Deceased. KATHERINE D'ALESSANDRO, Appellant; NICOLINA D. HAYHURST, Respondent.

KATHERINE D'ALESSANDRO, Appellant, v MIDWAY NURSING HOME, Respondent.

Submitted December 14, 2009; decided February 16, 2010

Reported below, 2009 NY Slip Op 82416(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of the Arbitration between NIAGARA FRONTIER TRANSPORTATION AUTHORITY, Appellant, and INTERNATIONAL LONGSHOREMEN'S ASSOCIATION, LOCAL 2028, Respondent.

Submitted January 4, 2010; decided February 16, 2010

Reported below, 67 AD3d 1424, 1425.

Motion, insofar as it seeks leave to appeal from the Appellate Division order that dismissed the appeal from Supreme Court's December 2008 order, dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511); motion, insofar as it seeks leave to appeal from the Appellate Division order that dismissed the appeal from Supreme Court's January 2009 order, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of PAUL Z., a Child Alleged to be Severely Abused. KAREN AA., Respondent; PAUL N., Appellant.

Submitted January 11, 2010; decided February 16, 2010

Reported below, 68 AD3d 1473.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANNY COLON, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY ORTIZ, Appellant.

Submitted January 11, 2010; decided February 16, 2010

Reported below, 55 AD3d 444.

Motion for reargument denied [*see* 13 NY3d 343 (2009)].

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MATTHEW SANCHEZ, Appellant.

Submitted January 11, 2010; decided February 16, 2010

Reported below, 57 AD3d 1.

Motion for reargument denied [*see* 13 NY3d 554 (2009)].

JACQUES SEBAG, Appellant, v CARLOS NARVAEZ, Respondent.

Submitted January 19, 2010; decided February 16, 2010

Reported below, 60 AD3d 485.

Motion for reargument of motion for leave to appeal etc. denied [*see* 13 NY3d 711 (2009)].

CHAIM SIEGER, Respondent, v HELEN SIEGER, Appellant.

Decided February 16, 2010

Reported below, 51 AD3d 1004.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

TAI PING CHEN, Appellant, v CITIBANK et al., Respondents.

Submitted December 21, 2009; decided February 16, 2010

Motion for reargument denied [*see* 13 NY3d 816 (2009)]. Motion for poor person relief dismissed as academic.

In the Matter of SHAWN L. WALKER, Respondent, v JEANNIE HAMLETT, Appellant.

Submitted December 28, 2009; decided February 16, 2010

Reported below, 2009 NY Slip Op 88072(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* CPLR 5602).

In the Matter of the Claim of XIAO QING LIU, Appellant, v RICH-LINE GROUP/BEL-ORO et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted January 11, 2010; decided February 16, 2010

Reported below, 2009 NY Slip Op 81679(U).

Motion for reargument denied [*see* 13 NY3d 880 (2009)]. Motion for poor person relief dismissed as academic.

[925 NE2d 577, 898 NYS2d 539]

DAVID BELDING, Respondent, v VERIZON NEW YORK, INC., et al., Appellants.

Decided February 18, 2010

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 4, 2009. The Appellate Division affirmed an order of the Supreme Court, New York County (Debra A. James, J.; op 2008 NY Slip Op 33173[U]), which had granted a motion by plaintiff for partial summary judgment on the issue of liability on his Labor Law § 240 (1) cause of action and denied a cross motion by defendants for summary judgment dismissing that cause of action. The following question was

certified by the Appellate Division: "Was the order of this Court, which affirmed the order of Supreme Court, properly made?"

Plaintiff, an installer, was injured in a fall from an A-frame ladder in a building owned by defendant Verizon New York, Inc., which had contracted for capital improvements that included a site hardening and security project at the building. Plaintiff's employer was engaged as a subcontractor for the installation of a shatter proofing bomb blast film called Blast-GARD on windows in the front and rear lobbies of the building. Although the bomb blast film was installed a month earlier, plaintiff had to do a reinstallation on the day of the accident in order to address complaints made by the architect.

The Appellate Division concluded that plaintiff had made a prima facie showing of proximate cause under Labor Law § 240 (1) with his unrefuted testimony that the ladder collapsed beneath him causing him to fall, and that defendants' characterization of plaintiff's work as merely cosmetic was dispelled by the unchallenged evidence that bomb blast film changes the property of glass.

Belding v Verizon N.Y., Inc., 65 AD3d 414, affirmed.

HEADNOTE

Labor — Safe Place to Work — Significant Alteration of Building

In a personal injury action arising from plaintiff's fall from a ladder as he was reinstalling bomb blast film on windows, plaintiff was entitled to partial summary judgment as to liability on his Labor Law § 240 (1) cause of action. Applying the bomb blast film to the lobby windows, in and of itself, qualified as a significant alteration. The blast film significantly altered the configuration or composition of the structure by changing the way the windows react to explosions, impacts and the elements.

APPEARANCES OF COUNSEL

Cozen O'Connor, New York City (*Edward Hayum* of counsel), for appellants.

Kelner & Kelner, New York City (*Gail S. Kelner* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs. The certified question should be answered in the affirmative.

Applying the bomb blast film to the lobby windows, in and of itself, qualifies as a significant alteration (*see* Labor Law § 240

[1]; *Joblon v Solow*, 91 NY2d 457, 465 [1998]). BlastGARD significantly altered the configuration or composition of the structure by changing the way the lobby windows react to explosions, impacts and the elements. The effects of this one-time security enhancement distinguish the activity from affixing an advertisement on a billboard, a more frequent change that has less structural effect (see *Munoz v DJZ Realty, LLC*, 5 NY3d 747 [2005]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

[925 NE2d 580, 898 NYS2d 542]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUAN RIVERA, Appellant.

Decided February 18, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 26, 2009. The Appellate Division denied defendant's application for a writ of error coram nobis to vacate an order of that Court, dated June 1, 2006 (30 AD3d 171), which had affirmed a judgment of the Supreme Court, New York County (Ronald A. Zweibel, J.).

Defendant moved in the Appellate Division for a writ of error coram nobis seeking review of his claim of ineffective assistance of appellate counsel, and for related relief.

People v Rivera, 2009 NY Slip Op 67638[U], affirmed.

HEADNOTE

Crimes — Argument and Conduct of Counsel

An order of the Appellate Division which denied defendant's application for a writ of error coram nobis seeking review of his claim of ineffective assistance of appellate counsel was affirmed. Defendant did not demonstrate the absence of a legitimate explanation for his appellate counsel's failure to brief the issue whether his guilty plea should be vacated under *People v Catu* (4 NY3d 242 [2005]).

APPEARANCES OF COUNSEL

Juan Rivera, appellant pro se.

Cyrus R. Vance, Jr., District Attorney, New York City (Timothy C. Stone of counsel), for respondent.

Flemming Zulack Williamson Zauderer LLP, New York City (Megan P. Davis of counsel), for Appellate Courts Committee of the New York County Lawyers' Association, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant has not demonstrated the absence of a legitimate explanation for his appellate counsel's failure to brief the issue whether his guilty plea should be vacated under *People v Catu* (4 NY3d 242 [2005]; see *People v Borrell*, 12 NY3d 365, 369 [2009]; *People v Rivera*, 71 NY2d 705, 709 [1988]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

CAYUGA INDIAN NATION OF NEW YORK, Respondent, v DAVID S. GOULD, as Cayuga County Sheriff, et al., Appellants, et al., Defendants.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 100.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

CAYUGA INDIAN NATION OF NEW YORK, Respondent, v DAVID S. GOULD, as Cayuga County Sheriff, et al., Appellants, et al., Defendants.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 100.

Motion by Seneca Nation of Indians for leave to file a brief

amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

CAYUGA INDIAN NATION OF NEW YORK, Respondent, v DAVID S. GOULD, as Cayuga County Sheriff, et al., Appellants, et al., Defendants.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 100.

Motion by Day Wholesale, Inc. for leave to file a brief amicus curiae on the appeal herein denied.

CAYUGA INDIAN NATION OF NEW YORK, Respondent, v DAVID S. GOULD, as Cayuga County Sheriff, et al., Appellants, et al., Defendants.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 100.

Motion by New York State Association of Counties et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

CAYUGA INDIAN NATION OF NEW YORK, Respondent, v DAVID S. GOULD, as Cayuga County Sheriff, et al., Appellants, et al., Defendants.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 100.

Motion by American Cancer Society, Eastern Division Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

CAYUGA INDIAN NATION OF NEW YORK, Respondent, v DAVID S. GOULD, as Cayuga County Sheriff, et al., Appellants, et al., Defendants.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 100.

Motion by the City of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of CIARA LEE C., a Child Alleged to be Permanently Neglected. LOURDES R., Appellant; EPISCOPAL SOCIAL SERVICES et al., Respondents.

Submitted December 28, 2009; decided February 18, 2010

Reported below, 67 AD3d 437.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

CITY OF NEW YORK et al., Plaintiffs, v THOMAS A. MAUL, Defendant. L.J. et al., Intervenors-Respondents, v JOHN B. MATTINGLY, as Commissioner, New York City Administration for Children's Services, Appellant, et al., Defendant.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 59 AD3d 187.

Motion by New York State Association of Counties for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of DANIEL GOLDSTEIN et al., Appellants, v NEW YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Respondent.

Submitted December 21, 2009; decided February 18, 2010

Reported below, 64 AD3d 168.

Motion for reargument etc. denied with \$100 costs and necessary reproduction disbursements [*see* 13 NY3d 511 (2009)].

RALPH HALL, Appellant, v JACOBY AND MEYERS LAW OFFICES,
INC., Respondent.

Submitted January 4, 2010; decided February 18, 2010

Reported below, 2009 NY Slip Op 82076(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

KIMBERLY HURRELL-HARRING et al., on Behalf of Themselves
and All Others Similarly Situated, Appellants, v STATE OF
NEW YORK et al., Respondents.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 84.

Motion by National Association of Criminal Defense Lawyers et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

KIMBERLY HURRELL-HARRING et al., on Behalf of Themselves
and All Others Similarly Situated, Appellants, v STATE OF
NEW YORK et al., Respondents.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 84.

Motion by the Fund for Modern Courts for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

KIMBERLY HURRELL-HARRING et al., on Behalf of Themselves
and All Others Similarly Situated, Appellants, v STATE OF
NEW YORK et al., Respondents.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 84.

Motion by Michael A. Battle et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

KIMBERLY HURRELL-HARRING et al., on Behalf of Themselves
and All Others Similarly Situated, Appellants, v STATE OF
NEW YORK et al., Respondents.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 84.

Motion by Legal Aid Society for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

KIMBERLY HURRELL-HARRING et al., on Behalf of Themselves
and All Others Similarly Situated, Appellants, v STATE OF
NEW YORK et al., Respondents.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 84.

Motion by New York State Defenders Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

KIMBERLY HURRELL-HARRING et al., on Behalf of Themselves
and All Others Similarly Situated, Appellants, v STATE OF
NEW YORK et al., Respondents.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 84.

Motion by Innocence Project for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of JAMES W. McDONALD III, Respondent, v JHENNA
A. REED, Now Known as JHENNA A. LAFLAIR, Appellant.

Submitted January 4, 2010; decided February 18, 2010

Reported below, 68 AD3d 1181.

Motion for leave to appeal dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TARA GRAVINO, Appellant.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 62 AD3d 1259.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN MASON, Appellant.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 66 AD3d 487.

Motion for leave to appeal granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OMAR MONTES, Appellant.

Submitted February 16, 2010; decided February 18, 2010

Reported below, 67 AD3d 586.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

DOMINIKA ZAKRZEWSKA, Respondent, v THE NEW SCHOOL, Appellant, et al., Defendant.

Submitted February 16, 2010; decided February 18, 2010

See 574 F3d 24.

Motion by National Employment Lawyers Association/New York Chapter et al. for leave to appear amici curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

DOMINIKA ZAKRZEWSKA, Respondent, v THE NEW SCHOOL, Appellant, et al., Defendant.

Submitted February 16, 2010; decided February 18, 2010

See 574 F3d 24.

Motion by Memorial Sloan-Kettering Cancer Center et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

[925 NE2d 92, 899 NYS2d 749]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SUSAN McDADE, Appellant.

Decided February 23, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered July 9, 2009. The Appellate Division affirmed a judgment of the Rensselaer County Court (Robert M. Jacon, J.), which had convicted defendant, upon a jury verdict, of rape in the second degree, sexual abuse in the second degree, and endangering the welfare of an incompetent or physically disabled person.

People v McDade, 64 AD3d 884, affirmed.

HEADNOTE

Crimes — Rape — Mentally Disabled Victim

Legally sufficient evidence existed to support defendant's conviction of the second degree rape of a severely mentally disabled 17-year-old boy. Forensic DNA testing of a penile swab from the victim revealed the existence of significant amounts of defendant's DNA, which established that defendant had extended, noncasual contact with the victim's penis. Eyewitness evidence established that both the victim and defendant were naked. Moreover, the

People elicited evidence that the victim did not understand sex and was not known to masturbate or ejaculate. This evidence provided a valid line of reasoning and permissible inferences that could lead a rational jury to conclude that the contact between defendant and the victim was sexual intercourse. The fact that other inferences could have been drawn by the jury does not render the evidence legally insufficient.

APPEARANCES OF COUNSEL

O'Connell & Aronowitz, Albany (*Andrew R. Safranko* of counsel), for appellant.

Richard J. McNally, Jr., District Attorney, Troy (*Ian H. Silverman* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Legally sufficient evidence supports defendant Susan McDade's conviction of second-degree rape. Forensic DNA testing of a penile swab from the victim, a severely mentally disabled 17-year-old boy, revealed the existence of significant amounts of defendant's DNA, which established that defendant had extended, noncasual contact with the victim's penis. Eyewitness evidence established that both the victim and defendant were naked. Moreover, the People elicited additional evidence that the victim, who had the cognitive abilities of a toddler, did not understand sex and was not known to masturbate or ejaculate. This evidence provided a valid line of reasoning and permissible inferences that could lead a rational jury to conclude that the contact between defendant and L.R. was sexual intercourse, rather than oral sex or hand-to-penis contact, neither of which would require defendant to be completely naked and which would have resulted in sexual gratification to an individual who could not have understood. The fact that other inferences could have been drawn by the jury does not render the evidence legally insufficient.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

[925 NE2d 93, 899 NYS2d 750]

In the Matter of SUFFOLK COUNTY COMMUNITY COLLEGE et al.,
Respondents, v NEW YORK STATE DIVISION OF HUMAN
RIGHTS, Appellant and Cross Petitioner. BRUCE SIMMONS,
Respondent on the Cross Petition.

Decided February 23, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 21, 2009, in a proceeding pursuant to Executive Law § 298 and CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Suffolk County). The Appellate Division order, insofar as appealed from, (1) denied a cross petition by the New York State Division of Human Rights to enforce its determination which had adopted the recommendation of an Administrative Law Judge, made after a hearing, finding that petitioner Suffolk County Community College had engaged in unlawful racially discriminatory practices against one of its employees and retaliated against him, and awarding the employee compensatory damages, (2) annulled the determination, and (3) dismissed the administrative complaint.

Matter of Suffolk County Community Coll. v New York State Div. of Human Rights, 61 AD3d 881, reversed.

HEADNOTE

Civil Rights — Discrimination in Employment

In a proceeding to review a determination finding that petitioner college had engaged in unlawful racially discriminatory practices against one of its employees, an order of the Appellate Division, which annulled the determination and dismissed the administrative complaint, was reversed and the matter remitted to that Court for consideration of issues raised but not determined therein. Substantial evidence in the record supported the determination of the State Division of Human Rights that the complainant was subjected to unlawful discriminatory employment practices.

APPEARANCES OF COUNSEL

Michael K. Swirsky, Bronx, for appellant.

Christine Malafi, County Attorney, Hauppauge (*Jennifer K. McNamara* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar

as appealed from, reversed, with costs, and matter remitted to the Appellate Division, Second Department, for consideration of issues raised but not determined on the proceedings before that court. Substantial evidence in the record supports the determination of the State Division of Human Rights that complainant was subjected to unlawful discriminatory employment practices.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

WALTER ADAMS, Respondent, v GENIE INDUSTRIES, INC., Appellant.

Submitted February 16, 2010; decided February 23, 2010

Reported below, 53 AD3d 415.

Motion by Product Liability Advisory Council for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of ANONYMOUS, an Applicant for Admission to the Bar.

Decided February 23, 2010

Reported below, 67 AD3d 1248.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

TAZEWELL DELANEY et al., Appellants, v JOHN WESTON et al., Respondents.

Submitted November 23, 2009; decided February 23, 2010

Reported below, 66 AD3d 519.

Motion for leave to appeal dismissed upon the ground that the Appellate Division order does not finally determine the action within the meaning of the Constitution. The parties' stipulation, being conditional, does not finally determine the counterclaims for purposes of this Court's jurisdiction.

In the Matter of the Estate of RITA DeLORENZO, Deceased. JOYA PATERSON et al., Respondents; SUN LIFE INSURANCE AND ANNUITY COMPANY OF NEW YORK, Appellant.

Submitted January 4, 2010; decided February 23, 2010

Reported below, 67 AD3d 494.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ANTHONY DiSIMONE, Appellant, v LESTER B. ADLER et al., Respondents.

Decided February 23, 2010

Reported below, 67 AD3d 677.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of BERNHARD CHRISTIAN HELGASON, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent.

BERNHARD CHRISTIAN HELGASON, Appellant, v STATE OF NEW YORK (DIVISION OF HOUSING AND COMMUNITY RENEWAL), Respondent.

Submitted December 28, 2009; decided February 23, 2010

Reported below, 66 AD3d 490.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601). Motion for leave to appeal denied.

In the Matter of LOCKPORT SMART GROWTH, INC., et al., Appellants, v TOWN OF LOCKPORT et al., Respondents. (Proceeding No. 1.)

In the Matter of LOCKPORT SMART GROWTH, INC., et al., Appellants, v TOWN OF LOCKPORT ZONING BOARD OF APPEALS et al., Respondents. (Proceeding No. 2.)

Submitted January 4, 2010; decided February 23, 2010

Reported below, 63 AD3d 1549.

Motion by James Harris et al. for leave to file a memorandum of law amici curiae on the motion for leave to appeal herein denied, and for leave to file a brief amici curiae on the appeal herein dismissed as academic.

RUKMINAMMA MADIREDDY, Appellant, v SUBBA REDDY MADIREDDY, Also Known as SUBBA A. REDDY, Respondent, and CHITTEMMA REDDY, Intervenor-Respondent.

Decided February 23, 2010

Reported below, 66 AD3d 647.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved. The constitutional issue was not preserved.

TIMOTHY MAKARA, Respondent, v KELLY MAKARA, Appellant. KAREN KHAN, Nonparty Appellant; RAYLENE SHAYO, Nonparty Respondent.

Submitted December 21, 2009; decided February 23, 2010

Reported below, 65 AD3d 1018; 2009 NY Slip Op 89421(U).

Motion, insofar as it seeks leave to appeal from the portion of the September 2009 Appellate Division order that affirmed the imposition of sanctions against appellants and the grant of a counsel fee award to nonparty Shayo, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the September 2009 Appellate Division order and the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, do not

finally determine the action within the meaning of the Constitution.

FRANK MIRAGLIA, Respondent, v H & L HOLDING CORP., Defendant and Third-Party Plaintiff. LANE & SONS CONSTRUCTION CORP., Third-Party Defendant-Appellant.

Submitted December 28, 2009; decided February 23, 2010

Reported below, 67 AD3d 513.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed that part of Supreme Court's order that denied third-party appellant Lane and Sons Construction Corp.'s motion to amend the judgment, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

CORNELIUS J. O'CONNOR JR., Respondent, v SYRACUSE UNIVERSITY et al., Defendants, and BRIAN McNEIL, Appellant.

Submitted December 14, 2009; decided February 23, 2010

Reported below, 66 AD3d 1187.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

OXFORD HEALTH PLANS, INC., Respondent, v HOWARD L. SCHEINER, M.D., Appellant.

Submitted January 4, 2010; decided February 23, 2010

Reported below, 2009 NY Slip Op 89347(U); 2009 NY Slip Op 73322(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EFRAIN
HERNANDEZ, Appellant.

Submitted December 7, 2009; decided February 23, 2010

Reported below, 59 AD3d 180.

Motion to enlarge the record on appeal herein granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWIN
RODRIGUEZ, Appellant.

Submitted December 7, 2009; decided February 23, 2010

Reported below, 60 AD3d 452.

Motion to enlarge the record on appeal herein granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GREG-
ORY TAYLOR, Appellant.

Submitted January 25, 2010; decided February 23, 2010

Reported below, 62 AD3d 605.

Motion to strike portions of appellant's brief denied.

In the Matter of IGNACIO REYNOSO, Appellant, v BRIAN FISCHER,
as Commissioner of Correctional Services, Respondent.

Decided February 23, 2010

Reported below, 67 AD3d 1166.

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that no appeal lies as of right from the
unanimous order of the Appellate Division absent the direct
involvement of a substantial constitutional question (CPLR
5601).

In the Matter of RICHELIS S., an Infant. ERIE COUNTY DEPART-
MENT OF SOCIAL SERVICES, Respondent; RICHARD S., Appel-
lant.

Submitted February 1, 2010; decided February 23, 2010

Reported below, 68 AD3d 1643.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (CPLR 5601 [a]). Motion for a stay dismissed as academic. Motion for poor person relief dismissed as academic.

GINA RUDDEN, Appellant, v FRANCINE BERNSTEIN et al., Defendants, and KAITLIN SMIRALDO et al., Respondents.

Submitted January 4, 2010; decided February 23, 2010

Reported below, 61 AD3d 736.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of SEROTA BROWN COURT II, LLC, et al., Respondents, v TOWN OF HEMPSTEAD et al., Appellants. TOWN BOARD OF TOWN OF HEMPSTEAD, Nonparty Appellant.

Decided February 23, 2010

Reported below, 62 AD3d 715; 2009 NY Slip Op 77779(U).

Appeal by the Town of Hempstead, the Board of Appeals of the Town of Hempstead, and the Department of Buildings of the Town of Hempstead, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the May 2009 and July 2009 Appellate Division orders appealed from do not finally determine the proceeding within the meaning of the Constitution. Appeal by the Town Board of the Town of Hempstead, insofar as taken from the Appellate Division order that, among other things, denied its motion to intervene, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal, insofar as taken from the Appellate Division order affirming the judgment of Supreme Court granting the petition, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the Town Board of the Town of Hempstead is not a party to this proceeding.

In the Matter of DIANE WORD, Appellant, v SUPERINTENDENT OF
BEDFORD HILLS CORRECTIONAL FACILITY et al., Respondents.

Submitted January 19, 2010; decided February 23, 2010

Reported below, 2009 NY Slip Op 73917(U).

Motion for reconsideration of this Court's September 22, 2009
dismissal order denied [*see* 13 NY3d 793 (2009)].

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(February 1, 2010 through February 28, 2010)

People v Ramirez	1st Dept: 60 AD3d 560	2/16/10
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2010 through February 28, 2010)

People v Abraham	1st Dept: 66 AD3d 412 (Bronx)	denied 2/23/10 (Grafteo, J.)
People v Ai Jiang	1st Dept: 62 AD3d 515 (NY)	denied 2/22/10 (Pigott, J.)
People v Allan	App Div, 2d Dept: 2009 NY Slip Op 90054(U) (Suffolk)	dismissed 2/4/10 (Pigott, J.)
People v Anderson	App Term, 1st Dept: 25 Misc 3d 135(A) (NY)	denied 2/23/10 (Lippman, Ch. J.)
People v Argentieri	1st Dept: 66 AD3d 558 (NY)	denied 2/3/10 (Ciparick, J.)
People v Babb	2d Dept: 68 AD3d 887 (Kings)	denied 2/4/10 (Pigott, J.)
People v Baker	4th Dept: 67 AD3d 1446 (Cayuga)	denied 2/17/10 (Read, J.)
People v Barnhard	App Term, 1st Dept: 25 Misc 3d 135(A) (NY)	denied 2/4/10 (Pigott, J.)
People v Bean	4th Dept: 66 AD3d 1386 (Cattaraugus)	denied 2/5/10 (Lippman, Ch. J.)
People v Benton	4th Dept: 67 AD3d 1357 (Monroe)	denied 2/22/10 (Pigott, J.)
People v Bhungalia	App Term, 1st Dept: 25 Misc 3d 135(A) (NY)	denied 2/4/10 (Pigott, J.)
People v Blackmon	2d Dept: 67 AD3d 1022 (Rockland)	denied 2/22/10 (Pigott, J.)
People v Boateng	1st Dept: 67 AD3d 505 (Bronx)	denied 2/23/10 (Lippman, Ch. J.)
People v Bowen	2d Dept: 67 AD3d 1022 (Kings)	denied 2/4/10 (Pigott, J.)

People v Britt	2d Dept: 67 AD3d 1023 (Kings)	denied 2/24/10 (Pigott, J.)
People v Broadnax	4th Dept: 66 AD3d 1499 (Onondaga)	denied 2/17/10 (Read, J.)
People v Brown	County Ct, 12/15/09 (Albany)	dismissed 2/23/10 (Ciparick, J.)
People v Callaghan	App Div, 3d Dept: 2009 NY Slip Op 92814(U) (Albany)	dismissed 2/3/10 (Ciparick, J.)
People v Campbell (Danene)	3d Dept: 67 AD3d 1125 (Schenectady)	denied 2/17/10 (Read, J.)
People v Campbell (William)	1st Dept: 66 AD3d 590 (NY)	granted 2/5/10 (Pigott, J.)
People v Carbone	App Div, 2d Dept: 2009 NY Slip Op 89559(U) (Queens)	dismissed 2/16/10 (Read, J.)
People v Chacko	1st Dept: 66 AD3d 581 (NY)	denied 2/1/10 (Ciparick, J.)
People v Chandler	App Div, 1st Dept: 2009 NY Slip op 87054(U) (NY)	denied 2/23/10 (Grafteo, J.)
People v Coble	4th Dept: 66 AD3d 1446 (Erie)	denied 2/17/10 (Read, J.)
People v Cochran	1st Dept: 66 AD3d 523 (NY)	denied 2/16/10 (Read, J.)
People v Concepcion	1st Dept: 68 AD3d 404 (Bronx)	denied 2/24/10 (Pigott, J.)
People v Cook	1st Dept: 68 AD3d 511 (Bronx)	denied 2/23/10 (Lippman, Ch. J.)
People v Cooper	2d Dept: 66 AD3d 795 (Orange)	denied 2/16/10 (Read, J.)
People v Cordisco	1st Dept: 68 AD3d 565 (NY)	denied 2/22/10 (Pigott, J.)
People v Corona	App Term, 2d Dept: 25 Misc 3d 129(A) (Queens)	denied 2/16/10 (Read, J.)
People v Corriette	App Term, 2d Dept: 25 Misc 3d 141(A) (Suffolk)	denied 2/24/10 (Grafteo, J.)
People v Dozier	App Div, 1st Dept: 2009 NY Slip Op 89954(U) (NY)	denied 2/16/10 (Read, J.)
People v Dumbleton	4th Dept: 67 AD3d 1451 (Monroe)	denied 2/16/10 (Read, J.)
People v Eddo	App Div, 2d Dept: 2009 NY Slip Op 83407(U) (Kings)	dismissed 2/16/10 (Read, J.)
People v Elmore	App Div, 1st Dept: 2009 NY Slip Op 87029(U) (NY)	denied 2/24/10 (Smith, J.)
People v Evans	App Div, 3d Dept: 2009 NY Slip Op 82329(U) (Schenectady)	denied 2/17/10 (Read, J.)
People v Faccio	App Div, 3d Dept: 2009 NY Slip Op 84307(U) (Greene)	denied 2/3/10 (Ciparick, J.)
People v Farkas	2d Dept: 65 AD3d 700 (Kings)	granted 2/23/10 (Smith, J.)
People v Faulkner	2d Dept: 68 AD3d 892 (Queens)	denied 2/24/10 (Smith, J.)

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People v Felice	4th Dept: 66 AD3d 1499 (Onondaga)	denied 2/17/10 (Read, J.)
People v Figueroa	1st Dept: 67 AD3d 610 (Bronx)	denied 2/23/10 (Grafteo, J.)
People v Fulton	1st Dept: 67 AD3d 484 (NY)	denied 2/23/10 (Lippman, Ch. J.)
People v Garcia-Gual	4th Dept: 67 AD3d 1356 (Monroe)	denied 2/16/10 (Read, J.)
People v Gilkeson	App Div, 4th Dept, 12/17/09 (Onondaga)	dismissed 2/10/10 (Jones, J.)
People v Gonzalez	1st Dept: 68 AD3d 627 (NY)	denied 2/24/10 (Pigott, J.)
People v Greene	2d Dept: 68 AD3d 784 (Queens)	denied 2/24/10 (Pigott, J.)
People v Gumbs	1st Dept: 66 AD3d 558 (NY)	dismissed 2/16/10 (Read, J.)
People v Hall (Dabney)	App Div, 2d Dept: 2009 NY Slip Op 90301(U) (Kings)	dismissed 2/25/10 (Grafteo, J.)
People v Hall (Murray)	County Ct, 11/24/09 (Albany)	denied 2/23/10 (Lippman, Ch. J.)
People v Hart	4th Dept: 67 AD3d 1355 (Erie)	denied 2/23/10 (Lippman, Ch. J.)
People v Harzynski (Christopher)	4th Dept: 67 AD3d 1438 (Erie)	denied 2/1/10 (Ciparick, J.) (Appeal No. 1)
People v Harzynski (Christopher)	4th Dept: 67 AD3d 1438 (Erie)	denied 2/1/10 (Ciparick, J.) (Appeal No. 2)
People v Haughey	2d Dept: 67 AD3d 928 (Putnam)	denied 2/24/10 (Smith, J.)
People v Haywood	1st Dept: 66 AD3d 613 (NY)	denied 2/16/10 (Read, J.)
People v Hopkins	1st Dept: 67 AD3d 471 (NY)	denied 2/17/10 (Read, J.)
People v Howard	App Div, 2d Dept: 2009 NY Slip Op 84455(U) (Kings)	dismissed 2/25/10 (Grafteo, J.)
People v Hunt	2d Dept: 66 AD3d 926 (Westchester)	denied 2/16/10 (Read, J.)
People v Jackson (Constantine)	4th Dept: 63 AD3d 1670, 1671 (Onondaga)	denied reconsideration 2/16/10 (Read, J.)
People v Jackson (Darnell)	1st Dept: 68 AD3d 484 (NY)	denied 2/17/10 (Read, J.)
People v Jackson (Lawrence)	App Div, 1st Dept: 2009 NY Slip Op 90852(U) (NY)	dismissed 2/1/10 (Lippman, Ch. J.)
People v Johnson (David)	2d Dept: 68 AD3d 784 (Queens)	denied 2/24/10 (Pigott, J.)
People v Johnson (Tyrone)	2d Dept: 66 AD3d 703 (Queens)	denied 2/17/10 (Read, J.)
People v Johnson (Wellington)	App Div, 3d Dept: 2009 NY Slip Op 91008(U) (Madison)	denied 2/4/10 (Pigott, J.)
People v Jones (Anthony)	4th Dept: 67 AD3d 1437 (Ontario)	denied 2/17/10 (Read, J.)

People v Jones (Jammer)	4th Dept: 66 AD3d 1446 (Erie)	denied 2/17/10 (Read, J.)
People v Kalansuriya	App Term, 2d Dept: 25 Misc 3d 141(A) (Richmond)	denied 2/16/10 (Read, J.)
People v Kraft	4th Dept: 67 AD3d 1389 (Monroe)	denied 2/24/10 (Smith, J.)
People v Lacey	2d Dept: 66 AD3d 704 (Nassau)	denied 2/4/10 (Pigott, J.)
People v Lewis	4th Dept: 67 AD3d 1396 (Monroe)	denied 2/23/10 (Smith, J.)
People v Lopez	2d Dept: 67 AD3d 708 (Kings)	denied 2/23/10 (Lippman, Ch. J.)
People v MacLean	4th Dept: 66 AD3d 1499 (Livingston)	denied 2/23/10 (Lippman, Ch. J.)
People v Major	3d Dept: 68 AD3d 1244 (Albany)	denied 2/17/10 (Read, J.)
People v Martinez	1st Dept: 67 AD3d 422 (NY)	denied 2/16/10 (Read, J.)
People v McCullough	1st Dept: 68 AD3d 410 (NY)	denied 2/17/10 (Read, J.)
People v Medina (Jose)	1st Dept: 66 AD3d 588 (NY)	denied 2/17/10 (Read, J.)
People v Medina (Segundo)	1st Dept: 68 AD3d 420 (NY)	denied 2/24/10 (Grafteo, J.)
People v Miller	3d Dept: 66 AD3d 1242 (Clinton)	denied 2/22/10 (Pigott, J.)
People v Munlyn	2d Dept: 67 AD3d 1028 (Nassau)	denied 2/23/10 (Lippman, Ch. J.)
People v Murray	2d Dept: 68 AD3d 896 (Kings)	denied 2/25/10 (Grafteo, J.)
People v Nelson	4th Dept: 66 AD3d 1430 (Monroe)	denied* 2/24/10 (Pigott, J.)
People v O'Halloran	App Div, 3d Dept: 2009 NY Slip Op 88495(U) (Broome)	denied reconsideration 2/18/10 (Ciparick, J.)
People v Overton	1st Dept: 66 AD3d 604 (NY)	denied 2/23/10 (Lippman, Ch. J.)
People v Owens	4th Dept: 66 AD3d 1428 (Monroe)	denied 2/5/10 (Lippman, Ch. J.)
People v Paige	1st Dept: 68 AD3d 609 (NY)	denied 2/23/10 (Grafteo, J.)
People v Pierre	App Term, 2d Dept: 25 Misc 3d 129(A) (Nassau)	denied 2/23/10 (Lippman, Ch. J.)
People v Porto	1st Dept: 66 AD3d 430 (NY)	granted 2/5/10 (Pigott, J.)
People v Quezada	1st Dept: 66 AD3d 520 (Bronx)	denied 2/17/10 (Read, J.)

* Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Ellsworth* (59 AD3d 989 [2009], *lv granted* 12 NY3d 924 [2009]).

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People v Rawls	1st Dept: 65 AD3d 978 (NY)	denied 2/5/10 (Lippman, Ch. J.)
People v Reyes	App Div, 2d Dept: 2009 NY Slip Op 88839(U) (Kings)	dismissed 2/5/10 (Lippman, Ch. J.)
People v Rivera	App Div, 1st Dept: 2009 NY Slip Op 90838(U) (NY)	denied 2/23/10 (Grafteo, J.)
People v Rivers	4th Dept: 67 AD3d 1435 (Onondaga)	denied 2/23/10 (Smith, J.)
People v Robinson	2d Dept: 67 AD3d 933 (Queens)	denied 2/23/10 (Lippman, Ch. J.)
People v Rodriguez (Carlos)	2d Dept: 67 AD3d 712 (Kings)	denied 2/23/10 (Grafteo, J.)
People v Rodriguez (Clara)	App Div, 1st Dept: 2009 NY Slip Op 88179(U) (Bronx)	dismissed 2/1/10 (Lippman, Ch. J.)
People v Rodriguez (Gary)	App Div, 1st Dept: 2009 NY Slip Op 85373(U) (NY)	denied 2/17/10 (Read, J.)
People v Rosa	1st Dept: 67 AD3d 440 (NY)	denied 2/17/10 (Read, J.)
People v Rosado	App Div, 1st Dept: 2009 NY Slip Op 88959(U) (NY)	denied 2/16/10 (Read, J.)
People v Ruiz	App Term, 2d Dept: 25 Misc 3d 129(A) (Suffolk)	denied 2/16/10 (Read, J.)
People v Shaw	4th Dept: 66 AD3d 1417 (Onondaga)	denied 2/23/10 (Lippman, Ch. J.)
People v Shofkom	App Div, 3d Dept: 2009 NY Slip Op 84366(U) (Chenango)	dismissed 2/16/10 (Read, J.)
People v Shovah	3d Dept: 67 AD3d 1257 (Washington)	denied 2/17/10 (Read, J.)
People v Singleton	4th Dept: 67 AD3d 1455 (Ontario)	denied 2/4/10 (Ciparick, J.)
People v Smith	3d Dept: 66 AD3d 1223 (Clinton)	denied 2/24/10 (Pigott, J.)
People v Stewart	3d Dept: 68 AD3d 1438 (Schenectady)	denied 2/24/10 (Pigott, J.)
People v Strauts	4th Dept: 67 AD3d 1381 (Oswego)	denied 2/23/10 (Grafteo, J.)
People v Thompson (Daniel)	2d Dept: 67 AD3d 826 (Nassau)	denied 2/23/10 (Grafteo, J.)
People v Thompson (Richard)	1st Dept: 67 AD3d 565 (NY)	denied 2/1/10 (Ciparick, J.)
People v Thompson (Shamgod)	App Div, 4th Dept, 12/17/09 (Wayne)	dismissed 2/4/10 (Ciparick, J.)
People v Uzo	1st Dept: 68 AD3d 545 (NY)	denied 2/25/10 (Grafteo, J.)
People v VanDeViver	4th Dept: 66 AD3d 1499 (Oswego)	denied 2/17/10 (Read, J.)
People v Victory	2d Dept: 65 AD3d 1391 (Kings)	denied 2/5/10 (Lippman, Ch. J.)
People v Williams (Jair)	2d Dept: 64 AD3d 734 (Kings)	granted 2/5/10 (Lippman, Ch. J.)

People v Williams (Kevin)	1st Dept: 68 AD3d 414 (NY)	denied 2/23/10 (Grafteo, J.)
People v Williams (Michael)	2d Dept: 66 AD3d 926 (Westchester)	denied 2/16/10 (Read, J.)
People v Wilson	3d Dept: 61 AD3d 1269 (Rensselaer)	denied 2/1/10 (Ciparick, J.)
People v Wise	App Term, 1st Dept: 25 Misc 3d 135(A) (NY)	denied 2/4/10 (Pigott, J.)
People v Woods	2d Dept: 67 AD3d 829 (Suffolk)	denied 2/3/10 (Ciparick, J.)
People v Woolcock	2d Dept: 66 AD3d 803 (Kings)	denied 2/3/10 (Ciparick, J.)
People v Wright	1st Dept: 68 AD3d 573 (NY)	denied 2/23/10 (Grafteo, J.)
People v Yong Liu	App Div, 1st Dept: 2009 NY Slip Op 85581(U) (NY)	denied 2/23/10 (Lippman, Ch. J.)
People v Zuhlke	4th Dept: 67 AD3d 1341 (Monroe)	denied 2/5/10 (Lippman, Ch. J.)

[925 NE2d 581, 898 NYS2d 542]

**ASHLAND MANAGEMENT INCORPORATED, Respondent, v ALTAIR
INVESTMENTS NA, LLC, et al., Appellants.**

Argued February 11, 2010; decided March 25, 2010

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 23, 2008. The Appellate Division affirmed an order of the Supreme Court, New York County (Shirley Werner Kornreich, J.; op 2006 NY Slip Op 30532[U]), which had granted a motion by defendants for summary judgment solely to the extent of dismissing the fifth and sixth causes of action, and denied a cross motion by plaintiff to reinstate a previously issued preliminary injunction. The following question was certified by the Appellate Division: “Was the order of this Court, which affirmed the order of the Supreme Court, properly made?”

Following the resignation of defendants from their employment with plaintiff and their opening of a competing business, plaintiff commenced the present action asserting seven causes of action for: (1) an injunction directing defendants to cease and desist from using any information in their new business that they acquired when employed with plaintiff; (2) and (3) breach of fiduciary duty; (4) breach of confidentiality agreements; (5)

conversion; (6) tortious interference with plaintiff's contractual relations; and (7) unfair competition as against the corporate defendant.

Ashland Mgt. Inc. v Altair Invs. NA, LLC, 59 AD3d 97, modified.

HEADNOTE

Employment Relationships — Solicitation of Former Employer's Customers — Breach of Fiduciary Duties

In an action arising out of the individual defendants' resignation from plaintiff's employment and their founding of a competing business, causes of action seeking injunctive relief or damages for misappropriation of client lists or trade secrets prior to their resignation were dismissed. The confidentiality agreements executed by defendants did not prohibit them from soliciting plaintiff's clients or contacting its business referrers after their termination of employment. Plaintiff failed to raise triable issues of fact as to whether its customer lists constituted a trade secret, and whether defendants improperly used plaintiff's performance data or took any confidential customer information before leaving plaintiff's employ. But plaintiff did raise questions of fact regarding whether defendants breached their fiduciary duties by using plaintiff's time and resources to form their new business and promote themselves while still working for plaintiff, and whether defendants improperly accessed one of plaintiff's accounts to discover client information after their employment with plaintiff had ceased.

APPEARANCES OF COUNSEL

Gordon & Haffner, LLP, Harrison (*David Gordon* of counsel), for appellants.

Grayson & Associates, Greenwich, Connecticut (*Eric D. Grayson* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by dismissing the first, second, third, fourth and seventh causes of action to the extent they seek injunctive relief or damages for defendants' misappropriation of client lists or trade secrets prior to their resignation, and otherwise affirmed. The certified question should be answered in the negative.

The confidentiality agreements executed by defendants did not prohibit them from soliciting plaintiff's clients or contacting its business referrers after their termination of employment. Moreover, plaintiff failed to raise a triable issue of fact as to whether its customer lists constituted a trade secret (*see Leo Silfen, Inc. v Cream*, 29 NY2d 387 [1972]) and whether defendants improperly used plaintiff's performance data or took any

confidential customer information before leaving plaintiff's employ. But plaintiff did raise questions of fact regarding whether defendants breached their fiduciary duties by using plaintiff's time and resources to form a new business and promote themselves while still working for plaintiff. An issue of fact also exists as to whether defendants improperly accessed plaintiff's Federal Express account to discover client information after their employment with plaintiff had ceased.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order modified, without costs, in accordance with the memorandum herein and, as so modified, affirmed. Certified question answered in the negative.

[925 NE2d 581, 898 NYS2d 543]

CECILIA TEODORESCU, Appellant, v RESNICK & BINDER, P.C., Respondent.

Argued February 11, 2010; decided March 25, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 14, 2008. The Appellate Division reversed, on the law, so much of an order of the Supreme Court, Kings County (Gloria M. Dabiri, J.), which had denied a motion by defendant for summary judgment dismissing the complaint, and granted defendant's motion for summary judgment dismissing the complaint.

Following plaintiff's slip and fall on ice on a public sidewalk in front of a building owned by the New York City Housing Authority, she retained defendant law firm. After the claim against the Authority was dismissed for failure to serve a timely notice of claim, plaintiff commenced the present action for legal malpractice. Defendant moved to dismiss, asserting that plaintiff could not have prevailed in the underlying action. Supreme Court concluded that plaintiff presented sufficient evidence to raise a triable issue of fact as to whether the Authority could have been found liable to plaintiff on a theory of constructive notice. The Appellate Division concluded that plaintiff could not prevail on that theory since she could not point out the exact location of her fall other than that it was in the middle of a block

in front of the building owned by the Authority, and she offered only speculation that the ice on which she slipped had to have been a product of prior snowfalls which were not properly cleared.

Teodorescu v Resnick & Binder, P.C., 55 AD3d 721, reversed.

HEADNOTE

Attorney and Client — Malpractice — Success in Underlying Action

In a legal malpractice action arising out of plaintiff's slip and fall on an icy sidewalk, defendant's motion for summary judgment was denied. Plaintiff raised issues of fact regarding whether she could have prevailed in the underlying action on a theory of constructive notice.

APPEARANCES OF COUNSEL

Lawrence B. Lame, Jamaica, and *Jonah Grossman* for appellant.

Kelleher & Maragno, LLP, Albany (*John J. Kelleher* of counsel), for respondent.

OPINION OF THE COURT

Order reversed, with costs, and defendant's motion for summary judgment denied. We hold, contrary to the Appellate Division, that plaintiff raised issues of fact regarding whether she could have prevailed on a theory of constructive notice.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[925 NE2d 582, 898 NYS2d 543]

ANNE B. WASHINGTON, Appellant, v BARRY A. WASHINGTON, Respondent.

Decided March 25, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 5, 2008. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Queens County (Sidney Leviss, J.H.O.), entered after a nonjury trial, which had awarded plaintiff damages in the principal sum of \$46,373.31, and (2) dismissed the complaint.

Plaintiff commenced the present action to recover the share of the college expenses of the parties' sons allegedly owed to her

pursuant to a marital settlement agreement. The Appellate Division noted that parties' marital settlement agreement provided that "[a]ny expense of the children's education that will not be covered by the proceeds of [a certain trust] will be equally shared between the husband and wife," and that "[b]oth parties will contribute to their children's education at an accredited institution of higher learning in accordance with their means and abilities." The Court determined that plaintiff failed to produce any evidence as to the proceeds or balance of the trust available to cover the children's educational expenses, that no evidence was adduced concerning the means and abilities of the parties, and that, accordingly, plaintiff failed to establish a contractual entitlement to recovery of the sought-after college expenses pursuant to the terms of the agreement.

Washington v Washington, 56 AD3d 463, reversed.

HEADNOTE

Parent and Child — Support — College Expenses

In a nonjury trial in which plaintiff sought to recover a portion of the college expenses of the parties' sons under a marital settlement agreement, the parties charted their own course, effectively removing from the case the question whether certain trust funds set up to pay those costs were exhausted and thereby eliminating plaintiff's burden on that issue. The Appellate Division erred in holding that no evidence was adduced as to the means and abilities of the parties to contribute to their children's college education expenses. Such evidence was adduced, and, as a matter of law, defendant had sufficient means to contribute to his sons' college education expenses within the meaning of the parties' separation agreement.

APPEARANCES OF COUNSEL

Amy S. Nord, Valley Stream, for appellant.

Barry A. Washington, respondent pro se.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the judgment of Supreme Court reinstated.

In this nonjury trial, the parties charted their own course, effectively removing from the case the question whether the trust funds were exhausted and thereby eliminating plaintiff mother's burden on this issue. The Appellate Division erred in holding that no evidence was adduced as to the means and abilities of the parties to contribute to their children's college education expenses. Such evidence was adduced, and we conclude as a matter of law that defendant father had sufficient

means to contribute to his sons' college education expenses within the meaning of the parties' separation agreement. Defendant father's remaining arguments in support of affirmance are without merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[925 NE2d 582, 898 NYS2d 544]

RAMONA ORTIZ, Respondent, v CITY OF NEW YORK, Appellant,
and 240 WEST 98TH STREET ASSOCIATES et al., Respondents.

Decided March 25, 2010

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 25, 2009. The Appellate Division order, insofar as appealed from, affirmed an order of the Supreme Court, New York County (Karen S. Smith, J.), which had granted defendant City of New York's motion for summary judgment dismissing the complaint and all cross claims as against it only to the extent of finding that defendant had not received prior written notice of a hole over which plaintiff allegedly tripped, and had denied the motion to the extent of finding that issues of fact existed as to whether defendant had caused or created the hole. The following question was certified by the Appellate Division: "Was the order of this Court properly made?"

Plaintiff commenced the instant action to recover damages after she tripped and injured her knee when she stepped into a triangle-shaped hole at the bottom edge of a pedestrian ramp connected to a sidewalk. A missing street curb formed the base of the hole. The majority at the Appellate Division concluded that although defendant municipality did not have prior written notice of the defective condition, an issue of fact existed as to whether it caused or created the defect, citing evidence that the municipality repaved the street and either buried the curb or failed to install one, thereby creating a vertical drop from the ramp to the street, and noting that the missing curb, which was the municipality's responsibility, accounted for the base of the triangular hole. The dissent concluded that evidence concerning

the missing curb or construction of the ramp was irrelevant as plaintiff never stated these conditions were the cause of her fall, and that it was nothing but speculation to say that the hole was an immediate result of the municipality's work.

Ortiz v City of New York, 67 AD3d 21, reversed.

HEADNOTE

Municipal Corporations — Notice of Street Defect

In a personal injury action arising out of plaintiff's trip over a hole at the bottom edge of a pedestrian ramp leading from a street to a sidewalk, an order of the Appellate Division which affirmed the denial of defendant municipality's motion for summary judgment, was reversed. No triable issue of fact existed as to whether the municipality created a dangerous condition that caused plaintiff's injuries.

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Deborah A. Brenner* of counsel), for appellant.

Pollack, Pollack, Isaac & De Cicco, New York City (*Brian J. Isaac* of counsel) for Ramona Ortiz, respondent.

Flynn, Gibbons & Dowd, New York City (*Lawrence A. Doris* of counsel), for 240 West 98th Street Associates, LLC and another, respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, reversed, with costs, defendant City of New York's motion for summary judgment granted, the complaint and all cross claims against the City of New York dismissed, and certified question answered in the negative. No triable issue of fact exists as to whether the City created a dangerous condition that caused plaintiff's injuries.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[926 NE2d 231, 899 NYS2d 724]

BARNAN ASSOCIATES LLC, Respondent, v 196 OWNERS CORP.,
Appellant.

Argued February 9, 2010; decided March 25, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 18, 2008. The Appellate Division modified, on the law, an order of the Supreme Court, New York County (Edward H. Lehner, J.; op 15 Misc 3d 1133[A], 2007 NY Slip Op 50962[U]), which had denied motions by plaintiff for summary judgment on its claim for overpayments of tax escalation rent for certain tax years and for leave to amend its complaint to seek declaratory relief with respect to future tax years, and granted defendant's cross motion for summary judgment dismissing the complaint. The modification consisted of granting plaintiff's motion for summary judgment, denying defendant's cross motion, and directing entry of judgment in favor of plaintiff and against defendant in the principal sum of \$56,675.77.

Barnan Assoc. v 196 Owners Corp., 56 AD3d 309, reversed.

HEADNOTE**Landlord and Tenant — Lease — Tax Escalation Clause**

Defendant corporate landlord properly increased plaintiff commercial tenant's rent pursuant to the tax escalation clause in the parties' lease by 14½% of the increase in real estate taxes, including the amount of tax abatements and exemptions defendant was required to pay to the eligible tenant-shareholders pursuant to various tax benefit programs. The terms of the lease determined whether plaintiff was entitled to deduct the relevant tax abatements and exemptions from its tax rents, and the tax escalation clause unambiguously stated that the additional tax charged to plaintiff applied to "any increase in such real estate taxes" on the land greater than the "base amount of real estate taxes." The base amount was determined with reference to the "base assessed valuation"—a term that the lease required to be calculated "without regard or giving effect to any exception or abatement." Thus it would have been illogical to give effect to exemptions and abatements in calculating the "increase in such real estate taxes" and the resulting escalation. Moreover, the tax benefit programs did not decrease defendant's tax liability.

APPEARANCES OF COUNSEL

Abrams Garfinkel Margolis Bergson, LLP, New York City (Barry G. Margolis of counsel), for appellant.

Michael B. Kramer & Associates, New York City (Michael B. Kramer, Rubin Jay Ginsberg and Morgan E. Downer of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, with costs, and the order of Supreme Court reinstated.

Plaintiff Barnan Associates LLC is a commercial tenant on the ground floor of a cooperative apartment building owned by defendant 196 Owners Corp., and located at 196 East 75th Street in New York City. In 1979, prior to the building's cooperative conversion, Barnan entered into a lease agreement with then landlord, nonparty Robert Olnick Associates. The parties agreed that Barnan would pay "Fixed Net Rent" and "Additional Rent based on Increase in Real Estate Taxes," as a commercial tenant of the building. The lease states in relevant part:

"The Tenant agrees to pay to the Landlord as additional rent during each lease year subsequent to the New York City real estate tax year commencing July 1, 1979 and ending June 30, 1980, Fourteen and one-half (14 1/2%) percent of the dollar amount of any increase in such real estate taxes on the said land, buildings and improvements (of which the demised premises are a part) over and above the 'base amount of real estate taxes,' whether such increase in real estate taxes shall be occasioned by an increase in assessed valuation or an increase in tax rate, or both."

The parties defined the following words:

" 'base assessed valuation' shall be the total fully assessed valuation (made without regard or giving effect to any exemption or abatement) of the parcel of [the subject land] for the New York City real estate tax year commencing July 1, 1979 and ending July [*sic*] 30, 1980; . . .

" 'base tax rate' shall be the real estate tax for the Borough of Manhattan for the New York City real estate tax year commencing July 1, 1979 and ending June 30, 1980; . . .

"[and] 'base amount of real estate taxes' shall be the dollar amount computed by and resulting from the application of the 'base tax rate' to the 'base assessed valuation.' "

Accordingly, Barnan has paid 14¹/₂% "of the dollar amount of any increase in such real estate taxes" on the premises for the subsequent tax years.

Sometime after the lease was executed, Robert Olnick Associates sponsored the building's cooperative conversion. As a result of the conversion, 196 Owners Corp., a cooperative corporation, was created. By 1981, the corporation was the building's owner and successor landlord of the lease. More than a decade later, the State of New York enacted certain tax benefit programs targeting condominium owners and cooperative tenant-shareholders. Since the 1998-1999 tax year, tenant-shareholders in the subject building have availed themselves of certain tax benefit programs, pursuant to Real Property Tax Law §§ 425 and 467-a, which come in the form of tax abatements and exemptions. The City of New York calculates these abatements and exemptions and directs payment from the building's real estate tax assessment, which the corporation pays to tenant-shareholders directly.

In 2005, Barnan became aware that, since the 1998-1999 tax year, its yearly 14¹/₂% tax share of the building's billable taxes included the tenant-shareholders' tax abatements and exemptions. Barnan has since claimed that the corporation overcharged it in tax rents as the corporation failed to deduct the tax abatements and exemptions paid to the tenant-shareholders from its proportionate tax liability. Barnan demanded reimbursement, and the corporation refused. In 2006, Barnan commenced this action against the corporation for, among other things, reimbursement of the alleged overcharges. Barnan contends that the lease between the parties entitles it to deduct from its tax rents the tax abatements and exemptions that the corporation pays to the individual tenant-shareholders.

Supreme Court granted defendant's motion for summary judgment dismissing the complaint. It found that the tax escalation clause of the lease agreement was ambiguous as to whether tax abatements and exemptions should be excluded from the amount of real estate taxes assessed against the property and relied upon "the course of conduct of the parties since the defendant acquired title to the Building" (15 Misc 3d 1133[A], 2007 NY Slip Op 50962[U], *4 [2007]). The Appellate Division unanimously modified, on the law, by granting plaintiff's motion for summary relief, directing judgment in favor of plaintiff in the sum of \$56,675.77, and denying defendant's cross motion (*Barnan Assoc. v 196 Owners Corp.*, 56 AD3d 309 [2008]). The court rejected Supreme Court's finding of ambiguity and application of the voluntary payment doctrine, and concluded that the result below was contrary to cases involving tax escalation clauses (*id.* at 311).

The terms of the lease determine whether Barnan is entitled to deduct the relevant tax abatements and exemptions from its tax rents (*Raleigh Assoc. v Henry*, 302 NY 467, 474 [1951]; see also *Fairfax Co. v Whelan Drug Co.*, 105 AD2d 647 [1st Dept 1984]; *Park Sq. Garage v New York Univ.*, 27 AD2d 460 [1st Dept 1967]). Here, the tax escalation clause unambiguously states that the additional tax charged to Barnan applies to “any increase in such real estate taxes” on the land greater than the “base amount of real estate taxes.” In addition, the base amount is determined with reference to the “base assessed valuation”—a term that the lease requires be calculated “without regard or giving effect to any exemption or abatement.” Thus it would be illogical to give effect to exemptions and abatements in calculating the “increase in *such* real estate taxes” and the resulting escalation. Moreover, in this case, the tax benefit programs did not decrease the corporation’s tax liability (*cf. Fairfax Co. v Whelan Drug Co.*, 105 AD2d 647 [1984] [the tenant was not required to pay additional taxes to the landlord pursuant to the tax escalation clause because the actual property tax reduced by more than 50%]). Accordingly, the corporation properly increased Barnan’s rent pursuant to the tax escalation clause by 14¹/₂% of the increase in real estate taxes, including the amount the corporation was required to pay to the eligible tenant-shareholders pursuant to the tax benefit programs.

Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum; Chief Judge LIPPMAN taking no part.

Order reversed, etc.

In the Matter of OSCAR CINTRON, Appellant, v JUDITH A. CALOGERO, as Commissioner of the Division of Housing and Community Renewal of the State of New York, Respondent.

Submitted March 22, 2010; decided March 25, 2010

Reported below, 59 AD3d 345.

Motion by Fifth Avenue Committee et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of DANIEL H., a Person Alleged to be a Juvenile Delinquent, Appellant.

Submitted March 8, 2010; decided March 25, 2010

Reported below, 67 AD3d 527.

Motion for poor person relief granted.

ZANA DOBROSHI, on Behalf of Herself and All Others Similarly Situated, Appellant, v BANK OF AMERICA, N.A., Respondent.

Submitted January 4, 2010; decided March 25, 2010

Reported below, 65 AD3d 882.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DONALD GIMENO, Respondent, v AMERICAN SIGNATURE, INC., Doing Business as VALUE-CITY FURNITURE, et al., Respondents, and MELCO CONSTRUCTION SERVICES, INC., et al., Appellants, et al., Defendant.

Submitted January 11, 2010; decided March 25, 2010

Reported below, 67 AD3d 1463.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

KEVIN GLASSMAN, Respondent, v PROHEALTH AMBULATORY SURGERY CENTER, INC., et al., Appellants.

Submitted March 22, 2010; decided March 25, 2010

Reported below, 55 AD3d 538.

Motion by Greater New York Hospital Association for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

PAUL KUHNE, Appellant, v COHEN & SLAMOWITZ, LLP, et al.,
Respondents.

Decided March 25, 2010

See 579 F3d 189.

Pursuant to the March 4, 2010 order of the United States Court of Appeals for the Second Circuit withdrawing its certification of questions accepted by the Court of Appeals on September 22, 2009, certified questions marked withdrawn.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

JAMES D. LEE, Respondent, v ASTORIA GENERATING COMPANY, L.P., et al., Appellants/Third-Party Plaintiffs-Appellants. ELIOTT TURBOMACHINERY CO., INC., et al., Third-Party Defendants-Appellants.

Submitted January 19, 2010; decided March 25, 2010

Reported below, 55 AD3d 124.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 13 NY3d 382 (2009)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANCE CAIN, Appellant.

Submitted February 22, 2010; decided March 25, 2010

Reported below, 2008 NY Slip Op 78315(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed as untimely.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM CAMPBELL, Appellant.

Submitted March 8, 2010; decided March 25, 2010

Reported below, 66 AD3d 590.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place,

Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TROY
CARTWRIGHT, Appellant.

Submitted March 22, 2010; decided March 25, 2010

Reported below, 61 AD3d 695.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v EDGAR
CORREA, Respondent.

Submitted March 15, 2010; decided March 25, 2010

Reported below, 70 AD3d 532.

Motion for a stay denied.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v EDGAR
CORREA, Respondent.

Submitted March 22, 2010; decided March 25, 2010

Reported below, 70 AD3d 532.

Motion by Chief Administrative Judge Ann Pfau et al. for leave to appear amici curiae on the appeal herein granted.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ELIJAH
CUMMINGS, Appellant.

Submitted March 1, 2010; decided March 25, 2010

Reported below, 66 AD3d 571.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place,

Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT KELLY, Appellant.

Submitted March 22, 2010; decided March 25, 2010

Reported below, 68 AD3d 895.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISHAM MOORE, Appellant.

Submitted March 22, 2010; decided March 25, 2010

Reported below, 66 AD3d 707.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHAHID MUHAMMAD, Appellant.

Submitted March 22, 2010; decided March 25, 2010

Reported below, 66 AD3d 1332.

Motion for assignment of counsel granted only to the extent that Thomas J. Eoannou, Esq., 484 Delaware Ave., Buffalo, New York 14202 is assigned without fee to represent appellant on the appeal herein. Counsel may, however, apply for reimbursement of necessary disbursements incurred in connection with the assignment.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM PORTO, Appellant.

Submitted March 8, 2010; decided March 25, 2010

Reported below, 66 AD3d 430.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GILBERT RIVERA, Appellant.

Submitted March 8, 2010; decided March 25, 2010

Reported below, 61 AD3d 516.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDRE STEWART, Appellant.

Submitted March 22, 2010; decided March 25, 2010

Reported below, 67 AD3d 553.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CALVIN TYRELL, Appellant.

Submitted March 22, 2010; decided March 25, 2010

Reported below, 67 AD3d 827.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ALBEIRO VALENCIA, Respondent.

Submitted March 1, 2010; decided March 25, 2010

Reported below, 58 AD3d 879.

Motion for assignment of counsel granted and Marianne Karas, Esq., PO Box 277, Armonk, New York 10504 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAIR WILLIAMS, Appellant.

Submitted March 1, 2010; decided March 25, 2010

Reported below, 64 AD3d 734.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RONALD JACKSON, Appellant, v BRIAN FISCHER, Commissioner, Department of Correctional Services, Respondent.

Submitted January 19, 2010; decided March 25, 2010

Reported below, 2009 NY Slip Op 87261(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of JOSEPH D. RAYMOND, SR., Appellant, v KEVIN E. WALSH, Sheriff, County of Onondaga, et al., Respondents.

Submitted December 7, 2009; decided March 25, 2010

Reported below, 63 AD3d 1715.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

DALE R. SAN MARCO et al., Appellants, v VILLAGE/TOWN OF MOUNT KISCO, Respondent.

Submitted March 22, 2010; decided March 25, 2010

Reported below, 57 AD3d 874.

Motion by Defense Association of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

DOMINIKA ZAKRZEWSKA, Respondent, v THE NEW SCHOOL, Appellant, et al., Defendant.

Submitted March 22, 2010; decided March 25, 2010

See 574 F3d 24.

Motion by New York University et al. to join as amici curiae in the brief submitted by Memorial Sloan-Kettering Cancer Center et al. granted.

[925 NE2d 926, 899 NYS2d 123]

AWARDS.COM, LLC, et al., Appellants, v KINKO'S, INC., et al., Respondents, et al., Defendant.

Argued February 10, 2010; decided March 30, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Supreme Court, New York County (Charles Edward Ramos, J.), entered February 10, 2009. The Supreme Court granted summary judgment to defendant Kinko's, Inc. on its breach of contract counterclaim against plaintiff Inspire Someone, LLC, awarding defendant damages in the stipulated sum of \$210,493. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 19, 2007. The Appellate Division modified, on the law, an order of that Supreme Court (op 2002 NY Slip Op 30025[U]), which had granted a motion by defendants for summary judgment to the extent of dismissing plaintiffs' claims for fraud and lost profits damages. The modification consisted of dismissing the complaint in its entirety.

Defendant Kinko's, Inc. and plaintiff Awards.com, LLC, a company involved in direct and Web site marketing, agreed on a proposal that would allow plaintiff to launch a new "store-in-store" business selling personalized corporate awards and promotional items within defendant's locations. On April 30, 2002 defendant and plaintiff Inspire Someone, LLC, a wholly owned subsidiary of Awards.com formed for this purpose,

entered into an agreement whereby defendant agreed to license the use of its store space to the subsidiary to sell its products within mutually selected locations of defendant at a certain monthly rate per square foot. The agreement did not require defendant to invoice the monthly fee each month. The agreement contained a no-waiver clause which provided in part that “[t]he failure of either Party to enforce any provision of this Agreement shall in no way be construed to be a waiver of such provision, nor in any way to affect the right of either Party to enforce each and every provision of this Agreement thereafter.” Plaintiff began to fall behind in its monthly payments and defendant terminated the agreement. Prior to the termination, plaintiffs were the subject of a possible acquisition by defendant or a third party. Following the termination of the agreement, plaintiff commenced the present action alleging fraud, conspiracy to commit fraud, negligent misrepresentation, tortious interference, unjust enrichment, breach of contract, and misappropriation of trade secrets. Defendant answered and counter-claimed for breach of contract.

Awards.com, LLC v Kinko’s, Inc., 42 AD3d 178, affirmed.

HEADNOTE

Contracts — Termination — Justification

In an action arising out of defendant’s termination of its contract with plaintiff, the judgment of the Supreme Court, granting defendant summary judgment on its counterclaim and awarding it damages against plaintiff, and the order of the Appellate Division brought up for review, which modified a prior Supreme Court order dismissing some of plaintiff’s claims by dismissing the complaint in its entirety, was affirmed. Defendant was justified in terminating its contract with plaintiff, whose failure to pay its monthly rent promptly to defendant was a material breach of their agreement. The contract contained no provision for a grace period, and no requirement that defendant give notice of a breach and an opportunity to cure it. Defendant did not waive its right to terminate.

APPEARANCES OF COUNSEL

Chadbourne & Parke, LLP, New York City (*Alan I. Raylesberg*, *George Bundy Smith*, *Thomas E. Butler* and *Eric Twiste* of counsel), and *Berg & Androphy* (*David H. Berg* and *Christopher Gadoury* of the Texas bar, admitted pro hac vice of counsel) for appellants.

Terrence O. Reed of the Tennessee bar, admitted pro hac vice, and *Connie Lewis Lensing* for respondents.

OPINION OF THE COURT

MEMORANDUM.

The judgment of Supreme Court appealed from and the order

of the Appellate Division brought up for review should be affirmed with costs.

Under the circumstances of this case, defendant Kinko's, Inc. was justified in terminating its contract with plaintiff Inspire Someone, LLC. The failure of Inspire Someone to pay its monthly rent promptly was a material breach (*see Madison Ave. Leasehold, LLC v Madison Bentley Assoc. LLC*, 8 NY3d 59, 65 [2006]; *Fifty States Mgt. Corp. v Pioneer Auto Parks*, 46 NY2d 573, 578 [1979]); the contract contained no provision for a grace period, and no requirement that Kinko's give notice of a breach and an opportunity to cure it; and Kinko's did not waive its right to terminate.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Judgment of Supreme Court appealed from and order of the Appellate Division brought up for review affirmed, with costs, in a memorandum.

In the Matter of GERARD BLASICH, Appellant, v NEW YORK STATE BOARD OF PAROLE, Respondent.

Submitted January 25, 2010; decided March 30, 2010

Reported below, 68 AD3d 1339.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

In the Matter of the Claim of JENNIFER DOMENICO, Appellant, v UNITED WAY et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted February 8, 2010; decided March 30, 2010

Reported below, 69 AD3d 1061.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

SHAWN GREEN, Appellant, v STATE OF NEW YORK, Respondent.

Submitted February 1, 2010; decided March 30, 2010

Reported below, 2009 NY Slip Op 92299(U); 2009 NY Slip Op 86819(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

ROBERT DILLARD JONES, Appellant, v NAZIEMUL SAFI et al., Defendants, and LAZAROWITZ & MANGANILLO, P.C., et al., Respondents.

Submitted February 1, 2010; decided March 30, 2010

Reported below, 58 AD3d 603.

Motion for reargument of motion for leave to appeal denied [*see* 13 NY3d 901 (2009)].

JEAN KRAMER et al., Appellants, v SBR & C, Doing Business as VANDERBILT AT SOUTH BEACH, et al., Respondents.

Submitted February 8, 2010; decided March 30, 2010

Reported below, 62 AD3d 667.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 13 NY3d 713 (2009)].

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v THOMAS EDWARDS, JR., Respondent.

Submitted March 15, 2010; decided March 30, 2010

Reported below, 65 AD3d 829.

Motion for reargument and/or reconsideration denied. Motion for a stay dismissed as academic [*see* 14 NY3d 741 (2010)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAMON RAMOS, Appellant.

Submitted February 8, 2010; decided March 30, 2010

Reported below, 61 AD3d 783.

Motion for reargument denied [*see* 13 NY3d 881 (2009)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. HOWARD GLENN
BLAKE, Alleged to be LARRY WAYNE BARNETT, Appellant, v
GEORGE E. PATAKI, as Governor of the State of New York,
Respondent.

Submitted February 22, 2010; decided March 30, 2010

Reported below, 57 AD3d 583.

Motion for renewal and reargument denied [*see* 13 NY3d 912
(2010)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ROBERT C. HIN-
TON, JR., Appellant, v HAROLD GRAHAM, Superintendent,
Auburn Correctional Facility, Respondent.

Submitted February 16, 2010; decided March 30, 2010

Reported below, 66 AD3d 1402, 1403.

Motion for reargument of motion for leave to appeal denied.
Motion for poor person relief dismissed as academic [*see* 13
NY3d 934 (2010)].

Judge PIGOTT taking no part.

RANDY RATAJCZAK, as Administrator of the Estate of MARY
RATAJCZAK, Respondent, v MAHMOOD YOONESSI, M.D., et al.,
Appellants. (And a Third-Party Action.)

Submitted February 22, 2010; decided March 30, 2010

Reported below, 2009 NY Slip Op 90199(U).

On the Court's own motion, appeal dismissed, without costs,
upon the ground that the order appealed from does not finally
determine the action within the meaning of the Constitution.
Motion to disqualify counsel etc. denied.

In the Matter of the Estate of JOSEPH SINGER, Deceased. VIVIAN
SINGER, Respondent; ALEXANDER SINGER, Appellant.

Submitted February 8, 2010; decided March 30, 2010

Reported below, 52 AD3d 612.

Motion for reargument denied with \$100 costs and necessary
reproduction disbursements [*see* 13 NY3d 447 (2009)].

TEACHERS' RETIREMENT SYSTEM OF LOUISIANA et al., Derivatively
on Behalf of Nominal Defendant AMERICAN INTERNATIONAL
GROUP, INC., Appellants, v PRICEWATERHOUSECOOPERS LLP,
Respondent.

Decided March 30, 2010

See 998 A2d 280.

Certification of a question by the Supreme Court of the State
of Delaware, pursuant to section 500.27 of the Rules of Practice
of the Court of Appeals (22 NYCRR 500.27), accepted and the
issues presented are to be considered after briefing and argu-
ment.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO,
READ, SMITH, PIGOTT and JONES.

In the Matter of SUSAN WILEY, Respondent, v ROGER DAWSON,
Appellant.

Decided March 30, 2010

Reported below, 2010 NY Slip Op 60143(U); 2009 NY Slip Op 90011(U).

Appeal, insofar as taken from the December 1, 2009 Appellate
Division order, dismissed, without costs, by the Court of Ap-
peals, sua sponte, upon the ground that no substantial constitu-
tional question is directly involved; appeal, insofar as taken
from the January 5, 2010 Appellate Division order, dismissed,
without costs, by the Court of Appeals, sua sponte, upon the
ground that such order does not finally determine the proceed-
ing within the meaning of the Constitution.

APPEALS WITHDRAWN AND DISCONTINUED

(March 1, 2010 through March 31, 2010)

Phoenix Corp. v U.W. Marx, Inc.	3d Dept: 64 AD3d 967	3/11/10
Sport Rock Intl., Inc. v American Cas. Co. of Reading, Pa.	1st Dept: 65 AD3d 12	3/24/10

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2010 through March 31, 2010)

People v Adamek	3d Dept: 69 AD3d 979 (Broome)	denied 3/29/10 (Grafteo, J.)
People v Alford	2d Dept: 67 AD3d 696 (Kings)	denied reconsideration 3/30/10 (Lippman, Ch. J.)
People v Allenye	2d Dept: 66 AD3d 1039 (Kings)	denied 3/10/10 (Smith, J.)
People v Ashley	3d Dept: 67 AD3d 1199 (St. Lawrence)	denied 3/2/10 (Jones, J.)
People v Baer	2d Dept: 68 AD3d 1011 (Suffolk)	denied 3/18/10 (Grafteo, J.)
People v Baez	3d Dept: 67 AD3d 1204 (Delaware)	denied 3/9/10 (Ciparick, J.)
People v Bailey	2d Dept: 68 AD3d 1011 (Dutchess)	denied 3/18/10 (Jones, J.)
People v Barksdale	2d Dept: 66 AD3d 793 (Queens)	denied 3/2/10 (Jones, J.)
People v Basbus	1st Dept: 68 AD3d 441 (NY)	denied 3/2/10 (Jones, J.)
People v Bedford	1st Dept: 68 AD3d 561 (NY)	denied 3/8/10 (Smith, J.)
People v Beecham	App Div, 2d Dept: 2010 NY Slip Op 62437(U) (Suffolk)	dismissed 3/16/10 (Jones, J.)
People v Bell	4th Dept: 66 AD3d 1454 (Erie)	denied reconsideration 3/4/10 (Smith, J.)
People v Bermudez	1st Dept: 68 AD3d 575 (Bronx)	denied 3/8/10 (Smith, J.)
People v Bianco	4th Dept: 67 AD3d 1417 (Livingston)	denied 3/9/10 (Ciparick, J.)
People v Bigelow	2d Dept: 68 AD3d 1127 (Kings)	denied 3/11/10 (Pigott, J.)
People v Billins	4th Dept: 68 AD3d 1794 (Oneida)	denied 3/29/10 (Grafteo, J.)
People v Birch	1st Dept: 69 AD3d 425 (NY)	denied 3/30/10 (Pigott, J.)
People v Blake	1st Dept: 67 AD3d 557 (NY)	denied 3/16/10 (Jones, J.)
People v Banks	1st Dept: 67 AD3d 557 (NY)	denied 3/16/10 (Jones, J.)
People v Bookard	2d Dept: 68 AD3d 1128 (Queens)	denied 3/8/10 (Pigott, J.)
People v Boston	2d Dept: 66 AD3d 1040 (Queens)	denied 3/18/10 (Jones, J.)
People v Boyd	1st Dept: 67 AD3d 557 (NY)	denied 3/16/10 (Jones, J.)

People v Brandt	1st Dept: 68 AD3d 413 (NY)	denied 3/2/10 (Jones, J.)
People v Bravo	2d Dept: 69 AD3d 870 (Queens)	denied 3/31/10 (Smith, J.)
People v Brewer (Tomell)	4th Dept: 68 AD3d 1776 (Niagara)	denied 3/18/10 (Grafteo, J.)
People v Brewer (Tomell)	4th Dept: 68 AD3d 1777 (Niagara)	denied 3/18/10 (Grafteo, J.)
People v Brisson	3d Dept: 68 AD3d 1544 (Albany)	denied 3/18/10 (Grafteo, J.)
People v Broadwater	2d Dept: 69 AD3d 643 (Suffolk)	denied 3/16/10 (Smith, J.)
People v Brock	2d Dept: 69 AD3d 644 (Kings)	denied 3/18/10 (Grafteo, J.)
People v Brown (Darius)	4th Dept: 67 AD3d 1439 (Monroe)	denied 3/9/10 (Ciparick, J.)
People v Brown (David)	2d Dept: 65 AD3d 1162 (Kings)	denied 3/18/10 (Grafteo, J.)
People v Brown (Jamel)	1st Dept: 67 AD3d 523 (NY)	denied 3/4/10 (Smith, J.)
People v Brown (Marvin)	App Div, 4th Dept, 1/8/10 (Monroe)	dismissed 3/29/10 (Read, J.)
People v Brown (Milton)	1st Dept: 68 AD3d 435 (NY)	denied 3/31/10 (Ciparick, J.)
People v Brown (Wendell)	1st Dept: 68 AD3d 602 (NY)	denied 3/16/10 (Jones, J.)
People v Buniek	2d Dept: 65 AD3d 1258 (Westchester)	denied 3/11/10 (Jones, J.)
People v Burns	3d Dept: 68 AD3d 1246 (St. Lawrence)	denied 3/9/10 (Ciparick, J.)
People v Bush	2d Dept: 66 AD3d 794 (Kings)	denied 3/18/10 (Jones, J.)
People v Bynum	3d Dept: 68 AD3d 1348 (Schenectady)	denied 3/4/10 (Smith, J.)
People v Byron	2d Dept: 68 AD3d 778 (Kings)	denied 3/31/10 (Ciparick, J.)
People v Caldarola	App Div, 2d Dept: 2010 NY Slip Op 61650(U) (Westchester)	dismissed 3/11/10 (Pigott, J.)
People v Campbell	2d Dept: 68 AD3d 890 (Kings)	denied 3/18/10 (Grafteo, J.)
People v Cando	1st Dept: 68 AD3d 479 (NY)	denied 3/29/10 (Read, J.)
People v Carey	2d Dept: 67 AD3d 925 (Orange)	denied 3/9/10 (Ciparick, J.)
People v Carfora	2d Dept: 69 AD3d 751 (Suffolk)	denied 3/18/10 (Grafteo, J.)
People v Carlo	2d Dept: 68 AD3d 892 (Westchester)	denied 3/9/10 (Ciparick, J.)
People v Carmichael	4th Dept: 68 AD3d 1704 (Monroe)	denied 3/16/10 (Smith, J.)

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People v Carmona	3d Dept: 66 AD3d 1240 (Schoharie)	denied 3/18/10 (Jones, J.)
People v Carvajal	1st Dept: 68 AD3d 443 (NY)	denied 3/4/10 (Smith, J.)
People v Castillo	1st Dept: 63 AD3d 641 (NY)	dismissed ¹ 3/3/10 (Jones, J.)
People v Cecunjanin	3d Dept: 67 AD3d 1072 (Franklin)	granted 3/16/10 (Smith, J.)
People v Charlton	2d Dept: 69 AD3d 647 (Orange)	denied 3/29/10 (Grafteo, J.)
People v Chevalier	1st Dept: 67 AD3d 510 (NY)	denied reconsideration 3/18/10 (Pigott, J.)
People v Clevestine	3d Dept: 68 AD3d 1448 (Albany)	denied 3/29/10 (Read, J.)
People v Colon	1st Dept: 66 AD3d 606 (NY)	denied 3/2/10 (Jones, J.)
People v Cooper	3d Dept: 67 AD3d 1254 (Chemung)	denied 3/29/10 (Read, J.)
People v Coppin	App Div, 1st Dept, 12/22/09 (NY)	denied 3/18/10 (Grafteo, J.)
People v Craft	App Div, 3d Dept: 2009 NY Slip Op 85458(U) (Albany)	denied 3/1/10 (Lippman, Ch. J.)
People v Crandall	4th Dept: 66 AD3d 1455 (Genesee)	denied 3/11/10 (Jones, J.)
People v Cuffee	1st Dept: 67 AD3d 543 (Bronx)	denied 3/9/10 (Ciparick, J.)
People v Curenton	2d Dept: 66 AD3d 796 (Suffolk)	denied 3/29/10 (Read, J.)
People v Dabrowski	4th Dept: 68 AD3d 1737 (Niagara)	denied 3/16/10 (Smith, J.)
People v Dantzler	3d Dept: 63 AD3d 1376 (Broome)	denied 3/11/10 (Jones, J.)
People v Dehaarte	2d Dept: 65 AD3d 593 (Queens)	denied 3/30/10 (Pigott, J.)
People v DeHaney	2d Dept: 66 AD3d 1040 (Orange)	denied 3/11/10 (Jones, J.)
People v Diaz	App Div, 4th Dept, 2/4/10 (Monroe)	dismissed 3/24/10 (Ciparick, J.)
People v Dickerson	2d Dept: 67 AD3d 700 (Suffolk)	denied 3/1/10 (Lippman, Ch. J.)
People v Dissottle	3d Dept: 68 AD3d 1542 (St. Lawrence)	denied 3/8/10 (Smith, J.)
People v Dykes	4th Dept: 68 AD3d 1779 (Onondaga)	denied 3/8/10 (Smith, J.)
People v Edwards	1st Dept: 67 AD3d 611 (Bronx)	denied 3/9/10 (Ciparick, J.)

1. Dismissed pursuant to *People v Bautista* (7 NY3d 838 [2006]).

People v Ellis	2d Dept: 69 AD3d 756 (Kings)	denied 3/30/10 (Lippman, Ch. J.)
People v Estela	2d Dept: 64 AD3d 614 (Kings)	denied ² 3/11/10 (Jones, J.)
People v Facen (Dorian)	4th Dept: 67 AD3d 1478 (Erie)	denied 3/19/10 (Grafteo, J.)
People v Facen (Dorian)	4th Dept: 67 AD3d 1479 (Erie)	denied 3/19/10 (Grafteo, J.)
People v Facen (Dorian)	4th Dept: 67 AD3d 1480 (Erie)	denied 3/19/10 (Grafteo, J.)
People v Fannell	3d Dept: 68 AD3d 1447 (Sullivan)	denied 3/8/10 (Pigott, J.)
People v Felipe	2d Dept: 66 AD3d 919 (Queens)	denied 3/2/10 (Smith, J.)
People v Feliz	1st Dept: 66 AD3d 503 (NY)	withdrawn 3/30/10 (Jones, J.)
People v Fernandez (Richard)	1st Dept: 68 AD3d 469 (NY)	denied 3/4/10 (Smith, J.)
People v Fiske	3d Dept: 68 AD3d 1149 (Broome)	denied 3/8/10 (Smith, J.)
People v Foster	2d Dept: 66 AD3d 1041 (Westchester)	denied 3/11/10 (Jones, J.)
People v Fowler	1st Dept: 67 AD3d 476 (Bronx)	denied 3/11/10 (Jones, J.)
People v Frazier	1st Dept: 69 AD3d 438 (NY)	denied 3/29/10 (Grafteo, J.)
People v Garcia (Hector)	1st Dept: 68 AD3d 560 (NY)	denied 3/8/10 (Pigott, J.)
People v Garcia (Jose)	2d Dept: 66 AD3d 699 (Orange)	denied 3/2/10 (Jones, J.)
People v Gentry	3d Dept: 68 AD3d 1353 (Schenectady)	denied 3/18/10 (Grafteo, J.)
People v Gheradi	2d Dept: 68 AD3d 892 (Kings)	denied 3/31/10 (Ciparick, J.)
People v Glover	1st Dept: 66 AD3d 532 (NY)	denied 3/10/10 (Pigott, J.)
People v Gomez	2d Dept: 67 AD3d 927 (Nassau)	withdrawn 3/9/10 (Smith, J.)
People v Greene	2d Dept: 68 AD3d 782 (Nassau)	denied 3/18/10 (Pigott, J.)
People v Grier	1st Dept: 68 AD3d 677 (NY)	denied 3/31/10 (Ciparick, J.)
People v Griffin	2d Dept: 67 AD3d 702 (Kings)	denied 3/9/10 (Ciparick, J.)
People v Hall	2d Dept: 68 AD3d 1133 (Kings)	denied 3/8/10 (Smith, J.)

². Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Council* (2009 NY Slip Op 73325[U] [2009], *lv granted* 13 NY3d 859 [2009]) and *People v Syville* (2009 NY Slip Op 73324[U] [2009], *lv granted* 13 NY3d 911 [2009]).

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People v Hammons	4th Dept: 68 AD3d 1800 (Monroe)	denied 3/29/10 (Grafteo, J.)
People v Hannig	4th Dept: 68 AD3d 1779 (Cayuga)	denied 3/30/10 (Lippman, Ch. J.)
People v Hansraj	County Ct, 10/28/09 (Cayuga)	denied reconsideration 3/10/10 (Smith, J.)
People v Harmon	1st Dept: 68 AD3d 663 (NY)	denied 3/30/10 (Lippman, Ch. J.)
People v Harris	2d Dept: 68 AD3d 783 (Westchester)	denied 3/8/10 (Pigott, J.) (Case No. 65)
People v Hartrich (Daniel)	4th Dept: 68 AD3d 1737 (Erie)	denied 3/10/10 (Smith, J.) (Appeal No. 1)
People v Hartrich (Daniel)	4th Dept: 68 AD3d 1737 (Erie)	denied 3/10/10 (Smith, J.) (Appeal No. 2)
People v Hassell	1st Dept: 66 AD3d 575 (NY)	granted 3/4/10 (Read, J.)
People v Houghton	App Term, 2d Dept: 25 Misc 3d 136(A) (Kings)	denied 3/11/10 (Jones, J.)
People v Hayes	1st Dept: 68 AD3d 579 (NY)	denied 3/29/10 (Read, J.)
People v Hecker	1st Dept: 68 AD3d 429 (NY)	granted 3/9/10 (Grafteo, J.)
People v Henderson	4th Dept: 66 AD3d 1498 (Erie)	denied 3/2/10 (Jones, J.)
People v Henry	4th Dept: 68 AD3d 1777 (Cayuga)	denied 3/4/10 (Jones, J.)
People v Hill	4th Dept: 66 AD3d 1471 (Monroe)	granted 3/2/10 (Jones, J.)
People v Holley	4th Dept: 67 AD3d 1438 (Erie)	denied 3/9/10 (Ciparick, J.)
People v Horsford	1st Dept: 68 AD3d 556 (Bronx)	denied 3/9/10 (Ciparick, J.)
People v Hunter (Ephriam)	4th Dept: 68 AD3d 1702 (Erie)	denied 3/18/10 (Grafteo, J.) (Appeal No. 1)
People v Hunter (Ephriam)	4th Dept: 68 AD3d 1702 (Erie)	denied 3/18/10 (Grafteo, J.) (Appeal No. 2)
People v Jackson (Rio)	2d Dept: 65 AD3d 1057 (Queens)	denied 3/4/10 (Smith, J.)
People v Jackson (Terrance)	3d Dept: 67 AD3d 1067 (Chemung)	denied 3/8/10 (Read, J.)
People v Jock	4th Dept: 68 AD3d 1816 (Orleans)	denied 3/18/10 (Pigott, J.)
People v Johnson (Emmanuel)	4th Dept: 67 AD3d 1457 (Onondaga)	denied 3/9/10 (Ciparick, J.)

People v Johnson (Grady)	4th Dept: 67 AD3d 1356 (Monroe)	denied 3/18/10 (Jones, J.)
People v Johnson (Michael)	1st Dept: 67 AD3d 560 (Bronx)	denied 3/1/10 (Lippman, Ch. J.)
People v Johnson (Robert)	1st Dept: 67 AD3d 557 (NY)	denied 3/16/10 (Jones, J.)
People v Jones	County Ct, 12/16/09 (Monroe)	denied 3/29/10 (Read, J.)
People v Kelly (Robert)	2d Dept: 67 AD3d 706 (Kings)	denied 3/29/10 (Read, J.)
People v Kelly (Robert)	2d Dept: 68 AD3d 895 (Kings)	granted 3/2/10 (Ciparick, J.)
People v Kelly (Wesley)	App Div, 1st Dept: 2009 NY Slip Op 88159(U) (NY)	denied 3/30/10 (Lippman, Ch. J.)
People v Kimbrough	4th Dept: 67 AD3d 1340 (Onondaga)	denied 3/4/10 (Smith, J.)
People v Kinard	4th Dept: 67 AD3d 1331 (Monroe)	denied 3/11/10 (Jones, J.)
People v Kirkorov	2d Dept: 68 AD3d 1014 (Queens)	denied 3/11/10 (Smith, J.)
People v Koonce	1st Dept: 68 AD3d 424 (NY)	denied 3/8/10 (Pigott, J.)
People v Kuz	2d Dept: 69 AD3d 653 (Kings)	denied 3/10/10 (Smith, J.)
People v Lampley	4th Dept: 68 AD3d 1762 (Monroe)	denied 3/30/10 (Pigott, J.)
People v Landy	1st Dept: 68 AD3d 520 (NY)	denied 3/8/10 (Pigott, J.)
People v Lawrence	App Div, 2d Dept: 2009 NY Slip Op 89656(U) (Nassau)	dismissed 3/29/10 (Read, J.)
People v Leak	1st Dept: 66 AD3d 403 (NY)	denied 3/29/10 (Read, J.)
People v Leslie	2d Dept: 69 AD3d 654 (Suffolk)	denied 3/18/10 (Grafteo, J.)
People v Lewis	1st Dept: 66 AD3d 611 (NY)	denied 3/2/10 (Jones, J.)
People v Lindsay	1st Dept: 68 AD3d 549 (Bronx)	denied 3/4/10 (Smith, J.)
People v Lingle	1st Dept: 66 AD3d 582 (NY)	granted 3/29/10 (Grafteo, J.)
People v Lombardi	4th Dept: 68 AD3d 1765 (Ontario)	denied 3/11/10 (Pigott, J.)
People v Love	2d Dept: 67 AD3d 709 (Suffolk)	denied 3/2/10 (Jones, J.)
People v Lozada	App Div, 3d Dept: 2010 NY Slip Op 61004(U) (Sullivan)	denied 3/18/10 (Grafteo, J.)
People v Lugo	2d Dept: 69 AD3d 654 (Queens)	denied 3/11/10 (Pigott, J.)
People v Macuil	2d Dept: 67 AD3d 1025 (Kings)	denied 3/30/10 (Pigott, J.)

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People v Manning (Tyrell)	4th Dept: 67 AD3d 1378 (Onondaga)	denied 3/9/10 (Ciparick, J.)
People v Manning (Tyrell)	4th Dept: 52 AD3d 1295 (Onondaga)	denied 3/9/10 (Ciparick, J.)
People v Marcellin	1st Dept: 68 AD3d 581 (NY)	denied 3/31/10 (Ciparick, J.)
People v Marks	1st Dept: 67 AD3d 477 (NY)	denied 3/2/10 (Jones, J.)
People v Marshall (Dujuan)	2d Dept: 68 AD3d 1014 (Dutchess)	denied 3/11/10 (Pigott, J.)
People v Marshall (Steven)	2d Dept: 66 AD3d 1042 (Kings)	denied 3/11/10 (Jones, J.)
People v Martin	2d Dept: 68 AD3d 1015 (Nassau)	denied 3/29/10 (Read, J.)
People v Martinez	4th Dept: 68 AD3d 1757 (Monroe)	denied 3/18/10 (Jones, J.)
People v McClain	4th Dept: 67 AD3d 1480 (Onondaga)	denied 3/1/10 (Lippman, Ch. J.)
People v McCray	4th Dept: 66 AD3d 1338 (Erie)	denied reconsideration 3/4/10 (Smith, J.)
People v McCroskey	1st Dept: 59 AD3d 204 (NY)	denied 3/30/10 (Jones, J.)
People v McGrath	4th Dept: 67 AD3d 1475 (Erie)	denied 3/18/10 (Grafteo, J.)
People v Mercure	2d Dept: 67 AD3d 1026 (Kings)	denied 3/9/10 (Ciparick, J.)
People v Miller	2d Dept: 68 AD3d 1135 (Richmond)	denied 3/18/10 (Jones, J.)
People v Mitchell (Barry)	2d Dept: 66 AD3d 1045 (Queens)	denied 3/11/10 (Jones, J.)
People v Mitchell (David)	2d Dept: 68 AD3d 784 (Richmond)	denied 3/8/10 (Pigott, J.)
People v Mitchell (Desmond)	2d Dept: 69 AD3d 761 (Kings)	denied 3/18/10 (Jones, J.)
People v Moales	1st Dept: 67 AD3d 551 (NY)	denied 3/30/10 (Lippman, Ch. J.)
People v Molina	App Term, 2d Dept: 26 Misc 3d 51 (Nassau)	denied 3/10/10 (Smith, J.)
People v Monserate	App Div, 1st Dept: 2009 NY Slip Op 92572(U) (NY)	denied 3/11/10 (Pigott, J.)
People v Morales	3d Dept: 68 AD3d 1356 (Albany)	denied 3/4/10 (Smith, J.)
People v Morrison	App Div, 2d Dept: 2009 NY Slip Op 82215(U) (Queens)	dismissed 3/8/10 (Read, J.)
People v Nichols	App Term, 2d Dept: 25 Misc 3d 141(A) (Suffolk)	denied 3/1/10 (Lippman, Ch. J.)
People v Nicol	4th Dept: 68 AD3d 1715 (Onondaga)	denied 3/18/10 (Pigott, J.)
People v O'Diah (Aror)	2d Dept: 68 AD3d 787 (Queens)	denied 3/1/10 (Lippman, Ch. J.)

People v O'Diah (Aror)	2d Dept: 68 AD3d 788 (Queens)	denied 3/1/10 (Lippman, Ch. J.)
People v Odum	4th Dept: 67 AD3d 1465 (Onondaga)	denied 3/2/10 (Jones, J.)
People v Oliveri	1st Dept: 68 AD3d 422 (Bronx)	denied 3/31/10 (Ciparick, J.)
People v Ordoover	2d Dept: 67 AD3d 824 (Nassau)	denied 3/16/10 (Jones, J.)
People v Otero	1st Dept: 56 AD3d 350 (Bronx)	denied 3/29/10 (Grafteo, J.)
People v Owens	2d Dept: 67 AD3d 1029 (Orange)	denied 3/10/10 (Smith, J.)
People v Padilla	1st Dept: 68 AD3d 491 (NY)	denied 3/30/10 (Lippman, Ch. J.)
People v Parent	County Ct, 1/6/10 (Onondaga)	denied 3/11/10 (Smith, J.)
People v Parks	4th Dept: 66 AD3d 1429 (Monroe)	denied 3/11/10 (Jones, J.)
People v Patton	4th Dept: 68 AD3d 1714 (Erie)	denied 3/31/10 (Ciparick, J.)
People v Pearson	1st Dept: 67 AD3d 600 (NY)	denied 3/18/10 (Jones, J.)
People v Perry (Derrick)	2d Dept: 68 AD3d 1020 (Queens)	denied 3/31/10 (Ciparick, J.)
People v Perry (Jesse)	3d Dept: 70 AD3d 1063 (Otsego)	denied 3/29/10 (Grafteo, J.)
People v Perry (Kareem)	3d Dept: 67 AD3d 1046 (Chemung)	denied 3/9/10 (Ciparick, J.)
People v Peryea	3d Dept: 68 AD3d 1144 (Clinton)	denied 3/8/10 (Pigott, J.)
People v Pinckney	2d Dept: 67 AD3d 1030 (Queens)	denied 3/4/10 (Smith, J.)
People v Ponder	4th Dept: 67 AD3d 1382 (Monroe)	denied 3/11/10 (Jones, J.)
People v Predmore	4th Dept: 68 AD3d 1755 (Cayuga)	denied 3/31/10 (Ciparick, J.)
People v Prude	4th Dept: 68 AD3d 1823 (Monroe)	denied 3/17/10 (Pigott, J.)
People v Quan Hong Ye	1st Dept: 67 AD3d 473 (NY)	denied 3/18/10 (Jones, J.)
People v Ragsdale	2d Dept: 68 AD3d 897 (Kings)	denied 3/31/10 (Ciparick, J.)
People v Rattler	2d Dept: 68 AD3d 788 (Kings)	denied 3/9/10 (Ciparick, J.)
People v Rawlings	1st Dept: 68 AD3d 525 (NY)	denied 3/2/10 (Jones, J.)
People v Robinson	2d Dept: 68 AD3d 789 (Kings)	denied 3/16/10 (Jones, J.)
People v Rodriguez (Alvin)	2d Dept: 68 AD3d 789 (Kings)	denied 3/8/10 (Read, J.)
People v Rodriguez (Joseph)	3d Dept: 68 AD3d 1351 (Broome)	denied 3/18/10 (Grafteo, J.)

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People v Rodriguez (Pablo)	1st Dept: 67 AD3d 417 (NY)	denied 3/9/10 (Ciparick, J.)
People v Rosa	2d Dept: 69 AD3d 885 (Kings)	denied 3/29/10 (Grafteo, J.)
People v Ross	App Div, 1st Dept: 2009 NY Slip Op 87191(U) (Bronx)	denied 3/31/10 (Ciparick, J.)
People v Sampson	2d Dept: 67 AD3d 1031 (Queens)	denied 3/2/10 (Jones, J.)
People v Schellenbach	2d Dept: 67 AD3d 712 (Westchester)	dismissed 3/1/10 (Jones, J.)
People v Schwandner	4th Dept: 67 AD3d 1481 (Jefferson)	denied 3/1/10 (Lippman, Ch. J.)
People v Scott (Lory)	2d Dept: 67 AD3d 1033 (Kings)	denied 3/31/10 (Jones, J.)
People v Scott (Marion)	County Ct, 12/9/09 (Monroe)	denied 3/31/10 (Ciparick, J.)
People v Scrimo	2d Dept: 67 AD3d 825 (Nassau)	denied 3/29/10 (Read, J.)
People v Sequra	1st Dept: 68 AD3d 610 (NY)	denied 3/31/10 (Ciparick, J.)
People v Shakir	2d Dept: 66 AD3d 801 (Kings)	denied 3/8/10 (Read, J.)
People v Shaw	1st Dept: 68 AD3d 507 (NY)	denied 3/30/10 (Read, J.)
People v Shepard	1st Dept: 67 AD3d 446 (NY)	denied 3/9/10 (Ciparick, J.)
People v Sirico	2d Dept: 66 AD3d 1047 (Suffolk)	granted 3/19/10 (Smith, J.)
People v Smith (Remy)	1st Dept: 61 AD3d 579 (NY)	granted 3/2/10 (Jones, J.)
People v Smith (Senna)	4th Dept: 66 AD3d 1418 (Monroe)	denied 3/4/10 (Jones, J.)
People v Speller	2d Dept: 67 AD3d 1034 (Kings)	denied 3/31/10 (Ciparick, J.)
People v Spicola	4th Dept: 61 AD3d 1434 (Erie)	granted 3/12/10 (Jones, J.)
People v Sprinkler (Raymond)	1st Dept: 67 AD3d 520 (NY)	denied 3/9/10 (Ciparick, J.)
People v Sprinkler (Raymound)	1st Dept: 67 AD3d 520 (NY)	denied 3/9/10 (Ciparick, J.)
People v Squires	2d Dept: 68 AD3d 900 (Orange)	denied 3/29/10 (Read, J.)
People v Stanley (Koren)	1st Dept: 68 AD3d 422 (NY)	denied 3/11/10 (Jones, J.)
People v Stanley (Koren)	1st Dept: 68 AD3d 678 (NY)	denied 3/4/10 (Jones, J.)
People v Stevenson	1st Dept: 67 AD3d 605 (Bronx)	denied 3/18/10 (Grafteo, J.)
People v Stewart (Andre)	1st Dept: 67 AD3d 553 (NY)	granted 3/1/10 (Ciparick, J.)
People v Stewart (Humphrey)	2d Dept: 66 AD3d 801 (Kings)	denied 3/11/10 (Jones, J.)

People v Stoddard	3d Dept: 67 AD3d 1055 (Schenectady)	denied 3/2/10 (Lippman, Ch. J.)
People v Swank	4th Dept: 68 AD3d 1816 (Monroe)	denied 3/18/10 (Pigott, J.)
People v Sykes	4th Dept: 68 AD3d 1737 (Erie)	denied 3/4/10 (Smith, J.)
People v Tanner	1st Dept: 67 AD3d 609 (NY)	denied 3/29/10 (Read, J.)
People v Tatum	2d Dept: 66 AD3d 802 (Kings)	denied 3/4/10 (Smith, J.)
People v Taylor	County Ct, 12/17/09 (Monroe)	denied 3/30/10 (Lippman, Ch. J.)
People v Thomas (Cloverious)	4th Dept: 67 AD3d 1458 (Monroe)	denied 3/4/10 (Smith, J.)
People v Thomas (Clyde)	3d Dept: 66 AD3d 1244 (St. Lawrence)	granted 3/4/10 (Read, J.)
People v Thomas (Herman)	1st Dept: 68 AD3d 482 (NY)	denied 3/18/10 (Pigott, J.)
People v Thompson (Garnell)	2d Dept: 65 AD3d 1265 (Kings)	denied 3/18/10 (Jones, J.)
People v Thompson (James)	1st Dept: 67 AD3d 519 (NY)	denied 3/29/10 (Read, J.)
People v Tiggs	1st Dept: 69 AD3d 405 (NY)	denied 3/30/10 (Lippman, Ch. J.)
People v Tigner	2d Dept: 51 AD3d 1045 (Westchester)	denied upon reconsideration 3/4/10 (Jones, J.)
People v Tineo	1st Dept: 67 AD3d 441 (NY)	denied 3/18/10 (Jones, J.)
People v Toppy	1st Dept: 68 AD3d 635 (NY)	denied 3/18/10 (Grafteo, J.)
People v Trickey	4th Dept: 67 AD3d 1481 (Jefferson)	denied 3/1/10 (Lippman, Ch. J.)
People v Trovato	2d Dept: 68 AD3d 1023 (Westchester)	denied 3/30/10 (Lippman, Ch. J.)
People v Urcuiolio	2d Dept: 69 AD3d 963 (Suffolk)	denied 3/29/10 (Read, J.)
People v Valcourt	App Term, 1st Dept: 24 Misc 3d 140(A) (NY)	denied 3/18/10 (Jones, J.)
People v Vanbergen	3d Dept: 68 AD3d 1249 (Rensselaer)	denied 3/29/10 (Read, J.)
People v Vega (John)	1st Dept: 68 AD3d 665 (NY)	denied 3/4/10 (Smith, J.)
People v Vega (Manuel)	1st Dept: 68 AD3d 486 (Bronx)	denied 3/30/10 (Lippman, Ch. J.)
People v Velez	2d Dept: 69 AD3d 768 (Kings)	denied 3/29/10 (Grafteo, J.)
People v Veloza	2d Dept: 67 AD3d 829 (Kings)	denied 3/8/10 (Read, J.)
People v Watson	2d Dept: 66 AD3d 1048 (Nassau)	denied 3/18/10 (Jones, J.)

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People v Weaver	4th Dept: 68 AD3d 1781 (Wayne)	granted 3/16/10 (Jones, J.)
People v Wedlington	4th Dept: 67 AD3d 1472 (Erie)	denied 3/4/10 (Smith, J.)
People v Weinsheimer	2d Dept: 68 AD3d 901 (Suffolk)	denied 3/8/10 (Read, J.)
People v White	1st Dept: 66 AD3d 585 (NY)	denied 3/9/10 (Ciparick, J.)
People v Whitley	2d Dept: 68 AD3d 790 (Kings)	denied 3/8/10 (Read, J.)
People v Wicksall	4th Dept: 67 AD3d 1380 (Ontario)	denied 3/30/10 (Lippman, Ch. J.)
People v Williams (Anthony)	App Div, 4th Dept, 11/20/09 (Monroe)	dismissed 3/2/10 (Lippman, Ch. J.)
People v Williams (David)	4th Dept: 68 AD3d 1823 (Monroe)	dismissed 3/30/10 (Lippman, Ch. J.)
People v Williams (Ivin)	1st Dept: 66 AD3d 440 (NY)	granted 3/9/10 (Lippman, Ch. J.)
People v Williams (Miguel)	2d Dept: 68 AD3d 1025 (Kings)	denied 3/29/10 (Read, J.)
People v Willis	App Div, 4th Dept, 2/10/10 (Genesee)	dismissed 3/8/10 (Jones, J.)
People v Wilson (Anthony)	4th Dept: 67 AD3d 1395 (Erie)	denied 3/11/10 (Jones, J.)
People v Wilson (Harry)	2d Dept: 68 AD3d 1026 (Kings)	denied 3/18/10 (Pigott, J.)
People v Wilson (Tyrone)	1st Dept: 68 AD3d 476 (NY)	denied 3/4/10 (Smith, J.)
People v Womack	App Term, 2d Dept: 25 Misc 3d 141(A) (Kings)	denied 3/9/10 (Ciparick, J.)
People v Wright	3d Dept: 69 AD3d 972 (Broome)	denied 3/18/10 (Pigott, J.)
People v Wynn	1st Dept: 67 AD3d 423 (NY)	denied 3/18/10 (Jones, J.)
People v Ye Quan Hong	1st Dept: 67 AD3d 473 (NY)	denied 3/18/10 (Jones, J.)
People v Young (Larry)	4th Dept: 67 AD3d 1458 (Erie)	denied 3/30/10 (Pigott, J.)
People v Young (Nathan)	App Term, 1st Dept: 26 Misc 3d 134(A) (NY)	denied 3/29/10 (Grafteo, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(March 1, 2010 through March 31, 2010)

People v Fernandez (Joao)	2d Dept: 72 AD3d 303 (Kings)	granted 3/18/10 (Leventhal, J.)
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* Includes only applications that were granted.

[926 NE2d 253, 899 NYS2d 746]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERIC D. CARR, Appellant.

Argued February 17, 2010; decided April 1, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 6, 2009. The Appellate Division affirmed a judgment of the Supreme Court, Erie County (Russell P. Buscaglia, J.), which had convicted defendant, upon a jury verdict, of attempted murder in the second degree, criminal possession of a weapon in the second degree, criminal possession of a weapon in the third degree, and criminal possession of a weapon in the fourth degree.

In a prosecution for attempted murder and related crimes, defendant and a codefendant allegedly chased the victim through a store, whereupon defendant shot the victim who fled from the store. On appeal, defendant contended that the trial court abused its discretion in denying his request for a missing witness charge with respect to three individuals who were present in the store before defendant arrived there.

People v Carr, 59 AD3d 945, affirmed.

HEADNOTE

Crimes — Witnesses — Failure to Call Witness

In a prosecution for attempted murder and related crimes, Supreme Court did not abuse its discretion in holding that defendant's request for a missing witness charge, made more than a week after the People provided their witness list and after the People had rested their case in chief, came too late. Defendant knew at the outset of the trial that the People did not intend to call three of the victim's relatives who were present at the time of the alleged crime. A party seeking a missing witness instruction has the burden of making the request "as soon as practicable." Whether such a request is timely is a question to be decided by the trial court in its discretion, taking into account both when the requesting party knew or should have known that a basis for a missing witness charge existed, and any prejudice that may have been suffered by the other party as a result of the delay.

APPEARANCES OF COUNSEL

Legal Aid Bureau of Buffalo, Inc., Buffalo (*Nicholas T. Texido*, *David C. Schopp* and *Barbara J. Davies* of counsel), for appellant.

Frank A. Sedita, III, District Attorney, Buffalo (Donna A. Milling of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

A party seeking a missing witness instruction has the burden of making the request “as soon as practicable” (*People v Gonzalez*, 68 NY2d 424, 428 [1986]). Whether such a request is timely is a question to be decided by the trial court in its discretion, taking into account both when the requesting party knew or should have known that a basis for a missing witness charge existed, and any prejudice that may have been suffered by the other party as a result of the delay.

Here, defendant knew at the outset of the trial that the People did not intend to call three of the victim’s relatives who were present at the time of the alleged crime. Supreme Court did not abuse its discretion in holding that defendant’s request for a missing witness charge, made more than a week after the People provided their witness list, and after the People had rested their case-in-chief, came too late.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[926 NE2d 255, 899 NYS2d 751]

AMERICAN TRANSIT INSURANCE COMPANY, Appellant, v ARTHUR BROWN, Respondent, et al., Defendant.

Decided April 1, 2010

SUMMARY

APPEAL, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 8, 2009. The Appellate Division, with two Justices dissenting, modified, on the law, so much of an order of the Supreme Court, New York County (Marcy S. Friedman, J.), as had denied defendant Arthur Brown’s motion for summary judgment on his counterclaim and plaintiff’s cross motion for summary judgment declaring that it was not obligated to satisfy a

default judgment obtained by defendant Brown against defendant Albertano Batista. The modification consisted of granting Brown's motion and declaring that plaintiff was obligated to satisfy the default judgment in the amount of \$81,830 with interest from July 19, 2007.

On November 12, 2002, Arthur Brown was involved in a motor vehicle accident with Albertano Batista, plaintiff's insured. Plaintiff acknowledged receipt of Brown's third-party claim by letter dated January 28, 2003. Brown settled his claim for property damage with plaintiff and commenced a personal injury action against Batista on November 9, 2005. Brown forwarded copies of the summons and complaint to plaintiff on or about January 26, 2006. These copies were mailed to plaintiff at the address set forth in its January 2003 letter. Unbeknownst to Brown however, plaintiff had moved its offices in November 2003. Upon Batista's failure to appear in the action, Brown moved for a default judgment and proceeded to inquest on June 21, 2007. The underlying judgment in the amount of \$81,830 was entered in favor of Brown against Batista on July 19, 2007. Pursuant to Insurance Law § 3420 (a) (2), Brown served copies of the unsatisfied judgment with notices of entry upon plaintiff and Batista on August 9, 2007. Plaintiff promptly issued a letter of disclaimer and commenced the instant declaratory judgment action on the ground that neither Batista nor Brown gave it timely notice of the underlying lawsuit as required by Batista's insurance policy.

The majority at the Appellate Division concluded that Brown had a valid excuse for forwarding the summons and complaint to plaintiff's former address since he was never notified of the change of address. The dissent concluded that there was no legal obligation for a defendant's insurer to notify a potential plaintiff or plaintiff's counsel of the insurer's change of address, and that plaintiff's current address could have easily been ascertained via the Internet.

American Tr. Ins. Co. v Brown, 66 AD3d 447, reversed.

HEADNOTE

Insurance — Disclaimer of Coverage — Failure to Receive Notice of Underlying Action against Insured

An insurer had no obligation to defend or indemnify its insured in an underlying personal injury action and was not responsible for payment of any portion of the default judgment rendered therein, where the plaintiff in that action failed to provide a valid excuse for his failure to use reasonable diligence in providing the insurer, which had relocated its offices, with notice of the underlying action.

APPEARANCES OF COUNSEL

Marjorie E. Bornes, New York City, for appellant.

Blank & Star, PLLC, Brooklyn (*Scott Star* and *Helene E. Blank* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, defendant Brown's motion for summary judgment denied, plaintiff's motion for summary judgment granted and judgment granted declaring that plaintiff's disclaimer of coverage was proper, that it had no obligation to defend or indemnify its insured in the subject underlying action and that it is not responsible for payment of any portion of the judgment rendered therein. Defendant Brown failed to provide a valid excuse for his failure to use reasonable diligence in providing plaintiff insurer with notice of the underlying personal injury action.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

BENDER, JENSON & SILVERSTEIN, LLP, Respondent, v MARGARITA T. WALTER, Appellant.

Submitted January 25, 2010; decided April 1, 2010

Reported below, 67 AD3d 839.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief etc. dismissed as academic.

In the Matter of MARK FREEDMAN, Appellant, v REGAN HORIKE, Respondent. (And Another Related Proceeding.)

Submitted January 19, 2010; decided April 1, 2010

Reported below, 68 AD3d 1205.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed that part of Family Court's order that denied a motion to vacate, dismissed upon the ground that such portion of the order does not finally

determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of GABRIELLA R., a Neglected Child. BROOME COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; MINDY S., Appellant, et al., Respondent.

Submitted February 8, 2010; decided April 1, 2010

Reported below, 68 AD3d 1487.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v VICTOR A. DEPONCEAU, Also Known as JOHN DOE, Appellant.

Submitted January 19, 2010; decided April 1, 2010

Reported below, 2009 NY Slip Op 90184(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no civil appeal lies from the order of the Appellate Division entered in this criminal action (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90). Motion for leave to appeal dismissed upon the ground that it does not lie from the order of the Appellate Division entered in this criminal action (*see* NY Const, art VI, § 3 [b]; CPLR 5602; CPL 450.90). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARQUISE MURPHY, Appellant.

Submitted January 19, 2010; decided April 1, 2010

Reported below, 68 AD3d 832.

Motion for leave to appeal dismissed upon the ground that defendant is not available to obey the mandate of the Court of Appeals.

In the Matter of RECONSTRUCTION HOME AND HEALTH CARE CENTER, INC., Appellant, v RICHARD F. DAINES, as Commissioner of Health, et al., Respondents.

Submitted February 1, 2010; decided April 1, 2010

Reported below, 65 AD3d 786.

Motion by New York State Health Facilities Association for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

SAPPHIRE SIMMONS, an Infant, by Her Mother and Natural Guardian, ROSEMARY SIMMONS, et al., Appellants, v VITO SACCHETTI et al., Respondents, et al., Defendant.

Submitted January 19, 2010; decided April 1, 2010

Reported below, 65 AD3d 495.

Motion by Met Council, Inc., et al. for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief on the appeal herein granted, three copies of the brief to be served and an original and 24 copies filed within 30 days.

[926 NE2d 257, 899 NYS2d 753]

In the Matter of NORA S. ANDERSON.

Decided April 5, 2010

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), of whether the suspension of Honorable Nora S. Anderson from her office of Surrogate, New York County, imposed by order of the Court of Appeals (*see* 11 NY3d 894), should be terminated.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals on its own motion pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), terminated the suspension from office of a Surrogate.

OPINION OF THE COURT

On the Court's own motion, it is determined that the suspension of Honorable Nora S. Anderson, from the office of Surrogate, New York County, imposed by order of this Court dated December 29, 2008 and effective January 1, 2009 (11 NY3d 894 [2008]), is hereby terminated.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, PIGOTT and JONES. Taking no part: Judge SMITH.

[927 NE2d 542, 901 NYS2d 122]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANGEL L. CRUZ, Appellant.

Argued February 18, 2010; decided April 6, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 31, 2008. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Francis A. Affronti, J., at arraignment and pretrial motions; Stephen R. Sirkin, J., at trial and reconstruction hearing), which had convicted defendant, upon a jury verdict, of assault in the first degree (two counts). In a prior order entered July 6, 2007, the Appellate Division held the case, reserved decision on the appeal to it, and remitted the matter to Supreme Court for a reconstruction hearing (*see* 42 AD3d 901).

People v Cruz, 57 AD3d 1453, reversed.

HEADNOTE**Crimes — Jurors — Review of Item Not in Evidence**

Defendant was entitled to a new trial on assault charges where there was a significant, unexplained irregularity in the proceedings in that defendant established that the jury requested an exhibit not in evidence, thereby overcoming the presumption of regularity attaching to judicial proceedings. It was reasonable for the jury to believe the exhibit to be in evidence, since it heard the trial court receive the item, but did not hear the court's subsequent reversal of that ruling. The jury's request to view the item was never brought to the judge's attention. Thus, there was no basis to conclude that the jury was informed by anyone that the item was not in evidence, and the jury may have received the exhibit in error. Defendant met his burden of rebutting the presumption of regularity by substantial evidence, including the trial judge's statement at a reconstruction hearing that he never saw the note requesting

to view the item, that he did not reconvene with counsel, and that he did not know if the exhibit was ever shown to the jury. Nor can it be said that, even if the jury received the unadmitted exhibit in error, such error was harmless since the exhibit contradicted defendant's misidentification defense at trial.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (*James Eckert* of counsel), for appellant.

Michael C. Green, District Attorney, Rochester (*Stephen X. O'Brien* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

Defendant was charged with two counts of assault in the first degree for allegedly stabbing two men during a brawl outside a bar. At trial, defendant interposed the defense of misidentification. During deliberations, the jury submitted a note requesting to see the written statement prepared by a police officer and signed by defendant in which he made certain admissions. Although the exhibit was ostensibly only to be used to refresh the police officer's recollection, Supreme Court received and marked this exhibit in evidence over the objection of defense counsel. Later, Supreme Court, outside the presence of the jury, reversed its ruling and determined that this written statement was not evidence, re-marking it as a court exhibit. Supreme Court failed to instruct the jury accordingly, however. The jury retired to deliberate and first requested certain exhibits that had been marked in evidence, which were provided.* Later, the jury requested to see the written statement signed by defendant, which it also believed was in evidence. Nothing in the record suggests that the judge received the jury note or discussed its contents with the parties.

Defendant appealed from the judgment convicting him of two counts of first-degree assault citing a violation of CPL 310.30 and *People v O'Rama* (78 NY2d 270 [1991]). The Appellate Division initially reserved decision on defendant's appeal and remitted the case to Supreme Court for a reconstruction hearing to determine "whether there was a jury note and, if so, what

* Indeed, the record in this case reflects that, prior to the commencement of deliberations, the parties agreed to allow the jury to review exhibits admitted in evidence upon its request.

action was taken with regard to the jury note” (*People v Cruz*, 42 AD3d 901 [4th Dept 2007] [internal quotation marks, brackets and citations omitted]).

At the reconstruction hearing, the trial judge stated that he had no independent recollection of receiving the particular jury note at issue. He discussed his standard practice with the parties and noted that he generally allows juries to review exhibits admitted in evidence upon their request without reconvening, provided that the parties are in agreement as they were here. Significantly, he stated that, had he been told that the jury in this case requested a court exhibit not in evidence, he would have reconvened the proceeding in the presence of defendant. The Appellate Division, applying the presumption of regularity, affirmed the judgment (*People v Cruz*, 57 AD3d 1453 [4th Dept 2008]).

Typically, “[a] presumption of regularity attaches to judicial proceedings” (*People v Velasquez*, 1 NY3d 44, 48 [2003]; see also *People v Harrison*, 85 NY2d 794, 796 [1995]). Here, the Appellate Division erred in holding that the presumption had not been overcome. The record shows that there was a significant, unexplained irregularity in the proceedings in that defendant established that the jury requested an exhibit not in evidence; it was reasonable for the jury to believe the exhibit to be in evidence, since it heard the trial court receive the item, but was not privy to the court’s subsequent reversal of that ruling; and the request was never brought to the judge’s attention. Thus, there is no basis in the record to conclude that the jury was informed by anyone that the item was not in evidence, and the jury may have received the exhibit in error.

We conclude that defendant met his burden of rebutting the presumption of regularity by substantial evidence. That evidence includes the trial judge’s statement at the reconstruction hearing that he never saw the note, that he did not reconvene with counsel, and that he did not know if the exhibit was ever shown to the jury. Nor can we agree with the Appellate Division’s determination that, even if the jury received this unadmitted exhibit in error, such error was harmless, since the exhibit contradicted defendant’s misidentification defense at trial (*cf. People v Bouton*, 50 NY2d 130, 137 [1980]).

We need not reach defendant’s remaining arguments.

Chief Judge LIPPMAN. (concurring). At trial, each of the two assault victims gave testimony to the effect that defendant

stabbed him outside a “little bar” in Rochester on the night of February 2, 2003. In addition, the arresting officer testified that upon arriving at the scene he observed defendant with a knife in his hand. Defendant and his father, on the other hand, testified that defendant had been misidentified—that a fight had broken out inside the bar and that defendant, his father and his uncle were attempting to extricate themselves and leave the scene when the police arrived. Defendant denied possessing a knife or stabbing anyone on the occasion charged.

After his arrest, defendant gave a statement to a police officer. The statement, as transcribed by the officer, included the phrase, “I took the knife from him and started kicking his ass.” Defendant disputed whether he had, in fact, said this and in pretrial proceedings it was stipulated, in lieu of a *Huntley* hearing, that the statement could be used to impeach defendant but would not be admissible for the truth of the matter asserted on the People’s case. Defendant was confronted with the above-quoted portion of his statement on cross-examination and immediately afterward the prosecutor requested that the entire statement, which had been marked for identification as exhibit 28, be admitted in evidence for the jury’s examination. The court, over defendant’s objection and in the presence of the jury, purported to accede to this request. Subsequently, after defendant’s re-direct testimony and out of the jury’s presence, the court said it had been mistaken and that it had not intended to receive exhibit 28 as evidence. Although the exhibit was, accordingly, not received, the jury was not advised that the evidentiary ruling announced in its presence had been countermanded.

On the People’s rebuttal case, the police officer who had taken defendant’s statement testified, and in connection with his testimony the prosecutor again sought admission of the statement. The court responded, “At the present time I will receive it only as a Court Exhibit,” and directed that the statement be marked “Court Exhibit 1.”

The record reflects that the jury, while deliberating, sent the court a note requesting a readback of certain testimony and to see specified evidentiary exhibits. The court directed that the note be marked “Court Exhibit 2.” The note was read to and discussed with counsel and afterward the jury was advised that the requested testimony would be read back by the court reporter. As to the exhibits, the court stated that he assumed that they had already been delivered.

There is nothing in the trial minutes indicating that any further communication was received from the jury until it informed the court that it had reached a verdict.

In preparing defendant's appeal, counsel found among the trial exhibits a jury note marked as "Court Exhibit 3" in which the "report signed by Angel Cruz" was requested. Defendant argued that, inasmuch as there was no indication that the note was disclosed to counsel or responded to by the court, the requirements of CPL 310.30 and *People v O'Rama* (78 NY2d 270 [1991]) had not been met. Defendant contended that this failure constituted a mode of proceedings error involving a matter of substance and that reversal was therefore required (*see id.*). Although noting that "it appears on the record before us that there was a jury note" and that "the record is silent with respect to the court's response to the note," the Appellate Division did not conclude that there had been a mode of proceedings error, as defendant urged; it instead held the appeal in abeyance and remitted the matter for a reconstruction hearing to determine if there was a jury note and what, if anything, was done in response to any such note (42 AD3d 901 [4th Dept 2007]).

At the subsequently held "reconstruction hearing" (really just a conversation between the court and counsel with some testimony from the court reporter), no one had any independent recollection of the events at issue, which had transpired some four years before. The court was of the view that the trial had been accurately recorded and, although he had no memory at all of the events in question, he thought it probable that he never received the jury note. He initially expressed the view that the requested exhibit must simply have been given to the jury as a matter of course. But, upon being reminded by counsel that the exhibit had not been received in evidence, he said that, in that case the exhibit would not have been given to the jury, because that wasn't done. The court did say, however, that if he had been given the note, "we would have reconvened because it's not a People's exhibit, it's not a defense exhibit." At the hearing's conclusion, the court offered the unsolicited view that, in the absence of substantial evidence to the contrary, the presumption of regularity would require the conclusion that the jury had not been given the unadmitted court exhibit.

The record of this very useful exercise in hand, the Appellate Division resumed its consideration of defendant's appeal. The court affirmed defendant's convictions, concluding that although there had been a jury note and the note had not been addressed by the trial court, the defendant had not been seriously prejudiced as a result. In reaching this conclusion the Appellate

Division relied on pre-*O’Rama* decisions, evidently requiring a showing of “serious prejudice,” whose continued vitality is marginal at best after *O’Rama* (see *O’Rama*, 78 NY2d at 279 [rejecting People’s argument in reliance upon *People v Agosto* (73 NY2d 963, 966 [1989]) and *People v Lourido* (70 NY2d 428, 435 [1987]) that a showing of specific prejudice was essential to support reversal for noncompliance with CPL 310.30]), and found significant the trial court’s statements to the effect that unadmitted court exhibits were not typically given to the jury (57 AD3d 1453 [4th Dept 2008]).

I agree with and join in the result the Court has reached directing a reversal and a new trial, but the outcome of this appeal should not turn upon whether the jury was given the unadmitted court exhibit, something which we cannot know on this record and upon which the presumption of regularity manifestly does not shed any light. The fundamental problem in this case is that there is no record as to how the jury note requesting an unadmitted, potentially inculpatory statement by defendant was dealt with. This is precisely the kind of problem that compliance with CPL 310.30 and *People v O’Rama* is meant to obviate and there appears no reason why this appeal should not be decided on the ground that those authorities were not complied with; the completely dispositive issue properly before us is whether defendant’s right to be present and participate in his defense with the assistance of counsel was violated by the patent absence of any notice to defendant and his counsel of the jury note or of an opportunity to be heard in accordance with the mandate of CPL 310.30 and *O’Rama*.

There was not at the time of defendant’s trial in 2003 any question as to what a trial court must do upon receiving a jury note requesting instruction on a substantive matter. CPL 310.30 and *People v O’Rama*, decided more than a decade before, are painstakingly clear in this regard: notice to counsel and an opportunity to be heard as to how the jury’s inquiry should be dealt with are indispensable in satisfaction of a defendant’s basic entitlement to be present and participate with the assistance of counsel at all critical stages of the trial, and their denial will ordinarily be viewed as inherently prejudicial and reversible, even where there is no showing of specific prejudice (*O’Rama*, 78 NY2d at 279-280). The trial court was well aware of this and, in fact, stated at the reconstruction hearing that, if he had received the jury note requesting an unadmitted exhibit, he would have reconvened the trial and addressed the note with counsel.

As the trial court retrospectively recognized, the inquiry was plainly upon a matter of substance. The jury's request for defendant's statement suggested rather strongly that it believed defendant's entire transcribed post-arrest statement had been admitted as evidence and should therefore be available to it. Indeed, the jury must have so concluded from the court's apparent grant in its presence of the prosecutor's request that the statement be received in evidence—an evidentiary ruling never to its knowledge retracted. Any competent defense counsel, upon learning of such a request for an unadmitted, potentially inculpatory statement by his or her client, would at a minimum urgently request that the jury be instructed by the court that the statement was not in evidence. The People's contention that the jury note would not have merited discussion, is, in the present context, untenable.

Nor should it avail the People or deter this Court in applying *O'Rama* that the note may not have been brought to the trial judge's attention. Here, it should be noted parenthetically that the presumption of regularity works very much against the inference the People would draw, since it would appear highly irregular that the court, having directed that the prior jury note be marked "Court Exhibit 2," would have had no part at all in the marking of the jury note at issue as "Court Exhibit 3"; it does not seem likely that the exhibit became a "court exhibit" without the court's knowledge.* In any case, even if the jury note had been dealt with entirely by nonjudicial court personnel, who either supposed wrongly that the note sought an admitted exhibit, which could simply be given to the jury without further ado, or equally wrongly supposed, as the People do now, that the note raised no properly judicial concerns, the result from the defendant's perspective is the same. Whether by reason of the actions of the trial judge or nonjudicial court personnel, defendant was denied notice of and the opportunity to participate in framing a response to a jury inquiry upon a substantive matter, and the jury went uninstructed upon that matter, which, involving as it did an issue as crucial as the admissibility of defendant's post-arrest statement to the police—an issue that was supposed to have been resolved by stipulation in lieu of a *Huntley* hearing—was quintessentially one that required a "meaningful" response from the trial court under this Court's precedents (see *O'Rama*, 78 NY2d at 276; *People v Malloy*, 55 NY2d 296, 301 [1982]).

* The court, of course, also directed that the first court exhibit, defendant's statement, be marked as such.

Judges GRAFFEO, READ, SMITH and PIGOTT concur in memorandum; Chief Judge LIPPMAN concurs in result in an opinion in which Judges CIPARICK and JONES concur.

Order reversed, etc.

[926 NE2d 593, 900 NYS2d 239]

JOHN R. LINTON et al., Respondents, v MUHAMMAD NAWAZ et al., Appellants.

Decided April 6, 2010

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 7, 2009. The Appellate Division modified, on the law, an order of the Supreme Court, New York County (Deborah A. Kaplan, J.), which had denied a motion by defendants for summary judgment dismissing the complaint. The modification consisted of granting the motion to the extent of dismissing plaintiff's claim that he sustained a medically determined injury of a nonpermanent nature that prevented him from performing substantially all of his usual and customary activities for 90 of the 180 days immediately following the accident. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order of the Supreme Court, properly made?"

After plaintiff was hit by a taxicab, he commenced an action to recover damages for injuries allegedly sustained to his lumbosacral and cervical spines, his left knee and right shoulder. The majority at the Appellate Division concluded that although defendants shifted the burden of proof as to whether the injuries to plaintiff's cervical spine and knee were caused by the accident or were preexisting conditions, plaintiff raised an issue of fact regarding causation. The dissent concluded that plaintiff's evidence was insufficient to rebut defendants' showing that the injuries in question were preexisting conditions.

Linton v Nawaz, 62 AD3d 434, affirmed.

HEADNOTE

Insurance — No-Fault Automobile Insurance — Serious Injury

In a personal injury case in which a taxi struck the plaintiff, the evidence plaintiff proffered relating to injuries to his right shoulder and lumbosacral

spine raised a triable question of fact as to whether he suffered a serious injury that was causally related to the accident under the permanent consequential limitation of use of a body organ or member and/or significant limitation of a body function or system criteria (*see* Insurance Law § 5102 [d]). Since plaintiff established that at least some of his injuries met the “no-fault” threshold, it was unnecessary to address whether his proof with respect to other injuries he allegedly sustained would have been sufficient to withstand defendants’ motion for summary judgment.

APPEARANCES OF COUNSEL

Baker, McEvoy, Morrissey & Moskovits, P.C., New York City (*Stacy R. Seldin* of counsel), for appellants.

Law Offices of Mark S. Gray, New York City (*Peter J. Eliopoulos* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

In this personal injury case in which a taxi struck the plaintiff, the evidence plaintiff proffered relating to injuries to his right shoulder and lumbosacral spine raised a triable question of fact as to whether he suffered a serious injury that was causally related to the accident under the permanent consequential limitation of use of a body organ or member and/or significant limitation of a body function or system criteria (*see* Insurance Law § 5102 [d]). Since plaintiff established that at least some of his injuries meet the “no-fault” threshold, it is unnecessary to address whether his proof with respect to other injuries he allegedly sustained would have been sufficient to withstand defendants’ motion for summary judgment.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

In the Matter of ARCELORMITTAL LACKAWANNA LLC et al.,
Respondents, v CITY OF LACKAWANNA, Respondent, and CITY
OF LACKAWANNA SCHOOL DISTRICT, Intervenor-Respondent.
COUNTY OF ERIE, Proposed Intervenor-Appellant.

Submitted February 16, 2010; decided April 6, 2010

Reported below, 66 AD3d 1365.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

GEORGE BROWN et al., Respondents, v REINAUER TRANSPORTATION COMPANIES, LLC, et al., Appellants.

Submitted January 25, 2010; decided April 6, 2010

Reported below, 67 AD3d 106; 2009 NY Slip Op 91012(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

CHARLES CHRISTIANO et al., Appellants, v SOLOVIEFF REALTY Co., L.L.C., et al., Respondents, et al., Defendant. (And a Third-Party Action.)

Submitted February 1, 2010; decided April 6, 2010

Reported below, 62 AD3d 535.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Paglia v Agrawal*, 69 NY2d 946 [1987]).

CONTINENTAL CASUALTY COMPANY et al., Appellants, v PRICEWATERHOUSECOOPERS, LLP, Respondent.

EAGLE PARTNERS, L.P., et al., Appellants, v PRICEWATERHOUSECOOPERS, LLP, Respondent.

JEREMY M. JONES et al., Appellants, v PRICEWATERHOUSECOOPERS, LLP, Respondent.

Submitted March 8, 2010; decided April 6, 2010

Reported below, 57 AD3d 411.

Motion to enlarge the record on appeal herein granted.

Chief Judge LIPPMAN taking no part.

PATRICIA J. CURTO, Appellant, v PETER P. VASILION et al., Respondents.

Submitted March 1, 2010; decided April 6, 2010

Reported below, 2009 NY Slip Op 85310(U).

Motion for reargument etc. denied [*see* 13 NY3d 716 (2010)].

In the Matter of E., an Applicant for Admission to the Bar, Appellant. COMMITTEE ON CHARACTER AND FITNESS, Respondent.

Decided April 6, 2010

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ELENA D.B. PATRICK J. CARR et al., Respondents; ELENA B.S. et al., Appellants. ANNE PENACHIO et al., Nonparty-Respondents.

Decided April 6, 2010

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

INTER-CITY TIRE AND AUTO CENTER, INC., a New Jersey Corp., Appellant, v STERLING NATIONAL BANK et al., Respondents.

Submitted February 1, 2010; decided April 6, 2010

Reported below, 2009 NY Slip Op 90860(U); 2009 NY Slip Op 76731(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying a motion to vacate, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the Appellate Division order dismiss-

ing the appeal, dismissed as untimely (*see* CPLR 5513 [b]). Cross motion for the imposition of sanctions denied.

CONSTANTINEE L. JACKSON, Appellant, v STATE OF NEW YORK,
Respondent.

Decided April 6, 2010

Reported below, 2010 NY Slip Op 60312(U).

Appeal dismissed, without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of LARRY TT. JAMES CONWAY, as Superintendent
of Attica Correctional Facility, et al., Respondents; LARRY
TT., Appellant. (Proceeding No. 1.)

In the Matter of STATE OF NEW YORK, Respondent, v LARRY TT.,
Appellant. (Proceeding No. 2.)

Submitted January 19, 2010; decided April 6, 2010

Reported below, 68 AD3d 1229.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the denial of appellant's motion to dismiss the Mental Hygiene Law article 10 proceeding, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of the Claim of DAVID S. MALONE, Appellant, v
VRD DECORATING et al., Respondents. WORKERS' COMPENSA-
TION BOARD, Respondent.

Submitted February 16, 2010; decided April 6, 2010

Reported below, 68 AD3d 1570.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

PETER McCLUSKEY, Appellant, v GABOR AND GABOR et al., Respondents.

Decided April 6, 2010

Reported below, 61 AD3d 646.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NGOYI PAUL NGOYI, an Attorney, Appellant.
COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Decided April 6, 2010

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTEO RAMIREZ, Appellant.

Submitted March 1, 2010; decided April 6, 2010

Reported below, 60 AD3d 560.

Motion for assignment of counsel granted and Norman A. Olch, Esq. relieved as counsel and Diane V. Bruns, Esq., care of Schlather, Stumbar, Parks & Sack, 200 E. Buffalo Street, Ithaca, New York 14850 assigned as counsel to the appellant on the appeal herein in his stead.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTEO RAMIREZ, Appellant.

Submitted March 8, 2010; decided April 6, 2010

Reported below, 60 AD3d 560.

Motion to vacate this Court's February 16, 2010 dismissal order granted [*see* 14 NY3d 769 (2010)].

In the Matter of ZHUANG LI CAI, Appellant, v M.D. JAMIL UD-DIN, Respondent.

Submitted March 1, 2010; decided April 6, 2010

Reported below, 58 AD3d 746.

Motion for reargument of motion for leave to appeal denied [see 13 NY3d 715 (2010)].

[926 NE2d 1228, 900 NYS2d 723]

L&L PAINTING CO., INC., et al., Appellants, v CONTRACT DISPUTE RESOLUTION BOARD OF THE CITY OF NEW YORK et al., Respondents.

Decided April 29, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 17, 2009. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Marcy S. Friedman, J.; op 2008 NY Slip Op 30177[U]), entered in a proceeding pursuant to CPLR article 78, which had denied a petition to annul a determination of respondent Contract Dispute Resolution Board of the City of New York rejecting petitioners' claim for compensation for additional work performed under a contract with respondent City of New York Department of Transportation.

Following competitive bidding, petitioner was awarded a public works contract for removal of lead-based paint from a bridge. The contract required petitioner to construct a protective scaffolding platform above the bridge's roadways. A dispute arose over the interpretation of a contract provision regarding the height of the platform with respect to differing roadway elevations. In order to conform to the specifications of the Transportation Department's engineer, petitioner incurred additional costs. Following the denial of its request for reimbursement for the additional costs, petitioner sought review from the Contract Dispute Resolution Board. The Board concluded that the ambiguity in the contract documents should have been discovered by petitioner at the bidding stage and that petitioner should have sought a clarification prior to bidding.

L&L Painting Co., Inc. v Contract Dispute Resolution Bd. of the City of N.Y., 68 AD3d 594, affirmed.

HEADNOTE

Contracts — Public Works Contracts — Ambiguous Contract

The petition was correctly dismissed in a proceeding to recover additional costs incurred by a contractor on a public works contract. The municipal agency that reviewed petitioner's request for additional reimbursement rationally determined that a discrepancy between a diagram and notes on the contract drawing created an ambiguity in the contract terms, which petitioner failed to clarify prior to bidding as the contract required. Therefore, the agency rationally disapproved the claim for additional compensation.

APPEARANCES OF COUNSEL

Georgoulis & Associates PLLC, New York City (*Michael McDermott* of counsel), for appellants.

Michael A. Cardozo, Corporation Counsel, New York City (*Alan G. Krams* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs. The City of New York Contract Dispute Resolution Board rationally determined that a discrepancy between a diagram and notes on the contract drawing that is the subject of this dispute created an ambiguity in the contract terms, which petitioner L&L Painting Co., Inc. failed to clarify prior to bidding as the contract required. Therefore, the Board rationally disapproved the claim for additional compensation.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

[927 NE2d 1062, 901 NYS2d 578]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN ACEVEDO, Appellant.

Argued March 22, 2010; decided April 29, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme

Court in the Second Judicial Department, entered April 7, 2009. The Appellate Division affirmed a resentence of the Dutchess County Court (Gerald V. Hayes, J.), pursuant to the Drug Law Reform Act of 2004 (L 2004, ch 738, § 23), imposed after a hearing. County Court granted defendant's resentencing motion to the extent of reducing his sentence for criminal possession of a controlled substance in the first degree from an indeterminate prison term of 15 years to life, to a determinate prison term of 15 years with five years of postrelease supervision, and denied defendant's motion insofar as it sought a direction that two determinate prison sentences of five years imposed upon his conviction on two counts of criminal possession of a weapon in the third degree be served concurrently with the controlled substance sentence.

People v Acevedo, 61 AD3d 692, affirmed.

HEADNOTE

Crimes — Sentence — Concurrent and Consecutive Terms — Drug Law Reform Act

A court that resentenced defendant pursuant to the Drug Law Reform Act of 2004 (L 2004, ch 738, § 23) did not possess the authority, pursuant to Penal Law § 70.25 (1), to determine whether the sentence was to be served concurrently or consecutively with respect to other sentences being served by defendant. The purpose of the Act is to ameliorate the harsh sentences required by the original Rockefeller Drug Law. When a court imposes a reduced sentence under the amended statute it does not impose an "additional term of imprisonment" as contemplated by section 70.25 (1). Nor is a proceeding pursuant to the Act used to modify an original term of resentence. Rather, the proceeding is meant to effect an alteration of the existing sentence as authorized by law.

APPEARANCES OF COUNSEL

Law Offices of Mickey A. Steiman, Hyde Park (*David L. Steinberg* of counsel), for appellant.

William V. Grady, District Attorney, Poughkeepsie (*Bridget Rahilly Steller* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

On November 7, 1997, County Court rendered judgment convicting defendant of criminal possession of a controlled substance in the first degree, an A-I drug felony, for which he received an indeterminate prison term of 15 years to life; criminal sale of a controlled substance in the third degree, for which he received an indeterminate prison term of 12½ to 25 years;

criminal possession of a controlled substance in the third degree, for which he received an indeterminate prison term of 12¹/₂ to 25 years; and criminal possession of a weapon in the third degree (two counts), for which he received a determinate prison term of five years on each count. The sentences for the drug possession and sale convictions were imposed to run concurrently. The weapon possession convictions were imposed to run concurrently with each other, but consecutively to the drug convictions. By order entered August 23, 1999, the convictions and sentences were affirmed by the Appellate Division (*People v Acevedo*, 258 AD2d 140 [2d Dept 1999]). A Judge of this Court denied defendant leave to appeal from this order (94 NY2d 819 [1999]).

In 2005, defendant moved before County Court to be resentenced pursuant to the Drug Law Reform Act of 2004 (L 2004, ch 738, § 23) (DLRA). Defendant argued (1) he was entitled to a reduction of his sentence for the A-I drug felony, and (2) the resentencing court should direct that the sentences imposed for the weapon possession convictions run concurrently to the A-I offense, rather than consecutively. On October 11, 2005, County Court, after a hearing, granted defendant's motion to the extent of reducing the sentence for the A-I drug conviction from an indeterminate prison term of 15 years to life to a determinate prison term of 15 years (and five years' postrelease supervision). However, the court declined to direct that the other sentences be served concurrently. That is, the court left undisturbed the original sentencing court's direction that the sentences for the weapon possession convictions run consecutively to those imposed for the drug convictions. By order entered April 7, 2009, the Appellate Division affirmed the resentence (61 AD3d 692 [2d Dept 2009]). A Judge of this Court granted defendant leave to appeal from this order (12 NY3d 912 [2009]).

At issue is whether the trial court had authority to modify the conditions of a sentence by changing its terms from consecutive to concurrent once it granted defendant's DLRA application for resentencing. Defendant argues that the court is so empowered pursuant to Penal Law § 70.25 (1), which reads as follows:

“[W]hen multiple sentences of imprisonment are imposed on a person at the same time, or when a person who is subject to any undischarged term of imprisonment imposed at a previous time by a court of this state is sentenced to an additional term of

imprisonment, the sentence or sentences imposed by the court shall run either concurrently or consecutively with respect to each other and the undischarged term or terms in such manner as the court directs at the time of sentence.”

Defendant further argues that the sentencing court, in adjusting the term of imprisonment pursuant to the DLRA, is authorized to change a consecutive sentence to concurrent, as in *Matter of Murray v Goord* (1 NY3d 29 [2003]), where we held that the sentencing discretion of Penal Law § 70.25 (1) devolves on the last judge in the sentencing chain.

Defendant’s reliance on Penal Law § 70.25 (1) and *Murray v Goord* is misplaced. The purpose of the DLRA is to ameliorate the harsh sentences required by the original Rockefeller Drug Law. When a court imposes a reduced sentence under the amended statute it does not impose an “additional term of imprisonment” as contemplated by Penal Law § 70.25 (1). Nor is the DLRA proceeding used to modify the original term of resentence as occurred in *Murray v Goord*. The DLRA proceeding is meant to effect an alteration of the existing sentence as authorized by law. As such, “a court that resentsences a defendant pursuant to the 2004 DLRA does not possess the authority, conferred by Penal Law § 70.25 (1), to determine whether the sentence is to be served concurrently or consecutively with respect to other sentences” (*People v Vaughan*, 62 AD3d 122, 128 [2d Dept 2009]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

CAYUGA INDIAN NATION OF NEW YORK, Respondent, v DAVID S. GOULD, Cayuga County Sheriff, et al., Appellants.

Submitted April 26, 2010; decided April 29, 2010

Reported below, 66 AD3d 100.

Motion for renewal granted and, upon renewal, motion by Day Wholesale, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within five days.

JOEHAU COLLAZO, Respondent, v METROPOLITAN SUBURBAN BUS
AUTHORITY et al., Appellants, et al., Defendants.

Submitted February 22, 2010; decided April 29, 2010

Reported below, 68 AD3d 803.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

RICHARD DOIN et al., Respondents, v CHAMPLAIN BLUFFS DEVEL-
OPMENT CORPORATION, Appellant, et al., Defendants.

Submitted February 16, 2010; decided April 29, 2010

Reported below, 68 AD3d 1605.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

JOHN GIORDANO, Appellant, v MARKET AMERICA, INC., et al.,
Respondents.

Decided April 29, 2010

See 599 F3d 87.

Certification of questions by the United States Court of Ap-
peals for the Second Circuit, pursuant to section 500.27 of the
Rules of Practice of the Court of Appeals (22 NYCRR 500.27),
accepted and the issues presented are to be considered after
briefing and argument.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO,
READ, SMITH, PIGOTT and JONES.

HOWARD HOFFMAN, Respondent, v PARADE PUBLICATIONS et al.,
Appellants.

Submitted April 26, 2010; decided April 29, 2010

Reported below, 65 AD3d 48.

Motion by National Employment Lawyers Association/New
York et al. for leave to appear amici curiae on the appeal herein

granted only to the extent that the proposed brief is accepted as filed.

KIMBERLY HURRELL-HARRING et al., on Behalf of Themselves
and All Others Similarly Situated, Appellants, v STATE OF
NEW YORK et al., Respondents.

Submitted March 29, 2010; decided April 29, 2010

Reported below, 66 AD3d 84.

Motion by Pro Bono Publico Bar Association, Inc. for leave to
file a brief amicus curiae on the appeal herein dismissed as
untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [a]
[1] [iii]).

In the Matter of KESE INDUSTRIES et al., Respondents, v ROSLYN
TORAH FOUNDATION et al., Appellants, et al., Respondents.

Submitted March 15, 2010; decided April 29, 2010

Reported below, 62 AD3d 880.

Motion to vacate this Court's February 16, 2010 preclusion
order granted.

In the Matter of KIPS BAYS TOWERS CONDOMINIUM, Appellant, v
COMMISSIONER OF FINANCE et al., Respondents.

Submitted February 16, 2010; decided April 29, 2010

Reported below, 66 AD3d 506.

Motion by the Council of New York Cooperatives and Condo-
miniums for leave to file a brief amicus curiae on the motion for
leave to appeal herein granted and the brief is accepted as filed.

ALICE KRAMER, Respondent, v PHOENIX LIFE INSURANCE Co. et
al., Defendants. LIFEMARK S.A., Intervenor-Appellant.

Decided April 29, 2010

Certification of a question by the United States Court of Ap-
peals for the Second Circuit, pursuant to section 500.27 of the
Rules of Practice of the Court of Appeals (22 NYCRR 500.27),

accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HERBERT APONTE, Appellant.

Submitted April 26, 2010; decided April 29, 2010

Reported below, 24 Misc 3d 118.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHAREEF EVANS, Appellant.

Submitted April 26, 2010; decided April 29, 2010

Reported below, 69 AD3d 649.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM HASSELL, Appellant.

Submitted March 29, 2010; decided April 29, 2010

Reported below, 66 AD3d 575.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH HECKER, Appellant.

Submitted March 29, 2010; decided April 29, 2010

Reported below, 68 AD3d 429.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HADJI S. HILL, Appellant.

Submitted April 5, 2010; decided April 29, 2010

Reported below, 66 AD3d 1471.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HAYNES JACOB, Appellant.

Submitted April 26, 2010; decided April 29, 2010

Reported below, 70 AD3d 486.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN LINGLE, Appellant.

Submitted April 19, 2010; decided April 29, 2010

Reported below, 66 AD3d 582.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAHSHEEM MOSS, Appellant.

Submitted April 12, 2010; decided April 29, 2010

Reported below, 67 AD3d 1027.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TONY WEAVER, Appellant.

Submitted April 5, 2010; decided April 29, 2010

Reported below, 68 AD3d 1781.

Motion for poor person relief granted only to the extent that Ronald C. Valentine, Esq., Wayne County Public Defender, 26 Church Street, Lyons, New York 14489 is assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. GENARO CAMPOS, Appellant, v JAMES CONWAY, Superintendent, Attica Correctional Facility, Respondent.

Submitted February 16, 2010; decided April 29, 2010

Motion for reargument of motion for leave to appeal denied [see 13 NY3d 934 (2010)].

In the Matter of MARVIN POLLACK, Appellant. STATE OF NEW YORK et al., Respondents.

Submitted March 1, 2010; decided April 29, 2010

Reported below, 2009 NY Slip Op 90052(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of RONALD RIVERS, Appellant, v GEORGE ALEXANDER, as Chair of the Division of Parole, Respondent.

Submitted March 1, 2010; decided April 29, 2010

Reported below, 67 AD3d 1086.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

68-49 WOODHAVEN BOULEVARD HOLDING CORP., Appellant, v
EXXON MOBIL CORPORATION, Formerly Known as MOBIL OIL
CORPORATION, Defendant and Third-Party Plaintiff-
Respondent. AC WOODHAVEN INC. et al., Third-Party De-
fendants-Appellants.

Submitted February 1, 2010; decided April 29, 2010

Reported below, 61 AD3d 844.

Motion for leave to appeal, insofar as made by third-party ap-
pellants, dismissed upon the ground that they are not parties
aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise
denied.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(April 1, 2010 through April 30, 2010)

Samuel, Matter of, v Alexander	2d Dept: 69 AD3d 861	4/15/10
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APPEALS WITHDRAWN AND DISCONTINUED

(April 1, 2010 through April 30, 2010)

Barker Cent. School Dist., Matter of, v Niagara County Indus. Dev. Agency	4th Dept: 62 AD3d 1239	4/13/10
Town of Somerset, Matter of, v Niagara County Indus. Dev. Agency	4th Dept: 62 AD3d 1239	4/13/10
Woodard, Matter of, v Prack	3d Dept: 64 AD3d 842	4/9/10

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(April 1, 2010 through April 30, 2010)

People v Abdur-Rahman	2d Dept: 69 AD3d 951 (Kings)	denied 4/14/10 (Smith, J.)
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People v Al-Sabahi	App Term, 1st Dept: 26 Misc 3d 128(A) (NY)	denied 4/8/10 (Jones, J.)
People v Allen	3d Dept: 67 AD3d 1066 (Warren)	denied 4/19/10 (Ciparick, J.)
People v Appukkutta (Appukkuta)	App Div, 1st Dept: 2009 NY Slip Op 90145(U) (NY)	denied reconsideration 4/13/10 (Grafteo, J.)
People v Arena	2d Dept: 69 AD3d 867 (Nassau)	denied 4/14/10 (Grafteo, J.)
People v Arrieta	1st Dept: 68 AD3d 523 (NY)	denied 4/2/10 (Read, J.)
People v Ashby	App Div, 2d Dept: 2010 NY Slip Op 65080(U) (Nassau)	dismissed 4/13/10 (Jones, J.)
People v Ashley	App Div, 3d Dept: 2010 NY Slip Op 61528(U) (St. Lawrence)	denied 4/8/10 (Jones, J.)
People v Avila	2d Dept: 69 AD3d 642 (Queens)	denied 4/8/10 (Ciparick, J.)
People v Ayodele	2d Dept: 68 AD3d 1010 (Suffolk)	denied 4/6/10 (Lippman, Ch. J.)
People v Balram	App Div, 3d Dept: 2009 NY Slip Op 82331(U) (Schenectady)	denied 4/5/10 (Jones, J.)
People v Barrington	App Div, 1st Dept, 12/22/09 (Bronx)	denied 4/22/10 (Grafteo, J.)
People v Bartolillo	App Div, 3d Dept: 2010 NY Slip Op 62214(U) (Delaware)	denied 4/14/10 (Smith, J.)
People v Bell	1st Dept: 68 AD3d 545 (NY)	granted 4/8/10 (Ciparick, J.)
People v Benard	2d Dept: 69 AD3d 952 (Kings)	denied 4/14/10 (Smith, J.)
People v Betko	App Term, 2d Dept: 26 Misc 3d 134(A) (Queens)	denied 4/14/10 (Pigott, J.)
People v Blackstock	2d Dept: 69 AD3d 957 (Kings)	denied 4/20/10 (Ciparick, J.)
People v Blake	App Div, 1st Dept: 2009 NY Slip Op 89945(U) (Bronx)	denied 4/9/10 (Smith, J.)
People v Bodah	3d Dept: 67 AD3d 1195 (St. Lawrence)	denied 4/1/10 (Lippman, Ch. J.)
People v Bolden	4th Dept: 70 AD3d 1352 (Erie)	denied 4/21/10 (Grafteo, J.)
People v Bonney	3d Dept: 69 AD3d 1116 (Albany)	denied 4/21/10 (Grafteo, J.)
People v Boothe	1st Dept: 68 AD3d 402 (NY)	granted 4/1/10 (Read, J.)
People v Boyd	2d Dept: 68 AD3d 889 (Nassau)	denied 4/19/10 (Ciparick, J.)
People v Brabham	1st Dept: 66 AD3d 557 (NY)	granted 4/1/10 (Pigott, J.)
People v Bradberry	4th Dept: 68 AD3d 1688 (Niagara)	denied 4/5/10 (Jones, J.)

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People v Brown (Alton)	1st Dept: 70 AD3d 407 (Bronx)	denied 4/9/10 (Pigott, J.)
People v Brown (Eddie)	4th Dept: 66 AD3d 1385 (Onondaga)	denied 4/19/10 (Jones, J.)
People v Brown (Jermaine)	4th Dept: 67 AD3d 1427 (Monroe)	denied 4/19/10 (Ciparick, J.)
People v Brown (Jermaine)	4th Dept: 67 AD3d 1428 (Monroe)	denied 4/19/10 (Ciparick, J.)
People v Brown (Kenneth)	1st Dept: 69 AD3d 466 (NY)	granted 4/23/10 (Grafteo, J.)
People v Brown (La'Shawn)	4th Dept: 70 AD3d 1341 (Onondaga)	denied 4/12/10 (Smith, J.)
People v Brown (Rohan)	2d Dept: 69 AD3d 750 (Queens)	denied 4/22/10 (Pigott, J.)
People v Brown (Stanley)	4th Dept: 68 AD3d 1824 (Jefferson)	denied 4/19/10 (Ciparick, J.)
People v Bruce	1st Dept: 69 AD3d 539 (NY)	denied 4/14/10 (Pigott, J.)
People v Brunner	1st Dept: 67 AD3d 464 (NY)	granted 4/21/10 (Lippman, Ch. J.)
People v Bush	App Div, 3d Dept: 2009 NY Slip Op 92813(U) (Tompkins)	dismissed 4/9/10 (Smith, J.)
People v Capers	1st Dept: 68 AD3d 427 (NY)	withdrawn 4/8/10 (Ciparick, J.)
People v Carter	County Ct, 7/22/09 (Albany)	denied 4/23/10 (Jones, J.)
People v Chatham	3d Dept: 55 AD3d 1045 (Schenectady)	denied 4/19/10 (Jones, J.)
People v Clanton	2d Dept: 69 AD3d 754 (Queens)	denied 4/22/10 (Pigott, J.)
People v Cole	4th Dept: 68 AD3d 1763 (Erie)	denied 4/8/10 (Jones, J.)
People v Collazo	2d Dept: 66 AD3d 795 (Queens)	denied 4/2/10 (Read, J.)
People v Collins	4th Dept: 70 AD3d 1366 (Erie)	denied 4/20/10 (Ciparick, J.)
People v Colston	2d Dept: 68 AD3d 1130 (Nassau)	denied 4/21/10 (Grafteo, J.)
People v Crumpler	4th Dept: 70 AD3d 1396 (Niagara)	denied 4/14/10 (Smith, J.)
People v Cuoco	1st Dept: 69 AD3d 468 (NY)	denied 4/20/10 (Ciparick, J.)
People v Czora	4th Dept: 66 AD3d 1403 (Erie)	denied 4/5/10 (Jones, J.)
People v Dail	2d Dept: 69 AD3d 873 (Nassau)	denied 4/14/10 (Pigott, J.)
People v Davis	4th Dept: 68 AD3d 1653 (Oneida)	denied 4/9/10 (Pigott, J.)
People v Delgado	1st Dept: 70 AD3d 442 (NY)	denied 4/10/10 (Smith, J.)

People v Delpesce	2d Dept: 68 AD3d 1131 (Suffolk)	denied 4/5/10 (Jones, J.)
People v DelPrince	4th Dept: 70 AD3d 1350 (Erie)	denied 4/26/10 (Grafteo, J.)
People v Dillon	3d Dept: 61 AD3d 1221 (Essex)	denied 4/5/10 (Jones, J.)
People v Dinh	2d Dept: 70 AD3d 848 (Queens)	denied 4/21/10 (Grafteo, J.)
People v Dobson (Trevor)	4th Dept: 70 AD3d 1413 (Steuben)	denied 4/26/10 (Grafteo, J.) (Appeal No. 1)
People v Dobson (Trevor)	4th Dept: 70 AD3d 1413 (Steuben)	denied 4/26/10 (Grafteo, J.) (Appeal No. 2)
People v Dorsette	App Div, 2d Dept: 2010 NY Slip Op 61762(U) (Kings)	dismissed 4/7/10 (Pigott, J.)
People v Drake	4th Dept: 68 AD3d 1778 (Oneida)	denied 4/8/10 (Jones, J.)
People v Ebrahim	4th Dept: 67 AD3d 1388 (Wayne)	denied reconsideration 4/8/10 (Smith, J.)
People v Erb	4th Dept: 70 AD3d 1380 (Ontario)	denied 4/20/10 (Smith, J.)
People v Eron	4th Dept: 68 AD3d 1704 (Cattaraugus)	denied 4/19/10 (Ciparick, J.)
People v Evans	2d Dept: 69 AD3d 649 (Queens)	granted 4/8/10 (Ciparick, J.)
People v Farren (Philip)	4th Dept: 70 AD3d 1378 (Erie)	denied 4/14/10 (Pigott, J.) (Appeal No. 1)
People v Farren (Philip)	4th Dept: 70 AD3d 1378 (Erie)	denied 4/14/10 (Pigott, J.) (Appeal No. 2)
People v Feliciano	App Div, 3d Dept: 2009 NY Slip Op 89246(U) (Greene)	granted 4/9/10 (Pigott, J.)
People v Fisher	App Term, 1st Dept: 26 Misc 3d 128(A) (NY)	denied 4/19/10 (Ciparick, J.)
People v Folkes	2d Dept: 69 AD3d 957 (Kings)	denied 4/20/10 (Ciparick, J.)
People v Fuller	4th Dept: 70 AD3d 1391 (Oneida)	denied 4/26/10 (Grafteo, J.)
People v Garrett	2d Dept: 68 AD3d 781 (Dutchess)	denied 4/2/10 (Read, J.)
People v Gaviria	2d Dept: 67 AD3d 701 (Queens)	denied 4/5/10 (Jones, J.)
People v Gazivoda	3d Dept: 68 AD3d 1346 (Ulster)	denied 4/5/10 (Jones, J.)
People v Gilkeson	4th Dept: 70 AD3d 1518 (Onondaga)	denied 4/26/10 (Grafteo, J.)
People v Gillyard	2d Dept: 70 AD3d 854 (Queens)	denied 4/20/10 (Smith, J.)

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People v Glover	2d Dept: 69 AD3d 877 (Westchester)	denied 4/29/10 (Grafteo, J.)
People v Gonzalez (Jose)	1st Dept: 69 AD3d 454 (NY)	denied 4/14/10 (Smith, J.)
People v Gonzalez (Juan)	2d Dept: 70 AD3d 855 (Kings)	denied 4/20/10 (Smith, J.)
People v Gray	1st Dept: 69 AD3d 539 (NY)	denied 4/14/10 (Pigott, J.)
People v Green	4th Dept: 68 AD3d 1780 (Monroe)	denied 4/19/10 (Ciparick, J.)
People v Grube	1st Dept: 68 AD3d 606 (NY)	denied 4/8/10 (Jones, J.)
People v Hardmon	2d Dept: 70 AD3d 716 (Queens)	denied 4/20/10 (Smith, J.)
People v Harris (John)	2d Dept: 68 AD3d 783 (Kings)	denied 4/2/10 (Read, J.)
People v Harris (Lydell)	2d Dept: 68 AD3d 1134 (Kings)	denied 4/2/10 (Read, J.)
People v Healy	4th Dept: 68 AD3d 1653 (Oneida)	denied 4/9/10 (Pigott, J.)
People v Hearn	2d Dept: 70 AD3d 856 (Suffolk)	denied 4/20/10 (Ciparick, J.)
People v Hebert	3d Dept: 68 AD3d 1530 (Montgomery)	denied 4/5/10 (Jones, J.)
People v Heil	4th Dept: 70 AD3d 1490 (Monroe)	withdrawn 4/1/10 (Pigott, J.)
People v Henderson	1st Dept: 67 AD3d 426 (NY)	denied 4/6/10 (Lippman, Ch. J.)
People v Hill (Gregory)	4th Dept: 68 AD3d 1822 (Erie)	denied 4/5/10 (Jones, J.)
People v Hill (Michael)	4th Dept: 67 AD3d 1457 (Niagara)	denied 4/20/10 (Ciparick, J.)
People v Hornick	County Ct, 6/26/09 (Schenectady)	denied 4/23/10 (Jones, J.)
People v Hughes	2d Dept: 68 AD3d 894 (Rockland)	denied 4/14/10 (Smith, J.)
People v Jackson (Alex)	2d Dept: 70 AD3d 719 (Queens)	denied 4/12/10 (Smith, J.)
People v Jackson (Skyler)	2d Dept: 70 AD3d 858 (Dutchess)	denied 4/26/10 (Grafteo, J.)
People v Jenks	3d Dept: 69 AD3d 1120 (St. Lawrence)	denied 4/22/10 (Grafteo, J.)
People v Johnson (Larry)	2d Dept: 70 AD3d 719 (Queens)	denied 4/12/10 (Smith, J.)
People v Johnson (Marcus)	1st Dept: 67 AD3d 597 (NY)	denied 4/5/10 (Jones, J.)
People v Jordan	1st Dept: 66 AD3d 577 (NY)	granted 4/27/10 (Grafteo, J.)
People v Junebo	2d Dept: 68 AD3d 1135 (Orange)	denied 4/26/10 (Grafteo, J.)

People v Kalen	4th Dept: 68 AD3d 1666 (Monroe)	denied 4/19/10 (Ciparick, J.)
People v Le	4th Dept: 68 AD3d 1757 (Erie)	denied 4/8/10 (Jones, J.)
People v Lemay	2d Dept: 69 AD3d 757 (Suffolk)	denied 4/21/10 (Grafteo, J.)
People v Lopez	2d Dept: 69 AD3d 958 (Kings)	denied 4/19/10 (Jones, J.)
People v Lynch	App Div, 4th Dept, 3/4/10 (Erie)	dismissed 4/8/10 (Ciparick, J.)
People v Mabeus	3d Dept: 68 AD3d 1557 (Schenectady)	denied 4/21/10 (Grafteo, J.)
People v Madill	4th Dept: 68 AD3d 1823 (Jefferson)	denied 4/8/10 (Ciparick, J.)
People v Madrid	2d Dept: 68 AD3d 784 (Queens)	denied 4/2/10 (Read, J.)
People v Magwood	2d Dept: 70 AD3d 971 (Kings)	denied 4/26/10 (Grafteo, J.)
People v Maldonado	App Div, 2d Dept: 2009 NY Slip Op 82883(U) (Queens)	denied 4/9/10 (Pigott, J.)
People v Marcinak	2d Dept: 69 AD3d 654 (Orange)	denied 4/8/10 (Smith, J.)
People v Marte	1st Dept: 69 AD3d 405 (Bronx)	denied 4/8/10 (Jones, J.)
People v Martin (Ricky)	2d Dept: 68 AD3d 1134 (Kings)	denied 4/8/10 (Smith, J.)
People v Martin (Toussaint)	4th Dept: 68 AD3d 1653 (Oneida)	denied 4/9/10 (Pigott, J.)
People v Martinez	2d Dept: 69 AD3d 958 (Nassau)	denied 4/8/10 (Jones, J.)
People v Marvin (Kenneth)	4th Dept: 68 AD3d 1729 (Ontario)	denied 4/12/10 (Smith, J.) (Appeal No. 1)
People v Marvin (Kenneth)	4th Dept: 68 AD3d 1730 (Ontario)	denied 4/12/10 (Smith, J.) (Appeal No. 2)
People v Marvin (Kenneth)	4th Dept: 68 AD3d 1730 (Ontario)	denied 4/12/10 (Smith, J.) (Appeal No. 3)
People v Mathes	2d Dept: 70 AD3d 723 (Suffolk)	denied 4/14/10 (Pigott, J.)
People v McCrae	2d Dept: 69 AD3d 759 (Kings)	denied 4/20/10 (Ciparick, J.)
People v McLeod	2d Dept: 69 AD3d 960 (Queens)	denied 4/26/10 (Grafteo, J.)
People v Mendez	1st Dept: 68 AD3d 662 (NY)	dismissed 4/8/10 (Ciparick, J.)
People v Mills (Richard)	4th Dept: 68 AD3d 1823 (Genesee)	denied 4/9/10 (Smith, J.)

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People v Mills (Richard)	4th Dept: 70 AD3d 1518 (Genesee)	dismissed 4/9/10 (Smith, J.) (Case No. 246)
People v Mills (Richard)	4th Dept: 70 AD3d 1518 (Genesee)	dismissed 4/9/10 (Smith, J.) (Case No. 247)
People v Mingo	2d Dept: 66 AD3d 1043 (Queens)	denied 4/5/10 (Jones, J.)
People v Minucci	2d Dept: 68 AD3d 1017 (Queens)	denied 4/8/10 (Smith, J.)
People v Moore	4th Dept: 70 AD3d 1364 (Steuben)	denied 4/20/10 (Ciparick, J.)
People v Muriel-Herrera	2d Dept: 68 AD3d 1135 (Orange)	denied 4/26/10 (Grafteo, J.)
People v Murphy	4th Dept: 68 AD3d 1730 (Ontario)	denied 4/7/10 (Pigott, J.)
People v Naji	1st Dept: 68 AD3d 525 (NY)	denied 4/2/10 (Read, J.)
People v Narayanan	App Div, 1st Dept: 2009 NY Slip Op 90145(U) (NY)	denied reconsideration 4/13/10 (Grafteo, J.)
People v Nesbitt	3d Dept: 69 AD3d 1109 (Schenectady)	denied 4/19/10 (Ciparick, J.)
People v Oliver (Kevin)	App Div, 2d Dept: 2008 NY Slip Op 80250(U) (Nassau)	denied reconsideration 4/14/10 (Smith, J.)
People v Oliver (Kevin)	App Div, 2d Dept: 2008 NY Slip Op 84451(U) (Nassau)	denied reconsideration 4/14/10 (Smith, J.)
People v Osbourne	2d Dept: 69 AD3d 764 (Nassau)	denied 4/22/10 (Grafteo, J.)
People v Payne	4th Dept: 68 AD3d 1800 (Erie)	denied 4/6/10 (Lippman, Ch. J.)
People v Peoples	4th Dept: 66 AD3d 1419 (Erie)	denied 4/5/10 (Jones, J.)
People v Perdomo	App Div, 1st Dept: 2010 NY Slip Op 62380(U) (NY)	dismissed 4/8/10 (Lippman, Ch. J.)
People v Peryea	3d Dept: 68 AD3d 1144 (Clinton)	denied reconsideration 4/22/10 (Pigott, J.)
People v Peters	2d Dept: 69 AD3d 765 (Kings)	denied 4/8/10 (Smith, J.)
People v Phillips	1st Dept: 68 AD3d 541 (NY)	granted 4/8/10 (Pigott, J.)
People v Powless	4th Dept: 68 AD3d 1825 (Orleans)	denied 4/22/10 (Smith, J.)
People v Price	App Div, 2d Dept: 2010 NY Slip Op 61457(U) (Kings)	dismissed 4/13/10 (Grafteo, J.)

People v Procanick	4th Dept: 68 AD3d 1756 (Oneida)	denied 4/7/10 (Pigott, J.)
People v Quinones	2d Dept: 67 AD3d 824 (Kings)	denied 4/2/10 (Read, J.)
People v Ramirez	2d Dept: 68 AD3d 1020 (Queens)	denied 4/9/10 (Pigott, J.)
People v Reese	County Ct, 3/9/10 (Ulster)	denied 4/13/10 (Grafteo, J.)
People v Riddick (Gabriel)	App Div, 3d Dept: 2010 NY Slip Op 60309(U) (Broome)	denied 4/8/10 (Smith, J.)
People v Riddick (Malcolm)	4th Dept: 70 AD3d 1421 (Monroe)	denied 4/22/10 (Pigott, J.)
People v Riquelme	1st Dept: 68 AD3d 630 (NY)	denied 4/8/10 (Ciparick, J.)
People v Rivera	2d Dept: 69 AD3d 656 (Rockland)	denied 4/19/10 (Jones, J.)
People v Robinson (Jamel)	2d Dept: 70 AD3d 728 (Kings)	denied 4/22/10 (Grafteo, J.)
People v Robinson (Tishawn)	2d Dept: 68 AD3d 1140 (Kings)	denied 4/8/10 (Jones, J.)
People v Samuels	App Div, 2d Dept: 2009 NY Slip Op 90721(U) (Kings)	dismissed 4/8/10 (Smith, J.)
People v Sanchez	1st Dept: 69 AD3d 434 (NY)	denied 4/8/10 (Ciparick, J.)
People v Sanderson	4th Dept: 68 AD3d 1716 (Orleans)	denied 4/19/10 (Ciparick, J.)
People v Santana	1st Dept: 70 AD3d 448 (Bronx)	denied 4/14/10 (Pigott, J.)
People v Santiago	4th Dept: 63 AD3d 1656 (Steuben)	denied 4/5/10 (Jones, J.)
People v Serna	2d Dept: 69 AD3d 886 (Queens)	denied 4/20/10 (Ciparick, J.)
People v Smalls	4th Dept: 70 AD3d 1328 (Erie)	denied 4/26/10 (Grafteo, J.)
People v Smith (Kimark)	2d Dept: 69 AD3d 657 (Queens)	denied 4/22/10 (Grafteo, J.)
People v Smith (Sean)	1st Dept: 69 AD3d 450 (NY)	granted 4/8/10 (Ciparick, J.)
People v Solano	2d Dept: 68 AD3d 1022 (Queens)	denied 4/19/10 (Ciparick, J.)
People v Sostre	2d Dept: 70 AD3d 865 (Kings)	denied 4/21/10 (Grafteo, J.)
People v Stokes	1st Dept: 69 AD3d 409 (NY)	denied 4/21/10 (Grafteo, J.)
People v Story	4th Dept: 68 AD3d 1737 (Erie)	denied 4/8/10 (Ciparick, J.)
People v Strachn	1st Dept: 70 AD3d 418 (NY)	denied 4/14/10 (Smith, J.)
People v Straw	4th Dept: 70 AD3d 1341 (Erie)	denied 4/14/10 (Smith, J.)

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People v Suriel	1st Dept: 70 AD3d 523 (NY)	denied 4/26/10 (Grafteo, J.)
People v Swift	4th Dept: 66 AD3d 1439 (Cayuga)	denied reconsideration 4/8/10 (Ciparick, J.)
People v Tavaréz	2d Dept: 70 AD3d 732 (Queens)	denied 4/9/10 (Pigott, J.)
People v Taylor (Barry)	3d Dept: 70 AD3d 1121 (Albany)	denied 4/26/10 (Grafteo, J.)
People v Taylor (Eugene)	4th Dept: 68 AD3d 1728 (Monroe)	denied 4/19/10 (Jones, J.)
People v Thomas (Donnell)	2d Dept: 68 AD3d 1141 (Suffolk)	denied 4/5/10 (Jones, J.)
People v Thomas (Edward)	1st Dept: 68 AD3d 514 (NY)	withdrawn 4/1/10 (Lippman, Ch. J.)
People v Thompson	4th Dept: 70 AD3d 1319 (Erie)	denied 4/22/10 (Pigott, J.)
People v Travis	2d Dept: 67 AD3d 1034 (Orange)	denied 4/5/10 (Jones, J.)
People v Traylor	2d Dept: 69 AD3d 659 (Kings)	denied 4/8/10 (Ciparick, J.)
People v Vandenko	2d Dept: 70 AD3d 733 (Kings)	denied 4/21/10 (Grafteo, J.)
People v VanDyne	4th Dept: 63 AD3d 1681 (Monroe)	denied 4/5/10 (Jones, J.)
People v Varmette	3d Dept: 70 AD3d 1167 (Essex)	denied 4/23/10 (Smith, J.)
People v Walters	2d Dept: 69 AD3d 768 (Kings)	denied 4/8/10 (Smith, J.)
People v Ward	2d Dept: 69 AD3d 661 (Nassau)	denied 4/19/10 (Jones, J.)
People v Warren	2d Dept: 70 AD3d 875 (Queens)	denied 4/22/10 (Grafteo, J.)
People v Watkins	2d Dept: 70 AD3d 875 (Kings)	denied 4/20/10 (Ciparick, J.)
People v Watson	1st Dept: 68 AD3d 424 (NY)	denied 4/2/10 (Read, J.)
People v Weay	App Div, 2d Dept: 2009 NY Slip Op 87342(U) (Queens)	dismissed 4/13/10 (Grafteo, J.)
People v White	4th Dept: 70 AD3d 1316 (Orleans)	denied 4/15/10 (Smith, J.)
People v Wiley	4th Dept: 67 AD3d 1370 (Onondaga)	denied 4/6/10 (Lippman, Ch. J.)
People v William	2d Dept: 69 AD3d 873 (Nassau)	denied 4/14/10 (Pigott, J.)
People v Williams (Adrian)	2d Dept: 69 AD3d 662 (Nassau)	denied 4/15/10 (Smith, J.)

People v Williams (Edward)	1st Dept: 58 AD3d 447 (Bronx)	denied upon reconsideration* 4/22/10 (Pigott, J.)
People v Williams (Michael)	2d Dept: 69 AD3d 887 (Kings)	denied 4/20/10 (Ciparick, J.)
People v Williams (Steven)	App Term, 2d Dept: 26 Misc 3d 144(A) (Nassau)	denied 4/26/10 (Grafteo, J.)
People v Willis	App Div, 4th Dept, 2/10/10 (Genesee)	denied reconsideration 4/8/10 (Jones, J.)
People v Woelfle	4th Dept: 64 AD3d 1166 (Erie)	denied 4/5/10 (Jones, J.)
People v Wright	2d Dept: 68 AD3d 1143 (Kings)	denied 4/19/10 (Ciparick, J.)
People v Zepeda	2d Dept: 70 AD3d 875 (Queens)	denied 4/26/10 (Grafteo, J.)

[927 NE2d 552, 901 NYS2d 132]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GARY
ALFORD, Appellant.

Decided May 4, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered September 3, 2009. The Appellate Division modified, on the law, a judgment of the Albany County Court (Thomas A. Breslin, J.), which had convicted defendant, upon a jury verdict, of predatory sexual assault against a child (two counts), criminal sexual act in the first degree, sexual abuse in the first degree, and course of sexual conduct against a child in the first degree. The modification consisted of reversing defendant's convictions of criminal sexual act in the first degree under count two of the indictment and course of sexual conduct against a child in the first degree under count five of the indictment, dismissing those counts, and vacating the sentences imposed thereon. The Appellate Division affirmed the judgment as modified.

People v Alford, 65 AD3d 1392, modified.

* Denied upon second application for reconsideration with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Correa* (70 AD3d 532 [2010]).

HEADNOTE**Crimes — Sentence — Concurrent and Consecutive Terms — Lesser Included Offenses**

Concurrent sentences were incorrectly imposed for defendant's conviction on two counts of predatory sexual assault on a child where it was impossible to determine if the act that formed the basis for the jury's guilty verdict on one count, anal sexual conduct occurring on a specific date, was also one of the two or more acts that formed the basis for its guilty verdict on the other count, which alleged improper sexual conduct during a time span that included the specific date mentioned in the first count. Penal Law § 70.25 (2) provides, "[w]hen more than one sentence of imprisonment is imposed on a person for two or more offenses committed through a single act or omission, or through an act or omission which in itself constituted one of the offenses and also was a material element of the other, the sentences . . . must run concurrently." To seek consecutive sentencing in these circumstances, the People should request a form of verdict that will require the jury to explicitly delineate that an act constituting one offense is not a material element of another offense.

APPEARANCES OF COUNSEL

Paul J. Connolly, Delmar, for appellant.

P. David Soares, District Attorney, Albany (*Steven M. Sharp* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be modified by providing that the sentence imposed on count four of the indictment run concurrently with the sentences imposed on counts one and three of the indictment, and, as so modified, affirmed.

Penal Law § 70.25 (2) provides, "[w]hen more than one sentence of imprisonment is imposed on a person for two or more offenses committed through a single act or omission, or through an act or omission which in itself constituted one of the offenses and also was a material element of the other, the sentences . . . must run concurrently." Here, counts one and four of the indictment both charged defendant with predatory sexual assault against a child. A person is guilty of that crime when he or she, being 18 years old or more, commits one of several lesser crimes and the victim is less than 13 years old (Penal Law § 130.96). Count one alleged that defendant committed the lesser crime of criminal sexual act in the first degree on or about March 12, 2007 by engaging in anal sexual conduct with the victim. Count four alleged that defendant committed the lesser crime of course of sexual conduct against a child in the first degree by engaging in at least two acts of sexual conduct with the victim between August 2006 and March 2007. Because

it is impossible to determine whether the act that formed the basis for the jury's guilty verdict on count one—anal sexual conduct occurring on March 12, 2007—was also one of the two or more acts that formed the basis for its guilty verdict on count four, County Court should have ordered the sentences on those counts to run concurrently.

If the People wish to seek consecutive sentencing in a case such as this, they should request a form of verdict that will require the jury to explicitly delineate that an act constituting one offense is not a material element of another offense.

Defendant's remaining contention is without merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified in accordance with the memorandum herein and, as so modified, affirmed.

[928 NE2d 683, 902 NYS2d 499]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN P. DALY, Appellant.

Argued March 22, 2010; decided May 4, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 23, 2008. The Appellate Division (1) modified, on the law, an order of the Nassau County Court (George R. Peck, J.), which, after a hearing, had denied defendant's motion pursuant to CPL 440.10 to vacate a judgment convicting him, upon a jury verdict, of robbery in the first degree (six counts), assault in the first degree (two counts), and attempted robbery in the first degree (two counts), and (2) remitted the matter to County Court for a new trial on counts one through six and count eight of the indictment. The modification consisted of deleting the provision of the County Court order that had denied that branch of defendant's motion to vacate the portion of the judgment convicting defendant of robbery in the first degree under counts one through six of the indictment, and assault in the first degree under count eight of the indictment, substituting therefor a

provision granting that branch of defendant's motion and vacating the sentences imposed thereon. The Appellate Division affirmed the order as modified.

Defendant was charged in a single indictment with robbery and assault in connection with an incident at an off-track betting corporation site on January 14, 2001, and with attempted robbery and assault in connection with another incident at a gas station on February 26, 2001.

People v Daly, 57 AD3d 914, affirmed.

HEADNOTE

Crimes — Disclosure — Failure to Produce *Rosario* Material — Separate Incidents

Violations of *People v Rosario* (9 NY2d 286 [1961]) and/or *Brady v Maryland* (373 US 83 [1963]), resulting in the reversal of convictions on certain counts, also require reversal of convictions on other, jointly tried counts only if there is a reasonable possibility that the evidence supporting the tainted counts influenced the guilty verdicts on the other counts. Accordingly, where defendant was tried for two separate criminal incidents and the prosecutor failed to disclose documents related exclusively to one incident, reversal of the verdict relating to the other incident was not required because there was no reasonable possibility that the evidence supporting the tainted counts had a spillover effect on the other counts. Moreover, there was strong, independent proof of the defendant's guilt on the untainted counts.

APPEARANCES OF COUNSEL

Law Offices of Thomas F. Liotti, Garden City (*Thomas F. Liotti* and *Drummond C. Smith* of counsel), for appellant.

Kathleen M. Rice, District Attorney, Mineola (*Andrea M. DiGregorio* and *Tammy J. Smiley* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Whether violations of *People v Rosario* (9 NY2d 286 [1961]) and/or *Brady v Maryland* (373 US 83 [1963]), resulting in the reversal of convictions on certain counts, also require reversal of convictions on other, jointly tried counts is a question to be resolved on a case-by-case basis. Reversal of the jointly tried counts is required only if there is a "reasonable possibility that the evidence supporting the . . . tainted counts influenced the guilty verdicts on the other [counts]" (*People v Baghai-Kermani*, 84 NY2d 525, 532 [1994]).

Here, there is no reasonable possibility that the evidence supporting the tainted counts, which related to a robbery and

shooting at an off-track betting parlor, had a spillover effect on the other guilty verdicts, relating to an attempted robbery and shooting at a gas station. The documents that the People failed to disclose related exclusively to the off-track betting parlor counts. Moreover, there was strong, independent proof of the defendant's guilt on the gas station counts, including evidence that the defendant's revolver was the source of the bullet removed from the shooting victim; that the owner of the gas station and the victim identified defendant; that the owner, the victim and an attendant all recognized the perpetrator as a person they had previously seen at the gas station, who drove a pickup truck with the same identifying features as the defendant's truck; and that the defendant was identified in a lineup as the perpetrator of the gas station crimes. A thorough review of the record reveals no reasonable possibility that the *Rosario* and *Brady* violations had an impact on defendant's ability to defend against the gas station counts or otherwise influenced the verdicts on those counts.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[927 NE2d 553, 901 NYS2d 133]

LIFE RECEIVABLES TRUST, Plaintiff, v GOSHAWK SYNDICATE 102 AT LLOYD's, Respondent, and LIFE SETTLEMENT CORPORATION, Doing Business as PEACH TREE LIFE SETTLEMENTS, Appellant.

Decided May 4, 2010

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 13, 2009. The Appellate Division affirmed an order of the Supreme Court, New York County (Charles E. Ramos, J.; op 2008 NY Slip Op 32626[U]), which had denied a motion by plaintiff to stay or enjoin arbitrations pending before the American Arbitration Association. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of the Supreme Court, properly made?"

Following a dispute between the parties, defendant Goshawk Syndicate 102 at Lloyds' sought arbitration. The arbitration

agreement at issue required that “[a]ll disputes and differences arising under or in connection with [the parties’ contract] . . . be referred to arbitration under the American Arbitration Association Rules.” Those rules authorized the arbitration tribunal to rule on its own jurisdiction, including objections with respect to the existence, scope or validity of the arbitration agreement.

Life Receivables Trust v Goshawk Syndicate 102 at Lloyd’s, 66 AD3d 495, affirmed.

HEADNOTE

Arbitration — Agreement to Arbitrate

In a proceeding to stay arbitration, the Appellate Division properly concluded that the scope and validity of the parties’ arbitration agreement, including issues of arbitrability, were for the arbitration tribunal to determine. Although *Hall Street Associates, L.L.C. v Mattel, Inc.* (552 US 576 [2008]) prohibits parties from expanding, by their own agreement, the scope of judicial review beyond that authorized by the Federal Arbitration Act, clear and unmistakable evidence existed that the parties agreed to arbitrate questions of arbitrability, including whether the parties’ arbitration agreement was invalid under *Hall Street Associates* or whether the apparently offending provision could be severed from the remainder of the agreement.

APPEARANCES OF COUNSEL

Greenberg Traurig LLP, Albany (*Israel Rubin* of counsel), for appellant.

Barger & Wolen LLP, New York City (*Evan L. Smoak* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs. The certified question should not be answered as unnecessary.

The Appellate Division properly concluded that the scope and validity of the parties’ arbitration agreement, including issues of arbitrability, are for the arbitration tribunal to determine (*see Matter of Smith Barney Shearson v Sacharow*, 91 NY2d 39, 45-47 [1997]; *Contec Corp. v Remote Solution, Co., Ltd.*, 398 F3d 205, 211 [2d Cir 2005]). Although *Hall Street Associates, L.L.C. v Mattel, Inc.* (552 US 576 [2008]) prohibits parties from expanding, by their own agreement, the scope of judicial review beyond that authorized by the Federal Arbitration Act, clear and unmistakable evidence exists in this case that the parties agreed to arbitrate questions of arbitrability, including whether the

parties' arbitration agreement is invalid under *Hall Street Associates* or whether the apparently offending provision could be severed from the remainder of the agreement.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

In the Matter of ANONYMOUS, a Suspended Attorney, Appellant.
DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted April 26, 2010; decided May 4, 2010

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

Chief Judge LIPPMAN taking no part.

In the Matter of SRINIVAS BONTU, Respondent, v BHARATHI BONTU, Appellant.

Submitted March 1, 2010; decided May 4, 2010

Reported below, 67 AD3d 906.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of JOSH BROWN, Appellant, v BRIAN FISCHER et al., Respondents.

Decided May 4, 2010

Reported below, 2009 NY Slip Op 77094(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601).

CARGILL FINANCIAL SERVICES INTERNATIONAL, INC., Appellant, v
BANK FINANCE AND CREDIT LIMITED, Also Known as OJSC
BANK FINANCE AND CREDIT, Respondent.

Submitted March 8, 2010; decided May 4, 2010

Reported below, 70 AD3d 456.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CARGILL FINANCIAL SERVICES INTERNATIONAL, INC., Appellant, v
BANK FINANCE AND CREDIT LIMITED, Also Known as OJSC
BANK FINANCE AND CREDIT, Respondent.

Submitted April 5, 2010; decided May 4, 2010

Reported below, 70 AD3d 456.

Motion by the Federal Reserve Bank of New York for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of JAMES D. CHRISTO (Admitted as JAMES DOUGLAS CHRISTO), an Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted April 5, 2010; decided May 4, 2010

Reported below, 2010 NY Slip Op 63248(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of ERNEST CURRY, Appellant, v NASSAU COUNTY SHERIFF'S DEPARTMENT et al., Respondents.

Submitted March 1, 2010; decided May 4, 2010

Reported below, 69 AD3d 622.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Claim of DEBORAH DAVIS, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted April 5, 2010; decided May 4, 2010

Reported below, 64 AD3d 1057.

Motion for reargument of motion for leave to appeal denied [*see* 14 NY3d 703 (2010)].

In the Matter of HAWA DIALLO, Respondent, v MOHAMMED DIALLO, Appellant.

Submitted March 8, 2010; decided May 4, 2010

Reported below, 68 AD3d 411.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

853 SEVENTH AVENUE OWNERS, LLC, Appellant, v W & HM REALTY CO., LLC, Also Known as W & HM REALTY PARTNERS LLC, Respondent. (And a Related Proceeding.)

Submitted March 8, 2010; decided May 4, 2010

Reported below, 70 AD3d 515.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's order denying the motion to modify or vacate the order rendered in the declaratory judgment action, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

ELM SEA REALTY CORP., Respondent, v EMILY CHICOY et al., Appellants, et al., Defendant.

Submitted March 8, 2010; decided May 4, 2010

Reported below, 68 AD3d 1047.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ERIN C., Respondent-Appellant, v PETER H., Appellant-Respondent.

Submitted January 4, 2010; decided May 4, 2010

Reported below, 66 AD3d 451.

On the Court's own motion, appeal by Peter H. dismissed, without costs, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (CPLR 5601 [a]). Motion by Erin C. for leave to appeal denied.

HEALTH INSURANCE PLAN OF GREATER NEW YORK, Appellant, v PHOTOBITION NEW YORK, INC., Respondent, et al., Defendants.

Submitted March 8, 2010; decided May 4, 2010

Reported below, 65 AD3d 401.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of LEVEL 3 COMMUNICATIONS, LLC, Respondent, v ANTHONY DeBELLIS, Appointed Assessor for the City of Mount Vernon, et al., Appellants, et al., Respondents.

Submitted March 15, 2010; decided May 4, 2010

Reported below, 72 AD3d 164.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

MAUHOI TUNG, Appellant, v HENRY CHIU D.D.S., Doing Business as MOTT STREET DENTAL SERVICES, P.C., Respondent.

Submitted March 29, 2010; decided May 4, 2010

Reported below, 2009 NY Slip Op 91280(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MILLENNIUM PARTNERS, L.P., Appellant, v SELECT INSURANCE COMPANY, Respondent, et al., Defendant.

Decided May 4, 2010

Reported below, 68 AD3d 420.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DENNIS STEINKE, Appellant.

Submitted February 22, 2010; decided May 4, 2010

Reported below, 26 Misc 3d 134(A).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CLIFFORD GRAHAM, Appellant, v KEVIN E. WALSH, Sheriff, County of Onondaga, Respondent.

Submitted March 15, 2010; decided May 4, 2010

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ERIC KIRKLAND,
Appellant, v DALE ARTUS, as Superintendent of Clinton
Correctional Facility, Respondent.

Submitted March 15, 2010; decided May 4, 2010

Reported below, 66 AD3d 1101.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. NELSON RODRIGUEZ, Appellant, v JAMES CONWAY, Superintendent, Attica Correctional Facility, Respondent.

Submitted March 15, 2010; decided May 4, 2010

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. NARZEL TALBERT, Appellant, v JAMES T. CONWAY, Respondent.

Submitted March 22, 2010; decided May 4, 2010

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANTHONY TISLON, Appellant, v DAVID ROCK, as Superintendent of Great Meadow Correctional Facility, Respondent.

Decided May 4, 2010

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, § 3 [b] [2]; § 5 [b]; CPLR 5601 [b] [2]).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DEXTER WASHINGTON, Appellant, v DAVID F. NAPOLI, as Superintendent of Southport Correctional Facility, Respondent.

Decided May 4, 2010

Reported below, 69 AD3d 1066.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved. In this case, appellant's challenge to his status as a second violent felony offender was decided below on the basis that this claim had already been unsuccessfully litigated and was therefore barred by collateral estoppel.

In the Matter of GAIL PRICE, Appellant, v SOUTHWEST AIRLINES, INC., Respondent.

Submitted March 22, 2010; decided May 4, 2010

Reported below, 66 AD3d 1267.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

PRIME INCOME ASSET MANAGEMENT, INC., et al., Appellants, v AMERICAN REAL ESTATE HOLDINGS, L.P., et al., Respondents.

Submitted March 8, 2010; decided May 4, 2010

Motion for leave to appeal dismissed upon the ground that simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

IQBAL SINGH, Appellant, v CITY OF NEW YORK DIVISION OF HOUSING PRESERVATION AND DEVELOPMENT, Respondent.

Decided May 4, 2010

Reported below, 60 AD3d 503.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the

direct involvement of a substantial constitutional question (CPLR 5601). Motion for leave to appeal denied.

In the Matter of Liquidation of UNION INDEMNITY INSURANCE COMPANY OF NEW YORK. SUPERINTENDENT OF INSURANCE OF THE STATE OF NEW YORK, Respondent; ROBERT A. SPIRA, Appellant.

Submitted March 15, 2010; decided May 4, 2010

Reported below, 67 AD3d 469.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

DAVID WADLER, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted March 15, 2010; decided May 4, 2010

Reported below, 57 AD3d 333.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 14 NY3d 192 (2010)].

Chief Judge LIPPMAN taking no part.

In the Matter of the Estate of LOUISE WRIGHT, Claimant.

LEON WRIGHT, Appellant, v CITY OF ROCHESTER et al., Respondents, et al., Defendants.

Submitted March 15, 2010; decided May 4, 2010

Reported below, 2010 NY Slip Op 62094(U).

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as dismissed the appeal from the order of Supreme Court dismissing the complaint, denied; motion, insofar as it seeks leave to appeal from the remainder of the Appellate Division order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

[928 NE2d 409, 902 NYS2d 27]

DIOMARA DeJESUS, an Infant, by Her Father and Natural Guardian, FRANCISCO DeJESUS, Appellant, v JOSE J. ALBA et al., Respondents.

Decided May 6, 2010

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 9, 2009. The Appellate Division reversed, on the law, an order of the Supreme Court, Bronx County (Nelson S. Roman, J.), which had denied a motion by defendants for summary judgment dismissing the complaint, and granted the motion. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the order of the Supreme Court, properly made?”

Plaintiff sought damages for personal injuries she allegedly sustained when she walked or ran into a street when she was 16 years old and collided with a vehicle driven by defendant Ynes Alba. The police report of the accident stated, in pertinent part, “pedestrian jumped out from between two cars.” The Appellate Division concluded that had plaintiff not entered the street without warning there would have been no accident; that there was no issue of fact whether defendant driver acted prudently in light of testimony of both the driver and a nonparty witness that defendant had slowed her vehicle prior to coming in contact with plaintiff, who acknowledged that the impact was “light”; and that the factual scenario warranted dismissal of the complaint.

DeJesus v Alba, 63 AD3d 460, affirmed.

HEADNOTE

Motor Vehicles — Injuries to Pedestrians

In a personal injury action arising out of plaintiff pedestrian coming in contact with defendant’s vehicle, the Appellate Division, which reversed an order denying defendants’ motion for summary judgment, properly concluded that no triable issues of fact existed whether defendant driver acted prudently under the circumstances.

APPEARANCES OF COUNSEL

Seligson, Rothman & Rothman, New York City (*Martin S. Rothman* of counsel), for appellant.

Picciano & Scahill, P.C., Westbury (Gilbert J. Hardy of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question not answered upon the ground that it is unnecessary. The Appellate Division properly concluded that no triable issues of fact existed whether defendant driver acted prudently under the circumstances.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[929 NE2d 364, 903 NYS2d 302]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RANCE
P. SCULLY, Appellant.

Argued March 23, 2010; decided May 6, 2010

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered April 24, 2009. The Appellate Division (1) modified, on the law, a judgment of the Oneida County Court (Michael L. Dwyer, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the fourth degree, criminal possession of a controlled substance in the third degree, criminal possession of a controlled substance in the fifth degree, and unlawful possession of marihuana, and (2) remitted the matter to County Court for resentencing on count five of the indictment. The modification consisted of vacating the sentence imposed for unlawful possession of marihuana. The Appellate Division affirmed the judgment as modified.

People v Scully, 61 AD3d 1364, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Standing

In a prosecution for illegal possession of drugs and a weapon, defendant failed to raise an issue of fact entitling him to a suppression hearing as to the weapon found on his person while the police were executing a search warrant at an apartment building, since defendant's motion papers did not contain factual allegations that probable cause for the issuance of the warrant was

lacking. Moreover, defendant did not assert a privacy interest in the apartment which was the target of the warrant in his motion papers or at oral argument. He merely argued that the search warrant was issued without probable cause, and that he did not match the description of the individuals named in the warrant. Thus, he did not meet his burden to establish standing to seek suppression of the drugs found in the apartment.

APPEARANCES OF COUNSEL

Frank J. Nebush, Jr., Public Defender, Utica (Mark C. Curley and Esther Cohen Lee of counsel), for appellant.

Scott D. McNamara, District Attorney, Utica (Steven G. Cox of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

In March 2002, an investigator with the Utica Police Department applied for a warrant to search the second floor of premises located in the City of Utica for drugs, drug paraphernalia, and illegal weapons. The application also requested permission to search two John Does, who were described, and “any other person who may be found to have such property in his possession or under his control at the time of the execution of said warrant.” The basis for the application was a confidential informant’s statement, as well as the investigator’s own probe.

On March 15, 2002, City Court issued the search warrant. When the investigator arrived at the first-floor rear door of the premises to execute the search warrant, he heard someone walking down the stairs. Then, a man from behind the door “asked [him] what [he] wanted, [and the investigator] told him one, meaning one \$20.00 piece of crack cocaine.” After this man opened the door, the investigator “walked into what would be a common hallway,” and whispered “I’m a police officer.” The investigator searched the man and found a .38 caliber American deringer loaded with two live rounds in the front pocket of his sweatshirt. In the man’s front pants pocket, the investigator found ammunition and approximately \$847 in United States currency. This man was also carrying photographic identification that bore defendant Rance Scully’s name. Meanwhile, other police officers proceeded up the stairs to the second floor, entered the apartment, and searched it. They found a clear plastic sandwich baggy containing several smaller plastic baggies, each tied in a knot and each containing a quantity of an off-white, chunky substance; two plastic baggies containing a

greenish-brown vegetation; a single-edged razor blade; and a partially-smoked, hand-rolled cigarette containing a greenish-brown vegetation.

Defendant was arrested based on the weapon on his person. After being advised of his *Miranda* rights, he agreed to answer questions. When asked “[D]o you live here,” defendant responded “I stay here.” When the question was repeated, he said “I’m staying here with a friend.” When asked whose gun he had, defendant answered “mine.” And when queried where he got the gun, defendant replied “I found it and I’ve been carrying it because some people around here have been threatening me and I wanted to protect myself.” Defendant admitted that he did not have a permit for the gun, but he denied knowledge of the crack in the apartment.

In May 2002, defendant was indicted for weapon possession, criminal possession of a controlled substance, and unlawful possession of marihuana (a violation). He moved to suppress “any evidence allegedly seized from [him] upon the grounds such seizure was unconstitutional and improperly and illegally conducted, and was in violation of [his] Constitutional Rights.” In the supporting affidavit, defendant’s attorney stated, upon information and belief, that “the evidence obtained in this case was obtained by way of a search warrant,” and that “the information placed before the Judge was not sufficient to satisfy the requirements for probable cause for the issuance of the warrant as it related to this Defendant.” In opposition, the People argued, among other things, that defendant’s boilerplate allegations “fail[ed] to establish that the defendant has suffered any constitutional or statutory violations.” The Judge denied suppression without a hearing. In October 2002, defendant was convicted in absentia, after a jury trial, of criminal possession of a weapon in the fourth degree, criminal possession of a controlled substance in the third and fifth degrees, and unlawful possession of marihuana. Defendant appealed, and the Appellate Division affirmed, as modified in a way not pertinent to this appeal (61 AD3d 1364 [4th Dept 2009]).

In *People v Burton* (6 NY3d 584, 588 [2006]), we noted that although “individuals possess a legitimate expectation of privacy with regard to their persons,” the mere assertion “that contraband was recovered from [a] defendant [does] not create an issue of fact as to whether the search and seizure were the result of a Fourth Amendment violation” (*id.* at 589). Rather, the defendant “must additionally assert that the search was not

legally justified and there must be sufficient factual allegations to support that contention” (*id.* at 591). Before us, defendant argues only that County Court should have granted a suppression hearing because he alleged that the officer searched him on the basis of a search warrant that had been issued without probable cause. But, defendant did not supplement his original motion papers with factual allegations to support his claim that probable cause was lacking. Therefore, he failed to raise an issue of fact to warrant a suppression hearing as to the weapon.

Next, “a defendant seeking to challenge a search and seizure . . . [is] required to demonstrate a personal legitimate expectation of privacy in the searched premises” (*People v Wesley*, 73 NY2d 351, 357 [1989]). In this case, defendant did not assert a privacy interest in the apartment in his motion papers or at oral argument. He merely argued that the search warrant was issued without probable cause, and that he did not match the description of the individuals named in the warrant. Thus, he did not meet his burden to establish standing to seek suppression of the drugs found in the apartment.

Defendant’s remaining claims are unpreserved for our review.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[929 NE2d 387, 903 NYS2d 325]

PARKER REALTY GROUP, INC., Appellant, v A. MICHELLE PETIGNY,
Individually and as President of Eastern Parkway Holdings
LLC, Respondent, et al., Defendants.

Decided May 6, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 17, 2009. The Appellate Division, with two Justices dissenting, modified, on the law, a judgment of the Supreme Court, New York County (Walter B. Tolub, J.), entered after a nonjury trial, which had awarded plaintiff damages in the total amount of \$83,350.75, consisting of individual awards of \$5,880, \$500 and \$60,000, plus interest on each. The modification

consisted of vacating the individual awards of \$5,880 and \$60,000 and the interest on each, thereby reducing the total award to \$500 plus interest. The Appellate Division affirmed the judgment as modified.

Pursuant to an exclusive broker's agreement between plaintiff real estate broker and defendant property owner, plaintiff arranged for the sale of certain property owned by defendant. The broker's agreement provided that the commission was due and payable at the closing and transfer of title, and that "[i]n the event[] title does not pass due to the Owner's willful default, commission shall still be deemed earned by [plaintiff]." After the initial buyer failed to close, defendant entered into a contract with another buyer. Plaintiff subsequently commenced the present action for commissions allegedly owing.

The Appellate Division concluded that under the plain language of the brokerage agreement, since the fact that title did not pass to the initial buyer was not due to defendant's willful default, plaintiff was not entitled to its \$5,880 commission on that transaction; that the parties did not orally modify the agreement to provide for the payment of commission in the event of a buyer's default; and that with respect to plaintiff's \$60,000 commission on the eventual sale of the property, plaintiff failed to establish that the parties orally modified their exclusive broker's agreement to extend its term.

Parker Realty Group, Inc. v Petigny, 68 AD3d 571, affirmed.

HEADNOTE

Brokers — Real Estate Brokers — Commission

In an action to recover a real estate commission, an order of the Appellate Division, which denied recovery, was affirmed. Recovery under the theory of quantum meruit was not appropriate where an express contract governed the subject matter involved. Additionally, plaintiff failed to establish that the parties modified their exclusive brokerage agreement. In the absence of a valid governing exclusive brokerage agreement, plaintiff was not entitled to a commission on the sale to the ultimate buyer, as it was not the procuring cause of the sale.

APPEARANCES OF COUNSEL

Kip Lenoir, New York City, for appellant.

Howard L. Sherman, Ossining, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs. Recovery under the theory of quantum meruit is

not appropriate where, as here, an express contract governed the subject matter involved (*Miller v Schloss*, 218 NY 400, 406-407 [1916]; *see also Julien J. Studley, Inc. v New York News*, 70 NY2d 628, 629 [1987]). Additionally, plaintiff failed to establish that the parties modified their exclusive brokerage agreement. In the absence of a valid governing exclusive brokerage agreement, plaintiff was not entitled to a commission on the sale to the ultimate buyer, as it was not the procuring cause of the sale (*see Greene v Hellman*, 51 NY2d 197, 206 [1980]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

In the Matter of CAPITAL NEWSPAPERS DIVISION OF THE HEARST CORPORATION et al., Appellants, v CITY OF ALBANY et al., Respondents.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 63 AD3d 1336.

Motion by Advance Publications, Inc. et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of CUNNTREL A. and Others. ONONDAGA COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JERMAINE D.A., Appellant, et al., Respondent.

Submitted March 8, 2010; decided May 6, 2010

Reported below, 70 AD3d 1308.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of EAST MEADOW UNION FREE SCHOOL DISTRICT,
Respondent, v NEW YORK STATE DIVISION OF HUMAN RIGHTS,
Appellant.

Submitted March 22, 2010; decided May 6, 2010

Reported below, 65 AD3d 1342.

Motion by Advocates for Children of New York, Inc., et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

LEONARD EIDLISZ, Respondent, v NEW YORK UNIVERSITY et al.,
Appellants.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 61 AD3d 473.

Motion by American Council on Education et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

ALLEN S. GOLD, Respondent, v ROCKVILLE CENTRE POLICE DE-
PARTMENT et al., Defendants, and COUNTY OF SUFFOLK et
al., Appellants.

Submitted March 29, 2010; decided May 6, 2010

Reported below, 71 AD3d 632.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2). CPLR 5602 (a) (2) applies only to proceedings, not to actions.

DOREEN HARRIS, Appellant, v DEPARTMENT OF HOUSING PRESER-
VATION AND DEVELOPMENT et al., Defendants, and NAPCO
HOLDING LLC, Respondent.

Submitted March 22, 2010; decided May 6, 2010

Reported below, 2009 NY Slip Op 85386(U); 2009 NY Slip Op 80562(U).

Motion for leave to appeal dismissed upon the ground that

the Court of Appeals does not have jurisdiction to entertain it (*see* CPLR 5602).

In the Matter of PARMINDER KAUR et al., Respondents, v New YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Appellant.

In the Matter of TUCK-It-AWAY, INC., et al., Respondents, v New YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Appellant.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 72 AD3d 1.

Motion by Institute for Justice for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of PARMINDER KAUR et al., Respondents, v New YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Appellant.

In the Matter of TUCK-It-AWAY, INC., et al., Respondents, v New YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Appellant.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 72 AD3d 1.

Motion by Columbia University for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of PARMINDER KAUR et al., Respondents, v New YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Appellant.

In the Matter of TUCK-It-AWAY, INC., et al., Respondents, v New YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Appellant.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 72 AD3d 1.

Motion by East Harlem Alliance of Responsible Merchants for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of PARMINDER KAUR et al., Respondents, v New YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Appellant.

In the Matter of TUCK-It-AWAY, INC., et al., Respondents, v New YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Appellant.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 72 AD3d 1.

Motion by City of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of PARMINDER KAUR et al., Respondents, v New YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Appellant.

In the Matter of TUCK-It-AWAY, INC., et al., Respondents, v New YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Appellant.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 72 AD3d 1.

Motion by Senator Bill Perkins for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of PARMINDER KAUR et al., Respondents, v NEW YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Appellant.

In the Matter of TUCK-It-AWAY, INC., et al., Respondents, v NEW YORK STATE URBAN DEVELOPMENT CORPORATION, Doing Business as EMPIRE STATE DEVELOPMENT CORPORATION, Appellant.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 72 AD3d 1.

Motion by Ben Totushek for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of KENDRA C.R., a Child Alleged to be Permanently Neglected. CHARLES R., Appellant; ABBOTT HOUSE FAMILY SERVICES, INC., Respondent.

Submitted March 22, 2010; decided May 6, 2010

Reported below, 68 AD3d 467.

Motion, insofar as it seeks leave to appeal as against Abbott House Family Services, Inc., dismissed as untimely (*see* CPLR 5513 [b]); motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

In the Matter of the Arbitration between BARBARA KOWALESKI, Appellant, and NEW YORK STATE DEPARTMENT OF CORRECTIONAL SERVICES, Respondent.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 61 AD3d 1081.

Motion by Civil Service Employees Association, Inc., Local 1000, AFSCME, AFL-CIO for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of ANGELA LABITA, Also Known as ANGELICA J. LABITA, Deceased. KATHERINE D'ALESSANDRO, Appellant; NICOLINA D. HAYHURST, Respondent.

KATHERINE D'ALESSANDRO, Appellant, v MIDWAY NURSING HOME, Respondent.

Submitted March 29, 2010; decided May 6, 2010

Reported below, 2009 NY Slip Op 82416(U).

Motion for reargument denied [*see* 14 NY3d 749 (2010)].

LEGACY DEVELOPMENT, Appellant, v VICTOR LIBERATORE et al., Respondents.

Submitted February 16, 2010; decided May 6, 2010

Reported below, 66 AD3d 1406.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMEL BELL, Appellant.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 68 AD3d 545.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES PHILLIPS, Appellant.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 68 AD3d 541.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SEAN SMITH, Appellant.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 69 AD3d 450.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v IVIN WILLIAMS, Appellant.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 66 AD3d 440.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. LUCIOUS MULROW, Appellant, v JAMES T. CONWAY, Superintendent, Attica Correctional Facility, Respondent.

Submitted March 22, 2010; decided May 6, 2010

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* LORENZO RAMSEY, Appellant, *v* JAMES CONWAY, Superintendent of Attica Correctional Facility, Respondent.

Submitted March 8, 2010; decided May 6, 2010

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

SAVERIO C. PUGLIESE, Respondent, *v* BEN MONDELLO, Also Known as BEN R. MONDELLO, JR., Appellant.

Submitted March 29, 2010; decided May 6, 2010

Reported below, 67 AD3d 880.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

U.S. BANK NATIONAL ASSOCIATION, Respondent, *v* JESSICA ANGEL QUIROZ *et al.*, Defendants, and HELEN QUIROZ, Appellant.

Submitted March 29, 2010; decided May 6, 2010

Reported below, 2010 NY Slip Op 64139(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of BARRY WETHERALL *et al.*, Respondents, *v* TOWN OF ISLIP ZONING BOARD OF APPEALS *et al.*, Respondents, and JEROME FEDER *et al.*, Proposed Intervenors-Appellants.

Submitted March 15, 2010; decided May 6, 2010

Reported below, 70 AD3d 709.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as dismissed the appeal from that portion of Supreme Court's order that denied the motion to intervene, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the

meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of ROBERT WOOLEY, Appellant, v NEW YORK STATE
DEPARTMENT OF CORRECTIONAL SERVICES, Respondent.

Submitted May 3, 2010; decided May 6, 2010

Reported below, 61 AD3d 1189.

Motion by the Legal Aid Society et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

[929 NE2d 396, 903 NYS2d 333]

J. VIRGIL WAGGONER et al., Appellants, v KENNETH A. CARUSO et
al., Respondents.

Decided May 11, 2010

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 29, 2009. The Appellate Division affirmed an order of the Supreme Court, New York County (Bernard J. Fried, J.; op 20 Misc 3d 1146[A], 2008 NY Slip Op 51891[U]), which had granted a motion by defendants to dismiss the complaint pursuant to CPLR 3211. The following question was certified by the Appellate Division: “Was the order of this Court, which affirmed the order of the Supreme Court, properly made?”

In order to effectuate a \$10 million investment, the individual plaintiff organized plaintiff J.V.W. Investment at the suggestion of a vice-president of managed accounts at British Trade and Commerce Bank (BTCB). Eventually, plaintiff’s investment was stolen from the managed account, with BTCB allegedly laundering a portion of the stolen funds. Seeking to recover their lost money, plaintiffs engaged defendant attorneys. Following unsuccessful efforts to recover their investment, plaintiffs commenced an action sounding in legal malpractice, breach of fiduciary duty and fraud.

Waggoner v Caruso, 68 AD3d 1, affirmed.

HEADNOTE

Attorney and Client — Malpractice — Breach of Fiduciary Duty

In an action to recover damages arising out of defendant attorneys' failure to recover funds that were misappropriated by third parties, the Appellate Division properly held that plaintiffs did not state a claim for legal malpractice insofar as they failed to allege that, but for defendants' alleged malpractice, they would have successfully recovered their investment in an underlying proceeding. The court also properly dismissed plaintiffs' claim for breach of fiduciary duty as duplicative of the claim for legal malpractice.

APPEARANCES OF COUNSEL

Lally Mahon & Rooney LLP, New York City (*James J. Mahon* of counsel), for appellants.

Patterson Belknap Webb & Tyler, LLP, New York City (*Frederick B. Warder III* and *Rosanne E. Felicello* of counsel), for Kenneth A. Caruso, respondent.

Pillsbury Winthrop Shaw Pittman LLP, New York City (*E. Leo Milonas* and *David G. Keyko* of counsel), respondent pro se.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question not answered upon the ground that it is unnecessary.

The Appellate Division properly held that plaintiffs J. Virgil Waggoner and J.V.W. Investment Ltd. of Dominica did not state a claim for legal malpractice insofar as they failed to allege that, but for defendants' alleged malpractice, they would have successfully recovered the \$10 million investment in an underlying proceeding (*see Davis v Klein*, 88 NY2d 1008, 1009-1010 [1996]). The court also properly dismissed plaintiffs' claim in this case for breach of fiduciary duty as duplicative of the claim for legal malpractice.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

[929 NE2d 396, 903 NYS2d 333]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEREK
BACKUS, Appellant.

Argued March 25, 2010; decided May 11, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered November 14, 2008. The Appellate Division order, insofar as appealed from, modified, on the law, a judgment of the Onondaga County Court (Anthony F. Aloï, J.), which had convicted defendant, upon his plea of guilty, of vehicular assault in the second degree (two counts) and driving while intoxicated, and had sentenced defendant to two one-year concurrent definite terms for vehicular assault, and a one-year definite term for driving while intoxicated, to be served consecutively. The modification consisted of vacating the sentence and remitting the matter to County Court to resentence defendant or to entertain a motion by the People, should the People be so disposed, to vacate the plea and set aside the conviction in its entirety.

The majority at the Appellate Division concluded that the offense of driving while intoxicated was a material element of the offense of vehicular assault in the second degree, and that, thus, the sentence was illegal insofar as County Court imposed consecutive sentences.

People v Backus, 56 AD3d 1119, reversed.

HEADNOTE**Crimes — Sentence — Resentence**

An order of the Appellate Division, which modified a judgment convicting defendant of two counts of vehicular assault in the second degree and driving while intoxicated, and sentencing him to two one-year concurrent definite terms for vehicular assault and a one-year definite term for driving while intoxicated, to be served consecutively, by vacating the sentence and remitting the matter to County Court for, among other things, resentencing, was reversed and so much of the order as authorized County Court to entertain a motion by the People to vacate the plea and set aside the conviction vacated. The People did not appeal from so much of the order as vacated the sentence imposed by County Court. Thus, the Court of Appeals had no power to grant the People affirmative relief, and it therefore did not consider the People's argument that the consecutive terms imposed by County Court for vehicular assault and for driving while intoxicated were permissible. Defendant's sentence having been vacated, County Court was required to resentence defendant in accordance with the law, and lacked power to vacate the conviction or the plea.

APPEARANCES OF COUNSEL

DJ & JA Cirando, Syracuse (*John A. Cirando*, *Robert A. Durr*, *Bradley E. Keem* and *Elizabeth deV. Moeller* of counsel), for appellant.

William J. Fitzpatrick, District Attorney, Syracuse (*James P. Maxwell* and *Victoria M. White* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, and so much of the order as authorized County Court to entertain a motion by the People to vacate the plea and set aside the conviction should be vacated.

The People have not appealed from so much of the order as vacated the sentence imposed by County Court. We thus have no power to grant the People affirmative relief, and we therefore do not consider the People's argument that the consecutive terms imposed by County Court for vehicular assault and for driving while intoxicated were permissible (*People v Carpenito*, 80 NY2d 65, 68 [1992]). Defendant's sentence having been vacated, County Court is required to resentence defendant in accordance with the law, and lacks power to vacate the conviction or the plea (*Matter of Kisloff v Covington*, 73 NY2d 445, 451-452 [1989]; *Matter of Campbell v Pesce*, 60 NY2d 165, 169 [1983]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order, insofar as appealed from, reversed and that part of the Appellate Division order that allowed for a motion by the People to vacate the plea and set aside the conviction vacated in a memorandum.

[929 NE2d 397, 903 NYS2d 334]

SUSAN MIDLER, Respondent, v RICHARD CRANE, M.D., Appellant.

Decided May 11, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 19, 2009. The Appellate Division, with two Justices

dissenting, affirmed a judgment of the Supreme Court, New York County (Eileen Bransten, J.), entered upon a jury verdict, which had awarded plaintiff the principal sums of \$500,000 for past pain and suffering and \$2,000,000 for future pain and suffering. The appeal to the Appellate Division brought up for review an order of that Supreme Court (op 2007 NY Slip Op 34065[U]), which had denied defendant's posttrial motion to set aside or reduce the verdict.

In October 2000, plaintiff was referred to defendant, a rheumatologist, after she began to experience pain in her joints. Diagnostic tests performed by defendant revealed that plaintiff had two of the 11 criteria indicating lupus, an autoimmune disease that can affect vital organs. Defendant also performed a urinalysis which did not indicate any kidney disorder. In February 2001, defendant diagnosed plaintiff with inflammatory arthritis, another of the criteria for lupus. Over the next two years, defendant continued to treat plaintiff for the arthritic condition he had diagnosed. He also performed physical examinations and blood tests on plaintiff, but not a urinalysis. In October 2002, plaintiff was experiencing hair loss and visited Dr. Joel Curtis, an endocrinologist, who performed several tests, including a urinalysis. The urinalysis results were positive for protein, which indicated a renal problem, another of the lupus criteria. Dr. Curtis instructed plaintiff to follow up with defendant. However, she did not see defendant again until January 2003. Dr. Curtis also directed his secretary to fax the lab results to defendant, but only the endocrine test results were received. Defendant denied ever having received the urinalysis results. During plaintiff's January 2003 visit to defendant, she complained of swollen feet and ankles. For the first time since plaintiff's initial visit in October 2000, defendant performed a urinalysis. The urinalysis was positive for renal disease, and a biopsy confirmed to defendant that plaintiff had lupus. Defendant prescribed medications, which he told plaintiff would save her kidneys. However, plaintiff discontinued one of the medications and reduced the prescribed dosage of another because of their side effects. Thereafter, plaintiff's kidneys began to fail, requiring five months of dialysis treatment. In December 2003, plaintiff received a kidney transplant.

The Appellate Division concluded that the jury's determination that defendant committed malpractice by failing to monitor plaintiff for the development of lupus was not inconsistent with its finding that he was not negligent in failing to diagnose and treat plaintiff for lupus; that the jury's finding that Dr. Curtis

was negligent in not imparting to defendant the results of the urinalysis he performed on plaintiff was not inconsistent with its finding that that was not a substantial factor in causing plaintiff's injuries; and that plaintiff established her prima facie entitlement to judgment by presenting expert evidence that urinalysis was the most appropriate method for diagnosing lupus in her case.

Midler v Crane, 67 AD3d 569, reversed.

HEADNOTE

Physicians and Surgeons — Malpractice — Failure to Monitor Patient

In a medical malpractice action arising out of defendant physician's alleged negligence in failing to diagnose and treat plaintiff's lupus, leading to the loss of her kidneys, an order of the Appellate Division, which affirmed a judgment awarding plaintiff damages, was reversed and a new trial ordered. Although the Appellate Division majority correctly concluded that there was no inconsistency between the findings that defendant was not negligent in failing to diagnose the plaintiff's condition and that he was negligent in failing to monitor her, the jury's verdict was inconsistent in finding that defendant's failure to monitor the patient was a substantial factor in causing her injury, while the negligence of a nonparty physician, who performed a urinalysis on plaintiff indicating possible kidney damage and failed to transmit his urinalysis results to defendant, was not.

APPEARANCES OF COUNSEL

Shaub, Ahmuty, Citrin & Spratt, LLP, Lake Success (*Steven J. Ahmuty, Jr.*, of counsel), for appellant.

Ruskin Moscou Faltischek, Uniondale (*Douglas A. Cooper* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and a new trial ordered.

We agree with the Appellate Division majority that, on the facts of this case, there was no inconsistency between the findings that defendant was not negligent in failing to diagnose the plaintiff's condition and that he was negligent in failing to monitor her. However, the jury's verdict was inconsistent in finding that defendant's failure to monitor the patient was a substantial factor in causing her injury, while the negligence of a nonparty, Dr. Curtis, in failing to transmit his urinalysis results to defendant was not.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

ASTORIA FEDERAL SAVINGS & LOAN ASSOCIATION/FIDELITY NEW YORK FSB, Respondent, v MARILYN LANE, Appellant, and FRANCES TURNER et al., Intervenors-Respondents.

Submitted April 5, 2010; decided May 11, 2010

Reported below, 2010 NY Slip Op 63939(U).

Motion for leave to appeal denied. Cross motion for sanctions etc. denied.

SISLYN BENJAMIN, Appellant, v NEW YORK CITY DEPARTMENT OF HEALTH, Respondent.

Submitted April 5, 2010; decided May 11, 2010

Reported below, 57 AD3d 403.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

CITY OF NEW YORK, Respondent, v GOLDEN FEATHER SMOKE SHOP, INC., et al., Defendants, and MONIQUE'S SMOKE SHOP et al., Appellants.

Decided May 11, 2010

See 597 F3d 115.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents, et al., Defendants.

Decided May 11, 2010

Reported below, 68 AD3d 497.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

FRANK MIRAGLIA, Respondent, v H & L HOLDING CORP., Defendant and Third-Party Plaintiff. LANE & SONS CONSTRUCTION CORP., Third-Party Defendant-Appellant.

Submitted April 12, 2010; decided May 11, 2010

Reported below, 67 AD3d 513.

Motion for reargument of motion for leave to appeal denied [see 14 NY3d 766 (2010)].

PAMELA MITCHELL, as Executrix of SARAH FINCHER, Deceased, Respondent, v ERIE COUNTY MEDICAL CENTER CORPORATION, Appellant.

Submitted April 5, 2010; decided May 11, 2010

Reported below, 70 AD3d 1408.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NATURAL ORGANICS INC., Appellant, v ANDERSON KILL & OLICK, P.C., et al., Respondents.

Submitted March 29, 2010; decided May 11, 2010

Reported below, 67 AD3d 541.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of O., Respondent, v M., Appellant.

Submitted April 5, 2010; decided May 11, 2010

Reported below, 67 AD3d 1018.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

JAMES O'DONNELL, Appellant, v BUFFALO-DS ASSOCIATES, LLC,
et al., Respondents.

Submitted March 29, 2010; decided May 11, 2010

Reported below, 70 AD3d 1520.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JASON D.
LIGGINS, Respondent.

Submitted April 5, 2010; decided May 11, 2010

Reported below, 64 AD3d 1213.

Motion for substitution of assigned counsel granted and Robert H. Kirchner, Esq., care of Bond Schoeneck & King, PLLC, One Lincoln Center, Syracuse, New York 13202 is assigned in the place and stead of Richard P. Ferris, Esq., as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MICHAEL CHAVIS,
Appellant, v NEW YORK STATE DEPARTMENT OF CORREC-
TIONAL SERVICES, Respondent.

Decided May 11, 2010

Reported below, 71 AD3d 1499.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RALPH HALL,
Appellant, v DAVID ROCK, as Superintendent of Great
Meadow Correctional Facility, Respondent.

Decided May 11, 2010

Reported below, 71 AD3d 1303.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* EDWARD VAN STEENBURG, Appellant, *v* JOSEPH WASSER, as Sullivan County Sheriff, Respondent.

Submitted March 8, 2010; decided May 11, 2010

Reported below, 69 AD3d 1135.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the dismissal of the habeas corpus proceeding, denied; motion, insofar as it seeks leave to appeal from the remainder of the Appellate Division order, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

MAURICA TALLARIDA, Appellant, *v* CITY OF CORNING *et al.*, Respondents.

Submitted March 29, 2010; decided May 11, 2010

Reported below, 2010 NY Slip Op 63071(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DOUGLAS WARNEY, Appellant, *v* STATE OF NEW YORK, Respondent. (Claim No. 114826.)

Submitted March 29, 2010; decided May 11, 2010

Reported below, 70 AD3d 1475.

Motion for leave to appeal granted. Motion for poor person relief granted.

DOUGLAS WARNEY, Appellant, *v* STATE OF NEW YORK, Respondent. (Claim No. 114826.)

Submitted March 29, 2010; decided May 11, 2010

Reported below, 70 AD3d 1475.

Motion by the American Psychological Association for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein granted, three copies of the brief to be served and an original and 24 copies filed within 30 days.

In the Matter of SCOTT M. ZUCKER, an Attorney, Appellant.
GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT,
Respondent.

Submitted May 3, 2010; decided May 11, 2010

Reported below, 73 AD3d 97.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(May 1, 2010 through May 31, 2010)

People v Thomas	3d Dept: 66 AD3d 1244	5/20/10
Ragland v Bellnier	Sup Ct, Franklin County, July 16, 2009	5/7/10
Wright, Matter of, v City of Rochester	4th Dept: 2010 NY Slip Op 62094(U)	5/5/10

APPEALS WITHDRAWN AND DISCONTINUED

(May 1, 2010 through May 31, 2010)

Acevedo v Piano Bldg. LLC	1st Dept: 70 AD3d 124	5/12/10
Bovis Lend Lease LMB Inc. v Garito Contr., Inc.	1st Dept: 65 AD3d 872	5/3/10
Legon v Petaks	1st Dept: 70 AD3d 457	5/5/10

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2010 through May 31, 2010)

People v Abrahams	1st Dept: 70 AD3d 586 (NY)	denied 5/21/10 (Read, J.)
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People v Allison	2d Dept: 69 AD3d 740 (Queens)	denied 5/11/10 (Lippman, Ch. J.)
People v Alston	2d Dept: 71 AD3d 684 (Queens)	denied 5/14/10 (Ciparick, J.)
People v Amir	3d Dept: 70 AD3d 1122 (Albany)	denied 5/11/10 (Pigott, J.)
People v Anderson	4th Dept: 70 AD3d 1320 (Onondaga)	denied 5/13/10 (Pigott, J.)
People v Anthony (Lonnie)	4th Dept: 71 AD3d 1464 (Erie)	denied 5/28/10 (Grafteo, J.)
People v Anthony (Lonnie)	4th Dept: 71 AD3d 1468 (Erie)	denied 5/28/10 (Grafteo, J.)
People v Anzalone	4th Dept: 70 AD3d 1486 (Livingston)	denied 5/10/10 (Read, J.)
People v Archie	2d Dept: 71 AD3d 686 (Kings)	denied 5/27/10 (Grafteo, J.)
People v Arevalo	2d Dept: 71 AD3d 688 (Queens)	denied 5/13/10 (Smith, J.)
People v Ash	2d Dept: 71 AD3d 688 (Kings)	denied 5/27/10 (Grafteo, J.)
People v Ayala	2d Dept: 69 AD3d 869 (Kings)	denied 5/19/10 (Jones, J.)
People v Balenger	4th Dept: 70 AD3d 1318 (Onondaga)	denied 5/12/10 (Ciparick, J.)
People v Balkum (Walter)	4th Dept: 71 AD3d 1594 (Monroe)	denied 5/26/10 (Ciparick, J.)
People v Balkum (Walter)	4th Dept: 71 AD3d 1597 (Monroe)	denied 5/26/10 (Ciparick, J.)
People v Banks	1st Dept: 70 AD3d 573 (NY)	denied 5/20/10 (Pigott, J.)
People v Bankston	4th Dept: 63 AD3d 1616 (Erie)	denied 5/19/10 (Jones, J.)
People v Banos	App Div, 2d Dept: 2010 NY Slip Op 66769(U) (Suffolk)	denied 5/19/10 (Smith, J.)
People v Batista	2d Dept: 71 AD3d 779 (Queens)	denied 5/19/10 (Pigott, J.)
People v Bellamy	App Term, 1st Dept: 26 Misc 3d 140(A) (NY)	denied 5/26/10 (Ciparick, J.)
People v Benedict	4th Dept: 71 AD3d 1505 (Onondaga)	denied 5/20/10 (Ciparick, J.)
People v Bergman	4th Dept: 70 AD3d 1494 (Oswego)	denied 5/12/10 (Smith, J.)
People v Blackmon	2d Dept: 67 AD3d 1022 (Rockland)	denied reconsideration 5/20/10 (Pigott, J.)
People v Blas	2d Dept: 70 AD3d 846 (Queens)	denied 5/11/10 (Pigott, J.)
People v Boulware	1st Dept: 68 AD3d 448 (NY)	denied 5/11/10 (Lippman, Ch. J.)

People v Bretti	4th Dept: 70 AD3d 1517 (Oneida)	denied 5/11/10 (Pigott, J.)
People v Brown (Delamar)	4th Dept: 67 AD3d 1369 (Oneida)	denied 5/17/10 (Pigott, J.)
People v Brown (Kingsley)	2d Dept: 70 AD3d 1047 (Nassau)	denied 5/28/10 (Grafteo, J.)
People v Butler	4th Dept: 70 AD3d 1509 (Ontario)	denied 5/13/10 (Pigott, J.)
People v Caguana	2d Dept: 69 AD3d 953 (Rockland)	denied 5/21/10 (Read, J.)
People v Caicedo	2d Dept: 69 AD3d 954 (Queens)	denied 5/10/10 (Read, J.)
People v Camacho (Manuel)	4th Dept: 70 AD3d 1393 (Oneida)	denied 5/20/10 (Ciparick, J.)
People v Camacho (Yeshua)	4th Dept: 70 AD3d 1393 (Oneida)	denied 5/20/10 (Ciparick, J.)
People v Campos	App Div, 1st Dept: 2010 NY Slip Op 66997(U) (Bronx)	dismissed 5/26/10 (Jones, J.)
People v Cardona	County Ct, 3/31/10 (Chautauqua)	denied 5/26/10 (Ciparick, J.)
People v Carr	4th Dept: 70 AD3d 1471 (Erie)	denied 5/28/10 (Grafteo, J.)
People v Carter	1st Dept: 67 AD3d 603 (NY)	denied 5/26/10 (Ciparick, J.)
People v Castro	1st Dept: 71 AD3d 557 (NY)	denied 5/27/10 (Grafteo, J.)
People v Chatelain	1st Dept: 65 AD3d 930 (NY)	denied 5/26/10 (Read, J.)
People v Chavez	2d Dept: 71 AD3d 781 (Suffolk)	denied 5/20/10 (Pigott, J.)
People v Chettana	App Div, 3d Dept: 2010 NY Slip Op 68589(U) (Schenectady)	dismissed 5/25/10 (Smith, J.)
People v Clark	4th Dept: 68 AD3d 1762 (Monroe)	denied 5/10/10 (Read, J.)
People v Clemons	4th Dept: 71 AD3d 1441 (Oswego)	denied 5/27/10 (Pigott, J.)
People v Concepcion	2d Dept: 69 AD3d 956 (Kings)	granted 5/25/10 (Pigott, J.)
People v Conley	2d Dept: 70 AD3d 961 (Suffolk)	denied 5/20/10 (Ciparick, J.)
People v Connolly	4th Dept: 70 AD3d 1510 (Oneida)	denied 5/13/10 (Pigott, J.)
People v Cooper	2d Dept: 71 AD3d 911 (Suffolk)	denied 5/13/10 (Smith, J.)
People v Corker	2d Dept: 67 AD3d 926 (Rockland)	denied 5/10/10 (Read, J.)
People v Cosme	4th Dept: 70 AD3d 1364 (Monroe)	denied 5/19/10 (Pigott, J.)
People v Credle	1st Dept: 66 AD3d 572 (NY)	denied 5/19/10 (Jones, J.)

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People v Curto	County Ct, 3/1/10 (Erie)	dismissed 5/21/10 (Read, J.)
People v Daniels	4th Dept: 68 AD3d 1711 (Erie)	denied 5/26/10 (Read, J.)
People v Darrisaw	4th Dept: 70 AD3d 1387 (Monroe)	denied 5/13/10 (Pigott, J.)
People v David	1st Dept: 70 AD3d 452 (NY)	denied 5/26/10 (Jones, J.)
People v Davis	2d Dept: 66 AD3d 796 (Kings)	denied 5/27/10 (Pigott, J.)
People v Dawkins	2d Dept: 71 AD3d 782 (Queens)	denied 5/28/10 (Grafteo, J.)
People v Delaney	4th Dept: 71 AD3d 1447 (Erie)	denied 5/27/10 (Grafteo, J.)
People v Dexter	4th Dept: 71 AD3d 1504 (Niagara)	denied 5/20/10 (Pigott, J.)
People v Dillon	4th Dept: 71 AD3d 1456 (Onondaga)	denied 5/21/10 (Read, J.)
People v Doe	1st Dept: 71 AD3d 507 (NY)	denied 5/20/10 (Pigott, J.)
People v Duhs	2d Dept: 65 AD3d 699 (Richmond)	granted 5/19/10 (Jones, J.)
People v Dulak	4th Dept: 70 AD3d 1363 (Erie)	denied 5/19/10 (Jones, J.)
People v Durham	2d Dept: 70 AD3d 849 (Suffolk)	denied 5/19/10 (Jones, J.)
People v Ellis	2d Dept: 71 AD3d 691 (Kings)	denied 5/26/10 (Ciparick, J.)
People v Esquerdo	4th Dept: 71 AD3d 1424 (Oneida)	denied 5/26/10 (Ciparick, J.)
People v Evans	App Div, 3d Dept: 2009 NY Slip Op 82329(U) (Schenectady)	denied reconsideration 5/21/10 (Read, J.)
People v Felipe	1st Dept: 69 AD3d 489 (NY)	denied 5/19/10 (Smith, J.)
People v Feliz	4th Dept: 70 AD3d 1355 (Oneida)	denied 5/14/10 (Ciparick, J.)
People v Fields	3d Dept: 68 AD3d 1537 (Albany)	denied 5/10/10 (Lippman, Ch. J.)
People v Figueroa	4th Dept: 70 AD3d 1393 (Oneida)	denied 5/20/10 (Ciparick, J.)
People v Finley	2d Dept: 70 AD3d 850 (Westchester)	denied 5/19/10 (Jones, J.)
People v Flores	2d Dept: 68 AD3d 1013 (Nassau)	denied 5/10/10 (Lippman, Ch. J.)
People v Fortune	2d Dept: 70 AD3d 964 (Richmond)	denied 5/12/10 (Ciparick, J.)
People v Garcia	2d Dept: 70 AD3d 711 (Kings)	denied 5/10/10 (Smith, J.)
People v Garland	3d Dept: 69 AD3d 1122 (Schenectady)	denied 5/12/10 (Ciparick, J.)

People v Garner	1st Dept: 71 AD3d 491 (NY)	denied 5/19/10 (Smith, J.)
People v Gilford	1st Dept: 65 AD3d 840 (Bronx)	granted 5/17/10 (Read, J.)
People v Gonzalez (Alberto)	2d Dept: 70 AD3d 855 (Queens)	denied 5/19/10 (Jones, J.)
People v Gonzalez (Samuel)	App Term, 1st Dept: 26 Misc 3d 140(A) (NY)	denied 5/20/10 (Ciparick, J.)
People v Grady	1st Dept: 67 AD3d 563 (NY)	denied 5/10/10 (Lippman, Ch. J.)
People v Graves	1st Dept: 71 AD3d 470 (NY)	denied 5/26/10 (Ciparick, J.)
People v Gray	1st Dept: 71 AD3d 575 (NY)	denied 5/19/10 (Smith, J.)
People v Green	4th Dept: 68 AD3d 1782 (Monroe)	denied 5/11/10 (Lippman, Ch. J.)
People v Greenlee	2d Dept: 70 AD3d 966 (Richmond)	denied 5/20/10 (Ciparick, J.)
People v Grimes	4th Dept: 70 AD3d 1518 (Onondaga)	denied 5/21/10 (Read, J.)
People v Grimm	3d Dept: 69 AD3d 1231 (Sullivan)	granted 5/26/10 (Pigott, J.)
People v Hawkins	4th Dept: 70 AD3d 1389 (Wyoming)	denied 5/27/10 (Grafteo, J.)
People v Hines	2d Dept: 70 AD3d 969 (Queens)	denied 5/12/10 (Ciparick, J.)
People v Hopkins	2d Dept: 70 AD3d 969 (Queens)	denied 5/11/10 (Smith, J.)
People v Isaac	1st Dept: 71 AD3d 441 (NY)	denied 5/13/10 (Smith, J.)
People v Jackson (Andre)	2d Dept: 74 AD3d 1918 (Queens)	denied 5/19/10 (Lippman, Ch. J.)
People v Jackson (Monie)	2d Dept: 66 AD3d 1042 (Queens)	denied 5/11/10 (Smith, J.)
People v Jackson (Monie)	2d Dept: 70 AD3d 858 (Queens)	denied 5/11/10 (Smith, J.)
People v Jackson (Tommy)	4th Dept: 71 AD3d 1457 (Onondaga)	denied 5/20/10 (Ciparick, J.)
People v Jacobs	2d Dept: 71 AD3d 693 (Queens)	denied 5/27/10 (Grafteo, J.)
People v James (Brian)	2d Dept: 70 AD3d 1052 (Dutchess)	denied 5/27/10 (Grafteo, J.)
People v James (Rahmel)	3d Dept: 71 AD3d 1189 (Albany)	denied 5/12/10 (Smith, J.)
People v Jamison (Christopher)	4th Dept: 71 AD3d 1435 (Onondaga)	denied 5/19/10 (Pigott, J.)
People v Jamison (Christopher)	4th Dept: 71 AD3d 1437 (Onondaga)	denied 5/19/10 (Pigott, J.)
People v Johnson	2d Dept: 70 AD3d 721 (Dutchess)	denied 5/27/10 (Read, J.)

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People v Jones (David)	4th Dept: 71 AD3d 1463 (Erie)	denied 5/14/10 (Smith, J.)
People v Jones (Terrance)	4th Dept: 71 AD3d 1476 (Monroe)	denied 5/26/10 (Ciparick, J.)
People v Jorge N.T.	4th Dept: 70 AD3d 1456 (Cattaraugus)	denied 5/27/10 (Read, J.)
People v Joseph	3d Dept: 68 AD3d 1534 (Albany)	denied 5/13/10 (Lippman, Ch. J.)
People v Kemp	4th Dept: 70 AD3d 1301 (Erie)	denied 5/13/10 (Pigott, J.)
People v Key	2d Dept: 64 AD3d 793 (Nassau)	dismissed* 5/12/10 (Jones, J.)
People v Khammonivang (Vang)	4th Dept: 68 AD3d 1727 (Monroe)	denied 5/11/10 (Lippman, Ch. J.)
People v Khammonivang (Vang)	4th Dept: 68 AD3d 1731 (Monroe)	denied 5/11/10 (Lippman, Ch. J.)
People v Kontos	1st Dept: 71 AD3d 507 (NY)	denied 5/20/10 (Pigott, J.)
People v Kulyeshie	4th Dept: 71 AD3d 1478 (Steuben)	denied 5/27/10 (Grafteo, J.)
People v Lagasse	4th Dept: 68 AD3d 1718 (Ontario)	denied 5/13/10 (Smith, J.)
People v Lard (Lonnie)	4th Dept: 71 AD3d 1464 (Erie)	denied 5/28/10 (Grafteo, J.)
People v Lard (Lonnie)	4th Dept: 71 AD3d 1468 (Erie)	denied 5/28/10 (Grafteo, J.)
People v Leary	4th Dept: 70 AD3d 1394 (Onondaga)	denied 5/20/10 (Ciparick, J.)
People v Lee (Calvin)	App Div, 2d Dept: 2010 NY Slip Op 66591(U) (Kings)	dismissed 5/11/10 (Lippman, Ch. J.)
People v Lee (Milton)	4th Dept: 67 AD3d 1458 (Oneida)	denied 5/19/10 (Lippman, Ch. J.)
People v Lewie	3d Dept: 67 AD3d 1056 (Warren)	granted 5/28/10 (Lippman, Ch. J.)
People v Lightsey	2d Dept: 70 AD3d 722 (Kings)	denied 5/19/10 (Jones, J.)
People v Ligon	1st Dept: 66 AD3d 516 (NY)	denied 5/26/10 (Read, J.)
People v Lizardi	1st Dept: 71 AD3d 406 (NY)	denied 5/12/10 (Smith, J.)
People v Lopez	2d Dept: 71 AD3d 694 (Queens)	denied 5/19/10 (Pigott, J.)
People v Luscher	4th Dept: 71 AD3d 1483 (Erie)	denied 5/26/10 (Ciparick, J.)
People v Maggio	3d Dept: 70 AD3d 1258 (Otsego)	denied 5/26/10 (Jones, J.)
People v Mao-Sheng Lin	App Div, 3d Dept: 2010 NY Slip Op 61527(U) (Tompkins)	denied 5/19/10 (Jones, J.)

* Dismissed upon the ground that application for the same relief has already been made to a Justice of the Appellate Division (CPL 460.20; *People v McCarthy*, 250 NY 358, 361 [1929]).

People v Martinaj	1st Dept: 56 AD3d 349 (NY)	denied reconsideration 5/11/10 (Lippman, Ch. J.)
People v Massey	2d Dept: 70 AD3d 722 (Westchester)	denied 5/27/10 (Read, J.)
People v Mastowski	4th Dept: 68 AD3d 1823 (Ontario)	denied 5/11/10 (Lippman, Ch. J.)
People v Maye	4th Dept: 71 AD3d 1442 (Erie)	denied 5/24/10 (Smith, J.)
People v Maynard	4th Dept: 67 AD3d 1391 (Erie)	denied 5/26/10 (Read, J.)
People v McAvoy	4th Dept: 70 AD3d 1467 (Orleans)	denied 5/17/10 (Pigott, J.)
People v McClary	2d Dept: 69 AD3d 959 (Queens)	denied 5/19/10 (Pigott, J.)
People v McLean	4th Dept: 71 AD3d 1500 (Oswego)	denied 5/26/10 (Ciparick, J.)
People v McPherson	4th Dept: 70 AD3d 1353 (Steuben)	denied 5/19/10 (Jones, J.)
People v Mead	3d Dept: 64 AD3d 814 (Warren)	denied 5/10/10 (Lippman, Ch. J.)
People v Meehan	App Div, 3d Dept, 2/2/10 (Broome)	dismissed 5/18/10 (Grafteo, J.)
People v Melendez	2d Dept: 70 AD3d 860 (Kings)	denied 5/27/10 (Read, J.)
People v Meller	1st Dept: 68 AD3d 671 (NY)	denied 5/10/10 (Lippman, Ch. J.)
People v Mercer	2d Dept: 69 AD3d 960 (Westchester)	denied 5/13/10 (Ciparick, J.)
People v Miller	3d Dept: 70 AD3d 1120 (Chemung)	denied 5/10/10 (Smith, J.)
People v Mills (Richard)	App Div, 4th Dept, 4/5/10 (Genesee)	dismissed 5/7/10 (Ciparick, J.)
People v Mills (Richard)	App Div, 4th Dept, 4/5/10 (Genesee)	dismissed 5/7/10 (Ciparick, J.)
People v Mitchell	2d Dept: 68 AD3d 1019 (Queens)	denied 5/11/10 (Lippman, Ch. J.)
People v Morris	4th Dept: 70 AD3d 1353 (Cayuga)	denied 5/21/10 (Read, J.)
People v Mosley	3d Dept: 70 AD3d 1126 (Warren)	denied 5/13/10 (Ciparick, J.)
People v Myles	3d Dept: 58 AD3d 889 (Schoharie)	denied 5/13/10 (Ciparick, J.)
People v Ortiz	1st Dept: 70 AD3d 490 (NY)	denied 5/11/10 (Pigott, J.)
People v Outar	2d Dept: 70 AD3d 975 (Queens)	denied 5/13/10 (Pigott, J.)
People v Owens (Robbie)	4th Dept: 70 AD3d 1469 (Onondaga)	denied 5/12/10 (Ciparick, J.)

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People v Owens (Robbie)	4th Dept: 70 AD3d 1471 (Onondaga)	denied 5/12/10 (Ciparick, J.)
People v Pabon	1st Dept: 68 AD3d 633 (NY)	denied 5/13/10 (Lippman, Ch. J.)
People v Pace	4th Dept: 70 AD3d 1364 (Herkimer)	denied 5/10/10 (Smith, J.)
People v Palmer	2d Dept: 65 AD3d 1389 (Westchester)	denied 5/21/10 (Read, J.)
People v Parrish	2d Dept: 71 AD3d 697 (Westchester)	denied 5/26/10 (Ciparick, J.)
People v Perkins	1st Dept: 68 AD3d 494 (NY)	denied 5/26/10 (Read, J.)
People v Peterson	4th Dept: 71 AD3d 1419 (Onondaga)	denied 5/27/10 (Grafteo, J.)
People v Phillips	2d Dept: 68 AD3d 1137 (Queens)	denied 5/19/10 (Jones, J.)
People v Plummer	1st Dept: 68 AD3d 416 (NY)	denied 5/19/10 (Jones, J.)
People v Pogo	App Div, 1st Dept: 2009 NY Slip Op 92571(U) (Bronx)	denied 5/11/10 (Lippman, Ch. J.)
People v Pollard	4th Dept: 70 AD3d 1403 (Onondaga)	denied 5/11/10 (Smith, J.)
People v Pump	App Div, 3d Dept, 1/29/10 (St. Lawrence)	denied 5/19/10 (Jones, J.)
People v Purdie	App Div, 1st Dept: 2009 NY Slip Op 68414(U) (NY)	denied 5/11/10 (Lippman, Ch. J.)
People v Qiong Yu	App Term, 1st Dept: 25 Misc 3d 131(A) (NY)	denied 5/13/10 (Pigott, J.)
People v Rabsatt	2d Dept: 70 AD3d 863 (Kings)	denied 5/11/10 (Pigott, J.)
People v Raduns	4th Dept: 70 AD3d 1355 (Orleans)	denied 5/21/10 (Read, J.)
People v Rah	3d Dept: 71 AD3d 1189 (Albany)	denied 5/12/10 (Smith, J.)
People v Ramos (Louis)	App Div, 3d Dept: 2010 NY Slip Op 64297(U) (Chemung)	dismissed 5/17/10 (Pigott, J.)
People v Ramos (Luis)	App Div, 3d Dept: 2010 NY Slip Op 64297(U) (Chemung)	dismissed 5/17/10 (Pigott, J.)
People v Reynart	2d Dept: 71 AD3d 1057 (Suffolk)	denied 5/27/10 (Grafteo, J.)
People v Rivera (Alberto)	3d Dept: 70 AD3d 1177 (Rensselaer)	denied 5/19/10 (Jones, J.)
People v Rivera (A.J.)	3d Dept: 70 AD3d 1177 (Rensselaer)	denied 5/19/10 (Jones, J.)
People v Rivera (Gilbert)	1st Dept: 61 AD3d 516 (NY)	denied 5/12/10 (Smith, J.)
People v Rivera (John)	4th Dept: 70 AD3d 1521 (Monroe)	denied 5/20/10 (Pigott, J.)

People v Rivers	4th Dept: 67 AD3d 1435 (Onondaga)	denied reconsideration 5/14/10 (Smith, J.)
People v Robinson	App Div, 4th Dept, 3/5/10 (Onondaga)	dismissed 5/13/10 (Pigott, J.)
People v Rodriguez (Joel)	2d Dept: 70 AD3d 976 (Kings)	denied 5/19/10 (Jones, J.)
People v Rodriguez (Leroy)	2d Dept: 70 AD3d 729 (Nassau)	denied 5/19/10 (Jones, J.)
People v Rogers (Andre)	2d Dept: 70 AD3d 863 (Queens)	denied 5/20/10 (Ciparick, J.)
People v Rogers (Carl)	4th Dept: 70 AD3d 1340 (Monroe)	denied 5/26/10 (Jones, J.)
People v Rogers (Reggie)	1st Dept: 71 AD3d 457 (NY)	denied 5/20/10 (Ciparick, J.)
People v Rombach	2d Dept: 71 AD3d 703 (Suffolk)	denied 5/26/10 (Jones, J.)
People v Rosado (Hector)	4th Dept: 70 AD3d 1315 (Oneida)	denied 5/14/10 (Ciparick, J.)
People v Rosado (Steve)	App Div, 1st Dept: 2009 NY Slip Op 88959(U) (NY)	denied reconsideration 5/21/10 (Read, J.)
People v Ryan	2d Dept: 70 AD3d 1054 (Kings)	denied 5/18/10 (Grafteo, J.)
People v Salgado	2d Dept: 70 AD3d 864 (Queens)	denied 5/20/10 (Pigott, J.)
People v Santiago	1st Dept: 69 AD3d 433 (NY)	denied 5/27/10 (Grafteo, J.)
People v Scalercio	2d Dept: 71 AD3d 1060 (Suffolk)	denied 5/27/10 (Pigott, J.)
People v Scott	3d Dept: 67 AD3d 1052 (Saratoga)	granted 5/19/10 (Jones, J.)
People v Scrubb	2d Dept: 70 AD3d 1054 (Kings)	denied 5/20/10 (Ciparick, J.)
People v Sepulveda	2d Dept: 68 AD3d 1141 (Westchester)	denied 5/12/10 (Ciparick, J.)
People v Serrano	2d Dept: 70 AD3d 1054 (Dutchess)	denied 5/13/10 (Pigott, J.)
People v Shaheed	2d Dept: 70 AD3d 980 (Queens)	denied 5/26/10 (Jones, J.)
People v Sharpe	3d Dept: 70 AD3d 1184 (Broome)	denied 5/27/10 (Grafteo, J.)
People v Shaw	1st Dept: 70 AD3d 567 (NY)	denied 5/20/10 (Ciparick, J.)
People v Shutter	3d Dept: 72 AD3d 1211 (Albany)	denied 5/25/10 (Smith, J.)
People v Simancas	2d Dept: 71 AD3d 1174 (Suffolk)	denied 5/25/10 (Smith, J.)
People v Simeon	2d Dept: 71 AD3d 923 (Rockland)	denied 5/27/10 (Pigott, J.)

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People v Singh	2d Dept: 70 AD3d 864 (Queens)	denied 5/28/10 (Grafteo, J.)
People v Solimini	2d Dept: 69 AD3d 657 (Queens)	denied 5/26/10 (Read, J.)
People v Soto	1st Dept: 69 AD3d 531 (NY)	denied 5/19/10 (Jones, J.)
People v Stenson (Charles)	1st Dept: 68 AD3d 418 (NY)	denied 5/11/10 (Lippman, Ch. J.)
People v Stenson (Charles)	1st Dept: 68 AD3d 419 (NY)	denied 5/11/10 (Lippman, Ch. J.)
People v Stepter	1st Dept: 67 AD3d 497 (NY)	granted 5/19/10 (Jones, J.)
People v Stevenson	2d Dept: 71 AD3d 796 (Kings)	denied 5/13/10 (Smith, J.)
People v Streeter	4th Dept: 71 AD3d 1463 (Niagara)	denied 5/26/10 (Ciparick, J.)
People v Strong	2d Dept: 70 AD3d 865 (Queens)	denied 5/27/10 (Read, J.)
People v Sumter	4th Dept: 68 AD3d 1701 (Oneida)	denied 5/26/10 (Read, J.)
People v Teichman	1st Dept: 66 AD3d 523 (NY)	denied reconsideration 5/14/10 (Smith, J.)
People v Texidor	3d Dept: 71 AD3d 1190 (Clinton)	denied 5/26/10 (Ciparick, J.)
People v Thomas	3d Dept: 71 AD3d 1231 (St. Lawrence)	denied 5/20/10 (Ciparick, J.)
People v Thompson	App Div, 2d Dept: 2010 NY Slip Op 65339(U) (Kings)	dismissed 5/11/10 (Smith, J.)
People v Torres-Reyes	4th Dept: 70 AD3d 1342 (Erie)	denied 5/12/10 (Ciparick, J.)
People v Townsend (Allan)	2d Dept: 70 AD3d 982 (Queens)	denied 5/19/10 (Jones, J.)
People v Townsend (Raymond)	4th Dept: 68 AD3d 1781 (Niagara)	denied 5/10/10 (Read, J.)
People v Trueheart	4th Dept: 71 AD3d 1446 (Erie)	denied 5/27/10 (Pigott, J.)
People v Tyrell	2d Dept: 67 AD3d 827 (Westchester)	denied 5/19/10 (Pigott, J.)
People v Vachet	2d Dept: 66 AD3d 802 (Kings)	denied 5/12/10 (Pigott, J.)
People v Valdez	1st Dept: 69 AD3d 452 (NY)	denied 5/10/10 (Read, J.)
People v Vargas	4th Dept: 70 AD3d 1306 (Monroe)	denied 5/28/10 (Grafteo, J.)
People v Vasquez (Anthony)	App Div, 4th Dept, 4/13/10 (Ontario)	dismissed 5/7/10 (Grafteo, J.)
People v Vasquez (Anthony)	4th Dept: 70 AD3d 1518 (Ontario)	denied 5/7/10 (Grafteo, J.)

People v Vasquez (Raymond)	3d Dept: 71 AD3d 1179 (Broome)	denied 5/20/10 (Ciparick, J.)
People v Vassell	2d Dept: 71 AD3d 1178 (Nassau)	denied 5/28/10 (Grafteo, J.)
People v Vega	1st Dept: 70 AD3d 521 (NY)	denied 5/20/10 (Ciparick, J.)
People v Velazquez	3d Dept: 67 AD3d 1124 (Columbia)	denied 5/11/10 (Lippman, Ch. J.)
People v Ventura	App Div, 2d Dept: 2009 NY Slip Op 82726(U) (Queens)	granted 5/21/10 (Lippman, Ch. J.)
People v Verrilli	2d Dept: 69 AD3d 963 (Orange)	denied 5/19/10 (Jones, J.)
People v Walker	2d Dept: 70 AD3d 870 (Kings)	denied 5/13/10 (Ciparick, J.)
People v Walser	2d Dept: 71 AD3d 706 (Kings)	denied 5/26/10 (Ciparick, J.)
People v Walton	2d Dept: 70 AD3d 871 (Nassau)	denied 5/13/10 (Pigott, J.)
People v Warner	3d Dept: 69 AD3d 1052 (Madison)	denied 5/11/10 (Lippman, Ch. J.)
People v Washington	County Ct, 1/27/10 (Monroe)	denied 5/12/10 (Ciparick, J.)
People v Way	2d Dept: 69 AD3d 964 (Queens)	denied 5/12/10 (Ciparick, J.)
People v Wells	App Term, 1st Dept: 26 Misc 3d 143(A) (NY)	denied 5/14/10 (Smith, J.)
People v West	4th Dept: 70 AD3d 1508 (Monroe)	denied 5/19/10 (Jones, J.)
People v Whaley	1st Dept: 70 AD3d 570 (NY)	denied 5/13/10 (Smith, J.)
People v White	4th Dept: 70 AD3d 1343 (Monroe)	denied 5/12/10 (Ciparick, J.)
People v Williams (Anton)	2d Dept: 70 AD3d 733 (Rockland)	denied 5/20/10 (Ciparick, J.)
People v Williams (Bernard)	2d Dept: 70 AD3d 1059 (Westchester)	denied 5/19/10 (Pigott, J.)
People v Williams (James)	App Term, 1st Dept: 26 Misc 3d 139(A) (NY)	denied 5/19/10 (Jones, J.)
People v Williams (Jermaine)	4th Dept: 70 AD3d 1403 (Cayuga)	denied 5/11/10 (Smith, J.)
People v Williams (Jimmy)	2d Dept: 69 AD3d 663 (Queens)	denied 5/10/10 (Lippman, Ch. J.)
People v Willis	2d Dept: 69 AD3d 966 (Kings)	denied 5/19/10 (Jones, J.)
People v Wright	4th Dept: 63 AD3d 1700 (Monroe)	denied 5/12/10 (Jones, J.)
People v Zarro	2d Dept: 66 AD3d 1050 (Dutchess)	denied 5/5/10 (Pigott, J.)
People v Zulian (Zuliani)	4th Dept: 68 AD3d 1731 (Cattaraugus)	denied 5/11/10 (Lippman, Ch. J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices***

(May 1, 2010 through May 31, 2010)

People v Grant	2d Dept: 70 AD3d 711 (Richmond)	granted 5/6/10 (Fisher, J.)
People v Beasley	2d Dept: 69 AD3d 741 (Kings)	granted 5/4/10 (Eng, J.)

[931 NE2d 69, 905 NYS2d 100]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DESIRIE
WILSON, Appellant.

Decided June 3, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 3, 2009. The Appellate Division affirmed a judgment of the Criminal Division of the Supreme Court, Bronx County (Michael A. Gross, J.), which had convicted defendant, after a nonjury trial, of attempted aggravated harassment in the second degree.

The complainant's daughter and defendant's daughter were involved in an altercation outside their high school. Defendant was a school safety officer assigned to the school. Defendant testified that, at the direction of the school's assistant principal for security, she placed a telephone call to the complainant the day after the incident, and that she stated that she asked the complainant to come to the school with her daughter to participate in a mediation with defendant's daughter. Defendant claimed that she made the call strictly in her official capacity. The complainant testified that defendant did call her, but stated to her "If [you] cared about [your] daughter's well-being, about [your] daughter's safety, you [will] drop the charges."

The Appellate Division concluded that defendant's statement constituted a threat that satisfied the aggravated harassment statute because it specifically referred to placing the safety of the complainant's daughter in jeopardy, and that the threat was credible because defendant, as a school safety officer, was in a position to jeopardize the well-being of complainant's daughter.

People v Wilson, 59 AD3d 153, affirmed.

* Includes only applications that were granted.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review

In a prosecution for attempted aggravated harassment in the second degree, defendant's claim that her case was tried in Supreme Court and that court lacked subject matter jurisdiction to issue a judgment of conviction may be considered on appeal, despite her failure to timely raise the issue, because it fell within an exception to the preservation rule. Even assuming that defendant's case was tried in Supreme Court, she was not entitled to reversal of her conviction on jurisdictional grounds because Supreme Court possesses concurrent subject matter jurisdiction over the trial of unindicted misdemeanor offenses. Defendant's alternative argument, that even if Supreme Court may resolve misdemeanor charges, the transfer of her case from New York City Criminal Court to Supreme Court was impermissible since court rules creating the Criminal Division of the Supreme Court in Bronx County and directing the reassignment of certain misdemeanor cases to that court for trial were not in effect on the date of her conviction, may not be considered. Given that Supreme Court had the power to hear the case, the transfer error defendant alleged was the equivalent of an improper venue claim, which is not jurisdictional in nature and was waived when defendant did not timely object to the transfer in the trial court.

APPEARANCES OF COUNSEL

Legal Aid Society, New York City (*Adrienne Gantt* of counsel), for appellant.

Robert T. Johnson, District Attorney, Bronx (*Kayonia L. Whetstone* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

After a nonjury trial, defendant was convicted of attempted aggravated harassment in the second degree, a misdemeanor. She appealed her conviction, which was affirmed by the Appellate Division in a divided decision.* One of the Appellate Division dissenters granted defendant leave to appeal.

In this Court, contending that her misdemeanor case was tried in Supreme Court, defendant argues for the first time that the trial court lacked the subject matter jurisdiction to adjudicate the matter because it was prosecuted on a misdemeanor information and not an indictment or superior court information (SCI) issued upon waiver of indictment. The People dispute defendant's claim, asserting that the case was resolved in New York City Criminal Court, Bronx County, and was presided over by a New York City Criminal Court Judge who

* Defendant does not argue that reversal is warranted because her appeal was heard by the Appellate Division rather than the Appellate Term.

was also an Acting Supreme Court Justice. In addition, the People maintain that Supreme Court possesses the subject matter jurisdiction to try misdemeanors, regardless of whether they are charged in a misdemeanor information, an indictment or an SCI.

Defendant's claim that the trial court lacked subject matter jurisdiction to issue a judgment of conviction may be considered on appeal, despite her failure to timely raise the issue, because it falls within an exception to the preservation rule (*see People v Casey*, 95 NY2d 354, 365 [2000]; *see e.g. People v Nicometi*, 12 NY2d 428 [1963]). Even assuming that defendant's case was tried in Supreme Court, she is not entitled to reversal of her conviction on jurisdictional grounds because Supreme Court possesses concurrent subject matter jurisdiction over the trial of unindicted misdemeanor offenses (*see People v Correa*, 15 NY3d 213 [2010] [decided herewith]). Anticipating this holding, defendant argues in the alternative that, even if Supreme Court may resolve misdemeanor charges, the transfer of her case from New York City Criminal Court to Supreme Court was impermissible since court rules creating the Criminal Division of the Supreme Court in Bronx County and directing the reassignment of certain misdemeanor cases to that court for trial were not in effect on the date of her conviction (*see id.*; 22 NYCRR parts 42, 142). Given that Supreme Court had the power to hear the case, the transfer error defendant alleges is the equivalent of an improper venue claim, which is not jurisdictional in nature and is waived if not timely raised (*see People v Carvajal*, 6 NY3d 305, 312 [2005] ["venue issues—which relate only to the proper place of trial, rather than to the power of the court to hear and determine the case—are waivable"] [emphasis and citation omitted]). Because defendant did not object in the trial court to the (purported) transfer of her case to Supreme Court, we may not consider this alternative claim.

Finally, we have reviewed defendant's challenge to the jurisdictional sufficiency of the accusatory instrument and find it to be lacking in merit.

Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur; Chief Judge LIPPMAN taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

[930 NE2d 263, 904 NYS2d 342]

KEVIN GLASSMAN, M.D., Respondent, v PROHEALTH AMBULATORY SURGERY CENTER, INC., et al., Appellants.

Argued May 4, 2010; decided June 3, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Supreme Court, Nassau County (Ira B. Warshawsky, J.), entered January 16, 2009. The Supreme Court awarded plaintiff \$925,000 for attorney's fees, costs and interest, in addition to a principal amount of damages previously awarded. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 7, 2008 and two prior nonfinal orders of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 21, 2005. The Appellate Division order entered October 7, 2008 had affirmed a judgment of that Supreme Court, entered after a nonjury trial, awarding plaintiff damages in the principal sum of \$754,825. The first of the Appellate Division orders entered November 21, 2005 had dismissed defendants' appeal from so much of an order of that Supreme Court as denied their motion for leave to amend the answer to include certain counterclaims, and had affirmed an order of that Supreme Court granting reargument of that prior order and, upon reargument, adhering to the determination denying in part the motion for leave to amend the answer (23 AD3d 522); the second had affirmed an order and an amended order of that Supreme Court denying defendants' motion to renew their motion to amend the answer to include certain counterclaims (23 AD3d 523).

Defendant ProHealth Ambulatory Surgery Center, Inc. (hereinafter PASC), operated an ambulatory surgery center, and entered into a written agreement with plaintiff, employing him as Director of Anesthesiology and Medical Director. The agreement provided for various compensation and severance pay should plaintiff be terminated without "just cause," as defined in the agreement. Plaintiff, alleging that he was improperly terminated, commenced this action to recover compensation and severance pay. Defendants moved for summary judgment dismissing the complaint on the ground that the agreement was illegal and unenforceable. The motion was based on a prior determination that a provision of the agreement which stated that PASC would share in fees earned for anesthesia services performed outside of its ambulatory surgical center was illegal

and unenforceable because it violated PASC's certificate of operation, which limited PASC's authority to provide medical services to its surgical center only (*see Glassman v ProHealth Ambulatory Surgery Ctr., Inc.*, 23 AD3d 522 [2005]). Defendants argued that the illegal and unenforceable provision tainted the entire agreement and rendered it wholly unenforceable. Supreme Court denied the motion, severed the illegal and unenforceable provision of the agreement, and found, after a nonjury trial, that plaintiff had been terminated without just cause and awarded damages.

The Appellate Division noted that where an agreement consisted of both unlawful and lawful objectives, a court may sever the illegal aspects of an agreement and enforce the legal ones, so long as the illegal aspects were incidental to the legal aspects and not the main objective of the agreement. The Court concluded that the main and lawful objectives of the parties' agreement, as established by its plain terms, were for plaintiff to develop and administer an on-site anesthesia practice, to provide anesthesia services, and to coordinate the operating and recovery room staff, and the operating room staff and schedule.

Glassman v Pro Health Ambulatory Surgery Ctr., Inc., 55 AD3d 538, reversed.

HEADNOTE

Contracts — Employment Contracts — Enforceability of Malum Prohibitum Provision

In an action to recover damages arising out of defendant's breach of an employment contract, even assuming that the provision of the contract allowing defendant to collect fees emanating from plaintiff's off-site anesthesiology services was inconsistent with a regulation of the Department of Health, that provision was merely malum prohibitum and, therefore, enforceable. Forfeitures by operation of law are disfavored and allowing parties to escape their contractual obligations freely entered into is especially inappropriate where there are regulatory sanctions and statutory penalties in place to redress violations of the law. Although both the Department of Health and the State Board for Professional Medical Conduct have the power to impose sanctions for fee-splitting arrangements that violate statutory prescriptions, neither agency was involved in this matter, and plaintiff did not identify an overarching public policy that mandated voiding the contract. Accordingly the case was remitted to Supreme Court to consider whether defendant was entitled, under the terms of the agreement, to a set off derived from the funds, if any, held by plaintiff, against the amount he was awarded against defendants.

APPEARANCES OF COUNSEL

Rivkin Radler LLP, Uniondale (*Evan H. Krinick, Cheryl F. Korman, David A. Manko, Stuart M. Bodoff and Benjamin P.*

Malerba, III, of counsel), and *Friedman Kaplan Seiler & Adelman LLP*, New York City, for appellants.

Littler Mendelson, PC., New York City (*David M. Wirtz, Barbara A. Gross* and *Meredith L. Bronfman* of counsel), for respondent.

Susan C. Waltman, New York City, for Greater New York Hospital Association, amicus curiae.

Greenberg Traurig, LLP, Albany (*Cynthia E. Neidl* of counsel), and *Greenberg Traurig, LLP*, New York City (*Francis J. Serbaroli* of counsel), for New York State Association of Ambulatory Surgery Centers, Inc., amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The judgment appealed from and the October 2008 order of the Appellate Division brought up for review should be reversed, with costs, and the matter remitted to Supreme Court for further proceedings in accordance with this memorandum.

Even assuming that the provision of the employment contract allowing defendant to collect fees emanating from plaintiff's off-site anesthesiology services is inconsistent with 10 NYCRR 401.2 (b), which provides that "[a]n operating certificate shall be used only by the established operator for the designated site of operation," we conclude that the provision is merely *malum prohibitum* and, therefore, enforceable in this breach of contract action (see *Lloyd Capital Corp. v Pat Henchar, Inc.*, 80 NY2d 124, 127-128 [1992]; see also *Charlebois v Weller Assoc.*, 72 NY2d 587 [1988]). Forfeitures by operation of law are disfavored, and allowing parties to escape their contractual obligations, freely entered into, "is especially inappropriate where there are regulatory sanctions and statutory penalties in place to redress violations of the law" (*Lloyd Capital Corp.*, 80 NY2d at 128).

Here, Public Health Law § 2806 (1) (a) authorizes the Department of Health to revoke, suspend, limit or annul an ambulatory surgery center's operating certificate where it "has failed to comply with the provisions of this article or rules and regulations promulgated thereunder." Additionally, the State Board for Professional Medical Conduct has the power to impose sanctions for fee-splitting arrangements that violate statutory prescriptions (see Education Law § 6530 [19]; § 6531; see also Public Health Law §§ 230, 230-a). Neither agency has been involved in this matter, nor has plaintiff identified an overarching public policy that mandates voiding the contract (see gener-

ally Albany Med. Coll. v McShane, 66 NY2d 982 [1985], *reargued* 67 NY2d 757 [1986]). For this reason, Supreme Court shall consider whether defendant is entitled, under the terms of the agreement, to a setoff derived from the funds, if any, held by plaintiff, against the amount of recovery in this case. We see no reason to disturb the remaining conclusions of the courts below.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Judgment appealed from and the October 2008 Appellate Division order brought up for review reversed, etc.

[929 NE2d 403, 903 NYS2d 339]

NEAL FLOMENBAUM, Appellant, v NEW YORK UNIVERSITY, Respondent.

Decided June 3, 2010

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 3, 2009. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Milton A. Tingling, J.), which had granted a motion by defendant for summary judgment dismissing the complaint and denied a cross motion by plaintiff for an order of preclusion.

In order to resolve a tenure dispute between defendant and plaintiff, a former faculty member at the defendant's school of medicine, the parties executed an agreement providing that plaintiff's children would be entitled to tuition remission upon admission to defendant university for undergraduate or graduate study, and that their admission and tuition remission would be on the same basis and with the same courtesies as would be extended to a current, active, full-time, tenured faculty member. Plaintiff's son applied for admission to defendant's four-year undergraduate degree program. Subsequently, defendant informed him that it was unable to offer him admission to the four-year program; instead he was offered admission to defendant's general studies program, a two-year course of study in the liberal arts. In keeping with the agreement, enrollment in the two-year program would have qualified plaintiff's son for tuition remission. Declining that offer, plaintiff's son enrolled at another university and then transferred to another. Plaintiff's claim for damages included tuition paid to both institutions.

The Appellate Division noted that plaintiff testified that he had no direct knowledge of any other relevant courtesies or considerations than those extended by defendant, and that he acknowledged that the agreement and the courtesies it incorporated did not guarantee a seat for his son in the four-year program. The Court concluded that plaintiff had received his bargained-for fair decision on his son's application for admission, notwithstanding that plaintiff's son's failure to check a box on the admission form indicating that a parent was an employee of defendant resulted in his application initially being treated as one that had been received in the normal course. His application was ultimately given the required second look as per the parties' agreement.

Flomenbaum v New York Univ., 71 AD3d 80, affirmed.

HEADNOTE

Contracts — Breach or Performance of Contract

In an action for breach of contract arising out of defendant university's offer to plaintiff's son of tuition-free enrollment in a two-year degree program, rather than the four-year program the son applied for, plaintiff, a former professor with defendant, failed to present sufficient evidence to raise a triable issue of fact regarding whether defendant breached the parties' underlying contract, which provided for tuition remission for any of plaintiff's children who were accepted by defendant's admissions committee for study at the university.

APPEARANCES OF COUNSEL

Foley & Lardner LLP, New York City (*Barry G. Felder* of counsel), for appellant.

Nancy Kilson, New York City, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs. Plaintiff failed to present sufficient evidence to raise a triable issue of fact regarding whether defendant New York University breached the parties' underlying contract (*Zuckerman v City of New York*, 49 NY2d 557, 560 [1980]). Plaintiff's remaining contentions lack merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

In the Matter of MADELINE ACOSTA, Respondent, v NEW YORK
CITY DEPARTMENT OF EDUCATION et al., Appellants.

Submitted June 1, 2010; decided June 3, 2010

Reported below, 62 AD3d 455.

Motion by the Legal Aid Society et al. to join as amici curiae
in the brief to be filed by Community Service Society et al.
granted.

In the Matter of MADELINE ACOSTA, Respondent, v NEW YORK
CITY DEPARTMENT OF EDUCATION et al., Appellants.

Submitted May 24, 2010; decided June 3, 2010

Reported below, 62 AD3d 455.

Motion by Senators Neil D. Breslin et al. to join as amici cu-
riae in the brief to be filed by Senator Bill Perkins granted.

MARK BARANEK, Appellant, v KARIN BARANEK, Respondent.

Submitted February 16, 2010; decided June 3, 2010

Reported below, 54 AD3d 789.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

CARLOS DUQUE, Appellant, v PACE UNIVERSITY, Respondent and
Third-Party Plaintiff-Respondent. ISS INTERNATIONAL SER-
VICES SYSTEMS, INC., Third-Party Defendant-Respondent.

Submitted March 29, 2010; decided June 3, 2010

Reported below, 308 AD2d 422.

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]).

LINDSAY GROBMAN, Respondent, v RHONDA CHERNOFF et al., De-
fendants, and RHONDA GLOBMAN et al., Appellants.

Submitted May 10, 2010; decided June 3, 2010

Reported below, 63 AD3d 786.

Motion to supplement the record on appeal granted.

RALPH HALL, Appellant, v JACOBY AND MEYERS LAW OFFICES, INC., Respondent.

Submitted March 22, 2010; decided June 3, 2010

Reported below, 2009 NY Slip Op 82076(U).

Motion for reargument denied [*see* 14 NY3d 757 (2010)].

JERICHO GROUP LTD., Appellant, v MIDTOWN DEVELOPMENT, L.P., et al., Respondents.

Submitted May 3, 2010; decided June 3, 2010

Reported below, 67 AD3d 431.

Motion to strike denied.

Chief Judge LIPPMAN taking no part.

ARNOLD JOSEPH MARS, Appellant, v ROBERT Z. DOBRISH et al., Respondents, et al., Defendant.

Submitted April 5, 2010; decided June 3, 2010

Reported below, 66 AD3d 401, 403.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MIGUEL ANDRADE, Appellant.

Submitted May 24, 2010; decided June 3, 2010

Reported below, 71 AD3d 601.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JESSE BRABHAM, Respondent.

Submitted May 17, 2010; decided June 3, 2010

Reported below, 66 AD3d 557.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENNETH BROWN, Appellant.

Submitted May 10, 2010; decided June 3, 2010

Reported below, 69 AD3d 466.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL BRUNNER, Appellant.

Submitted May 17, 2010; decided June 3, 2010

Reported below, 67 AD3d 464.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUIS FELICIANO, Appellant.

Submitted May 24, 2010; decided June 3, 2010

Reported below, 2009 NY Slip Op 89246(U).

Motion for assignment of counsel granted and Joseph Lee Matalon, Esq., care of Matalon Shweky Elman PLLC, 450 Seventh Ave., 33rd Floor, New York, NY 10123 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FREDRICK JENKINS, Appellant.

Submitted May 24, 2010; decided June 3, 2010

Reported below, 66 AD3d 800.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE JORDAN, Appellant.

Submitted May 17, 2010; decided June 3, 2010

Reported below, 66 AD3d 577.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SEAN SMITH, Appellant.

Submitted May 10, 2010; decided June 3, 2010

Reported below, 69 AD3d 450.

Motion for an order pursuant to CPLR 1012 (b) (2) permitting movant City of New York to file a brief and participate in oral argument of the appeal granted in each respect.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANDREW McDANIELS, Appellant, v MICHAEL CORCORAN, Superintendent, Cayuga Correctional Facility, et al., Respondents.

Submitted May 12, 2010; decided June 3, 2010

Reported below, 70 AD3d 1358.

Motion for leave to appeal dismissed upon the ground that relator has been released from custody and, therefore, his liberty is no longer restrained to such a degree as to entitle him to the extraordinary writ of habeas corpus (*see People ex rel. Wilder v Markley*, 26 NY2d 648 [1970]).

SUPERB GENERAL CONTRACTING, Appellant, v CITY OF NEW YORK, Respondent, et al., Defendants.

Submitted April 5, 2010; decided June 3, 2010

Reported below, 70 AD3d 517.

Motion for leave to appeal dismissed upon the ground that the Appellate Division order does not finally determine the action within the meaning of the Constitution and that the stipulation does not qualify as a final judgment within the meaning of CPLR 5602 (a) (1) (ii) to bring up for review the prior nonfinal Appellate Division order because it was entered into without prejudice.

In the Matter of ELBERT WELCH, Appellant, v BRIAN FISCHER, as
Commissioner of Correctional Services, Respondent.

Submitted April 12, 2010; decided June 3, 2010

Reported below, 70 AD3d 1077.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

[931 NE2d 516, 905 NYS2d 532]

JOSEPH E. KAUFMAN, Individually and as Administrator of the
Estate of JOSEPH D. KAUFMAN, Deceased, et al., Appellants,
v QUICKWAY, INC., et al., Respondents.

Decided June 8, 2010

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered July 9, 2009. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Delaware County (Michael V. Coccoma, J.), which had denied a motion by defendants for summary judgment dismissing the complaint, and (2) granted the motion.

Soon after purchasing a 12-pack of beer at a convenience store operated by defendants, the customer drove his vehicle at high speed, swerved into oncoming traffic, and struck a vehicle being driven by plaintiffs' son, killing both himself and the son. The collision occurred at 4:03 P.M. A cash register receipt found in the customer's car showed that he had purchased the beer less than seven minutes before the collision.

Kaufman v Quickway, Inc., 64 AD3d 978, affirmed.

HEADNOTE**Evidence — Hearsay Evidence — Indicia of Reliability — Dram Shop Act**

In a Dram Shop Act action involving a convenience store's allegedly illegal sale of alcohol to a visibly intoxicated customer who later caused a fatal traffic accident, the Appellate Division improperly held that the store clerk's out-of-court statements to a State Trooper investigating the accident were not admissible under the hearsay exception for prior inconsistent statements to rebut her later deposition testimony (see *Letendre v Hartford Acc. & Indem. Co.*, 21 NY2d 518, 524 [1968]). The supporting deposition prepared by the Trooper and signed by the witness under penalty of perjury contained numerous indicia of reliability justifying its admissibility under *Letendre*, and the store clerk was available for cross-examination. In addition, the statement was sufficient to create a triable issue regarding whether the driver was visibly intoxicated at the time of the alcohol sale. Nevertheless, summary judgment was properly granted to defendants, since plaintiffs failed to create a triable issue to rebut defendants' prima facie evidence demonstrating that no reasonable or practical connection existed between the allegedly illegal sale of alcohol and the accident, which occurred less than seven minutes later.

APPEARANCES OF COUNSEL

Alexander J. Wulwick, New York City, and *Duane C. Felton*, Staten Island, for appellants.

Law Firm of Frank W. Miller, East Syracuse (*Frank W. Miller* of counsel), for respondents.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, with costs.

In this Dram Shop Act action involving a convenience store's allegedly illegal sale of alcohol to a visibly intoxicated customer who later caused a fatal traffic accident, the Appellate Division reversed Supreme Court's order denying defendants' motion for summary judgment, granted the motion, and dismissed the complaint. The Appellate Division held that the store clerk's out-of-court statements to a State Trooper investigating the accident were not admissible under the hearsay exception for prior inconsistent statements to rebut her later deposition testimony (see *Letendre v Hartford Acc. & Indem. Co.*, 21 NY2d 518, 524 [1968]; cf. *Nucci v Proper*, 95 NY2d 597, 603 [2001]). We disagree. The supporting deposition prepared by the Trooper and signed by the witness under penalty of perjury contained numerous indicia of reliability justifying its admissibility under *Letendre*. And, as in *Letendre*, the store clerk was available for cross-examination. In addition, the statement was sufficient to

create a triable issue regarding whether the driver was visibly intoxicated at the time of the alcohol sale (*see* Alcoholic Beverage Control Law § 65 [2]; General Obligations Law § 11-101).

Nevertheless, summary judgment was properly granted to defendants. Plaintiffs failed to create a triable issue to rebut defendants' prima facie evidence demonstrating that no reasonable or practical connection existed between the allegedly illegal sale of alcohol and the accident (*see Oursler v Brennan*, 67 AD3d 36, 43 [4th Dept 2009], *lv granted* 68 AD3d 1824 [4th Dept 2009]; *Schmidt v Policella*, 43 AD3d 1141, 1143 [2d Dept 2007], *lv denied* 9 NY3d 817 [2008]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

KELVIN D. ANDERSON, Appellant, v YOUNG & RUBICAM, Respondent.

Submitted January 11, 2010; decided June 8, 2010

Reported below, 68 AD3d 430.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. The order affirming the denial of the CPLR 4404 motion to set aside the verdict does not finally determine the action (*see Cuadrado v New York City Tr. Auth.*, 14 NY3d 748 [2010]).

DENIS J. BUTLER, Appellant, v NEW YORK CITY TRANSIT AUTHORITY et al., Respondents.

Submitted March 15, 2010; decided June 8, 2010

Reported below, 67 AD3d 620.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. The order denying the CPLR 4404 motion to set aside the verdict resolves the issues raised on the CPLR 4404 motion; it does not dispose of all of the issues in the action (*see* CPLR 5611). The final and

appealable paper to the Court of Appeals is the final judgment entered after the denial of the motion or an Appellate Division order resolving an appeal from that judgment (*see Cuadrado v New York City Tr. Auth.*, 14 NY3d 748 [2010]).

In the Matter of the Claim of ALLISON CONESCU, Appellant.
COMMISSIONER OF LABOR, Respondent.

Submitted April 12, 2010; decided June 8, 2010

Reported below, 67 AD3d 1234.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ROBERT A. DENENBERG, Individually and as Administrator of
ROBERT A. DENENBERG, a Sole Proprietorship Defined Ben-
efit Pension Plan, Appellant, v WARREN ROSEN et al., De-
fendants, and BANKERS LIFE OF NEW YORK, Also Known as
BANKERS LIFE INSURANCE COMPANY OF NEW YORK, et al.,
Respondents.

Submitted February 22, 2010; decided June 8, 2010

Reported below, 71 AD3d 187.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v LYNETTE
CABAN, Respondent.

Submitted April 19, 2010; decided June 8, 2010

Reported below, 51 AD3d 455.

Motion to amend order dated April 1, 2010 denied [*see* 14 NY3d 369 (2010)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MUJA-
HID MUHAMMAD, Appellant.

Submitted May 3, 2010; decided June 8, 2010

Reported below, 66 AD3d 424.

Motion to vacate this Court's April 15, 2010 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LOUIS THEODORE, Appellant.

Submitted April 19, 2010; decided June 8, 2010

Reported below, 2010 NY Slip Op 64729(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. WALTER GRANT, Appellant, v SUSAN A. CONNEL, Superintendent of Oneida Correctional Facility, Respondent.

Decided June 8, 2010

Reported below, 2010 NY Slip Op 64533(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

DYLAN SCERRI et al., Respondents, v JOHN WALSH et al., Appellants.

Submitted April 12, 2010; decided June 8, 2010

Reported below, 70 AD3d 922.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

KEIWAN SITAL, Respondent, v CITY OF NEW YORK, Appellant.

Submitted January 25, 2010; decided June 8, 2010

Reported below, 60 AD3d 465.

Motion for reargument of motion for leave to appeal denied [*see* 13 NY3d 903 (2009)].

In the Matter of SLS RESIDENTIAL, INC., et al., Appellants-Respondents, v NEW YORK STATE OFFICE OF MENTAL HEALTH et al., Respondents-Appellants.

Submitted April 12, 2010; decided June 8, 2010

Reported below, 67 AD3d 813.

Motion to seal dismissed as unnecessary in view of Supreme Court's April 13, 2010 sealing order (Rules of Ct of Appeals [22 NYCRR] § 500.5 [b]).

In the Matter of TROY SS., Respondent, v JUDY UU., Appellant.
(And Two Other Related Proceedings.)

Submitted April 26, 2010; decided June 8, 2010

Reported below, 69 AD3d 1128.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Family Court's order denying appellant's motion to vacate a prior order of that court, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of TYRONE WALKER, Appellant, v BRIAN FISCHER, as Commissioner of Correctional Services, Respondent.

Submitted April 19, 2010; decided June 8, 2010

Reported below, 71 AD3d 1309.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

MARGARITA WALTER, Appellant, v JOHN WALTER, Respondent.

Submitted April 5, 2010; decided June 8, 2010

Reported below, 62 AD3d 787.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

MARGARITA WALTER, Appellant, v JOHN WALTER, Respondent.

Submitted May 3, 2010; decided June 8, 2010

Reported below, 62 AD3d 787.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

[931 NE2d 517, 905 NYS2d 533]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TREVOR FREDERICK, Appellant.

Argued April 28, 2010; decided June 10, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 28, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Ronald A. Zweibel, J.), which had convicted defendant, after a nonjury trial, of murder in the second degree and sentenced defendant to a term of imprisonment of 25 years to life, to run concurrently to a term of 10 years imprisonment previously imposed for criminal conduct against the same victim and consecutively to terms of 20 years imprisonment previously imposed for criminal conduct committed against another victim.

People v Frederick, 62 AD3d 612, affirmed.

HEADNOTES

Crimes — Indictment — Dismissal of Superseding Indictment

1. In a prosecution for murder and related crimes in which the jury deadlocked on a count of felony murder and a superseding indictment charging defendant with felony murder and first-degree manslaughter was later dismissed, defendant's subsequent retrial properly went forward based on the felony murder count in the original indictment notwithstanding that the original indictment had been dismissed upon the filing of the superseding indictment. Although the Criminal Procedure Law does not expressly provide for reinstatement of an indictment under the circumstances presented, it does not preclude its reinstatement either. Logically, if the superseding indictment was a nullity then any action or consequence that flowed from its filing—e.g., the dismissal of the original indictment—was necessarily a nullity as well. In the absence of any constitutional or statutory double jeopardy bar, the trial court

possessed inherent authority to reinstate the original indictment after dismissing the superseding indictment.

Crimes — Sentence — Concurrent and Consecutive Terms

2. In a criminal prosecution for a knife attack on two victims in which defendant was convicted of attempted murder, assault and burglary charges in one trial and felony murder in a subsequent retrial on that charge, the trial court was free to make defendant's sentence for killing the deceased victim consecutive to the previously imposed sentences for what was an earlier and separate knife attack on the surviving victim committed during defendant's extended criminal rampage. The retrial was a nonjury trial where the judge, as factfinder, would have known when he sentenced defendant what facts he had found. There was no uncertainty about whether the facts supported a consecutive sentence owing to a lack of specificity in the jury charge.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*David J. Klem* and *Robert S. Dean* of counsel), for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Sylvia Wertheimer* and *Mary C. Farrington* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

On November 7, 2003, defendant Trevor Frederick—enraged that his former girlfriend, a 19-year-old student, had gone on a date with the victim—pushed his way into the room in the dormitory-style Manhattan building where the student resided as she opened the door to walk the victim to the subway. Defendant stabbed the student in the neck so forcefully that he nearly severed her spine. As she lay on the floor, paralyzed and bleeding from the head and neck, the student heard defendant say, “Look, you made me kill my girl,” as he stepped “in the direction of the window and where [the victim] was standing.” The student then lost consciousness. The victim's body was later discovered in the courtyard below the fifth-floor window of the student's room. He died of blunt impact trauma to the head; his autopsy also revealed multiple knife wounds, including a stab wound to the neck.

Defendant was arrested and charged in an eight-count indictment with second-degree attempted murder, first-degree assault and second-degree aggravated harassment (for calling and leaving a threatening message) for his acts against the student; and with two counts of second-degree murder (depraved indifference and felony murder, with an unspecified burglary as the underlying felony) for his acts against the victim. The indictment also

charged defendant with three counts of first-degree burglary for causing injury to the student, using a dangerous instrument and causing injury to the victim.

At defendant's subsequent trial, Supreme Court dismissed the depraved indifference murder count before submitting the case to the jury. When one juror was unable to continue deliberating, the judge declared a mistrial. Defendant's second trial resulted in a partial verdict: the jury convicted defendant of all the crimes charged in the indictment except felony murder, as to which they deadlocked, prompting a mistrial on that count. Supreme Court sentenced defendant to concurrent terms of 20 years of imprisonment on the attempted murder, assault and two burglary charges relating to causing physical injury to the student and use of the knife; and imposed a consecutive term of 10 years of imprisonment on the burglary charge relating to causing physical injury to the victim.* Thus, the judge sentenced defendant to an aggregate prison term of 30 years. The Appellate Division subsequently modified this judgment by reducing the mandatory surcharge and crime victim assistance fees, and otherwise affirmed (48 AD3d 382 [1st Dept 2008]).

In the meantime, the People returned to the grand jury and successfully sought a new indictment, which charged defendant with both felony murder and first-degree manslaughter for the victim's death. After defendant was arraigned on the new indictment, Supreme Court dismissed the original indictment, with its sole remaining felony murder count, as superseded by the felony murder count in the new indictment. The case was then assigned to another judge, and defendant moved to dismiss the superseding indictment, which he characterized as "a nullity [that] should be dismissed in its entirety."

Supreme Court granted the motion on the ground that Criminal Procedure Law § 40.40 (2) barred the People from prosecuting defendant for manslaughter because this crime was a joinable offense uncharged in the original indictment on which trial had commenced. The judge noted that

"in declaring a mistrial on the original indictment, [the trial court] did not dismiss the indictment or otherwise authorize the People to re-present new charges to a Grand Jury. Thus, the People [were]

* Defendant correctly notes that the issue of whether the 10-year sentence could be run consecutively to the 20-year sentence is not before us because it is not part of this appeal. Accordingly, we express no view on the matter.

limited to retrying the defendant upon the same accusatory instrument, and the super[s]eding indictment is a nullity.”

As a result, the judge reinstated the original indictment.

Defendant next moved to dismiss the reinstated felony murder count, arguing that he could no longer be retried for this crime on the original indictment. But the judge concluded that “[u]pon finding that the super[s]eding indictment was a nullity,” he had the authority to “re-instate[] the original indictment containing the sole remaining count of felony murder.”

Defendant waived his right to a jury in favor of a bench trial, at which the judge found him guilty of the felony murder of the victim. The judge thereafter sentenced defendant to 25 years to life imprisonment, to run concurrently with the previously imposed 10-year sentence on the burglary charge relating to causing physical injury to the victim, and “consecutive to any other sentence [defendant was] serving with regard to [the student],” for an aggregate sentence of 45 years to life imprisonment. Defendant appealed, again urging that Supreme Court lacked authority to retry him on the felony murder count in the original indictment, or, alternatively, to run his sentence for the felony murder of the victim consecutively with the sentences previously meted out for his crimes against the student.

The Appellate Division unanimously rejected defendant’s claims. The court opined that the retrial was appropriately based on the felony murder charge in the original indictment, emphasizing that “[t]he sole reason for dismissing the original indictment was that it had been superseded” (62 AD3d 612, 612 [1st Dept 2009]). Further, the Appellate Division “perceive[d] no basis for . . . directing that [defendant’s sentence for felony murder] be served concurrently with [his] prior sentences” (*id.*).

[1] We agree. First, the retrial properly went forward based on the felony murder count in the original indictment. Although the Criminal Procedure Law does not expressly provide for reinstatement of an indictment under the circumstances presented in this case, it does not preclude what Supreme Court did either. And logically, if the superseding indictment is a nullity—as defendant himself argued and Supreme Court held to be the case—then any action or consequence that flowed from its filing—here, the dismissal of the original indictment—was necessarily a nullity as well. In the absence of any constitutional or statutory double jeopardy bar, the trial court possessed inherent

authority to reinstate the original indictment after dismissing the superseding indictment (*see Matter of Lionel F.*, 76 NY2d 747, 749 [1990]).

[2] Finally, the trial court was free to make defendant's sentence for killing the victim consecutive to the previously imposed sentences for what was an earlier and separate knife attack on the student during defendant's extended criminal rampage (*see People v Ramirez*, 89 NY2d 444, 451 [1996]). This was a nonjury trial where the judge, as factfinder, would have known when he sentenced defendant what facts he had found. There is no uncertainty about whether the facts supported a consecutive sentence owing to a lack of specificity in the jury charge, as was the case in *People v Parks* (95 NY2d 811 [2000]) and *People v Alford* (14 NY3d 846 [2010]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[930 NE2d 765, 904 NYS2d 691]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FATIN
JOHNSON, Appellant.

Decided June 10, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered November 10, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Ronald A. Zweibel, J., at suppression hearing; Renee A. White, J., at lineup application, jury trial and sentence), which had convicted defendant, upon a jury verdict, of murder in the second degree and criminal possession of a weapon in the third degree.

In 2004 defendant was convicted of second degree murder and criminal possession of a weapon in the third degree based on his shooting his brother to death on the street. The Appellate Division affirmed that conviction (43 AD3d 288 [2007]), declining to review in the interest of justice defendant's untimely challenges to the sufficiency of the evidence. The Court stated that at the most, given defendant's failure to voice any objection to the court's charge on the elements of the crime of

depraved indifference murder, any challenge to the sufficiency of the evidence that defendant may be entitled to raise must be evaluated according to the court's charge as given. Measured against that standard, the evidence was plainly sufficient. The instructions to the jury on the elements of depraved indifference murder were entirely unremarkable in light of the then-applicable law. Under those instructions, the jury reasonably could have concluded, after finding that defendant intended to cause serious physical injury, that defendant acted with the recklessness required for depraved indifference murder. Furthermore, under the instructions given to the jury, the jury also was entitled to conclude that the shooting had been committed "[u]nder circumstances evincing a depraved indifference to human life" (Penal Law § 125.25 [2]). The jury was instructed that the People were required to prove that "the circumstances surrounding the defendant's reckless conduct was [*sic*] so brutal, so call[o]us and extremely dangerous and inhumane as to demonstrate an attitude of total and utter disregard for the life of the endangered person, and, therefore, so blameworthy as to warrant the imposition of the same criminal liability as that which the law imposes on a person who intentionally causes the death of another." As this element was charged to the jury, a rational juror could have concluded that the People had met their burden.

On appeal to the Court of Appeals (10 NY3d 875), the Court stated that having chosen to manifest its weight of the evidence review power in a writing, the Appellate Division did not say that it assessed the evidence in light of the elements of the crime as charged to the jury, and its opinion did not otherwise offer confirmation that, in fact, it did. The matter was remitted to the Appellate Division so that it could make such an assessment.

On remittal, the Appellate Division stated that it would "now make explicit what was implicit in [its] prior opinion: the verdict was not against the weight of the evidence." The Court examined the pertinent facts and reviewed the arguments raised by defendant and the dissenters, noting in part that each argument was based not on the jury charge as actually given, but on developing case law.

People v Johnson, 67 AD3d 448, affirmed.

HEADNOTE

Crimes — Appeal — Standard of Review — Weight of Evidence

In a prosecution for murder and criminal possession of a weapon, upon remittal from the Court of Appeals, the Appellate Division employed the

proper legal standard when it rejected defendant's argument that the verdict convicting him of depraved indifference murder was against the weight of the evidence. The Appellate Division was not required to evaluate the elements of depraved indifference murder as they were interpreted in certain cases decided prior to defendant's trial. Defendant voiced no objection to the court's charge as given and failed to request that any specific judicial interpretations of the elements be presented to the jury. Thus, the Appellate Division properly refused to consider such information when it weighed the evidence in light of the elements of the crime as charged to the jury.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Abigail Everett* and *Robert S. Dean* of counsel), for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Susan Gliner* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Upon remittal from this Court (10 NY3d 875 [2008]), the Appellate Division employed the proper legal standard when it rejected defendant's argument that the verdict convicting him of depraved indifference murder was against the weight of the evidence (67 AD3d 448 [1st Dept 2009]). Contrary to defendant's contention, the Appellate Division was not required to evaluate the elements of depraved indifference murder as they were interpreted in certain cases decided prior to his trial. Defendant voiced no objection to the court's charge as given and failed to request that any specific judicial interpretations of the elements be presented to the jury. Thus, the Appellate Division properly refused to consider such information when it "weigh[ed] the evidence in light of the elements of the crime as charged to the [jury]" (*People v Danielson*, 9 NY3d 342, 349 [2007]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

GLACIAL AGGREGATES LLC, Appellant, v TOWN OF YORKSHIRE,
Respondent.

Submitted April 5, 2010; decided June 10, 2010

Reported below, 57 AD3d 1362.

Motion for reargument and/or clarification denied [*see* 14
NY3d 127 (2010)].

DONALD M. MATUSIK, Doing Business as J.B. WHITE REALTY AS-
SOCIATES, Respondent, v PETER R. WARD et al., Appellants.

Submitted April 19, 2010; decided June 10, 2010

Reported below, 68 AD3d 1213.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

HENDERSON J. PRESCOD, Appellant, v BETTY LEGGIERO O'BRIEN,
Respondent.

Submitted April 19, 2010; decided June 10, 2010

Reported below, 67 AD3d 545.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

In the Matter of HANK RICHARDSON, JR., Appellant, et al.,
Petitioner, v NEW YORK CITY HOUSING AUTHORITY, PATTER-
SON HOUSES, Respondent.

Submitted April 19, 2010; decided June 10, 2010

Reported below, 2010 NY Slip Op 65623(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution. Motion
for poor person relief dismissed as academic. Motion for a stay
dismissed as academic.

TOWN OF HEMPSTEAD, Respondent, v EAST COAST RESOURCE
GROUP, LLC, Appellant.

Submitted April 19, 2010; decided June 10, 2010

Reported below, 67 AD3d 777.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[931 NE2d 94, 905 NYS2d 125]

ISABELLA AYOUB, Respondent, v JOSEPH AYOUB, Appellant.

Decided June 15, 2010

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 11, 2009. The Appellate Division, modified, on the facts, so much of an order of the Supreme Court, New York County (Saralee Evans, J.), as had granted a motion by plaintiff for pendente lite relief in the form of monthly payments of \$20,000 to maintain an apartment for plaintiff and the children, \$7,000 in temporary child support, and \$2,500 in temporary maintenance, as well as the cost of the children's private school tuition, child care and nursery school expenses, after-school and extracurricular activities, books, supplies, camp and travel expenses, the children's medical, therapy, dental and pharmacological costs, and the family medical insurance premiums. The modification consisted of ordering defendant to pay the actual monthly cost of the apartment in which plaintiff and the children presently reside in lieu of \$20,000 per month to maintain an apartment. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: "Was the order of this Court, which modified in part the order of the Supreme Court, properly made?"

Following the entry of the Appellate Division order, the parties reached a settlement agreement.

Ayoub v Ayoub, 63 AD3d 493, appeal dismissed.

HEADNOTE**Appeal — Academic and Moot Questions — Settlement**

In a matrimonial action, an appeal from an order of the Appellate Division, which modified an order of the Supreme Court, was dismissed. The parties' settlement agreement subsequent to the Appellate Division order rendered the appeal to the Court of Appeals moot.

APPEARANCES OF COUNSEL

Mauro Goldberg & Lilling, Great Neck (*Matthew W. Naparty*, *Robert A. Ross* and *Richard J. Montes* of counsel), for appellant.

Leitner & Getz LLP, New York City (*Gregory J. Getz* and *Jerome M. Leitner* of counsel), for respondent.

Cohen Hennessey Bienstock & Rabin P.C., New York City (*Harriet Newman Cohen* of counsel), Law Guardian.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed, without costs. Under the circumstances of this case, the parties' settlement agreement subsequent to the Appellate Division order rendered the appeal to this Court moot. We decline appellant's request to invoke the mootness exception.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of ALEXIS C.R. and Others. ONONDAGA COUNTY
DEPARTMENT OF SOCIAL SERVICES, Respondent; VICTOR C.,
Appellant.

Submitted May 10, 2010; decided June 15, 2010

Reported below, 71 AD3d 1511.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

FAITH ASTRADA, Respondent, v HULBERT ARCHER, Defendant,
and REGINA FELTON, Appellant.

Submitted May 3, 2010; decided June 15, 2010

Reported below, 71 AD3d 803.

Motion, insofar as it seeks leave to appeal from that portion of the March 2010 Appellate Division order that affirmed Supreme Court's order granting the motion to hold appellant in contempt, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of MEADOWSWEET DAIRY, LLC, et al., Appellants, v
PATRICK HOOKER, as Commissioner of Agriculture and
Markets, et al., Respondents.

Decided June 15, 2010

Reported below, 71 AD3d 1266.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

PLAYTIME BOUTIQUE, INC., Appellant, v PHYLLIS FRACCOLA, Respondent. (Action No. 1.)

PLAYTIME BOUTIQUE, INC., Appellant, v PHYLLIS FRACCOLA, Individually and as Sole Shareholder of HYDRANIA, INC., Respondent. (Action No. 2.)

Submitted May 3, 2010; decided June 15, 2010

Reported below, 71 AD3d 1511.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of PORT OF OSWEGO AUTHORITY et al., Appellants, v PETE GRANNIS, as Commissioner of Environmental Conservation, et al., Respondents.

Submitted April 5, 2010; decided June 15, 2010

Reported below, 70 AD3d 1101.

Motion by the World Shipping Council for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein dismissed as academic.

In the Matter of SYRACUSE UNIVERSITY, Respondent, v PROJECT
ORANGE ASSOCIATES SERVICES CORPORATION, Appellant.

Decided June 15, 2010

Reported below, 71 AD3d 1432.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

Judge READ taking no part.

ROBERT E. WALSH, Respondent, v RICHARD F. KRESGE, Appellant.

Submitted May 3, 2010; decided June 15, 2010

Reported below, 69 AD3d 612.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[931 NE2d 539, 905 NYS2d 555]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v IVIN
WILLIAMS, Appellant.

Decided June 17, 2010

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 8, 2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Carol Berkman, J.), which had resentenced defendant, as a second violent felony offender, to a term of seven years imprisonment with five years postrelease supervision.

People v Williams, 66 AD3d 440, reversed.

HEADNOTE

Crimes — Sentence — Resentence — Postrelease Supervision

Defendant was improperly resentenced to a period of postrelease supervision (PRS) after being released from prison. PRS was not discussed during

defendant's plea proceeding or at sentencing, and the Double Jeopardy Clause of the Federal Constitution precludes a court from adding PRS to a defendant's sentence once the defendant has already been released from imprisonment.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Mark W. Zeno* and *Robert S. Dean* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Matthew C. Williams* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, the resentencing vacated and the original sentence reinstated.

In June 2001, defendant pleaded guilty to attempted first-degree robbery and was promised a sentence of seven years imprisonment. Postrelease supervision (PRS) was not discussed during the plea proceeding or at sentencing. In November 2008—more than one year after defendant was released from prison—defendant returned to court and Supreme Court, in error, resentenced him, adding a five-year period of PRS. The Double Jeopardy Clause of the Federal Constitution precludes a court from adding PRS to a defendant's sentence once the defendant has already been released from imprisonment (*see People v Williams*, 14 NY3d 198, 217 [2010]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[931 NE2d 539, 905 NYS2d 555]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM HASSELL, Appellant.

Decided June 17, 2010

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 22,

2009. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Rena K. Uviller, J.), which had resentenced defendant to a term of imprisonment of 3¹/₂ years and five years postrelease supervision.

People v Hassell, 66 AD3d 575, reversed.

HEADNOTE

Crimes — Sentence — Resentence — Postrelease Supervision

Defendant was improperly resentenced to a period of postrelease supervision (PRS) after being released from prison. Although PRS was discussed during the plea proceeding, Supreme Court did not inform defendant of the specific term of PRS it intended to impose, and did not pronounce PRS at sentencing. The Double Jeopardy Clause of the Federal Constitution precludes a court from adding PRS to a defendant's sentence once the defendant has been released from imprisonment.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (Mark W. Zeno and Robert S. Dean of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Matthew C. Williams of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, the resentence vacated and the original sentence reinstated.

In November 2002, defendant pleaded guilty to second-degree assault and was promised a sentence of 3¹/₂ years imprisonment. Although postrelease supervision (PRS) was discussed during the plea proceeding, Supreme Court did not inform defendant of the specific term of PRS it intended to impose. Moreover, Supreme Court did not pronounce PRS at sentencing. In December 2008—more than nine months after defendant was released from prison—defendant returned to court and Supreme Court, in error, resentenced him, adding a five-year period of PRS. The Double Jeopardy Clause of the Federal Constitution precludes a court from adding PRS to a defendant's sentence once the defendant has been released from imprisonment (*see People v Williams*, 14 NY3d 198, 217 [2010]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[932 NE2d 871, 906 NYS2d 515]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ALBEIRO
VALENCIA, Respondent.

Argued April 29, 2010; decided June 17, 2010

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered January 27, 2009. The Appellate Division order, insofar as appealed from, (1) reversed, on the law, a judgment of the Supreme Court, Nassau County (George R. Peck, J.), to the extent it had convicted defendant, after a nonjury trial, of assault in the first degree; (2) vacated the conviction of assault in the first degree; (3) vacated the sentence imposed thereon; and (4) dismissed that count of the indictment.

People v Valencia, 58 AD3d 879, affirmed.

HEADNOTE

Crimes — Assault — Depraved Indifference — Intoxication

In a prosecution for assault and related charges arising from a vehicular accident involving the legally intoxicated defendant, there was insufficient evidence to support a conviction for depraved indifference assault. The trial evidence established only that defendant was extremely intoxicated and did not establish that he acted with the culpable mental state of depraved indifference.

APPEARANCES OF COUNSEL

Kathleen M. Rice, District Attorney, Mineola (*Judith R. Sternberg*, *Peter A. Weinstein* and *Tammy J. Smiley* of counsel), for appellant.

Marianne Karas, Armonk, for respondent.

Richard D. Willstatter, New York City, *Richard J. Barbuto* and *Stefani Goldin* for New York State Association of Criminal Defense Lawyers and another, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed. There is insufficient evidence to support a conviction for depraved indifference assault. The trial evidence established only that defendant was extremely intoxicated and

did not establish that he acted with the culpable mental state of depraved indifference.

GRAFFEO, J. (concurring). Defendant's blood alcohol level was about three times the legal limit when he drove at night in the wrong direction on a Long Island parkway at a high rate of speed. He continued on this course despite attempts by oncoming drivers to warn him of the danger he was creating. After approximately four miles, defendant crashed head-on into another vehicle and then careened into another car. Defendant's response after being informed that he had injured other people was: "I don't know and I don't care."

Defendant was indicted for, among other offenses, vehicular assault in the second degree for causing serious physical injury to another person while driving in an intoxicated condition (Penal Law § 120.03 [1]), assault in the second degree for causing serious physical injury with his automobile (Penal Law § 120.05 [4]), and assault in the first degree—the top count—for causing serious physical injury while recklessly creating a grave risk of death under circumstances evincing a depraved indifference to human life (Penal Law § 120.10 [3]). The trial court determined that the People failed to prove that defendant acted with depraved indifference at the time of the collision because he was so drunk that he was "oblivious" to the danger he created. The court did, however, find defendant guilty of first-degree, depraved indifference assault on the theory that he created a grave risk of harm by becoming extremely inebriated knowing that he would eventually drive himself home from his friend's house.

The Appellate Division reversed the first-degree assault conviction, concluding that defendant's state of mind before he drove home was too remote in time from the car crash. The reversal of that conviction reduced defendant's culpability from a class B felony to the class D felony of second-degree assault and a five-year determinate prison sentence.

We are now affirming the reduction to assault in the second degree, but on narrower grounds, with which I concur, because of the lack of evidence to support all the elements of depraved indifference assault. But this leaves an open issue: does the voluntary consumption of alcohol to the point of extreme inebriation preclude the formation of a depravedly indifferent state of mind?

For many years, the phrase "[u]nder circumstances evincing a depraved indifference to human life" had consistently been

interpreted to refer to objective circumstances, not a state of mind (see e.g. *People v Register*, 60 NY2d 270 [1983]; *People v Sanchez*, 98 NY2d 373 [2002]). As a result, it was recognized that the intoxication defense (see Penal Law § 15.25) did not apply to the depraved indifference element (see *People v Register*, 60 NY2d at 279).

In a series of cases that culminated with *People v Feingold* (7 NY3d 288 [2006]), this Court declared that depraved indifference is a state of mind. In holding that depraved indifference is a mens rea component, this state of mind element was described in *Feingold* as “best understood as an utter disregard for the value of human life—a willingness to act not because one intends harm, but because one simply doesn’t care whether grievous harm results or not” (7 NY3d at 296 [internal quotation marks omitted]). Depraved indifference “is embodied in conduct that is ‘so wanton, so deficient in a moral sense of concern, so devoid of regard of the life or lives of others, and so blameworthy’ as to render the actor as culpable as one whose conscious objective” is to cause a particular result (*People v Suarez*, 6 NY3d 202, 214 [2005]). In *Feingold*, this Court did not depart from every aspect of our prior jurisprudence on this subject. Indeed, we have re-emphasized that there are certain “[q]uintessential examples” of depraved indifference, including—of particular relevance—the act of “driving an automobile along a crowded sidewalk at high speed” (*People v Suarez*, 6 NY3d at 214; see also *People v Gonzalez*, 1 NY3d 464, 467 [2004]).

Certainly, the Penal Law recognizes that intoxication may be used “by the defendant whenever it is relevant to negative an element of the crime charged” (Penal Law § 15.25). But it is also well settled that voluntary intoxication does not excuse a reckless state of mind (see Penal Law § 15.05 [3]). This is because “recklessness itself—defined as conscious disregard of a substantial risk—encompasses the risks created by [a] defendant’s conduct in getting drunk” (*People v Register*, 60 NY2d at 280, *overruled on other grounds by People v Feingold*, 7 NY3d 288 [2006]). The same may be true for the “extreme recklessness . . . that is needed to establish depraved indifference” (*People v Baker*, 14 NY3d 266, 273 [2010]) since it makes little sense to allow intoxication to be asserted as a defense to depravedly indifferent conduct that is the direct result of severe inebriation: “there is no social or penological purpose to be served by a rule that permits one who voluntarily drinks to be

exonerated from failing to foresee the results of his conduct if he is successful at getting drunk” (*People v Register*, 60 NY2d at 280-281, *overruled on other grounds by People v Feingold*, 7 NY3d 288 [2006]).

When the accident happened in this case—in November 2005—the People’s charging options were more limited than they are today. At that time, the Penal Law contained fewer assault and homicide offenses that applied to drunk drivers, such as vehicular assault in the second degree. In 2006, the Legislature added a new subdivision to first-degree vehicular assault (Penal Law § 120.04) by elevating second-degree vehicular assault (Penal Law § 120.03), a class E felony punishable by a maximum indeterminate sentence of $1\frac{1}{3}$ to 4 years in prison, to a class D felony punishable by a prison term of up to $2\frac{1}{3}$ to 7 years when a person causes serious physical injury to another individual while operating a vehicle with a blood alcohol level of .18% or more (*see* L 2006, ch 732, § 21, amending Penal Law § 120.04 [1]). Had this law been in existence a year earlier, defendant may have been charged with this offense.

After enactment of the 2006 legislation, and apparently as a result of our revision of depraved indifference jurisprudence, it became more difficult to prove depraved indifference in vehicular crimes where assault in the first degree or murder in the second degree was charged—a drunk driver accused of acting with depraved indifference to human life could “[p]erversely” try “to defend such a charge by using a claim of extreme intoxication” (Letter of Michael E. Bongiorno, President of New York State District Attorney’s Association, to Governor Spitzer, June 15, 2007, Bill Jacket, L 2007, ch 345, at 16) to negate the requisite state of mind requirement.

Consequently, in 2007, the Legislature created the new crime of aggravated vehicular assault (*see* L 2007, ch 345). That crime is similar to vehicular assault in the first degree except that it requires the People to prove that the defendant drove recklessly (*see* Penal Law § 120.04-a). Aggravated vehicular assault is a class C felony punishable by an indeterminate prison term of up to 5 to 15 years.* In addition, another provision was added to article 125 of the Penal Law enacting the offense of aggravated vehicular homicide, a class B violent felony punishable by a maximum determinate sentence of 25 years’ imprisonment. The

* Like vehicular assault in the first degree, aggravated vehicular assault presumably could have been available in this case if it had been added to the Penal Law before this crime occurred.

stated purpose of this 2007 legislative package was to “repair th[e] apparent anomaly” (Bongiorno Letter, Bill Jacket, L 2007, ch 345, at 16) caused by *Feingold* in cases where an inebriated driver who maimed or killed another person could rely on his intoxication to mitigate criminal responsibility.

Yet there remains disagreement between courts as to whether the transformation of depraved indifference into a subjective state of mind precludes intoxication as a defense to that mens rea (compare *People v Wimes*, 49 AD3d 1286 [4th Dept 2008], *lv denied* 11 NY3d 743 [2008], and *People v Coon*, 34 AD3d 869 [3d Dept 2006], with *People v Wells*, 53 AD3d 181 [1st Dept 2008], *lv denied* 11 NY3d 858 [2008]). I therefore write separately to point out that the Legislature, which is entrusted with determining social policy and degrees of culpability, should resolve this perplexing question of whether intoxication, to whatever extent, functions as a defense to depraved indifference crimes.

There are a variety of options if the Legislature chooses to act. For example, Penal Law § 15.05 could be amended to add depraved indifference as a culpable mental state (consistent with *Feingold*) and specify, as it does with the mens rea of recklessness, that voluntary intoxication cannot be used to undermine a depravedly indifferent state of mind. The Legislature could also elect to include specific provisions in the first-degree assault and second-degree murder statutes to cover severely intoxicated drivers. This would differ from the existing aggravated vehicular assault and homicide statutes because they do not require the People to establish both excessive inebriation *and* serious injury or death to more than one person (see Penal Law §§ 120.04-a, 125.14). Or, if the Legislature sees fit, it could declare that intoxication is a defense to the depraved indifference mens rea component with respect to all crimes or just vehicular crimes. Although the courts have and will continue to rule on the applicability of the intoxication defense in particular cases, the Legislature is more suitably charged with determining the level of crime, the appropriate statutory defenses and the extent of punishment to attribute to the various crimes related to the operation of motor vehicles.

JONES, J. (concurring). While I agree with the result in the majority’s memorandum, I write separately to express my position on the necessity of a temporal connection between mens rea and actus reus in the context of depraved indifference offenses.

Sometime after drinking at the house of a friend in Nassau County, defendant, with a blood alcohol level over .21, got into his car and drove onto the Wantagh State Parkway in the direction of oncoming traffic at a speed of 60 miles per hour. A few minutes later, defendant collided with two vehicles, injuring the drivers, one severely. Various witnesses observed that defendant appeared not to know that he was about to crash and never attempted to avoid the accident. When told about the accident, defendant stated that he “didn’t know” what had happened and “didn’t care.” He was unable to tell the police at the scene if there was a passenger in his car and he kept falling asleep when the police tried to question him.

Defendant was charged with numerous offenses, including assault in the first degree (depraved indifference assault).¹ At defendant’s nonjury trial, the People presented two theories in support of the first-degree assault charge, either of which, they argued, was sufficient to sustain a conviction. First, they argued that the nature of defendant’s behavior behind the wheel established proof beyond a reasonable doubt that (1) he was aware of what he was doing while he was driving, and (2) he, with depraved indifference to human life, continued his course of conduct. The trial court, as the trier of fact, rejected this theory, finding that defendant was so intoxicated at the time of the accident that he was oblivious to his circumstances. Thus, according to the court, defendant lacked the mens rea of depraved indifference at the time of the collision.

The People’s second theory was that defendant, prior to his state of oblivion, consciously drank himself “into a state of gross impairment.” In particular, they argued that his conscious choice to drink, get drunk, and then drive reflected a complete indifference to the foreseeable circumstances he might face while driving drunk. In other words, it was the People’s contention that defendant’s conduct, prior to getting into his car, established his guilt of the crime, including the applicable mens rea.

The defense countered that all of the evidence, including the prosecution expert’s testimony that extreme intoxication could cause micro-blackouts, showed that defendant was unaware of the danger he was creating and that if he did not know that he

1. Under Penal Law § 120.10 (3), “[a] person is guilty of assault in the first degree when . . . [u]nder circumstances evincing a depraved indifference to human life, he recklessly engages in conduct which creates a grave risk of death to another person, and thereby causes serious physical injury to another person.”

was driving in the wrong direction, he was not guilty of depraved conduct. Further, the defense argued that at the time of the collision, defendant did not have the requisite depraved state of mind to be guilty of first-degree assault.

The trial court agreed with the People, holding that a conviction for assault in the first degree could be based on defendant's excessive drinking to a state of oblivion, knowing that shortly thereafter he would be driving himself home on heavily trafficked roads, "was evidence of depraved indifference to human life." In so holding, the court found that "liability for depraved conduct can be predicated on the facts of this case even though defendant was not aware or appreciative of the dangers of his conduct at the time of the collision or moments before."

In addition to assault in the first degree, Supreme Court convicted defendant of assault in the second degree, vehicular assault in the second degree, assault in the third degree, operating a motor vehicle while under the influence of alcohol (two counts), reckless driving, and other violations of the Vehicle and Traffic Law. The Appellate Division modified Supreme Court's judgment by vacating the conviction of assault in the first degree. Relying on *People v Feingold* (7 NY3d 288 [2006]), the court held the evidence was legally insufficient to establish that defendant acted with the culpable mental state of depraved indifference to human life at the time he collided with the two vehicles. The court found unpersuasive the People's contention that the mens rea component of depraved indifference assault may be satisfied by considering the defendant's state of mind at a point much earlier in time to the accident, when he drank excessively, knowing he was going to drive himself home. The People appeal by permission of the Appellate Division.

With respect to crimes requiring mental culpability and an act or omission,

"it is a basic premise of Anglo-American criminal law that the physical conduct and the state of mind must concur. Although it is sometimes assumed that there cannot be such concurrence unless the mental and physical aspects exist at precisely the same moment of time, the better view is that there is concurrence when the defendant's mental state actuates the physical

conduct” (LaFave, Substantive Criminal Law § 6.3 [a], at 451 [2d ed] [footnotes omitted]).²

Based on the foregoing, the mens rea component of depraved indifference assault may not be satisfied by considering the defendant’s state of mind at a point much earlier in time than the accident, in this instance when he was drinking at his friend’s house. As such, it cannot be argued that defendant’s mental state at the time he was drinking actuated his physical conduct. Stated differently, in this case, there is no concurrence of mens rea and actus reus. In conclusion, defendant’s state of mind when he consumed the alcohol was too temporally remote from the act of driving to support a conviction of assault in the first degree.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur; Judges GRAFFEO and JONES concur in separate concurring opinions.

Order, insofar as appealed from, affirmed in a memorandum.

In the Matter of BRENDAN N., a Neglected Child. COLUMBIA COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; Arthur N., Appellant. (Proceeding No. 1.)

In the Matter of JANET N. et al., Appellants, v ARTHUR N. et al., Respondents. (Proceeding No. 2.)

Submitted April 26, 2010; decided June 17, 2010

Reported below, 72 AD3d 1138.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

LaSALLE BANK NATIONAL ASSOCIATION, Respondent, v KEISHA HENDERSON, Appellant, et al., Defendant.

Submitted April 19, 2010; decided June 17, 2010

Reported below, 69 AD3d 679.

2. Actus reus is defined as “[t]he wrongful deed that comprises the physical components of a crime and that generally must be coupled with mens rea to establish criminal liability” (Black’s Law Dictionary 39 [8th ed 2004]).

Motion for leave to appeal dismissed upon the ground that appellant failed to appeal to the Appellate Division from the judgment of Supreme Court which aggrieved her (*see Matter of Frost v Blum*, 48 NY2d 1013 [1980]).

Judge JONES taking no part.

In the Matter of ROBERT McKINNON, Appellant, v BRIAN FISCHER, as Commissioner of Correctional Services, Respondent.

Submitted April 26, 2010; decided June 17, 2010

Reported below, 69 AD3d 1083.

Motion for leave to appeal dismissed as untimely (*see CPLR 5513 [b]*).

THOMAS E. O'BRIEN et al., Respondents, and J.P. MORGAN CHASE BANK, N.A., et al., Appellants, v TOWN OF HUNTINGTON et al., Respondents.

Submitted April 12, 2010; decided June 17, 2010

Reported below, 66 AD3d 160.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THOMAS E. O'BRIEN et al., Appellants, and J.P. MORGAN CHASE BANK, N.A., et al., Respondents, v TOWN OF HUNTINGTON et al., Respondents.

Submitted May 3, 2010; decided June 17, 2010

Reported below, 66 AD3d 160.

Motion to dismiss appeal granted and appeal dismissed, with \$400 costs and \$100 costs of motion, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

OVERSEAS PRIVATE INVESTMENT CORPORATION, Respondent, v NAM KOO KIM et al., Appellants.

Submitted April 19, 2010; decided June 17, 2010

Reported below, 69 AD3d 1185.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOHN PEREZ,
Appellant, v M. HOURIHANE, Respondent.

Submitted April 26, 2010; decided June 17, 2010

Reported below, 2010 NY Slip Op 62375(U).

Motion for leave to appeal dismissed upon the ground that appellant has failed to demonstrate timeliness as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (2). Motion for poor person relief dismissed as academic.

In the Matter of YOLANDA STRONG, Appellant, v NEW YORK CITY
DEPARTMENT OF EDUCATION, Respondent.

Submitted April 5, 2010; decided June 17, 2010

Reported below, 62 AD3d 592.

Motion for reargument of motion for leave to appeal denied
[see 14 NY3d 704 (2010)].

PHILIP TAFELSKI, Respondent, v BUFFALO CITY CEMETERY, INC.,
Appellant.

Submitted May 3, 2010; decided June 17, 2010

Reported below, 68 AD3d 1802.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DEBRA WEISSMAN, Appellant, v RONALD WEISSMAN, Respondent.

Submitted April 19, 2010; decided June 17, 2010

Reported below, 68 AD3d 981.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DIGEST-INDEX

ABUSE OF PROCESS.

See PROCESS; TORTS.

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles.

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles.

CLASS ACTIONS.

1. Failure of City and State Agencies to Fulfill Statutory and Regulatory Duties with Respect to Certain Developmentally Disabled Children in Foster Care System.—The Appellate Division did not abuse its discretion as a matter of law in affirming Supreme Court’s order granting class action certification under CPLR article 9 to plaintiffs, a group of developmentally disabled children and young adults who were or had been in New York City’s foster care system, in an action seeking declaratory and injunctive relief with respect to the alleged failures of the New York City Administration for Children’s Services (ACS) and the New York State Office of Mental Retardation and Developmental Disabilities to fulfill their statutory and regulatory duties with respect to certain children in ACS’s foster care system. Of the five prerequisites to class certification, commonly referred to as numerosity, commonality, typicality, adequacy of representation and superiority, only the commonality element was at issue on this appeal (CPLR 901 [a] [2]). Notwithstanding that each of the plaintiffs and proposed class members possessed his or her own unique factual circumstances and special needs, the Appellate Division identified four common allegations that transcended and predominated over any individual matters. The allegations, if true, would tend to establish a de facto policy followed by ACS of delaying the receipt of services as a result of its practices. Plaintiffs sought to represent class members falling into each of these four categories of injury. Plaintiffs focused on four recurring and interrelated harms that were common across the class, which numbered less than 200 members. Moreover, specialized proof would largely be unnecessary to resolve these common allegations. The Appellate Division weighed the statutory criteria and acted within its discretion in determining that common questions predominated under CPLR 901 (a) (2). Further, the Appellate Division identified concrete legal issues that predominated and plaintiffs’ claims sought to vindicate rights accorded them by statutes and regulations. As framed, the claims were justiciable. *City of New York v Maul*, 14 NY3d 499.

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS.

ADOPTION.

CONSENT.

1. Consent of Parent.—In an adoption proceeding involving unmarried New York domiciliaries and a Cambodian orphan, Surrogate’s Court properly determined that petitioner had validly adopted the child in 2004 under Cambodian law and his parental rights were never effectively relinquished or extinguished. Consequently, respondent could not adopt the child without petitioner’s consent (Domestic Rela-

ADOPTION—Cont'd

tions Law § 111 [1] [b]; [5]) and the New York adoption decree subsequently issued to respondent was correctly vacated. *Matter of Doe*, 14 NY3d 100.

FOREIGN ADOPTION.

2. Act of State.—In an adoption proceeding involving unmarried New York domiciliaries and a Cambodian orphan, Cambodian documents issued during the course of the litigation in 2006 purporting to terminate petitioner's parental rights over the child and to authorize respondent to adopt him were not "acts of state" done within Cambodia's own territory, nullifying petitioner's parental rights. All three of the people that the supposed governmental acts would have affected—petitioner, respondent and the child—were living in New York in 2006. A fortiori, parents living in New York with their adopted children should not run the risk that those adoptions can be nullified by the decree of a foreign government. *Matter of Doe*, 14 NY3d 100.

3. Best Interests of Child.—In an adoption proceeding the child's best interests, although important, do not automatically validate an otherwise illegal adoption. *Matter of Doe*, 14 NY3d 100.

4. Comity.—In an adoption proceeding involving unmarried New York domiciliaries and a Cambodian orphan, a New York court properly extended comity to a certificate issued by the Cambodian Ministry of Social Affairs, Labor, Vocational Training and Youth Rehabilitation effecting petitioner's adoption of the child. The Surrogate's finding that comity should be accorded to the certificate, despite differences between Cambodian law and federal law and state regulations, was convincing. Foreign adoptions should generally be accorded comity unless enforcement would result in the recognition of a transaction which is inherently vicious, wicked or immoral, or shocking to the prevailing moral sense. In addition, the Surrogate properly held that Cambodia's failure to require approval of this international adoption by the "receiving State" in contravention of the Hague Convention on Protection of Children and Co-operation in Respect of Intercountry Adoption did not preclude comity, since the United States had not ratified the Hague Convention. *Matter of Doe*, 14 NY3d 100.

5. In an adoption proceeding involving unmarried New York domiciliaries and a Cambodian orphan, Surrogate's Court properly determined that petitioner had validly adopted the child in 2004 under Cambodian law. A certificate issued by the Cambodian Ministry of Social Affairs, Labor, Vocational Training and Youth Rehabilitation evidenced a permission to adopt as well as a full and final adoption. *Matter of Doe*, 14 NY3d 100.

SURRENDER OF CHILD.

6. Validity of Letter Relinquishing Permission to Adopt Child.—In an adoption proceeding involving unmarried New York domiciliaries and a Cambodian orphan, petitioner's 2005 letter sent to the Cambodian Ministry of Social Affairs, Labor, Vocational Training and Youth Rehabilitation stating that he wished to relinquish the permission to adopt the child that the Cambodian government had previously granted him was ineffective under New York law. The 2005 letter did not meet the requirements of Domestic Relations Law § 115-b. Notwithstanding respondent's claim that Cambodian law should govern the question of the validity of the relinquishment, because parental rights had been validly established in New York between an adoptive parent and child who continue to live in New York, New York law was applicable with respect to the parental relationship. New York's interest in a parent-child relationship between two of its residents was plainly greater than the interest of Cambodia in a relationship between an adult who never lived in Cambodia and a child who, with the approval of the Cambodian government, had been adopted by a non-Cambodian and taken to live elsewhere. *Matter of Doe*, 14 NY3d 100.

AGENCY.

See BROKERS; INSURANCE; PRINCIPAL AND AGENT.

ALIMONY.

See HUSBAND AND WIFE.

ANNULMENT OF MARRIAGE.

See MARRIAGE.

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

ACADEMIC AND MOOT QUESTIONS.

1. Failure of City and State Agencies to Fulfill Statutory and Regulatory Duties with Respect to Certain Developmentally Disabled Children in Foster Care System.—In an action concerning the alleged failures of the New York City Administration for Children's Services (ACS) and the New York State Office of Mental Retardation and Developmental Disabilities (OMRDD) to fulfill their statutory and regulatory duties with respect to certain children in ACS's foster care system, ACS's cross motion for partial summary judgment dismissing plaintiffs' prospective claims as moot was properly denied, notwithstanding that, since the time the complaint was filed, at least eight plaintiffs had been placed in appropriate OMRDD facilities and the other plaintiffs had been approved by OMRDD and were awaiting vacancies. Even assuming that the claims of these plaintiffs pertaining to the waiting list were moot, an exception to the mootness doctrine was applicable. Plaintiffs raised substantial and novel questions as to whether ACS and OMRDD were fulfilling their statutory responsibilities. These issues were likely to recur and may evade review given the temporary duration of foster care, the aging out of potential plaintiffs and the fact that some placements tended to be transitory. *City of New York v Maul*, 14 NY3d 499.

2. Settlement.—In a matrimonial action, an appeal from an order of the Appellate Division, which modified an order of the Supreme Court, was dismissed. The parties' settlement agreement subsequent to the Appellate Division order rendered the appeal to the Court of Appeals moot. *Ayoub v Ayoub*, 14 NY3d 921.

COURT OF APPEALS.

3. Parties Aggrieved.—In consolidated proceedings pursuant to Election Law article 16 challenging certain ballots, appellant candidate was not aggrieved by Supreme Court's determination directing the opening of two absentee ballot envelopes. In the first proceeding, respondent candidate sought a determination that the two absentee ballot envelopes should not be opened or the ballots counted, and in response, appellant candidate argued that the ballot envelopes should be opened. Inasmuch as Supreme Court ordered the ballot envelopes opened, appellant was not aggrieved by that determination. He was aggrieved, however, by so much of the order as directed that the ballots be counted. *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.

4. Issues to be Considered upon Remittal to Appellate Division.—Following reversal of the Appellate Division's order, the Court of Appeals remitted the case to the Appellate Division for consideration of the issues appropriate for its review including whether the trial court's alleged failure to give defense counsel meaningful notice of notes sent by the jury during its deliberations was a mode of proceedings error that did not require preservation for review upon appeal. The Appellate Division had no opportunity to consider the preservation argument during its review of the trial court's judgment. *People v Caban*, 14 NY3d 369.

5. Matters Reviewable — Preservation of Issue for Review.—In a prosecution for criminally negligent homicide, defendant's allegation that it was error to admit evidence at trial showing the suspension of her license at the time of the incident at issue was preserved for appellate review. Although the defense lawyers never said on the record "we object to this evidence," their objection was clear from the prosecutor's summary of their position. The trial judge was made aware, before he ruled on the issue in response to the People's motion, that the defense wanted him to rule otherwise. The Appellate Division's reversal, holding that evidence of the license suspension should not have been admitted, was therefore based on a question of law that was reviewable by the Court of Appeals. *People v Caban*, 14 NY3d 369.

APPEAL—Cont'd

6. No Award of Summary Judgment in Absence of Cross Motion.—The Court of Appeals, having reversed the Appellate Division order affirming the award of summary judgment to plaintiff, was not empowered to grant summary judgment to defendant in the absence of a cross motion by defendant for such relief. Only plaintiff sought summary judgment below. *Portfolio Recovery Assoc., LLC v King*, 14 NY3d 410.

7. Parties Aggrieved.—Defendant was an “aggrieved party” within the meaning of CPLR 5511 and thus had a right to appeal to the Court of Appeals notwithstanding defendant’s stipulation, prior to the appeal, pursuant to which defendant agreed to an increase in past and future pain and suffering damages in lieu of a new trial on that issue. Parties who stipulate to a modification of damages as an alternative to a new trial are not aggrieved by that modification and may not appeal from it (*Dudley v Perkins*, 235 NY 448, 457 [1923]). Here, however, defendant was not seeking to appeal from the modification—the additur—to which it consented. It raised no issue as to the additur in the Court of Appeals, but claimed that it had no liability to plaintiff at all—that the case should never have been submitted to the jury—or, in the alternative, that it was entitled to a new liability trial. The Appellate Division rejected these arguments, which defendant had never agreed to abandon, and therefore, defendant was aggrieved by the Appellate Division’s order. To the extent that *Batavia Turf Farms v County of Genesee* (91 NY2d 906 [1998]) and a footnote in *Whitfield v City of New York* (90 NY2d 777, 780 n [1997]) go beyond the original *Dudley v Perkins* holding, they should no longer be followed. *Adams v Genie Indus., Inc.*, 14 NY3d 535.

DISMISSAL.

8. An appeal from a judgment of the Appellate Division confirming a determination to deny petitioner’s application for a pistol permit was dismissed upon the ground that no substantial constitutional question was directly involved. *Matter of Kachalsky v Cacace*, 14 NY3d 743.

ARBITRATION.

See, also, INSURANCE.

AGREEMENT TO ARBITRATE.

1. Enforceability of Provision for Splitting Cost of Arbitrator — Failure to Consider Relevant Criteria.—For the purpose of determining the respective obligations of petitioner former employee and respondent employer to pay the fees and costs of the arbitration of petitioner’s employment discrimination claim, the provision in the parties’ arbitration agreement requiring the parties to equally share the fees and costs of the arbitrator, rather than the American Arbitration Association’s (AAA) conflicting “employer-pays” rule, controlled. The lower courts, however, erred as a matter of law in reaching their respective conclusions regarding the enforceability of the “equal share” provision. Neither lower court took into account all of the criteria that were relevant in resolving the “financial ability” question. Accordingly, the matter was remitted to Supreme Court for a hearing to consider, at the minimum, whether the petitioner could pay the arbitration fees and costs; what the expected cost differential was between arbitration and litigation in court; and whether the cost differential was so substantial as to deter the bringing of claims in the arbitral forum. If the equal share provision were found to be unenforceable, Supreme Court should decide, in the first instance, whether to sever the clause and enforce the rest of the arbitration agreement, or to offer petitioner a choice between accepting the equal share provision or bringing a lawsuit in court. *Matter of Brady v Williams Capital Group, L.P.*, 14 NY3d 459.

2. Enforceability of Provision for Splitting Cost of Arbitrator — Relevant Criteria to be Considered.—In determining the enforceability of a provision in an arbitration agreement requiring the parties to equally share the fees and costs of the arbitrator, the issue of a litigant’s financial ability is to be resolved on a case-by-case basis. The inquiry should at minimum consider the following questions: whether the litigant can pay the arbitration fees and costs; what is the expected cost differential be-

ARBITRATION—Cont'd

tween arbitration and litigation in court; and whether the cost differential is so substantial as to deter the bringing of claims in the arbitral forum. Although a full hearing is not required in all situations, there should be a written record of the findings pertaining to a litigant's financial ability. The precise documentation a court should request to resolve the issue is best left to the court's discretion. *Matter of Brady v Williams Capital Group, L.P.*, 14 NY3d 459.

3. In a proceeding to stay arbitration, the Appellate Division properly concluded that the scope and validity of the parties' arbitration agreement, including issues of arbitrability, were for the arbitration tribunal to determine. Although *Hall Street Associates, L.L.C. v Mattel, Inc.* (552 US 576 [2008]) prohibits parties from expanding, by their own agreement, the scope of judicial review beyond that authorized by the Federal Arbitration Act, clear and unmistakable evidence existed that the parties agreed to arbitrate questions of arbitrability, including whether the parties' arbitration agreement was invalid under *Hall Street Associates* or whether the apparently offending provision could be severed from the remainder of the agreement. *Life Receivables Trust v Goshawk Syndicate 102 at Lloyd's*, 14 NY3d 850.

AWARD IN EXCESS OF ARBITRATOR'S POWERS.

4. Modification of Disciplinary Penalty Not in Excess of Arbitrator's Powers.—The arbitrator did not exceed the power given to him by the parties' collective bargaining agreement (CBA) (*see* CPLR 7511 [b] [1] [iii]) when he modified the penalty imposed by petitioner Transit Authority upon an employee who had assaulted a member of the public from termination to reinstatement without back pay. Under the subject provision of the CBA, after an arbitrator in a case involving assault allegations determines as a matter of fact that an assault did occur, the arbitrator is to affirm the action by the Authority unless credible evidence is presented that the action by the Authority is clearly excessive in light of the employee's record and past precedent in similar cases. It is not the role of the courts to chart a course as to how the arbitrator is to apply "past precedent" or to determine if the arbitrator strayed from the best route in the guise of declaring that he exceeded his power. The arbitrator considered the employee's record and the precedent presented to him by the Transit Authority, and concluded that the employee was worthy of the exception. The CBA was a direction to the arbitrator that reflected the parties' intent that once an assault charge is sustained, the penalty imposed by the Transit Authority must be upheld except in rare cases. It was the arbitrator who was empowered to make the determination as to whether the matter submitted was one of those rare cases. *Matter of New York City Tr. Auth. v Transport Workers Union of Am., Local 100*, 14 NY3d 119.

MATTERS ARBITRABLE.

5. Failure to Have Qualifications Necessary for Job.—Disciplinary grievances filed on behalf of state employees who were dismissed because they lacked the professional credentials required for their jobs were not arbitrable under the applicable collective bargaining agreement (CBA), nor were the employees entitled to arbitrate the question of whether their dismissals were disciplinary actions. The CBA provided that the disciplinary procedure set forth therein was in lieu of the procedure specified in Civil Service Law §§ 75 and 76 and was applicable to all persons subject to the statutes. Issues of job performance, misconduct or competency are subject to Civil Service Law disciplinary procedures, but failure to meet qualifications of employment are not. Contractual disciplinary procedures were not involved because the relevant contract clause, on its face, was applicable to those cases to which the statutes would otherwise apply. The disciplinary procedures contained in Civil Service Law §§ 75 and 76 were inapplicable to the employees' grievances because no act of misconduct was at issue. Nor was it for an arbitrator rather than a court to decide whether the employees were entitled to disciplinary hearings because there was not a reasonable relationship between the subject matter of the dispute and the general subject matter of the CBA. Despite the breadth of the arbitration clause in the CBA, it could not be construed to extend to arbitration of grievances which, as a matter of law, did not effectively allege any breach of the collective bargaining agreement. *Matter of New York State Off. of Children & Family Servs. v Lanterman*, 14 NY3d 275.

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER.

ATTACHMENT.

PROPERTY SUBJECT TO ATTACHMENT.

1. Intangible Property — Ownership/Membership Interests in Out-of-State Limited Liability Companies.—In an action brought by plaintiff lender to enforce a guaranty of payment executed by the nondomiciliary defendants, the intangible ownership/membership interests defendants had in various out-of-state business entities constituted “property” subject to attachment for purposes of CPLR 6202. The ownership/membership interests were akin to intangible contract rights, and were assignable and transferable. *Hotel 71 Mezz Lender LLC v Falor*, 14 NY3d 303.

2. Situs of Intangible Property — Ownership/Membership Interests in Out-of-State Limited Liability Companies.—In an action brought by plaintiff lender to enforce a guaranty of payment executed by the nondomiciliary defendants, the intangible ownership/membership interests defendants had in various out-of-state business entities constituted property with a New York situs for attachment purposes. Although the CPLR contains no provision as to the situs of intangible property for attachment purposes and defendants’ intangible interests were not evidenced by written instruments that would otherwise determine their situs, the principles set forth in *Harris v Balk* (198 US 215 [1905]) to be used to fix the situs of a debt were applicable here. Under *Harris*, where a creditor seeks to attach a debt (an intangible form of property) solely for security purposes (i.e., the debtor is subject to the court’s personal jurisdiction), the situs of the debt is wherever the debtor is present. The property interests at issue here were not debt, but there is no real distinction between “debt” and “property” under CPLR 5201. Moreover, the order of attachment was served in New York on the defendant who was both subject to the personal jurisdiction of the court and the proper garnishee of defendants’ interests. Just as a debt clings to the debtor when he or she enters a state other than the state where the debt was incurred, it follows that defendants’ uncertificated ownership interests, which the defendant possessed or had custody over, traveled with him, and were attachable in New York based on his presence there. *Hotel 71 Mezz Lender LLC v Falor*, 14 NY3d 303.

3. Situs of Intangible Property.—*National Broadway Bank v Sampson* (179 NY 213 [1904]), which held that the situs of intangible property is the domicile of the debtor, and, as such, a court cannot obtain jurisdiction by service upon a nonresident debtor who is only temporarily present in New York, was overruled in *Harris v Balk* (198 US 215 [1905]) and should no longer be cited as authority for determining the situs of intangible property. *Hotel 71 Mezz Lender LLC v Falor*, 14 NY3d 303.

WHEN REMEDY APPROPRIATE.

4. Ownership/Membership Interests in Out-of-State Limited Liability Companies.—In an action brought by plaintiff lender to enforce a guaranty of payment executed by the nondomiciliary defendants, under which they had voluntarily submitted to personal jurisdiction in New York, the issuance of an order of attachment of defendants’ ownership/membership interests in various out-of-state business entities was proper. One defendant, who was personally served with the order of attachment while temporarily in New York, was the apparent manager of the business entities and the proper garnishee (within CPLR 5201 [c] [1]) for defendants’ ownership/membership interests. A court with personal jurisdiction over a nondomiciliary present in New York has jurisdiction over that individual’s tangible or intangible property, even if the situs of the property is outside New York. *Hotel 71 Mezz Lender LLC v Falor*, 14 NY3d 303.

ATTORNEY AND CLIENT.

MALPRACTICE.

1. Success in Underlying Action.—In a legal malpractice action arising out of plaintiff’s slip and fall on an icy sidewalk, defendant’s motion for summary judgment

ATTORNEY AND CLIENT—Cont'd

ment was denied. Plaintiff raised issues of fact regarding whether she could have prevailed in the underlying action on a theory of constructive notice. *Teodorescu v Resnick & Binder, P.C.*, 14 NY3d 776.

2. Breach of Fiduciary Duty.—In an action to recover damages arising out of defendant attorneys' failure to recover funds that were misappropriated by third parties, the Appellate Division properly held that plaintiffs did not state a claim for legal malpractice insofar as they failed to allege that, but for defendants' alleged malpractice, they would have successfully recovered their investment in an underlying proceeding. The court also properly dismissed plaintiffs' claim for breach of fiduciary duty as duplicative of the claim for legal malpractice. *Waggoner v Caruso*, 14 NY3d 874.

BANKS AND BANKING.

See, also, **BILLS, NOTES AND CHECKS.**

BILLS, NOTES AND CHECKS.

See, also, **BANKS AND BANKING.**

BROKERS.

REAL ESTATE BROKERS.

1. Commission.—In an action to recover a real estate commission, an order of the Appellate Division, which denied recovery, was affirmed. Recovery under the theory of quantum meruit was not appropriate where an express contract governed the subject matter involved. Additionally, plaintiff failed to establish that the parties modified their exclusive brokerage agreement. In the absence of a valid governing exclusive brokerage agreement, plaintiff was not entitled to a commission on the sale to the ultimate buyer, as it was not the procuring cause of the sale. *Parker Realty Group, Inc. v Petigny*, 14 NY3d 864.

CERTIORARI.

See **PROCEEDING AGAINST BODY OR OFFICER.**

CHIROPRACTORS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

CHURCHES.

See **RELIGIOUS CORPORATIONS AND ASSOCIATIONS.**

CITIES.

See **MUNICIPAL CORPORATIONS.**

CIVIL RIGHTS.

DISCRIMINATION IN EMPLOYMENT.

1. In a proceeding to review a determination finding that petitioner college had engaged in unlawful racially discriminatory practices against one of its employees, an order of the Appellate Division, which annulled the determination and dismissed the administrative complaint, was reversed and the matter remitted to that Court for consideration of issues raised but not determined therein. Substantial evidence in the record supported the determination of the State Division of Human Rights that the complainant was subjected to unlawful discriminatory employment practices. *Matter of Suffolk County Community Coll. v New York State Div. of Human Rights*, 14 NY3d 762.

NEW YORK CITY HUMAN RIGHTS LAW.

2. Affirmative Defense.—The affirmative defense to employer liability under title VII of the Civil Rights Act of 1964 articulated in *Faragher v City of Boca Raton* (524 US 775 [1998]) and *Burlington Industries, Inc. v Ellerth* (524 US 742 [1998]) was

CIVIL RIGHTS—Cont'd

inapplicable in an action alleging sexual harassment and retaliation under the New York City Human Rights Law (NYCHRL) (Administrative Code of City of NY § 8-107). The *Faragher-Ellerth* defense provides that an employer is not liable under title VII for sexual harassment committed by a supervisory employee if no tangible employment action was taken as part of the alleged harassment, the employer exercised reasonable care to prevent and correct promptly any sexually harassing behavior, and the plaintiff employee unreasonably failed to take advantage of any preventive or corrective opportunities provided by the employer or to avoid harm otherwise. The plain language of the NYCHRL precludes the *Faragher-Ellerth* defense. The NYCHRL imposes liability on the employer where (1) the offending employee “exercised managerial or supervisory responsibility,” or (2) the employer knew of the offending employee’s unlawful discriminatory conduct and acquiesced in it or failed to take “immediate and appropriate corrective action” or (3) the employer “should have known” of the offending employee’s unlawful discriminatory conduct yet “failed to exercise reasonable diligence to prevent [it]” (Administrative Code § 8-107 [13] [b] [1]-[3]). In the first two instances, an employer’s antidiscrimination policies and procedures may be considered “in mitigation of the amount of civil penalties or punitive damages” recoverable in a civil action (see Administrative Code § 8-107 [13] [e]). As a result, even in cases where mitigation applies, compensatory damages, costs and reasonable attorneys’ fees are still recoverable. Further, an employer’s antidiscrimination policies and procedures—which are at the heart of the *Faragher-Ellerth* defense—shield against liability, rather than merely diminish otherwise potentially recoverable civil penalties and punitive damages, only where an employer should have known of a *non-supervisory* employee’s unlawful discriminatory acts. *Zakrzewska v New School*, 14 NY3d 469.

3. Unlawful Discriminatory Practices — Liability of Employer.—New York City Human Rights Law (NYCHRL) § 8-107 (13) (b), which imposes liability on an employer for certain unlawful discriminatory practices, is applicable to all managers and supervisors notwithstanding public policy arguments against the imposition of strict liability for discrimination. Ultimately such considerations relevant to policy judgments are properly made by legislatures. By the plain language of NYCHRL § 8-107 (13) (b), whether the employer encourages, condones or approves the unlawful discriminatory acts may not be considered so long as the offending employee exercised managerial or supervisory control. *Zakrzewska v New School*, 14 NY3d 469.

4. Unlawful Discriminatory Practices — New York City Human Rights Law Not Inconsistent with State Laws.—New York City Human Rights Law (NYCHRL) § 8-107 (13), which imposes liability on an employer for certain unlawful discriminatory practices, is not inconsistent with state laws. Article IX, § 2 (c) of the New York Constitution vests local governments with the power to enact only those laws that are not inconsistent with state law. A local law is inconsistent where it prohibits what would be permissible under state law or imposes prerequisite additional restrictions on rights under state law, so as to inhibit the operation of the state’s general laws. A local law may, however, provide a greater penalty than state law. Section 8-107 (13) is consistent with Executive Law § 296, the state antidiscrimination statute. Both prohibit discrimination; NYCHRL § 8-107 merely creates a greater penalty for unlawful discrimination. *Zakrzewska v New School*, 14 NY3d 469.

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles.

COLLECTIVE BARGAINING.

1. Change in Drug Testing Methodology and Testing Triggers for New York City Police Officers.—Petitioner New York City Police Department Commissioner’s decision to change the scientific methodology to be used for drug testing of police officers from urine testing to hair testing (radioimmunoassay), and to change the circumstances prompting testing, was within his discretionary authority and was excluded from collective bargaining as a matter of policy. Although there exists a

CIVIL SERVICE—Cont'd

presumption that all terms and conditions of employment are subject to mandatory bargaining, some subjects are excluded from collective bargaining as a matter of policy, even where no statute explicitly says so. New York City Charter § 434 (a) and Administrative Code of the City of New York § 14-115 (a) state the policy favoring management authority over police disciplinary matters in clear terms and express a policy so important that the policy favoring collective bargaining should give way. Petitioner's disciplinary authority under sections 434 (a) and 14-115 (a) is not limited to the formal disciplinary process, and the detection and deterrence of wrongdoing within the New York City Police Department—particularly crimes, such as illegal drug use—is a crucial component of petitioner's responsibility to maintain discipline within the force. Testing methodology and testing triggers are subjects that are inextricably intertwined with petitioner's authority to conduct drug testing in the first place. *Matter of City of New York v Patrolmen's Benevolent Assn. of the City of N.Y., Inc.*, 14 NY3d 46.

CLUBS.

See ASSOCIATIONS.

CONDEMNATION.

See EMINENT DOMAIN.

CONFLICT OF LAWS.

COMITY. *See* PARENT AND CHILD, 3.

WHAT LAW GOVERNS.

1. Choice of Law.—The Delaware choice of law clause in defendant's credit card agreement with plaintiff's assignor did not require the application of the Delaware statute of limitations to bar plaintiff's claims for breach of contract and account stated. Choice of law provisions typically apply to only substantive issues, and statutes of limitations are considered "procedural" because they are deemed as pertaining to the remedy rather than the right. There being no express intention in the agreement that Delaware's statute of limitations was to apply to the parties' dispute, the choice of law provision could not be read to encompass that limitations period. *Portfolio Recovery Assoc., LLC v King*, 14 NY3d 410.

CONSTITUTIONAL LAW.

COMPENSATION CLAUSE. *See* JUDGES, 3, 4.

DOUBLE JEOPARDY. *See* CRIMES, 56.

EQUAL PROTECTION OF LAWS. *See* JUDGES, 2.

EX POST FACTO LAW.

1. Statutory Provision Applicable to Future Transactions Based on Events Occurring Prior to Effective Date.—Administrative Code of the City of New York § 26-124 (c) (recodified as Administrative Code § 28-211.1.2), pursuant to which the Commissioner of the New York City Department of Buildings (DOB) was authorized to refuse to accept any application or other document submitted by petitioner licensed engineer to the DOB for a period of two years followed by a three-year probationary period, did not constitute an unconstitutional ex post facto law as applied to petitioner even though the penalty imposed under the provision was based on negligent acts committed by petitioner prior to the enactment of the statutory provision. Administrative Code § 26-124 (c) was enacted for the purpose of promoting public safety and preventing the waste of taxpayer money by eliminating the filing of false information to the DOB. Under the statute, the Commissioner is authorized to refuse to accept applications or documents from any person found to have knowingly or negligently submitted false materials. Thus, by its terms, section 26-124 (c) aims to regulate future eligibility, and the fact that petitioner's inability to file papers with DOB for a future period of time was predicated on prior false filings did

CONSTITUTIONAL LAW—Cont'd

not render the statute an ex post facto law as applied to him. *Matter of St. Clair Nation v City of New York*, 14 NY3d 452.

SEPARATION OF POWERS. *See* JUDGES, 5-8.

SPEECH OR DEBATE CLAUSE. *See* LEGISLATURE, 1.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles.

BREACH OR PERFORMANCE OF CONTRACT.

1. In an action for breach of contract arising out of defendant university's offer to plaintiff's son of tuition-free enrollment in a two-year degree program, rather than the four-year program the son applied for, plaintiff, a former professor with defendant, failed to present sufficient evidence to raise a triable issue of fact regarding whether defendant breached the parties' underlying contract, which provided for tuition remission for any of plaintiff's children who were accepted by defendant's admissions committee for study at the university. *Flomenbaum v New York Univ.*, 14 NY3d 901.

EMPLOYMENT CONTRACTS.

2. Enforceability of Malum Prohibitum Provision.—In an action to recover damages arising out of defendant's breach of an employment contract, even assuming that the provision of the contract allowing defendant to collect fees emanating from plaintiff's off-site anesthesiology services was inconsistent with a regulation of the Department of Health, that provision was merely malum prohibitum and, therefore, enforceable. Forfeitures by operation of law are disfavored and allowing parties to escape their contractual obligations freely entered into is especially inappropriate where there are regulatory sanctions and statutory penalties in place to redress violations of the law. Although both the Department of Health and the State Board for Professional Medical Conduct have the power to impose sanctions for fee-splitting arrangements that violate statutory prescriptions, neither agency was involved in this matter, and plaintiff did not identify an overarching public policy that mandated voiding the contract. Accordingly the case was remitted to Supreme Court to consider whether defendant was entitled, under the terms of the agreement, to a set off derived from the funds, if any, held by plaintiff, against the amount he was awarded against defendants. *Glassman v ProHealth Ambulatory Surgery Ctr., Inc.*, 14 NY3d 898.

PUBLIC WORKS CONTRACTS.

3. Ambiguous Contract.—The petition was correctly dismissed in a proceeding to recover additional costs incurred by a contractor on a public works contract. The municipal agency that reviewed petitioner's request for additional reimbursement rationally determined that a discrepancy between a diagram and notes on the contract drawing created an ambiguity in the contract terms, which petitioner failed to clarify prior to bidding as the contract required. Therefore, the agency rationally disapproved the claim for additional compensation. *L&L Painting Co., Inc. v Contract Dispute Resolution Bd. of the City of N.Y.*, 14 NY3d 827.

TERMINATION.

4. Justification.—In an action arising out of defendant's termination of its contract with plaintiff, the judgment of the Supreme Court, granting defendant summary judgment on its counterclaim and awarding it damages against plaintiff, and the order of the Appellate Division brought up for review, which modified a prior Supreme Court order dismissing some of plaintiff's claims by dismissing the complaint in its entirety, was affirmed. Defendant was justified in terminating its contract with plaintiff, whose failure to pay its monthly rent promptly to defendant was a material breach of their agreement. The contract contained no provision for a grace period, and no requirement that defendant give notice of a breach and an op-

CONTRACTS—Cont'd

portunity to cure it. Defendant did not waive its right to terminate. *Awards.com, LLC v Kinko's, Inc.*, 14 NY3d 791.

CORPORATIONS.

LIABILITY OF SUCCESSOR CORPORATION.

1. Defendant, the buyer of plaintiff's boiler business, assumed plaintiff's liabilities for tort claims with respect to boilers sold before the business was acquired, notwithstanding that the tort claimants were not injured until after the acquisition. The parties' purchase and sale agreement described the purpose of their transaction as the sale of substantially all the assets of the business "subject to all debts, liabilities, and obligations connected with or attributable to such business and operations." The term liabilities was defined as "all the debts, liabilities, obligations and commitments . . . existing and outstanding at the Closing Date." Nothing in the nature of the transaction suggested that the parties intended defendant, which got all the assets, to escape any of the related obligations. Although the parties' agreement could be interpreted to mean that a tort claim could not be "existing and outstanding" before the tort plaintiff had been injured, other language in the agreement clearly indicated that the buyer would deal with any problems customers had after the closing date with boilers that had been installed previously. By including warranty, service, repair and return claims of this kind in the definition of liabilities, the parties demonstrated that the words "existing and outstanding" did not refer only to claims that existed on the closing date. *American Std., Inc. v OakFabco, Inc.*, 14 NY3d 399.

COUNTIES.

See, also, MUNICIPAL CORPORATIONS.

COURT OF CLAIMS.

See STATE.

COURTS.

FAMILY COURT.

1. Subject Matter Jurisdiction — Proceeding Seeking Child Support from Former Same-Sex Partner.—Family Court had subject matter jurisdiction to adjudicate the support petition brought pursuant to the Uniform Interstate Family Support Act (Family Ct Act art 5-B) by petitioner, the child's biological mother, seeking child support from respondent, petitioner's former same-sex partner. Family Court has jurisdiction to determine whether an individual parent—regardless of gender—is responsible for the support of a child (*see* Family Ct Act § 413 [1] [a]). Because Family Court has the subject matter jurisdiction to ascertain the support obligations of a female parent, it also has the inherent authority to ascertain in certain cases whether a female respondent is, in fact, a child's parent. As petitioner here asserted that respondent was the child's parent, and was therefore chargeable with the child's support, the case was within Family Court's article 4 jurisdiction. *Matter of H.M. v E.T.*, 14 NY3d 521.

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See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles.

APPEAL.

1. Preservation of Issue for Review — Resentencing.—The resentencing of defendant, who had completed serving his sentence of imprisonment and had been released from prison but whose original sentences failed to include a mandatory term of postrelease supervision (PRS), was reviewable despite his failure to raise

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any objections to the inclusion of a PRS term at the resentencing. Since the Double Jeopardy Clause of the Fifth Amendment protected defendant from being resentenced to a more severe punishment after serving his sentence of imprisonment and being released into the community, the resentencing court did not retain jurisdiction to modify the original judgment that was entered. Because defendant's double jeopardy claim implicated a fundamental mode of proceedings, it was reviewable absent preservation. *People v Williams*, 14 NY3d 198.

2. Preservation of Issue for Review — Legal Sufficiency of Evidence That Defendant Acted with Requisite Mens Rea.—In a prosecution for aggravated criminally negligent homicide and related crimes arising from the death of a state trooper in a car accident while pursuing defendant in a high-speed chase, defendant failed to preserve his claim that the evidence at trial was legally insufficient to establish that he acted with the requisite mens rea to support his conviction for aggravated criminally negligent homicide. In moving to dismiss the aggravated criminally negligent homicide count, defendant had argued only that the evidence was insufficient to prove a "causal connection" between the defendant's conduct and the trooper's death, and not that the evidence failed to establish he acted with the requisite mens rea. Where a motion to dismiss for insufficient evidence is made, the preservation requirement compels that the argument be specifically directed at the alleged error. *People v Carncross*, 14 NY3d 319.

3. Waiver of Right to Appeal — Waiver Rendered Invalid by Court's Failure to Honor Plea Agreement.—Defendant's waiver of his right to appeal became invalid when Supreme Court later modified the sentencing component of the plea agreement to deny defendant youthful offender status and lengthen his sentence of imprisonment. The terms and conditions of the plea agreement offered to defendant in return for his waiver of the right to appeal unequivocally promised him youthful offender adjudication and a maximum sentence of 1 $\frac{1}{3}$ to 4 years in prison. Because the court did not advise defendant that it was reserving approval of the negotiated disposition until it reviewed the presentencing report or other pertinent information, defendant could not have knowingly and intelligently waived his right to appeal the court's decision not to abide by the original promise. Once the decision to impose the more severe sentence was announced, it was incumbent on the court to elicit defendant's continuing consent to waive his right to appeal. There was no need for the judge to reallocate defendant on his decision to plead guilty because his choice not to withdraw his plea effectively reaffirmed his knowing and intelligent consent to concede guilt. Since defendant was not asked if he further agreed to waive his right to pursue an appeal regarding the modified terms of his sentence, he was not foreclosed from requesting appellate review of the propriety of the denial of youthful offender treatment or the severity of the imposed sentence. *People v Johnson*, 14 NY3d 483.

4. Preservation of Issue for Review.—In a prosecution for attempted aggravated harassment in the second degree, defendant's claim that her case was tried in Supreme Court and that court lacked subject matter jurisdiction to issue a judgment of conviction may be considered on appeal, despite her failure to timely raise the issue, because it fell within an exception to the preservation rule. Even assuming that defendant's case was tried in Supreme Court, she was not entitled to reversal of her conviction on jurisdictional grounds because Supreme Court possesses concurrent subject matter jurisdiction over the trial of unindicted misdemeanor offenses. Defendant's alternative argument, that even if Supreme Court may resolve misdemeanor charges, the transfer of her case from New York City Criminal Court to Supreme Court was impermissible since court rules creating the Criminal Division of the Supreme Court in Bronx County and directing the reassignment of certain misdemeanor cases to that court for trial were not in effect on the date of her conviction, may not be considered. Given that Supreme Court had the power to hear the case, the transfer error defendant alleged was the equivalent of an improper venue claim, which is not jurisdictional in nature and was waived when defendant did not timely object to the transfer in the trial court. *People v Wilson*, 14 NY3d 895.

5. Standard of Review — Weight of Evidence.—In a prosecution for murder and criminal possession of a weapon, upon remittal from the Court of Appeals, the Ap-

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pellate Division employed the proper legal standard when it rejected defendant's argument that the verdict convicting him of depraved indifference murder was against the weight of the evidence. The Appellate Division was not required to evaluate the elements of depraved indifference murder as they were interpreted in certain cases decided prior to defendant's trial. Defendant voiced no objection to the court's charge as given and failed to request that any specific judicial interpretations of the elements be presented to the jury. Thus, the Appellate Division properly refused to consider such information when it weighed the evidence in light of the elements of the crime as charged to the jury. *People v Johnson*, 14 NY3d 917.

ARGUMENT AND CONDUCT OF COUNSEL.

6. Use of Slides Displaying Legal Definitions in Homicide Prosecution.—In the prosecution of defendant for depraved indifference murder of a child, manslaughter in the first degree and manslaughter in the second degree arising from the death of a 20-month-old child, the trial court did not abuse its discretion as a matter of law by allowing the People's use of a projector to display the legal definitions of depraved indifference and recklessness to the jury during summation, since the use of the slides did not prejudice defendant or undermine his right to a fair trial. The use of the slides could have assisted the jury in differentiating between ordinary recklessness for manslaughter and the extreme recklessness and heightened mental state that is needed to establish depraved indifference. Furthermore, the judge's instructions were sufficient to dispel any possibility that the jury would give precedence to or place undue emphasis on the prosecutor's use of the slides. *People v Baker*, 14 NY3d 266.

7. An order of the Appellate Division which denied defendant's application for a writ of error coram nobis seeking review of his claim of ineffective assistance of appellate counsel was affirmed. Defendant did not demonstrate the absence of a legitimate explanation for his appellate counsel's failure to brief the issue whether his guilty plea should be vacated under *People v Catu* (4 NY3d 242 [2005]). *People v Rivera*, 14 NY3d 753.

ASSAULT.

8. Depraved Indifference — Intoxication.—In a prosecution for assault and related charges arising from a vehicular accident involving the legally intoxicated defendant, there was insufficient evidence to support a conviction for depraved indifference assault. The trial evidence established only that defendant was extremely intoxicated and did not establish that he acted with the culpable mental state of depraved indifference. *People v Valencia*, 14 NY3d 927.

CRIMINALLY NEGLIGENT HOMICIDE.

9. Causation — Officer Killed while Engaged in Pursuit.—In a prosecution for aggravated criminally negligent homicide and related crimes arising from the death of a state trooper in a car accident while pursuing defendant in a high-speed chase, the evidence was legally sufficient to establish a causal connection between defendant's conduct and the trooper's death. There was no requirement that defendant's motorcycle actually make contact with the trooper's vehicle in order for the causation element to be satisfied. Rather, the essential inquiry was whether defendant's conduct was a sufficiently direct cause of the trooper's death. Had defendant not fled when the trooper attempted to pull him over for speeding, the trooper would not have engaged in the high-speed chase that resulted in his death. Where, as here, a defendant's flight naturally induces a police officer to engage in pursuit, and the officer is killed in the course of that pursuit, the causation element of the crime will be satisfied. *People v Carnecross*, 14 NY3d 319.

DISCLOSURE.

10. Failure to Produce *Rosario* Material — Separate Incidents.—Violations of *People v Rosario* (9 NY2d 286 [1961]) and/or *Brady v Maryland* (373 US 83 [1963]), resulting in the reversal of convictions on certain counts, also require reversal of convictions on other, jointly tried counts only if there is a reasonable possibility that the evidence supporting the tainted counts influenced the guilty verdicts on the

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other counts. Accordingly, where defendant was tried for two separate criminal incidents and the prosecutor failed to disclose documents related exclusively to one incident, reversal of the verdict relating to the other incident was not required because there was no reasonable possibility that the evidence supporting the tainted counts had a spillover effect on the other counts. Moreover, there was strong, independent proof of the defendant's guilt on the untainted counts. *People v Daly*, 14 NY3d 848.

EVIDENCE.

11. Preclusion of Evidence Offered to Negate Intent.—In the prosecution of defendant physician on charges of engaging in a scheme to defraud, insurance fraud and falsifying business records for her actions in billing a no-fault insurance carrier for unnecessary or unperformed treatments on accident victims, the trial court did not commit reversible error by precluding evidence that defendant did not administer any unnecessary procedures or submit false claims when an investigator from the Attorney General's Office went to defendant's medical facility posing as a motor vehicle accident victim. Defendant had proffered that evidence at trial to negate fraudulent intent. While the proffered evidence may have been relevant to show a lack of intent to perpetrate the scheme to defraud charge, defendant was acquitted of that charge. The evidence would not have related to the fraudulent submission of claims for unnecessary or unperformed medical treatments regarding the accident victims. *People v Kisina*, 14 NY3d 153.

FALSIFYING BUSINESS RECORDS.

12. Fraudulent Medical Documentation Submitted to No-Fault Insurance Company.—In the prosecution of defendant physician for falsifying business records in the first degree and related charges for her actions in billing a no-fault insurance carrier for unnecessary or unperformed treatments on accident victims, the verification of treatment forms and accompanying consultation reports submitted by defendant to the insurance company, indicating that defendant had conducted certain electrodiagnostic testing on each patient, constituted "business records" within the scope of Penal Law § 175.10. Falsifying business records in the first degree is committed when a "person," with the requisite intent, makes or causes a false entry in the "business records" of an enterprise (Penal Law § 175.05 [1]; § 175.10). Defendant's role as an "outsider" or "third party" not employed by, or an agent of, the recipient enterprise did not immunize her from prosecution. The statute prescribes no limitation or preconditions on the types of persons who may fall within the ambit of the crime. Moreover, the records defendant submitted to the insurance company reflected the "condition" or "activity" of that enterprise as required by Penal Law § 175.00 (2), which defines a business record as a writing or article "kept or maintained by an enterprise for the purpose of evidencing or reflecting its condition or activity." There was sufficient evidence establishing that the insurance company "kept or maintained" the consultation reports along with the claim forms, and that they evidenced or reflected "its condition"—specifically its legal obligation to reimburse medical providers for services. *People v Kisina*, 14 NY3d 153.

HATE CRIMES.

13. Applicability — Effective Date of Hate Crimes Act.—The Hate Crimes Act of 2000 (L 2000, ch 107), enacting Penal Law article 485, took effect on Sunday, October 8, 2000. The Legislature specified that the Hate Crimes Act would take effect 90 days after it was enacted (i.e., October 8, 2000). Where, as here, the effective date of a new law falls on a weekend or a public holiday, the effective date is not postponed until the next business day. General Construction Law §§ 20 and 25-a, which operate to postpone certain deadlines falling on a weekend or public holiday to the next business day, do not alter the Legislature's exclusive power to determine when its legislation will become effective. Accordingly, since defendant's criminal conduct in attempting to set fire to a Jewish synagogue because of his anger toward a particular religious group occurred several hours after Penal Law article 485 took effect, he was properly arrested, prosecuted and sentenced under the Hate Crimes Act. *People v Assi*, 14 NY3d 335.

CRIMES—Cont'd

14. Applicability — Religiously-Motivated Property Crimes.—The attempted arson at a synagogue motivated by defendant's anger toward a particular religious group constituted a hate crime under the Hate Crimes Act of 2000 (L 2000, ch 107). The statutory reference to "person" in Penal Law § 485.05 does not restrict the statute's reach to crimes against individuals, as the Penal Law definition of "person" encompassed the congregation that owned the synagogue (*see* Penal Law § 10.00 [7]). Although the target of defendant's criminal conduct was a building, the true victims were the individuals of Jewish faith who were members of the synagogue. Moreover, Penal Law § 485.05 (1) (b) broadly applies to specified offenses—including property crimes such as trespass, burglary, arson and grand larceny—that are motivated by a belief or perception of another person's religion, and the legislative findings set forth in Penal Law § 485.00 indicate that criminal acts involving the "destruction of property" can qualify as hate crimes. Consequently, the attempted arson of a house of worship that is motivated by religious animus is covered by Penal Law § 485.05 (1) (b). *People v Assi*, 14 NY3d 335.

IDENTIFICATION OF DEFENDANT.

15. Lineup.—In the prosecution of defendant on robbery and related charges, there was record support for the affirmed findings by the Appellate Division that the lineup, in which defendant was the only person wearing a gray hooded sweatshirt, an article of clothing which was part of a detailed clothing description provided by a witness, was not unduly suggestive. If a defendant is the only one in a lineup wearing the same distinctive clothing as described by a witness to the crime, the lineup is unduly suggestive as a matter of law, but if the clothing described by the witness and then worn by the defendant at the lineup is not unusual, it is not considered suggestive. Here, Supreme Court viewed a photograph of the lineup and noted that defendant and all the fillers were wearing nondescript street clothing, and that the gray hooded sweatshirt worn by defendant was a "generic and common article of clothing." Moreover, since the sweatshirt was only one of the many items of clothing described by the witness, Supreme Court concluded that although defendant happened to be wearing the same type of sweatshirt in the lineup, it did not make the lineup unduly suggestive. Since the affirmed findings by the Appellate Division that the lineup was not unduly suggestive were amply supported by the record, the issue was beyond the further review of the Court of Appeals. *People v McBride*, 14 NY3d 440.

INDICTMENT.

16. Dismissal of Superseding Indictment.—In a prosecution for murder and related crimes in which the jury deadlocked on a count of felony murder and a superseding indictment charging defendant with felony murder and first-degree manslaughter was later dismissed, defendant's subsequent retrial properly went forward based on the felony murder count in the original indictment notwithstanding that the original indictment had been dismissed upon the filing of the superseding indictment. Although the Criminal Procedure Law does not expressly provide for reinstatement of an indictment under the circumstances presented, it does not preclude its reinstatement either. Logically, if the superseding indictment was a nullity then any action or consequence that flowed from its filing—e.g., the dismissal of the original indictment—was necessarily a nullity as well. In the absence of any constitutional or statutory double jeopardy bar, the trial court possessed inherent authority to reinstate the original indictment after dismissing the superseding indictment. *People v Frederick*, 14 NY3d 913.

INFORMATION.

17. Jurisdictional Validity of Superior Court Information Containing Offense Not Joinable with Offense Charged in Original Felony Complaint.—Reversal of defendant's conviction following his waiver of indictment and plea of guilty to a superior court information (SCI) charging him with grand larceny in the fourth degree, an offense for which he had been held for action by the grand jury in a superior court felony complaint, and criminal possession of stolen property in the third degree, a charge included on the theory that it was joinable with the grand

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larceny offense under CPL 195.20 and 200.20 (2) (c), was not warranted under *People v Zanghi* (79 NY2d 815 [1991]). Under certain circumstances a defendant may waive indictment and consent to be prosecuted by SCI pursuant to CPL 195.10 if the SCI charges the defendant with either the same crime as the felony complaint or a lesser included offense of that crime. The waiver of indictment and SCI were deemed invalid in *Zanghi* because the SCI did not charge defendant with either of the offenses that had been included in the felony complaint, and the SCI charge was not a lesser included offense of either crime. Here, the exact offense charged in the superior court felony complaint was included in the waiver of indictment and charged in the SCI. Although the SCI here also contained another charge arising from a separate incident—criminal possession of stolen property in the third degree, an offense of higher grade or degree than the grand larceny offense—that, standing alone, did not establish the invalidity of the waiver of indictment and SCI under *Zanghi*. *People v Pierce*, 14 NY3d 564.

18. Jurisdictional Validity of Superior Court Information Containing Offense Not Joinable with Offense Charged in Original Felony Complaint.—Reversal of defendant's conviction following his waiver of indictment and plea of guilty to a superior court information (SCI) charging him with grand larceny in the fourth degree, an offense for which he had been held for action by the grand jury in a superior court felony complaint, and criminal possession of stolen property in the third degree, a charge arising from a separate incident but included on the theory that it was joinable with the grand larceny offense, was warranted. The criminal possession offense was not properly joined with the grand larceny charge under CPL 195.20 and 200.20 (2) (c). CPL 200.20 (2) (c) permits joinder of charges involving a single defendant and arising from different criminal transactions if "such offenses are defined by the same or similar statutory provisions and consequently are the same or similar in law." Here, the stolen property offense stemmed from the police discovering defendant in possession of a car that had previously been reported stolen, and the grand larceny charge arose from an incident in which defendant allegedly obtained a bank card by false pretenses and then withdrew funds from the victim's account without authorization. The only similarity was that both offenses involve misappropriated property. The crimes did not have comparable elements and the essential nature of the criminal conduct was quite distinct. The improper inclusion of the criminal possession offense in the waiver of indictment and SCI was a jurisdictional defect that, when raised on direct appeal, required reversal of the conviction and dismissal of the SCI. *People v Pierce*, 14 NY3d 564.

INSTRUCTIONS.

19. Entitlement to Claim of Right Instruction.—In the prosecution of defendant deputy sheriff for petit larceny stemming from an incident in which he took five new tires, a boat, and a filing cabinet from a sheriff's department surplus warehouse while under the supervision, and with the alleged permission, of an undersheriff, the trial court's failure to instruct the jury on the claim of right defense was reversible error, entitling defendant to a new trial. In determining whether to instruct a jury on the defense, which is available when "the property was appropriated under a claim of right made in good faith" (Penal Law § 155.15 [1]), the court must view the evidence adduced at trial in the light most favorable to the defendant. Here, evidence supported a finding that defendant had a good faith belief that he could take the property. Defendant stated that the undersheriff, who was one of the highest ranking officials in the sheriff's department, gave him and his colleagues permission to take whatever property they wanted. Two of defendant's colleagues took property, the undersheriff procured items for himself, and most of the surplus property was described as junk, old and wrecked. Although defendant concealed the fact that he had taken the tires and attempted to replace them after he learned he was being investigated, that did not warrant a finding that no reasonable view of the evidence supported the claim of right. Nor did defendant's conflicting statements regarding the permission given by the undersheriff relieve the trial court's obligation to instruct the jury on the claim of right defense, as the inconsistencies only raised issues of fact and the charge was otherwise warranted by the evidence. *People v Zona*, 14 NY3d 488.

CRIMES—Cont'd**JURORS.**

20. Notice to Counsel of Substantive Inquiry from Jury — Failure to Disclose Actual Contents of Jury Note — Mode of Proceedings Error.—The trial court, having informed counsel that the jury had sent a note stating it was divided on each of defendant's five separate robbery charges and setting forth the numerical split in its votes, did not commit a mode of proceedings error when it failed to disclose to counsel the numerical breakdown of the votes until after the jury had received instructions and resumed deliberations. A court that receives a note from a jury during deliberations must notify counsel about the note and disclose the actual specific contents of the note (*see* CPL 310.30). Here the trial court informed counsel that the note gave divisions among the jurors as to each charge, that out of the five charges there were three different divisions, that the numbers did not indicate whether the majority of the jury was voting to convict or acquit, and that it was specifically withholding the numbers from counsel until after the jury had resumed deliberations. Although the court's decision not to read the entire note until after the jury had resumed deliberations may have been error, it was not a mode of proceedings error and the court later corrected itself, without objection or request for further instruction by either party. *People v Kadarko*, 14 NY3d 426.

21. Review of Item Not in Evidence.—Defendant was entitled to a new trial on assault charges where there was a significant, unexplained irregularity in the proceedings in that defendant established that the jury requested an exhibit not in evidence, thereby overcoming the presumption of regularity attaching to judicial proceedings. It was reasonable for the jury to believe the exhibit to be in evidence, since it heard the trial court receive the item, but did not hear the court's subsequent reversal of that ruling. The jury's request to view the item was never brought to the judge's attention. Thus, there was no basis to conclude that the jury was informed by anyone that the item was not in evidence, and the jury may have received the exhibit in error. Defendant met his burden of rebutting the presumption of regularity by substantial evidence, including the trial judge's statement at a reconstruction hearing that he never saw the note requesting to view the item, that he did not reconvene with counsel, and that he did not know if the exhibit was ever shown to the jury. Nor can it be said that, even if the jury received the unadmitted exhibit in error, such error was harmless since the exhibit contradicted defendant's misidentification defense at trial. *People v Cruz*, 14 NY3d 814.

LARCENY.

22. Good Faith Claim of Right Not Precluded by Defendant's Status as Public Servant.—In the prosecution of defendant deputy sheriff for petit larceny stemming from an incident in which he took certain property from a sheriff's department surplus warehouse while under the supervision, and with the alleged permission, of an undersheriff, defendant's status as a public servant did not per se preclude a finding that he had a good faith belief, for purposes of a claim of right defense (*see* Penal Law § 155.15 [1]), that he was entitled to keep the public property. Although it may be that a public servant could have no reasonable basis for such a belief, subjective good faith, not reasonableness, is the test. Here, it could be found that defendant had a good faith belief that the undersheriff had the authority to dispose of the property stored in the surplus warehouse and that defendant could retain some of that property for his personal use. *People v Zona*, 14 NY3d 488.

23. Previous Ownership of Property Not Required to Assert Claim of Right Defense.—A defendant in a larceny prosecution is not required to establish that he or she previously owned or possessed the property at issue in order to assert the claim of right defense under Penal Law § 155.15 (1). Rather, the defense merely requires a good faith belief "that the property was appropriated under a claim of right" (Penal Law § 155.15 [1]). *People v Zona*, 14 NY3d 488.

LESSER INCLUDED OFFENSE.

24. Criminal Sale of Controlled Substance.—In the prosecution of defendant for selling drugs to an undercover police officer, the trial court, having instructed the jury on the agency defense, did not err in refusing to charge criminal possession of a

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controlled substance in the seventh degree (Penal Law § 220.03) as a lesser included offense of criminal sale of a controlled substance in the third degree (Penal Law § 220.39). As it is possible to sell drugs without concomitantly, by the same conduct, possessing them, criminal possession is not a lesser included offense of criminal sale of a controlled substance. Although a drug sale requires an ability to proceed with the sale, ability to sell does not require proof of possession of the contraband. A middleman paid a commission by a seller, for example, may be guilty of sale but not possession. A different result is not required where, as here, the agency defense was charged, permitting the jury to find defendant an agent of the buyer, rather than a seller, and treat him accordingly. Nothing about the agency defense requires a defendant to be charged with possession, though he or she may confess to it. *People v Davis*, 14 NY3d 20.

OFFERING FALSE INSTRUMENT FOR FILING.

25. Reliance of Receiving Office.—In a prosecution under Penal Law § 175.35, offering a false instrument for filing in the first degree, arising out of defendant law firm's filing of retainer statements with the Office of Court Administration containing allegedly false representations, section 175.35 requires an "intent to defraud," but does not require that the receiving agency take action in reliance upon the filing of such information and itself be misled to its detriment. The statute, by its plain terms, contains no such element. "Intent to defraud" refers only to a defendant's state of mind in acting with a conscious aim and objective to defraud (see Penal Law § 15.05 [1]). *People v Taylor*, 14 NY3d 727.

PLEA BARGAINING.

26. Enforcement of Agreement — Drug Treatment Alternative-to-Prison Program — Discharge from Program — Inquiry by Court.—When a drug treatment alternative-to-prison program (DTAP) discharges a defendant for misconduct, the court must carry out an inquiry of sufficient depth to satisfy itself that there was a legitimate basis for the program's decision, and must explain, on the record, the nature of its inquiry, its conclusions and the basis for them. Supreme Court has broad discretion when supervising a defendant subject to DTAP, and deciding whether the conditions of a DTAP plea agreement have been met (see CPL 216.05 [9] [b]). Sentencing is a critical stage of the criminal proceeding which must comply with due process. Accordingly, where defendant was discharged from a residential drug treatment program due to thefts from vocational counselors, Supreme Court was not required to conduct an evidentiary hearing or to determine by a preponderance of the evidence that defendant was guilty of the thefts of which he was accused before sentencing defendant to a term of imprisonment for failure to comply with the terms of his DTAP plea agreement. However, the judge should have considered defendant's argument that he was kicked out of the program based on thin evidence of wrongdoing after inadequate investigation, and he should have allowed defendant to submit letters and testimony or affidavits from his mother and girlfriend about the money they claimed to have sent him. Notwithstanding the District Attorney's refusal to endorse any further treatment opportunity for defendant, in his supervision of this DTAP plea and as a measure of the due process owed defendant, the judge was obligated to make the requisite inquiry into the merits of defendant's discharge. Although the judge's options would have been limited in the event that he concluded that the program, in fact, did not possess a legitimate basis for expelling defendant, and the District Attorney remained unwilling to approve defendant's participation in another program, Supreme Court could at least offer defendant the opportunity to withdraw his plea before imposing sentence. *People v Fiammegta*, 14 NY3d 90.

PLEA OF GUILTY.

27. Withdrawal of Plea — Necessity of Hearing to Determine Voluntariness of Plea Conditioned on Defendant's Brief Release to See Seriously Ill Son.—The trial court abused its discretion when it denied defendant's motion to withdraw his guilty plea without a hearing to determine the voluntariness of the plea, which was conditioned on defendant receiving a three-week furlough to see his son who was in

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the hospital and in a coma. There was no indication on the record that the specific terms of the plea were subject to extended discussion or that defendant had sufficient time to consider the alternatives to taking it. The court never inquired about the impact the promised furlough had on defendant's decision to plead guilty or whether defendant was pleading guilty voluntarily. On the motion to withdraw the plea, defendant provided detailed allegations explaining the duress that he experienced based on his fear that his son might not survive. The court's reliance on the fact that defendant admitted his guilt to the charged crimes during the allocution did not inform the analysis of whether the plea was voluntary. Furthermore, the denial of defendant's previous request to be released from jail to see his son supported his contention that that desire influenced his decision to plead guilty. *People v Brown*, 14 NY3d 113.

28. Withdrawal of Plea — Voluntariness of Plea Conditioned on Grant of Furlough.—A plea bargain granting a furlough is not per se invalid. Such a plea may require special scrutiny by the court prior to accepting it, but so long as the totality of the circumstances reveals that the plea is voluntarily, knowingly and intelligently made, it will be upheld. No abuse of discretion will be found where the court, recognizing the potentially coercive nature of the plea terms, conducts a thorough inquiry to establish that defendant is pleading guilty willingly after considering other legitimate alternatives. Moreover, where a careful scrutiny of a motion to withdraw a guilty plea reveals that defendant's allegations fail to raise a legitimate question as to the voluntariness of the plea, the court may deny the motion without a hearing. *People v Brown*, 14 NY3d 113.

29. Withdrawal of Plea — Failure of Judge to Inform Defendant of Requirement of Sex Offender Registration.—Defendant was not entitled to withdraw her guilty plea on the ground that she was not informed by the judge during her plea colloquy that she would have to register as a sex offender under the Sex Offender Registration Act (Correction Law art 6-C [SORA]) as a consequence of her conviction of rape in the third degree. Registration pursuant to SORA is not a subject that a trial court must address at the plea hearing because it is a collateral rather than direct consequence of a guilty plea and the court's failure to address it did not undermine the knowing, voluntary and intelligent nature of defendant's plea. Notwithstanding that SORA imposes significant burdens on a registrant, regardless of risk level, SORA requirements are not part of the punishment imposed by the judge. Rather, SORA registration and risk-level determinations are nonpenal consequences that result from the fact of conviction for certain crimes. Thus, SORA is not a direct consequence of a conviction. *People v Gravino*, 14 NY3d 546.

30. Withdrawal of Plea — Failure of Judge to Inform Defendant of Certain Conditions of Probation.—Defendant, who pleaded guilty to course of sexual conduct against a child in the second degree in exchange for a split sentence of six months in jail and 10 years of probation, was not entitled to withdraw his guilty plea on the ground that he was not informed by the judge during his plea colloquy that he would be forbidden from associating with any child under the age of 18, even his own children, as a condition of probation. The terms and conditions of probation are not subjects that a trial court must address at the plea hearing because they are collateral rather than direct consequences of a guilty plea and the court's failure to address them did not undermine the knowing, voluntary and intelligent nature of defendant's plea. Courts taking guilty pleas cannot be expected to predict any and every potential condition of probation that might be recommended in the presentence report—an impossible task given the individualized nature of probation supervision. It was sufficient that defendant was made aware during the plea colloquy that his sentence would include a 10-year period of probation. *People v Gravino*, 14 NY3d 546.

31. Withdrawal of Plea — Failure to Advise of Collateral Consequences of Plea.—Registration pursuant to the Sex Offender Registration Act (Correction Law art 6-C [SORA]) and the terms and conditions of probation are not subjects that a trial court must address at the plea hearing because they are collateral rather than direct consequences of a guilty plea. A trial court's neglect to mention SORA or identify potential stipulations of probation during the plea colloquy does not, by

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itself, undermine the knowing, voluntary and intelligent nature of a defendant's guilty plea. Although a defendant must be apprised during the plea colloquy of the direct consequences of a guilty plea, the trial judge may, but need not, mention the collateral consequences of such a plea. A direct consequence has a definite, immediate and largely automatic effect on a defendant's punishment. The failure to warn of collateral consequences will not warrant vacating a plea because those consequences are peculiar to the individual and generally result from the actions taken by agencies the court does not control. It does not necessarily follow, however, that nondisclosure is always irrelevant to the question of whether a court should exercise its discretion to grant a motion to withdraw a plea. There may be rare cases in which a defendant can show that he or she pleaded guilty in ignorance of a consequence that, although collateral for purposes of due process, was of such great importance to the defendant that he or she would have made a different decision had that consequence been disclosed. *People v Gravino*, 14 NY3d 546.

PROOF OF OTHER CRIMES.

32. At the trial of defendant for criminally negligent homicide arising out of an incident that occurred when she hit and killed a pedestrian while backing her car, evidence that defendant's license was suspended at the time of the incident due to an earlier incident with some noticeable similarities was properly admitted. The license suspension was relevant to the issue of criminal negligence (Penal Law § 15.05 [4]). The jury had to determine whether defendant failed to perceive "a substantial and unjustifiable risk" that her careless driving would kill someone, and also whether that failure was "a gross deviation from the standard of care that a reasonable person would observe in the situation." The jury could find that the license suspension proved defendant to be more negligent than the other evidence showed her to be. Moreover, the probative value of that evidence was not substantially outweighed by the danger that it would unfairly prejudice defendant or mislead the jury. Because defendant's license had been suspended for conduct similar to the conduct that caused the victim's death—backing into a crosswalk—the jury was not misled if it inferred from the license suspension that defendant should have known that it was unsafe for her to drive. *People v Caban*, 14 NY3d 369.

33. At the trial of defendant for criminally negligent homicide arising out of an incident that occurred when she hit and killed a pedestrian while backing her car, the admission of evidence that defendant's license was suspended at the time of the incident due to an earlier incident with some noticeable similarities did not violate the rule that a defendant's uncharged crimes or bad acts are generally inadmissible when they serve only to show the defendant's criminal propensity. When the issue is criminal negligence, a prior similar act for which defendant has been punished shows more than propensity. A defendant who is repeatedly negligent in the same way may be found to be unable or unwilling to learn from her mistakes—and thus to be guilty not just of deviation, but of "gross deviation," from reasonable care. The prior conduct was thus directly relevant to the extent of defendant's negligence in the case on trial—to her mens rea. *People v Caban*, 14 NY3d 369.

RAPE.

34. Mentally Disabled Victim.—Legally sufficient evidence existed to support defendant's conviction of the second degree rape of a severely mentally disabled 17-year-old boy. Forensic DNA testing of a penile swab from the victim revealed the existence of significant amounts of defendant's DNA, which established that defendant had extended, noncasual contact with the victim's penis. Eyewitness evidence established that both the victim and defendant were naked. Moreover, the People elicited evidence that the victim did not understand sex and was not known to masturbate or ejaculate. This evidence provided a valid line of reasoning and permissible inferences that could lead a rational jury to conclude that the contact between defendant and the victim was sexual intercourse. The fact that other inferences could have been drawn by the jury does not render the evidence legally insufficient. *People v McDade*, 14 NY3d 760.

RIGHT OF CONFRONTATION.

35. Live Two-Way Televised Testimony — Authority of Trial Court to Permit Televised Testimony of Adult Witness.—Supreme Court had the authority to permit

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the adult complainant to testify at defendant's trial via live, two-way televised testimony following a finding of necessity. Although the Legislature has primary authority to regulate court procedure, the State Constitution permits the courts latitude to adopt procedures consistent with general practice as provided by statute. By enacting Judiciary Law § 2-b (3), the Legislature has explicitly authorized the courts' use of innovative procedures where "necessary to carry into effect the powers and jurisdiction possessed by [the court]." There is no specific statutory authority evincing legislative policy proscribing televised testimony, and, in fact, the CPL requires live video testimony of a child witness in a prosecution of a sex crime after a judicial finding of "vulnerability" (CPL art 65). Because article 65 addresses only a single, discrete circumstance and otherwise leaves courts' preexisting authority unaffected (*see* CPL 65.10 [3]), testimony via two-way televised transmission of a witness found to be elderly, infirm and physically incapable of appearing in court, as complainant was found to be by the trial court here, is presumably left to the trial court's discretion. Nor do the statutes providing for preservation of pretrial testimony implicitly preclude the admission of live video testimony. The CPL does not purport to list all instances where live video testimony is permissible or all possible solutions to the problem of an unavailable witness. *People v Wrotten*, 14 NY3d 33.

36. Live Two-Way Televised Testimony — Authority of Trial Court to Permit Televised Testimony of Adult Witness—Exercise of Authority Following Finding of Necessity Permissible under Confrontation Clause.—The exercise of Supreme Court's authority to permit live, two-way televised testimony of the adult complainant following a finding of necessity was permissible under the Confrontation Clauses of both the Federal and State Constitutions (*see* NY Const, art I, § 6; US Const 6th Amend). Assuming without deciding that two-way video does not always satisfy the Confrontation Clause's face-to-face confrontation requirement, complainant's testimony here would nonetheless be admissible under the federal standard if findings of necessity and reliability were made by Supreme Court. Live two-way video may preserve the essential safeguards of testimonial reliability, and so satisfy the Confrontation Clause's primary concern with ensuring the reliability of the evidence against a criminal defendant by subjecting it to rigorous testing in the context of an adversary proceeding before the trier of fact, provided all of the other elements of the confrontation right are preserved. Those traditional indicia of reliability, which include testimony under oath, the opportunity for contemporaneous cross-examination, and the opportunity for the judge, jury and defendant to view the witness's demeanor as he or she testifies, were all present here. Moreover, if Supreme Court's findings were supported by clear and convincing evidence, the requirement that an important public policy be furthered by the proposed procedure was satisfied. The public policy of justly resolving criminal cases while at the same time protecting the well-being of a witness can require live, two-way video testimony in the rare case where a key witness cannot physically travel to court in New York and where, as here, defendant's confrontation rights have been minimally impaired. *People v Wrotten*, 14 NY3d 33.

RIGHT TO BE PRESENT AT TRIAL.

37. Ex Parte Discussion between Trial Court and Jury Foreperson.—The trial judge, having received a personal note from the jury foreperson at defendants' criminal trial that stated, "Your Honor, I do not feel comfortable reading this verdict," acted within his discretion by seeking clarification of the note's meaning before notifying defense counsel. When a deliberating jury requests further instruction or information "with respect to the law, with respect to the content or substance of any trial evidence, or with respect to any other matter pertinent to the jury's consideration of the case," CPL 310.30 requires the trial court to return the jury to the courtroom and, after notifying the prosecution and defense counsel, give the requested information or instruction in defendant's presence. Here, the foreperson's personal note was ambiguous and, given its language, could have been substantive. As such, it might have been more prudent for the judge to follow the procedures specified in *People v O'Rama* (78 NY2d 270 [1991]) before responding to it. Nonetheless, the substance of the note related only to the foreperson's concern about the

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manner in which that verdict was to be delivered, and was nothing more than an inquiry of a ministerial nature, unrelated to the substance of the verdict. The trial judge was not required to notify defense counsel or provide them with an opportunity to respond, as neither defense counsel nor defendant could have provided a meaningful contribution. *People v Ochoa*, 14 NY3d 180.

RIGHT TO COUNSEL.

38. Effective Representation — Potential Conflict of Interest.—The potential conflict of interest that existed when one of defendant's attorneys was accused in court of joining with defendant in attempts to suborn perjury and to bribe a potential witness did not deprive defendant of the effective assistance of counsel. Defendant was fully informed of the potential conflict, and neither defendant nor his other attorney, who did not suffer from any alleged conflict, complained that the potentially conflicted attorney's continued representation of defendant operated on the defense. Further, defendant was simultaneously represented by his conflict-free attorney who was singlemindedly devoted to defendant's best interests. In light of the conflict-free attorney's active participation, defendant failed to establish that the potential conflict operated on the defense such that he was entitled to a new trial. *People v Konstantinides*, 14 NY3d 1.

39. Effective Representation — Potential Conflict of Interest.—Defendant failed to establish that the potential conflict of interest that existed when one of his attorneys was accused in court of joining with defendant in attempts to suborn perjury and to bribe a potential witness operated on the defense such that defendant was entitled to a new trial. Notwithstanding defendant's argument that the conflicted attorney, who presented the defense case, had to decide which witnesses to call and what questions to ask them, knowing that those decisions could affect his livelihood and liberty, defendant did not point to any evidence elicited by the conflicted attorney that was harmful to him. Defendant's allegations that the conflicted attorney did not present evidence that would have been helpful to his defense were speculative and unsubstantiated. There was no reason to believe that the prosecutor's application to disqualify the conflicted attorney dissuaded the defense from calling a witness who allegedly would have testified that the gun which defendant was charged with possessing belonged to an acquaintance of defendant. Defendant never attempted to show that the witness actually existed, and was willing to provide truthful and beneficial testimony. While the record on appeal was insufficient to establish that the witness might have given relevant and honest testimony, nothing prevented defendant from raising an ineffective assistance claim in a CPL 440.10 motion. *People v Konstantinides*, 14 NY3d 1.

40. Effective Representation — Potential Conflict of Interest.—Defendant's conviction of weapons crimes was not reversed notwithstanding the trial judge's failure to place on the record the follow-up discussions that must have taken place after the prosecutor asked the trial judge to disqualify one of defendant's attorneys due to a potential conflict of interest that existed because of the attorney's alleged attempts to suborn perjury and to bribe a potential witness. Defendant was not relieved of his obligation to demonstrate that the potential conflict of interest actually operated on the defense. *People v Konstantinides*, 14 NY3d 1.

41. Effective Representation — Potential Conflict of Interest.—Although defendant was not required to show that a potential conflict of interest, established when one of defendant's attorneys was accused in court of joining with defendant in attempts to suborn perjury and to bribe a potential witness, affected the trial's outcome, any potential conflict between defendant's and the conflicted attorney's interests, in fact, had no impact on defendant's conviction for weapons crimes. Defendant was acquitted of kidnapping—the only charge where any truthful testimony from the potential witness casting doubt on the credibility of defendant's acquaintance, whom he was with at the time of the charged crimes, would have been relevant—and attempted murder charges were ultimately dismissed after the jury failed to reach a verdict on those counts. Any possible testimony from the potential witness that the gun belonged to or was owned by the acquaintance would not negate evidence which conclusively established that defendant possessed a weapon with the

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intent to use it, and thus was guilty of the firearms crimes that he was convicted of committing. *People v Konstantinides*, 14 NY3d 1.

42. Effective Representation — Potential Conflict of Interest.—A per se rule mandating reversal in situations where a defense attorney is accused of criminal misconduct directly related to the representation of the defendant is not necessary to protect a defendant's right to conflict-free representation. A defendant does not have to establish that the conflict affected the outcome of the proceedings; a defendant must only show that the conflict operated on the defense. Here, defendant failed to make this minimum showing. *People v Konstantinides*, 14 NY3d 1.

43. Effective Representation — Failure to Request Submission of Homicide Counts in Alternative Not Ineffective Assistance.—In the prosecution of defendant arising from the death of a 20-month-old child, defense counsel's failure to ask the trial court to instruct the jury that it should consider the counts of depraved indifference murder of a child, first-degree manslaughter and second-degree manslaughter in the alternative did not constitute ineffective assistance of counsel. Because the counts of depraved indifference murder of a child and first-degree manslaughter as charged in the indictment were not inconsistent, it was proper to allow the jury to consider both offenses simultaneously rather than in the alternative. Depraved indifference murder of a child under Penal Law § 125.25 (4) requires that the defendant recklessly create a grave risk of serious physical injury or death under circumstances evincing a depraved indifference to human life. In contrast, first-degree manslaughter under Penal Law § 125.20 (4) involves an intent to cause physical injury. A defendant can intend one result while recklessly creating a grave risk of a different, more serious result. Further, because two of the four Appellate Divisions have ruled that second-degree manslaughter is not a lesser included offense of depraved indifference murder of a child, it was not unreasonable for defendant's trial attorney to believe that the jury could consider both depraved indifference murder of a child and manslaughter in the second degree, and that those counts did not have to be charged in the alternative. In any event, defendant did not show that there was no legitimate tactical reason for trial counsel's decision to accept the charge regarding second-degree manslaughter. *People v Baker*, 14 NY3d 266.

44. Effective Representation — Counsel's Actions in Encouraging Defendant to Speak with Police.—Defendant, who had agreed, after conferring with counsel, to speak with the police and gave a statement implicating himself in a high-speed pursuit that resulted in the death of a state trooper, failed to establish that he received ineffective assistance of counsel. After defendant's attorney arrived at the police barracks the attorney was told by representatives of the District Attorney's Office that the District Attorney would look favorably upon defendant if he voluntarily gave a statement. He was also told that the police had received information that defendant was in fact the person being sought and that the police had the names of other persons who had spoken to defendant. Defendant's attorney made the strategic decision to encourage defendant to cooperate in order to receive favorable treatment once charges were brought. Even assuming that the right to effective assistance of counsel attached prior to defendant's inculpatory statement and that suppression is the appropriate remedy where a statement is given as the result of ineffective assistance of counsel, it could not be said that defendant received less than meaningful representation. *People v Carncross*, 14 NY3d 319.

45. Effective Representation — Potential Conflict of Interest.—County Court did not abuse its discretion in granting the prosecution's motion to disqualify the defense counsel who had represented defendant's father and girlfriend at the grand jury. Defendant was charged with aggravated criminally negligent homicide and related crimes arising from the death of a state trooper in a car accident while pursuing defendant in a high-speed chase, and the testimony defendant's father and girlfriend gave before the grand jury would have been damaging to the possible defense theory that defendant was not the person who had been driving the pursued motorcycle. Although defendant's father and girlfriend never actually testified at trial, at the time the disqualification motion was made the parties were operating under the assumption that defendant's father and girlfriend might well be called as prosecution witnesses. Any identity of interest defendant's father and girlfriend

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may have had with defendant would have dissolved if they were called as witnesses for the prosecution, or if defense counsel opted for a strategy tailored to avoid having to cross-examine them. The trial court, in granting the disqualification motion despite defendant's waiver of the conflict on the record, carefully balanced defendant's right to counsel of his own choosing against his right to effective assistance of counsel. *People v Carncross*, 14 NY3d 319.

46. In a prosecution for first degree sexual abuse and a related offense, the order of the Appellate Division affirming defendant's conviction was affirmed. Whether defendant's request for counsel was or was not unequivocal presented a mixed question of law and fact which was beyond further review in the Court of Appeals since there was record evidence to support the finding below. *People v Edwards*, 14 NY3d 733.

RIGHT TO PUBLIC TRIAL.

47. No violation of defendant's right to a public trial occurred when the trial court granted the prosecutor's request to exclude the mother of defendant's children from the trial because she was a potential witness. Courts have the discretion to exclude potential witnesses from the courtroom without contravening the Sixth Amendment right to a public trial. It was not unreasonable for the court to find that the woman might be called as a rebuttal witness for the People, notwithstanding the fact that defense counsel indicated that he would not call her to the stand because her Family Court attorney prohibited her from being interviewed. *People v Baker*, 14 NY3d 266.

RIGHT TO SPEEDY TRIAL.

48. Exceptional Circumstances Exclusion.—In the prosecution of defendant for attempted disseminating indecent material to minors in the first degree, the period between an Appellate Division decision in an unrelated case which the People believed barred them from proceeding with defendant's prosecution and the Court of Appeals' reversal of that decision was not excludable for speedy trial purposes as an "exceptional circumstance" under CPL 30.30 (4) (g). There is no precise definition of what constitutes an exceptional circumstance under CPL 30.30 (4) (g). However, the range of application of the exclusion is limited by the dominant legislative intent of CPL 30.30 to discourage prosecutorial inaction. Thus, its application has been allowed only when the People for practical reasons beyond their control cannot proceed with a legally viable prosecution. Here, after the Appellate Division's decision, there could have been no legal basis to proceed further against defendant and the criminal complaint could have been withdrawn at that juncture. Subsequently, when the prosecution again became legally viable after the reversal by the Court of Appeals, the People could have attempted to recommence the prosecution. Although the circumstances presented were unusual, they were not exceptional within the meaning of CPL 30.30 (4) (g). The prosecutorial inaction resulting in the prolonged pendency of a criminal complaint against defendant without any judicial intervention and any notification to defendant of the status of the proceeding was the sort of conduct that CPL 30.30 was intended to curb. Legal rulings are routine events in criminal trials. The fact that a particular ruling may be erroneous does not by itself transform that ruling into an exceptional circumstance. *People v Price*, 14 NY3d 61.

49. An order of the Appellate Division, which affirmed an order granting defendant's motion to dismiss the indictment against him on speedy trial grounds, was affirmed (*see People v Price*, 14 NY3d 61 [2010]). *People v Zarate*, 14 NY3d 725.

50. An order of the Appellate Division, which affirmed an order granting defendant's motion to dismiss the indictment against him on speedy trial grounds, was affirmed (*see People v Price*, 14 NY3d 61 [2010]). *People v Luciere*, 14 NY3d 726.

51. An order of the Appellate Division, which affirmed an order granting defendant's motion to dismiss the indictment against him on speedy trial grounds, was affirmed (*see People v Price*, 14 NY3d 61 [2010]). *People v Cozzani*, 14 NY3d 727.

SEARCH WARRANT.

52. There was an insufficient predicate for issuance of a search warrant authorizing the search of all persons present at the time of its execution where the affidavit submitted in support of the warrant application stated that two controlled purchases

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of cocaine had been made by known and reliable informants at an apartment in a two-story residential building. Accordingly, the contraband defendant was convicted of possessing, which was recovered from his person by means of a strip search conducted on the authority of the all-persons-present warrant, should have been suppressed. Notwithstanding that warrants are constitutionally required to “particularly describ[e] . . . the persons . . . to be seized” (US Const 4th, 14th Amends; NY Const, art I, § 12), CPL 690.15 (2) states that “[a] search warrant which directs a search of a designated or described place, premises or vehicle, may also direct a search of any person present thereat or therein.” In order to apply the statute without constitutional offense, the facts known and the reasonable inferences to which they give rise must create a substantial probability that the authorized invasions of privacy will be justified by discovery of the items sought from all persons present when the warrant is executed. Here, two isolated purchases of what must be supposed to have been small quantities of narcotics did not suffice to show that a residential location had been given over entirely to the drug trade, much less that every person at the location was probably a participant in drug trafficking. The warrant application did not state, as required, whether any innocent use of the premises had been observed. Nor was there information in the application respecting the number or behavior of the persons ordinarily present at the apartment at the time of the sought warrant’s contemplated execution. The governing standard was not met by language in the warrant application to the effect that some persons present at the subject residence might have cocaine upon their persons. *People v Mothersell*, 14 NY3d 358.

SENTENCE.

53. Persistent Violent Felony Offender — Constitutionality of Prior Conviction — Hearing.—Defendant was not improperly denied a hearing to challenge a prior conviction on constitutional grounds in connection with his adjudication as a persistent violent felony offender. Defendant’s unsupported allegations that he wanted to call numerous witnesses who, he claimed, would demonstrate that his “guilty pleas were coerced” and that his attorney was “ineffective” were insufficient to entitle defendant to a hearing on the constitutionality of his prior conviction (*see* CPL 400.15). Defendant did not explain how his guilty pleas were coerced or in what way his attorney was ineffective. Nor did defendant indicate what information the named witnesses would provide on these issues. *People v Konstantinides*, 14 NY3d 1.

54. Resentence — Postrelease Supervision.—Resentencing courts do not have the option of declining to impose postrelease supervision (PRS) regardless of whether the People consent to that disposition. Penal Law § 70.85 specifies that in cases where PRS was required but not explicitly pronounced at sentencing, the matter may be returned for resentencing pursuant to Correction Law § 601-d, and the court may decide to reimpose the original determinate sentence without PRS “only on consent of the district attorney.” Hence, a court may decline to impose PRS during resentencing only when the People issue the statutorily required consent under Penal Law § 70.85. *People v Williams*, 14 NY3d 198.

55. Resentence — Postrelease Supervision.—The resentencing proceedings of defendants, who had completed serving their sentences of imprisonment and had been released from prison but whose original sentences failed to include a mandatory term of postrelease supervision, were not barred by CPL 440.40 even though resentencing occurred more than one year after defendants were initially sentenced. CPL 440.40, which allows the People to move to set aside an invalid sentence within one year of its imposition, does not impose a one-year limitation on a court’s authority to rectify an illegal sentence. The statute was designed to restrict the People’s ability to move to set aside an illegal sentence and did not place a similar restriction on the court’s inherent ability to correct its own errors. *People v Williams*, 14 NY3d 198.

56. Resentence — Postrelease Supervision — Double Jeopardy.—The Double Jeopardy Clause of the Fifth Amendment barred the imposition of postrelease supervision at the resentencing of defendants, who had completed serving their sen-

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tences of imprisonment and had been released from prison but whose original sentences failed to include a mandatory term of postrelease supervision. After defendants were released from prison, a legitimate expectation in the finality of a sentence arose and the Double Jeopardy Clause prevented reformation to attach a postrelease supervision component to the original completed sentence. So long as an illegal sentence is subject to correction, a defendant cannot claim a legitimate expectation that the originally imposed improper sentence is final for all purposes. However, there must be a temporal limitation on a court's ability to resentence a defendant. Accordingly, once a defendant was released from custody and returned to the community after serving the period of incarceration that was ordered by the sentencing court, and the time to appeal the sentence had expired or the appeal had been finally determined, there was a legitimate expectation that the sentence, although illegal under the Penal Law, was final and the Double Jeopardy Clause prevented a court from modifying the sentence to include a period of postrelease supervision. This expectation was not altered by the fact that some defendants were released from prison after serving less than the entire term of their determinate sentences or that some defendants signed documents pertaining to postrelease supervision before their release. *People v Williams*, 14 NY3d 198.

57. Resentence — Timeliness.—CPL 380.30, which requires that sentences must be imposed “without unreasonable delay,” did not cause sentencing courts seeking to correct illegal sentences that had failed to include a mandatory period of postrelease supervision to lose their jurisdiction over defendants who had completed their terms of imprisonment and were released from prison. Even assuming the statute applied, it was not violated because defendants were resentenced within a reasonable time after the Department of Correctional Services notified the courts that defendants were “designated persons” who qualified for resentencing under Correction Law § 601-d. *People v Williams*, 14 NY3d 198.

58. Probation — Split Sentence — Jail-Time Credit.—Where defendant received a split sentence of incarceration and probation, his jail-time credit toward the sentence of imprisonment also reduced his term of probation, and because his term of probation had expired prior to the filing of a declaration of delinquency, Supreme Court lacked authority to adjudicate defendant a probation violator. Where a court imposes a split sentence, the term of imprisonment and term of probation run concurrently and together may not exceed five years for most felony offenses (Penal Law § 60.01 [2] [d]; § 65.00). Thus, in cases where a defendant has been incarcerated pending sentencing and, as a result, receives credit for time served toward the term of imprisonment of a split sentence (*see* Penal Law § 70.30 [3]), that defendant's probationary term is also reduced by the period the defendant was incarcerated prior to sentencing. By calculating defendant's term of probation to begin at the same time as and to run concurrently with the term of incarceration, compliance is effected with both the split sentence statute and Penal Law § 65.15, which provides that a period of probation commences on the day it is imposed. Defendant's period of probation, “reduced” by the period of presentence incarceration, begins on the day the sentence is imposed. Even if Penal Law § 65.15 (1) can be read to conflict with the specific directive of Penal Law § 60.01 (2) (d), the latter provision would govern as it is the more specific statutory command as well as the later-enacted statute. Penal Law § 70.30 (3), which is silent about credit to be given against a probationary term, should not be read in isolation. Finally, a defendant's term of probation should not be reduced by time-served credit longer than the sentence of imprisonment. *People v Zephrein*, 14 NY3d 296.

59. Concurrent and Consecutive Terms — Drug Law Reform Act.—A court that resentenced defendant pursuant to the Drug Law Reform Act of 2004 (L 2004, ch 738, § 23) did not possess the authority, pursuant to Penal Law § 70.25 (1), to determine whether the sentence was to be served concurrently or consecutively with respect to other sentences being served by defendant. The purpose of the Act is to ameliorate the harsh sentences required by the original Rockefeller Drug Law. When a court imposes a reduced sentence under the amended statute it does not impose an “additional term of imprisonment” as contemplated by section 70.25 (1). Nor is a proceeding pursuant to the Act used to modify an original term of

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resentence. Rather, the proceeding is meant to effect an alteration of the existing sentence as authorized by law. *People v Acevedo*, 14 NY3d 828.

60. Concurrent and Consecutive Terms — Lesser Included Offenses.—Concurrent sentences were incorrectly imposed for defendant's conviction on two counts of predatory sexual assault on a child where it was impossible to determine if the act that formed the basis for the jury's guilty verdict on one count, anal sexual conduct occurring on a specific date, was also one of the two or more acts that formed the basis for its guilty verdict on the other count, which alleged improper sexual conduct during a time span that included the specific date mentioned in the first count. Penal Law § 70.25 (2) provides, "[w]hen more than one sentence of imprisonment is imposed on a person for two or more offenses committed through a single act or omission, or through an act or omission which in itself constituted one of the offenses and also was a material element of the other, the sentences . . . must run concurrently." To seek consecutive sentencing in these circumstances, the People should request a form of verdict that will require the jury to explicitly delineate that an act constituting one offense is not a material element of another offense. *People v Alford*, 14 NY3d 846.

61. Resentence.—An order of the Appellate Division, which modified a judgment convicting defendant of two counts of vehicular assault in the second degree and driving while intoxicated, and sentencing him to two one-year concurrent definite terms for vehicular assault and a one-year definite term for driving while intoxicated, to be served consecutively, by vacating the sentence and remitting the matter to County Court for, among other things, resentencing, was reversed and so much of the order as authorized County Court to entertain a motion by the People to vacate the plea and set aside the conviction vacated. The People did not appeal from so much of the order as vacated the sentence imposed by County Court. Thus, the Court of Appeals had no power to grant the People affirmative relief, and it therefore did not consider the People's argument that the consecutive terms imposed by County Court for vehicular assault and for driving while intoxicated were permissible. Defendant's sentence having been vacated, County Court was required to resentence defendant in accordance with the law, and lacked power to vacate the conviction or the plea. *People v Backus*, 14 NY3d 876.

62. Concurrent and Consecutive Terms.—In a criminal prosecution for a knife attack on two victims in which defendant was convicted of attempted murder, assault and burglary charges in one trial and felony murder in a subsequent retrial on that charge, the trial court was free to make defendant's sentence for killing the deceased victim consecutive to the previously imposed sentences for what was an earlier and separate knife attack on the surviving victim committed during defendant's extended criminal rampage. The retrial was a nonjury trial where the judge, as fact-finder, would have known when he sentenced defendant what facts he had found. There was no uncertainty about whether the facts supported a consecutive sentence owing to a lack of specificity in the jury charge. *People v Frederick*, 14 NY3d 913.

63. Resentence — Postrelease Supervision.—Defendant was improperly resentenced to a period of postrelease supervision (PRS) after being released from prison. PRS was not discussed during defendant's plea proceeding or at sentencing, and the Double Jeopardy Clause of the Federal Constitution precludes a court from adding PRS to a defendant's sentence once the defendant has already been released from imprisonment. *People v Williams*, 14 NY3d 924.

64. Resentence — Postrelease Supervision.—Defendant was improperly resentenced to a period of postrelease supervision (PRS) after being released from prison. Although PRS was discussed during the plea proceeding, Supreme Court did not inform defendant of the specific term of PRS it intended to impose, and did not pronounce PRS at sentencing. The Double Jeopardy Clause of the Federal Constitution precludes a court from adding PRS to a defendant's sentence once the defendant has been released from imprisonment. *People v Hassell*, 14 NY3d 925.

SEX OFFENDERS.

65. Sex Offender Registration Act — What Constitutes Dangerous Instrument under "Use of Violence" Risk Factor.—In a proceeding to determine defendant's

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risk level classification under the Sex Offender Registration Act (SORA), the People proved by clear and convincing evidence that defendant was armed with a dangerous instrument during the commission of the crime, warranting assessment of 30 points under risk factor 1. Defendant had displayed a gun to his victim before he raped her, told her “[i]f I can’t have you, no one will” and afterwards threatened to shoot her if she told anyone. Under the Risk Assessment Guidelines and Commentary, a “[d]angerous instrument means ‘any instrument, article or substance, which, under the circumstances in which it is used, attempted to be used or threatened to be used, is readily capable of causing death or other serious physical injury’ ” (Sex Offender Registration Act: Risk Assessment Guidelines and Commentary, at 8 [2006], quoting Penal Law § 10.00 [13]). Defendant’s display of the gun to the victim and threat to shoot her constituted clear and convincing evidence that the gun was a dangerous instrument. The People were not required to prove that the gun was loaded and operable. *People v Pettigrew*, 14 NY3d 406.

UNLAWFUL SEARCH AND SEIZURE.

66. Strip Search.—The contraband defendant was convicted of possessing, which was recovered from his person by means of a strip search conducted on the authority of a warrant authorizing the search of all persons present at the time of its execution, should have been suppressed in the absence of the existence of specific facts to support a reasonable suspicion that defendant had secreted contraband beneath his clothes or in a body cavity. Since such a predicate did not exist at the time that the warrant was sought, these extraordinary intrusions could not have been within any authority the warrant was capable of conferring. A post-arrest strip search must be based upon reasonable suspicion that an arrestee is hiding contraband beneath his or her clothing, and a search involving visual examination of an arrestee’s anal and genital cavities—a distinctly elevated level of intrusion, which must be separately justified—may not be performed except upon a specific, articulable factual basis supporting a reasonable suspicion to believe the arrestee secreted evidence inside a body cavity. Thus, even where there is probable cause for an arrest, and a suspect has been arrested—something that had not yet occurred at the time of the search of defendant herein—there must, in addition to the predicate for the arrest, be grounds to justify the very significant intrusion of a strip or visual body cavity search. *People v Mothersell*, 14 NY3d 358.

67. Department of Motor Vehicle Records Not Suppressible as Fruit of Unlawful Stop.—Department of Motor Vehicle (DMV) records disclosing prior suspensions of defendant’s driver’s license were not suppressible as the fruit of a purportedly illegal traffic stop. Police officers learned defendant’s identity when they stopped his car, and that knowledge permitted the police to run a computer check that led to the retrieval of his DMV records. Since the identity of a defendant is never itself suppressible as a fruit of an unlawful arrest, the preexisting DMV records discovered here as the result of the police learning defendant’s identity were likewise not suppressible. The DMV records were public records already in the possession of authorities, obtained from a source independent of the claimed illegal stop. Moreover, the policy rationale of the exclusionary rule would not be served by its application to identity-related evidence. Although fingerprint evidence may be subject to the exclusionary rule in situations where defendants are illegally stopped for the purpose of obtaining fingerprints to connect them to latent prints recovered from the scene of a crime under investigation, such evidence establishes the defendants’ “identities” as the perpetrators, but not their “identities” in the sense relevant here. *People v Tolentino*, 14 NY3d 382.

68. Warrantless Entry into Home — Exigent Circumstances.—Although warrantless entries into a home to make an arrest are presumptively unreasonable, the police may, provided that there is probable cause, proceed without a warrant to effectuate an arrest within a home if exigent circumstances exist to justify a warrantless entry. Factors that will assist a suppression court in its analysis of whether exigent circumstances are present include: the gravity or violent nature of the offense with which the suspect is to be charged; whether the suspect is reasonably believed to be armed; a clear showing of probable cause to believe that the

CRIMES—Cont'd

suspect committed the crime; strong reason to believe that the suspect is in the premises being entered; a likelihood that the suspect will escape if not swiftly apprehended; and the peaceful circumstances of the entry. The list of factors is not definitive or exhaustive, however, and the ultimate inquiry a suppression court must make is whether in light of all the facts of the particular case there was an urgent need that justified a warrantless entry. *People v McBride*, 14 NY3d 440.

69. Warrantless Entry into Home — Exigent Circumstances.—Exigent circumstances justified the warrantless entry by the police into defendant's home to arrest him three days after the police identified defendant as the suspect in an armed robbery. The police had probable cause to arrest defendant when they went to his apartment and asked him to voluntarily come out and speak with them. The young woman who answered the door at defendant's apartment appeared to be having difficulty breathing and was hyperventilating and unresponsive to the questions posed by a detective, who then entered the apartment based on his belief that the woman was facing a life-threatening situation. There was record support for the findings below that the police had strong reason to believe that defendant was inside his apartment, that they only entered the apartment after the woman opened the door and they observed that she was crying, hyperventilating, and unresponsive to their questions, and that it was not the conduct of the police officers when they arrived at defendant's home that created the exigency. Those affirmed findings, having support in the record, precluded further review by the Court of Appeals. It would, however, have been more prudent if the police obtained a warrant for defendant's arrest before going to his home. *People v McBride*, 14 NY3d 440.

70. In a prosecution for criminal possession of stolen property in the fourth degree arising from defendant's attempted use of a credit card in a vending machine, the Appellate Division's determination that the officer's conduct did not elevate his encounter with defendant from a common-law inquiry to a seizure necessitating reasonable suspicion constituted a resolution of a mixed question of law and fact that was supported by the record evidence, and was therefore beyond the further power of review of the Court of Appeals. *People v Francois*, 14 NY3d 732.

71. Search of Vehicle after Stop for Traffic Infraction.—The trial court properly denied defendant's motion to suppress crack cocaine discovered after police stopped the car he was driving based on probable cause to believe that a traffic infraction had occurred. The initial stop of defendant's vehicle was permissible and the police officers' subjective motivation to investigate possible drug activity did not negate the objective reasonableness of their actions. As a matter of law, the officers did not inordinately prolong the detention beyond what was reasonable under the circumstances to address the traffic infraction. Because drug residue was first seen while the police had a justifiable basis to continue the detention for the traffic infraction, that observation provided probable cause to arrest and search defendant, and the subsequent impoundment and inventory search of the vehicle were valid. *People v Edwards*, 14 NY3d 741.

72. Standing.—In a prosecution for illegal possession of drugs and a weapon, defendant failed to raise an issue of fact entitling him to a suppression hearing as to the weapon found on his person while the police were executing a search warrant at an apartment building, since defendant's motion papers did not contain factual allegations that probable cause for the issuance of the warrant was lacking. Moreover, defendant did not assert a privacy interest in the apartment which was the target of the warrant in his motion papers or at oral argument. He merely argued that the search warrant was issued without probable cause, and that he did not match the description of the individuals named in the warrant. Thus, he did not meet his burden to establish standing to seek suppression of the drugs found in the apartment. *People v Scully*, 14 NY3d 861.

WITNESSES.

73. Prior Consistent Statement.—In the prosecution of defendants on robbery and related charges, the prosecutor's redirect examination of the victim after defense counsel impeached the victim with false statements he had made in his two appearances before the grand jury did not constitute improper bolstering. The victim,

CRIMES—Cont'd

whose trial testimony against defendants was not a model of consistency, did not want the police to know that he had been smoking crack cocaine with defendants and the other prosecution witness in the witness's apartment on the night of the incident. On cross-examination by defense counsel, the victim conceded that he testified before the grand jury that the robbery occurred as he and the other witness walked into the building, that a bat was used during the incident, and that he had never associated with defendants prior to the incident—all of which was untrue. In an attempt to explain the inconsistency between his trial testimony and grand jury testimony, the victim testified that he was "confused" by certain of the questions asked of him before the grand jury. On redirect examination, the prosecutor was properly permitted to ask the victim whether, at the time of his grand jury testimony, he was "confused" about what item he possessed on the day of the incident, whom he visited that day, how he was injured and who injured him. Those questions on redirect were addressed to matters raised by defense counsel on cross-examination, and did no more than to explain, clarify and fully elicit a question only partially examined by the defense. *People v Ochoa*, 14 NY3d 180.

74. Prior Consistent Statement.—In the prosecution of defendants on robbery and related charges, the prosecutor's redirect examination of a witness who had been confronted on cross-examination by defense counsel with statements to police that she later admitted were untrue did not constitute improper bolstering. The witness, whose trial testimony against defendants was not a model of consistency, did not want the police to know that she had been smoking crack cocaine in her apartment with defendants and the victim on the night of the incident. Defense counsel elicited testimony from the witness that she lied in her written statement to police when she stated that defendants followed her and the victim into the building and mugged them, that one of the defendants took \$50 from the victim, and that one of the defendants pushed her during the encounter. On redirect examination, the prosecutor elicited from the witness that the name on the statement was hers, and that the pedigree information, the apartment address and where the altercation occurred were correct. The witness also testified that, relative to the statement, the names of the defendants and the victim were correct, but that she lied when she stated that \$50 had been taken, when she said that she and the victim were attacked upon entering the building, and when she told police that one of the defendants pushed her. The prosecutor was properly permitted to ask the witness to clarify which parts of her statement she claimed were true, and which were not true, in order to fill in the gaps that defense counsel left during cross-examination after implying that the witness's entire statement to police was a lie. *People v Ochoa*, 14 NY3d 180.

75. Failure to Call Witness.—In a prosecution for first degree sexual abuse and a related offense, the order of the Appellate Division affirming defendant's conviction was affirmed. Defendant requested a missing witness charge, and although he argued that the uncalled witness could have either contradicted or corroborated the complaining witness, he did not demonstrate that her testimony would have been noncumulative or expected to be favorable to the People. *People v Edwards*, 14 NY3d 733.

76. Failure to Call Witness.—In a prosecution for attempted murder and related crimes, Supreme Court did not abuse its discretion in holding that defendant's request for a missing witness charge, made more than a week after the People provided their witness list and after the People had rested their case in chief, came too late. Defendant knew at the outset of the trial that the People did not intend to call three of the victim's relatives who were present at the time of the alleged crime. A party seeking a missing witness instruction has the burden of making the request "as soon as practicable." Whether such a request is timely is a question to be decided by the trial court in its discretion, taking into account both when the requesting party knew or should have known that a basis for a missing witness charge existed, and any prejudice that may have been suffered by the other party as a result of the delay. *People v Carr*, 14 NY3d 808.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles.

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles.

DECLARATORY JUDGMENTS.

WHEN REMEDY AVAILABLE.

1. Declaratory Judgment Action Brought Prior to Criminal Action.—In a declaratory judgment action brought by plaintiff Indian tribe seeking a declaration that it was under no obligation to collect and transmit sales taxes on the cigarettes plaintiff sold to consumers in its two convenience stores because the stores were located on “qualified reservation” property within the meaning of Tax Law § 470 (16) (a), which action was brought the day after search warrants were executed at plaintiff's stores and the inventories of unstamped cigarettes were confiscated, defendants' motion to dismiss the action on the ground that it would interfere with a pending criminal prosecution was properly denied. No criminal action had been initiated against any identified party at the time the declaratory judgment action was commenced. The general rule is that, once a criminal action has been initiated, a criminal defendant may not bring a declaratory judgment action to raise a statutory interpretation or other issue that can be adjudicated in the criminal prosecution. Before a criminal action is commenced, however, a declaratory judgment action may be entertained in the discretion of the court if the constitutionality or legality of a statute or regulation is in question and no question of fact is involved. A party is not categorically precluded from initiating a declaratory judgment action based on nothing more than the execution of a search warrant when the issue to be raised involves a pure question of law—such as a query concerning the scope and interpretation of a statute or a challenge to its constitutional validity—and the facts relevant to that issue are undisputed, as they were here. *Cayuga Indian Nation of N.Y. v Gould*, 14 NY3d 614.

2. Declaratory Judgment Action Brought Prior to Criminal Action — When Criminal Action Commenced.—By stating in *Kelly's Rental v City of New York* (44 NY2d 700, 702 [1978]) that “[a] party against whom a criminal proceeding is pending may not seek declaratory relief,” the Court of Appeals did not expand the rule precluding the use of declaratory judgment actions to encompass situations where a search warrant application was executed but no party was named as the defendant and no accusatory instrument had been filed against any person or company at the time civil relief was sought. Although, under the Criminal Procedure Law, the filing of a search warrant application commences a “criminal proceeding” (*see* CPL 1.20 [18]), while a “criminal action” is not initiated until an accusatory instrument is filed against a defendant (*see* CPL 1.20 [16]), the Court of Appeals did not cite the Criminal Procedure Law in *Kelly's Rental*, nor did the Court mean to invoke the definition embodied therein when it used the phrase “criminal proceeding” informally instead of the more technically accurate “criminal action” to describe the procedural posture of the underlying prosecution. *Cayuga Indian Nation of N.Y. v Gould*, 14 NY3d 614.

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

DEPOSITIONS.

See DISCLOSURE.

DISCONTINUANCE.

See DISMISSAL AND NONSUIT.

DISCOVERY AND INSPECTION.

See DISCLOSURE.

DIVORCE.

See HUSBAND AND WIFE.

DOUBLE JEOPARDY.

See CRIMES.

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS.

ELECTIONS.**ABSENTEE BALLOTS.**

1. Validity — Presence of Absentee Ballot Applications in Same Envelope.— Absentee ballots were not invalidated by the presence of absentee ballot applications in the same envelope because no marks on the ballots themselves identified the voters (*see* Election Law § 9-112 [1]). *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.

2. Validity.—The fact that the Board of Elections did not receive completed absentee ballot applications prior to sending absentee ballots to two voters did not require invalidation of the absentee ballots. The Board had received applications for absentee ballots from both voters within the applicable time period before the election. However, the applications did not contain necessary information since they failed to state where the voters would be at the time of the election and the dates of their absence from the district. The Board thereafter mailed absentee ballots to both voters with instructions to return the completed application together “with [the absentee] ballot or [the] ballot will not be counted.” The voters returned their completed absentee ballot applications with the absentee ballots, and the applications were examined separately to ascertain the qualification of each voter to cast an absentee ballot. Thus, the Board had a basis upon which to determine that the two voters were entitled to vote as absentee voters. The slight deviation from prescribed procedure utilized by the Board could be viewed as substantial compliance with statutory directives (*see* Election Law §§ 8-400, 8-402 [1], [2]). The defect in the procedure was not a substantive deficiency implicating voter qualification. *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.

BALLOTS.

3. Optical Scan Ballots Rejected as Unreadable to be Hand-Counted.—The Board of Elections properly hand-counted two optical scan ballots that had been completed by voters but were rejected as unreadable by the optical scan machine. Pursuant to the express language of the applicable regulations (9 NYCRR 6210.13 [A] [8], [11] [a], [b]), because the ballots were “non-machine processable as submitted” by the voters, the votes were required to be manually counted and added to the canvass. Notwithstanding that one ballot contained check marks inserted within the squares instead of completely filled-in squares and the other contained some marks that overran the squares, the ballots clearly indicated the voters’ selections for candidates and were valid (*see* 9 NYCRR 6210.13 [A] [2], [3]). *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.

RESIDENCE REQUIREMENT.

4. The affidavit ballot of a voter was properly invalidated where the record established that the voter did not have dual residences in different counties and, as a matter of law, did not have a residence in the county in which she voted. An individual with legitimate, significant and continuing attachments to two residences may choose either one as a residence for purposes of the Election Law (*see* Election Law § 1-104 [22]). Although the voter had stayed at a house in the county in which she had voted for three consecutive summers and hoped to return for a fourth, she did not own the home, did not pay rent and might not be permitted to return. As a matter of law, the voter’s physical presence at her apartment in another county, coupled with her expressed intent to remain there permanently, sufficed to establish that as her residence. Moreover, the voter lacked significant and continuing attachments to the house sufficient to create a bona fide second residence for the purpose of voting. *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

SOLICITATION OF FORMER EMPLOYER'S CUSTOMERS.

1. Breach of Fiduciary Duties.—In an action arising out of the individual defendants' resignation from plaintiff's employment and their founding of a competing business, causes of action seeking injunctive relief or damages for misappropriation of client lists or trade secrets prior to their resignation were dismissed. The confidentiality agreements executed by defendants did not prohibit them from soliciting plaintiff's clients or contacting its business referrers after their termination of employment. Plaintiff failed to raise triable issues of fact as to whether its customer lists constituted a trade secret, and whether defendants improperly used plaintiff's performance data or took any confidential customer information before leaving plaintiff's employ. But plaintiff did raise questions of fact regarding whether defendants breached their fiduciary duties by using plaintiff's time and resources to form their new business and promote themselves while still working for plaintiff, and whether defendants improperly accessed one of plaintiff's accounts to discover client information after their employment with plaintiff had ceased. *Ashland Mgt. Inc. v Altair Invs. NA, LLC*, 14 NY3d 774.

ENVIRONMENTAL CONSERVATION.**HAZARDOUS WASTE.**

1. Brownfield Cleanup Program.—Respondent Department of Environmental Conservation (DEC) acted arbitrarily and capriciously and contrary to law when it determined that the properties which petitioner sought to develop did not fall within the statutory definition of a brownfield site (ECL 27-1405 [2]) and denied petitioner's requests for acceptance of the properties into the Brownfield Cleanup Program (ECL art 27, tit 14 [BCP]). A "brownfield site" is broadly defined as "any real property, the redevelopment or reuse of which may be complicated by the presence or potential presence of a contaminant." The meaning of the term "brownfield site" presents a question of pure statutory reading. Real property qualifies as a "brownfield site" for purposes of acceptance into the BCP so long as the presence or potential presence of a contaminant within its boundaries makes redevelopment or reuse more complex, involved or difficult in some way. Petitioner's properties were concededly contaminated with multiple contaminants, often exceeding generally accepted cleanliness levels, and other environmental standards or criteria. One of the properties had for years been included in the DEC's database of hazardous substance waste disposal sites. Further, petitioner presented undisputed evidence demonstrating that the presence of contaminants at the properties had complicated redevelopment or reuse in several ways. Notwithstanding DEC's assurance that the overall profile of contamination on the properties did not call for remedial action, without a release of liability under the BCP, neither petitioner nor its prospective lender could be confident that regulatory views about the necessity for or the adequacy of any self-directed cleanup would not change in the future. *Matter of Lighthouse Pointe Prop. Assoc. LLC v New York State Dept. of Envtl. Conservation*, 14 NY3d 161.

ESTOPPEL.**JUDICIAL ESTOPPEL.**

1. Validity of Absentee Ballots.—In consolidated proceedings pursuant to Election Law article 16, appellant candidate was not judicially estopped from adopting the position that certain absentee ballots were invalid. Appellant had initially sought to "open and count" those ballots, but when Supreme Court directed the Board of Elections to open the ballot envelopes to ascertain the contents of the envelopes and appellant learned that the ballots were cast in favor of respondent candidate, appellant commenced a second proceeding, altering the position he took in the first proceeding and seeking to have Supreme Court invalidate the ballots. Respondent,

ESTOPPEL—Cont'd

like appellant, adopted a different position once the absentee ballot envelopes were opened, and could hardly assert that he was prejudiced when appellant merely adopted respondent's original position. Further, it was not clear on the record that appellant was successful in persuading Supreme Court to adopt his initial position. Thus, the doctrine of judicial estoppel was inapplicable. *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles.

HEARSAY EVIDENCE.

1. Indicia of Reliability — Dram Shop Act.—In a Dram Shop Act action involving a convenience store's allegedly illegal sale of alcohol to a visibly intoxicated customer who later caused a fatal traffic accident, the Appellate Division improperly held that the store clerk's out-of-court statements to a State Trooper investigating the accident were not admissible under the hearsay exception for prior inconsistent statements to rebut her later deposition testimony (*see Letendre v Hartford Acc. & Indem. Co.*, 21 NY2d 518, 524 [1968]). The supporting deposition prepared by the Trooper and signed by the witness under penalty of perjury contained numerous indicia of reliability justifying its admissibility under *Letendre*, and the store clerk was available for cross-examination. In addition, the statement was sufficient to create a triable issue regarding whether the driver was visibly intoxicated at the time of the alcohol sale. Nevertheless, summary judgment was properly granted to defendants, since plaintiffs failed to create a triable issue to rebut defendants' prima facie evidence demonstrating that no reasonable or practical connection existed between the allegedly illegal sale of alcohol and the accident, which occurred less than seven minutes later. *Kaufman v Quickway, Inc.*, 14 NY3d 907.

EXAMINATION BEFORE TRIAL.

See DISCLOSURE.

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

FORMER ADJUDICATION.

See JUDGMENTS.

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY).

FRATERNAL ORDERS.

See ASSOCIATIONS.

GAS AND OIL.

See, also, PUBLIC UTILITIES.

GUARANTEE.

See SURETYSHIP AND GUARANTEE.

HEALTH.**NURSING HOMES.**

1. Right of Access by Mental Hygiene Legal Service.—Mental Hygiene Legal Service (MHLS), which is statutorily mandated to provide legal services and assistance to individuals with mental disabilities (Mental Hygiene Law § 47.01 [a]), does not have a right of access to mentally ill residents of defendant nursing homes, which were not required to obtain operating certificates from the Office of Mental Health (OMH). MHLS's jurisdiction is limited to two categories of facilities: facilities

HEALTH—Cont'd

defined in Mental Hygiene Law § 1.03 and other places that are required to have an OMH operating certificate. Precisely which facilities are, in fact, subject to OMH licensure is a matter committed, in the first instance, to the discretion and expertise of the Commissioner of OMH. Here, OMH decided that licensure was not required. Because only OMH is authorized to determine whether a facility is required to have an operating certificate and MHLS's jurisdiction is expressly limited to licensed facilities, there was no issue of fact to be determined and defendant nursing homes were entitled to summary judgment dismissing the complaint. *Hirschfeld v Teller*, 14 NY3d 344.

HOTELS.

See INNKEEPERS.

HUSBAND AND WIFE.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT AND CHILD; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles.

EQUITABLE DISTRIBUTION.

1. Marital Fault — Disclosure.—In connection with a fraud cause of action and an equitable distribution award in a divorce action, plaintiff husband was not permitted liberal discovery relating to defendant wife's conduct in conceiving a child through an extramarital affair and failing to disclose her adultery to plaintiff, as such conduct did not constitute egregious fault. Liberal discovery on issues of marital fault should not ordinarily be permitted absent circumstances involving egregious conduct. Although liberal discovery is generally favored under CPLR 3101 (a), Domestic Relations Law § 236 (B) (5) (d), the specific statutory provision that governs equitable distribution, allows for consideration of marital fault in only a limited set of circumstances involving egregious conduct. Moreover, plaintiff's cause of action for fraud was based entirely upon defendant's alleged adultery and on plaintiff's reliance upon the denial of that behavior. *Howard S. v Lillian S.*, 14 NY3d 431.

2. Marital Fault.—Defendant wife's conduct in conceiving a child through an extramarital affair and failing to disclose her adultery to plaintiff husband did not constitute egregious fault such that it could be considered for purposes of equitable distribution in plaintiff's action for a divorce. Marital fault can be considered when making an equitable distribution award only in egregious cases which shock the conscience of the court (*see* Domestic Relations Law § 236 [B] [5] [d] [14]). Adultery, on its own, does not ordinarily constitute egregious conduct. Adultery is a ground for divorce—a basis for ending the marital relationship, not for altering the nature of the economic partnership. At a minimum, in order to have any significance at all, egregious conduct must consist of behavior that falls well outside the bounds of the basis for an ordinary divorce action. Plaintiff's allegations that defendant committed adultery and that, as a consequence of that conduct, she conceived a child that she knew or should have known was fathered by another man and that she kept that information from plaintiff essentially stated a cause of action for adultery. *Howard S. v Lillian S.*, 14 NY3d 431.

IMMIGRATION.

See ALIENS.

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE; PARENT AND CHILD; SCHOOLS; SOCIAL SERVICES, and other specific titles.

INJUNCTIONS.

WHEN INJUNCTIVE RELIEF APPROPRIATE. *See, also*, JUDGES, 7.

1. In holding that defendant, the buyer of plaintiff's boiler business, assumed plaintiff's liabilities for tort claims with respect to boilers sold before the business was acquired even if the tort claimants were not injured until after the acquisition,

INJUNCTIONS—Cont’d

the Appellate Division erred in enjoining defendant from ever relitigating the issue. Generally, parties are allowed to take any position they like in litigation, as long as they can make a good faith argument for it. Notwithstanding that defendant may be *precluded* from relitigating the issue, in the sense that any attempt to relitigate it should be rejected, defendant should not be *enjoined* from arguing otherwise. *American Std., Inc. v OakFabco, Inc.*, 14 NY3d 399.

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS’ COMPENSATION, and other specific titles.

DISCLAIMER OF COVERAGE.

1. Failure to Receive Notice of Underlying Action against Insured.—An insurer had no obligation to defend or indemnify its insured in an underlying personal injury action and was not responsible for payment of any portion of the default judgment rendered therein, where the plaintiff in that action failed to provide a valid excuse for his failure to use reasonable diligence in providing the insurer, which had relocated its offices, with notice of the underlying action. *American Tr. Ins. Co. v Brown*, 14 NY3d 809.

NO-FAULT AUTOMOBILE INSURANCE.

2. Serious Injury.—In a personal injury case in which a taxi struck the plaintiff, the evidence plaintiff proffered relating to injuries to his right shoulder and lumbosacral spine raised a triable question of fact as to whether he suffered a serious injury that was causally related to the accident under the permanent consequential limitation of use of a body organ or member and/or significant limitation of a body function or system criteria (*see* Insurance Law § 5102 [d]). Since plaintiff established that at least some of his injuries met the “no-fault” threshold, it was unnecessary to address whether his proof with respect to other injuries he allegedly sustained would have been sufficient to withstand defendants’ motion for summary judgment. *Linton v Nawaz*, 14 NY3d 821.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION.

INTERVENTION.

See PARTIES.

INTOXICATING LIQUORS.

DRAM SHOP ACT. *See* EVIDENCE, 1.

JUDGES.**DISQUALIFICATION.**

1. Rule of Necessity.—The Court of Appeals was required, pursuant to the Rule of Necessity, to hear and dispose of the constitutional issues raised in a hybrid CPLR article 78 proceeding/declaratory judgment action and two related declaratory judgment actions challenging the failure to adjust judicial compensation since 1998. Although members of the Court of Appeals are paid via the salary schedule delineated in Judiciary Law § 221 and therefore will be affected by the outcome of the appeals, no other judicial body with jurisdiction exists to hear the constitutional issues raised therein. *Matter of Maron v Silver*, 14 NY3d 230.

JUDICIAL SALARIES.

2. Legislature’s Failure to Increase Judicial Compensation — Equal Protection.—In a hybrid CPLR article 78 proceeding/declaratory judgment action challenging the failure to adjust judicial compensation since 1998, Supreme Court properly dismissed petitioners’ cause of action alleging that the Judiciary constituted a “suspect class” that had been denied equal protection under the law because

JUDGES—Cont’d

judicial pay raises have been historically contingent on or “tied to” salary increases for legislators. *Matter of Maron v Silver*, 14 NY3d 230.

3. Legislature’s Failure to Increase Judicial Compensation — Compensation Clause — Failure to Address Effects of Inflation Not Per Se Violation.—In a hybrid CPLR article 78 proceeding/declaratory judgment action and related declaratory judgment action challenging the failure to adjust judicial compensation since 1998, the failure to address the effects of inflation did not equate to a per se violation of the Compensation Clause (NY Const, art VI, § 25 [a]). Although the Compensation Clause plainly prohibits the diminution of judicial compensation by legislative act during a judge’s term of office, there was no evidence in the history of the Clause’s enactment or subsequent amendments that supported a broad interpretation embracing indirect diminishment by neglect, and therefore no evidence that the “no diminishment” rule was intended to affirmatively require that judicial salaries be adjusted to keep pace with the cost of living. The diminution in value of judicial compensation by inflation was a concern when the clause was enacted and amended, but the drafters decided that the best way to combat the effects of inflation was to count on the Legislature to assure the fair and appropriate compensation of the Judiciary. *Matter of Maron v Silver*, 14 NY3d 230.

4. Legislature’s Failure to Increase Judicial Compensation — Compensation Clause — No Discrimination against Judiciary in Violation of Compensation Clause.—In a declaratory judgment action challenging the failure to adjust judicial compensation since 1998, Supreme Court properly dismissed plaintiffs’ cause of action alleging that defendants discriminated against the Judiciary in violation of the Compensation Clause (NY Const, art VI, § 25 [a]) by freezing judicial salaries while repeatedly increasing the salaries of almost all of the remaining state employees to keep pace with the cost of living. Relief was not warranted under *United States v Hatter* (532 US 557 [2001]), which involved a Social Security tax law that discriminated against federal judges by reducing the compensation of judges only. The situation here did not involve any legislative enactment that directly or indirectly diminished judicial compensation. Moreover, although other state employees had received adjustments to account for inflation, judges were not the only state employees whose salaries have not been adjusted since judicial salaries were last increased. *Matter of Maron v Silver*, 14 NY3d 230.

5. Legislature’s Failure to Increase Judicial Compensation — Separation of Powers Doctrine.—In a hybrid CPLR article 78 proceeding/declaratory judgment action challenging the failure to adjust judicial compensation since 1998, petitioners sufficiently stated a cause of action for violation of the Separation of Powers Doctrine. Petitioners alleged that by tying judicial compensation to unrelated legislative objectives and policy initiatives, as opposed to conducting an independent assessment of judicial compensation, the Legislature had disregarded the separation of powers doctrine and threatened the independence of the Judiciary. The compensation provisions in the State Constitution for each branch of government are separately addressed in the article for each respective branch, and not in the article where the powers of the legislative branch are articulated. Although a function of the Legislature is to approve the compensation of each of the three branches, the compensation to be paid to members of each particular branch must be determined separately and distinctly from the others. Whether the Judiciary is entitled to a compensation increase must be based upon an objective assessment of the Judiciary’s needs if it is to retain its functional and structural independence. By failing to consider judicial compensation increases on the merits, and instead holding them hostage to other legislative objectives, the Legislature weakens the Judiciary by making it unduly dependent on the Legislature. *Matter of Maron v Silver*, 14 NY3d 230.

6. Legislature’s Failure to Increase Judicial Compensation — Separation of Powers Doctrine.—In two related declaratory judgment actions challenging the failure to adjust judicial compensation since 1998, plaintiffs were entitled to a declaration that, as a matter of law, the State defendants’ failure to consider judicial compensation on the merits violated the Separation of Powers Doctrine. The compensation provisions in the State Constitution for each branch of government are separately

JUDGES—Cont'd

addressed in the article for each respective branch, and not in the article where the powers of the legislative branch are articulated. Although a function of the Legislature is to approve the compensation of each of the three branches, the compensation to be paid to members of each particular branch must be determined separately and distinctly from the others. Whether the Judiciary is entitled to a compensation increase must be based upon an objective assessment of the Judiciary's needs if it is to retain its functional and structural independence. By failing to consider judicial compensation increases on the merits, and instead holding them hostage to other legislative objectives, the Legislature weakened the Judiciary by making it unduly dependent on the Legislature. *Matter of Maron v Silver*, 14 NY3d 230.

7. Legislature's Failure to Increase Judicial Compensation — Separation of Powers Doctrine — Remedy for Violation of Separation of Powers Doctrine.—In two related declaratory judgment actions challenging the failure to adjust judicial compensation since 1998 resulting in a declaration that, as a matter of law, the State defendants' failure to consider judicial compensation on the merits violated the Separation of Powers Doctrine, it was not necessary to order specific injunctive relief. Deference to the Legislature regarding whether judicial compensation should be adjusted, and by how much, was necessary because it is in a far better position than the Judiciary to determine funding needs throughout the State and priorities for the allocation of the State's resources. Appropriate and expeditious legislative consideration of judicial compensation is, however, expected, and when addressed in present and future budget deliberations it cannot depend on unrelated policy initiatives or legislative compensation adjustments. *Matter of Maron v Silver*, 14 NY3d 230.

8. Legislature's Failure to Increase Judicial Compensation — Separation of Powers Doctrine — Constitutional Inadequacy of Compensation.—The Legislature has a constitutional duty and obligation to provide the Judiciary with compensation adequate in amount and commensurate with the duties and responsibilities of the judges involved. Moreover, adequate judicial compensation is necessary to ensure that the public will have its matters heard by competent judges and that judges will be free to issue decisions in accordance with the law without fear of retribution by the other two branches of government. The Compensation Clause's language that compensation "shall not be diminished" (NY Const, art VI, § 25 [a]) is not the opposite of an "adequate compensation" guarantee. The argument that the current salaries are inadequate when compared to other legal positions in the public and private sectors, as raised by plaintiffs in a declaratory judgment action challenging the Legislature's failure to adjust judicial compensation since 1998, is, however, one that is best addressed in the first instance by the Legislature. *Matter of Maron v Silver*, 14 NY3d 230.

SUSPENSION FROM OFFICE.

9. The Court of Appeals on its own motion pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), terminated the suspension from office of a Surrogate. *Matter of Anderson*, 14 NY3d 813.

JUDGMENTS.

See, also, EXECUTION, and other specific titles.

JUDICIAL NOTICE.

See EVIDENCE.

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

SAFE PLACE TO WORK.

1. Fall from Height — Lack of Safety Devices.—Plaintiff, an ironworker who was injured while removing metal decking from the second floor of defendant's building

LABOR—Cont'd

when the blade on the power saw he was using jammed, propelling him through an opening in the floor, was granted summary judgment on his Labor Law § 240 (1) claim. Through the affidavits of plaintiff's foreman and another ironworker, who both asserted that the ironworkers were not provided with necessary safety devices, thereby corroborating plaintiff's own similar testimony, plaintiff made a prima facie showing that defendant violated Labor Law § 240 (1) by failing to furnish adequate safety devices to plaintiff. Defendant failed to raise a question of fact as to whether plaintiff knew of the availability of the safety devices and unreasonably chose not to use them. There was no evidence in the record that plaintiff knew where to find the safety devices that defendant argued were readily available or that he was expected to use them. *Gallagher v New York Post*, 14 NY3d 83.

2. Fall from Height — Plaintiff's Actions as Sole Proximate Cause of Accident — Weakness in Hand from Prior Injury Not Sole Proximate Cause.—Plaintiff, an ironworker who was injured while removing metal decking from the second floor of defendant's building when the blade on the power saw he was using jammed, propelling him through an opening in the floor, was granted summary judgment on his Labor Law § 240 (1) claim. Through the affidavits of plaintiff's foreman and another ironworker, who both asserted that the ironworkers were not provided with necessary safety devices, thereby corroborating plaintiff's own similar testimony, plaintiff made a prima facie showing that defendant violated Labor Law § 240 (1) by failing to furnish adequate safety devices to plaintiff. Defendant failed to raise a question of fact as to whether the sole proximate cause of plaintiff's fall was that he prematurely returned to work following a prior accident and related surgeries to his right hand. Even if plaintiff's grip on the saw was not up to full strength as a result of his prior injury, such weakness in his hand would at most have contributed towards his loss of balance, and could not as a matter of law have been the sole proximate cause of his fall. *Gallagher v New York Post*, 14 NY3d 83.

3. Significant Alteration of Building.—In a personal injury action arising from plaintiff's fall from a ladder as he was reinstalling bomb blast film on windows, plaintiff was entitled to partial summary judgment as to liability on his Labor Law § 240 (1) cause of action. Applying the bomb blast film to the lobby windows, in and of itself, qualified as a significant alteration. The blast film significantly altered the configuration or composition of the structure by changing the way the windows react to explosions, impacts and the elements. *Belding v Verizon N.Y., Inc.*, 14 NY3d 751.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES).

LEASE.

1. Tax Escalation Clause.—Defendant corporate landlord properly increased plaintiff commercial tenant's rent pursuant to the tax escalation clause in the parties' lease by 14¹/₂% of the increase in real estate taxes, including the amount of tax abatements and exemptions defendant was required to pay to the eligible tenant-shareholders pursuant to various tax benefit programs. The terms of the lease determined whether plaintiff was entitled to deduct the relevant tax abatements and exemptions from its tax rents, and the tax escalation clause unambiguously stated that the additional tax charged to plaintiff applied to "any increase in such real estate taxes" on the land greater than the "base amount of real estate taxes." The base amount was determined with reference to the "base assessed valuation"—a term that the lease required to be calculated "without regard or giving effect to any exception or abatement." Thus it would have been illogical to give effect to exemptions and abatements in calculating the "increase in such real estate taxes" and the resulting escalation. Moreover, the tax benefit programs did not decrease defendant's tax liability. *Barnan Assoc. LLC v 196 Owners Corp.*, 14 NY3d 780.

LOFT LAW.

2. Estate of Deceased Tenant Entitled to Recoup Value of Improvements.—The estate of decedent loft tenant was entitled to recoup the value of fixtures installed

LANDLORD AND TENANT—Cont'd

and improvements made by the tenant pursuant to Multiple Dwelling Law § 286 (6). Under section 286 (6), a loft tenant may, subject to procedures established by respondent New York City Loft Board, sell any improvement to a unit, made or purchased by the tenant, to the owner of the premises or an incoming tenant. Respondent's interpretation of Multiple Dwelling Law § 286 (6) as limiting the right of sale to the tenant was not entitled to deference as the issue was solely a matter of statutory interpretation. The legislative intent of section 286 (6) was to prevent an owner from receiving unearned enrichment, thereby depriving compensation to the tenants who paid for the improvements. As such, it would have been unfair here to deprive the estate of the value of property which would have enured to the benefit of the tenant, had the tenant lived. *Matter of Bikman v New York City Loft Bd.*, 14 NY3d 377.

LEGISLATURE.**IMMUNITY FROM PROSECUTION.**

1. Immunity under Speech or Debate Clause Not Available in Action Challenging Legislature's Failure to Increase Judicial Compensation.—In a hybrid CPLR article 78 proceeding/declaratory judgment action and two related declaratory judgment actions challenging the failure to adjust judicial compensation since 1998, the Assembly, Senate and the State were not immune under the Speech or Debate Clause from plaintiffs' violation of separation of powers claims. The Speech or Debate Clause protects against inquiry into acts that occur in the regular course of the legislative process and into the motivation for those acts, and applies to only "members" and to "any speech or debate in either house" (NY Const, art III, § 11). Such immunity does not apply to either house of the Legislature as a whole. Moreover, no inquiry into acts that occurred in the regular course of the legislative process or the Legislature's motives for such acts was necessary here, as all of the parties acknowledged that the Judiciary was entitled to an increase in compensation, and the State defendants had made proclamations outside of the legislative and executive chambers as to why such an increase had not occurred. *Matter of Maron v Silver*, 14 NY3d 230.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles.

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles.

LIMITATION OF ACTIONS.**TOLLING.**

1. Infancy — Personal Injury Action on Behalf of Decedent in Which Decedent's Sole Distributees are Infants.—The special infancy toll applicable in wrongful death actions involving sole infant distributees under *Hernandez v New York City Health & Hosps. Corp.* (78 NY2d 687 [1991]) did not apply to toll the applicable statute of limitations for a personal injury cause of action asserted by plaintiff administrator under EPTL 11-3.2 (b) on behalf of the decedent, whose sole distributees were infants. The employment of the CPLR 208 infancy toll based on the infancy of the distributee himself or herself, as opposed to the infancy of the person entitled to bring the action, is limited to wrongful death actions authorized by EPTL 5-4.1. The damages recovered in such actions are exclusively for the benefit of the decedent's distributees and not the estate standing in place of the decedent, whereas a personal injury action brought under EPTL 11-3.2 (b) seeks damages for an injury to the decedent and belongs to the estate. The two causes of action are predicated on essentially different theories of loss which accrue to different parties. The rationale underlying *Hernandez*, which is that a court may take into account the infancy of the distributee because the wrongful death claim belongs to and is for the sole

LIMITATION OF ACTIONS—Cont’d

benefit of the distributee, did not apply here. Accordingly, as the CPLR 208 infancy toll was not available to toll the one-year-and-90-day statute of limitations applicable to the personal injury cause of action against the County defendants (*see* General Municipal Law § 50-i [1]), the trial court erroneously granted plaintiff leave to file a late notice of claim (*see* General Municipal Law § 50-e [5]). *Heslin v County of Greene*, 14 NY3d 67.

WHAT STATUTE GOVERNS.

2. “Borrowing Statute.”—In an action to recover the balance due on a credit card issued to defendant by plaintiff’s assignor, a Delaware corporation, it was necessary to apply CPLR 202, New York’s “borrowing statute,” to plaintiff’s claims for breach of contract and account stated to determine whether they were timely brought. The contract causes of action accrued in Delaware, the place where plaintiff’s assignor sustained the economic injury when defendant allegedly breached the contract. As plaintiff’s assignor was a nonresident and the causes of action accrued outside of New York, CPLR 202 required the causes of action to be timely under the limitation periods of both New York and the jurisdiction where the cause of action accrued. Accordingly, Delaware’s three-year statute of limitations for breach of a credit contract governed. In determining whether the action, commenced more than three years after the alleged breach, would be barred in Delaware, it was necessary to “borrow” Delaware’s tolling statute to determine whether plaintiff would have had the benefit of additional time to bring the action. The tolling provision, however, was meant to apply only in a circumstance where the defendant had a prior connection to Delaware. As there was no indication here that defendant ever resided in Delaware, nor any indication from the case law that Delaware intended for its tolling provision to apply to a nonresident like defendant, Delaware’s tolling provision did not extend the three-year statute of limitations and plaintiff’s action was time-barred. *Portfolio Recovery Assoc., LLC v King*, 14 NY3d 410.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

LOCAL LAWS.

INCONSISTENCY WITH STATE LAW. *See* CIVIL RIGHTS, 4.

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER.

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS.

MEDICAL REPORTS.

See DISCLOSURE.

MOTELS.

See INNKEEPERS.

MOTOR VEHICLES.**COLLISION.**

1. In a negligence action arising from the head-on collision of two vehicles as they approached the crest of a rural road, an order of the Appellate Division, which affirmed defendants’ motion for summary judgment dismissing the complaint as against them, was reversed and the motion denied. In opposition to defendants’ prima facie case, plaintiffs raised a triable issue of fact. *Bright v McGowan*, 14 NY3d 745.

INJURIES TO PEDESTRIANS.

2. In a personal injury action arising out of plaintiff pedestrian coming in contact with defendant’s vehicle, the Appellate Division, which reversed an order denying defendants’ motion for summary judgment, properly concluded that no triable is-

MOTOR VEHICLES—Cont'd

sues of fact existed whether defendant driver acted prudently under the circumstances. *DeJesus v Alba*, 14 NY3d 860.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles.

NOTICE OF STREET DEFECT.

1. In a personal injury action arising out of plaintiff's trip over a hole at the bottom edge of a pedestrian ramp leading from a street to a sidewalk, an order of the Appellate Division which affirmed the denial of defendant municipality's motion for summary judgment, was reversed. No triable issue of fact existed as to whether the municipality created a dangerous condition that caused plaintiff's injuries. *Ortiz v City of New York*, 14 NY3d 779.

PERMITS.

2. Penalty for Filing False Information with New York City Department of Buildings.—The determination by respondent Commissioner of the New York City Department of Buildings (DOB) to refuse to accept any application or other document submitted to the DOB by petitioner licensed engineer for two years followed by a three-year probationary period (Administrative Code of City of NY § 26-124 [c] [recodified as Administrative Code § 28-211.1.2]) based upon petitioner's negligent certification of the accuracy of altered photographs in connection with two separate properties and submission of a deceptive application for alterations in connection with a third property did not shock the conscience, inasmuch as it was based on petitioner's repeated certification and submission of false materials. *Matter of St. Clair Nation v City of New York*, 14 NY3d 452.

ZONING.

3. Nonconforming Use — Vested Rights.—In an action for a judgment declaring that plaintiff had acquired a vested right to operate a sand and gravel mine on its property notwithstanding the town's enactment of a zoning ordinance limiting mining subsequent to plaintiff's acquisition of the property, the evidence was sufficient for a jury to conclude that plaintiff made substantial changes or substantial improvements to its property in reliance upon the town's permission. A landowner obtains a vested right when, pursuant to a legally issued permit, the landowner demonstrates a commitment to the purpose for which the permit was granted by effecting substantial changes and incurring substantial expenses to further the development. The landowner's actions relying on a valid permit must be so substantial that the municipal action results in serious loss rendering the improvements essentially valueless. Here, the Town had no zoning laws when plaintiff acquired the property, and plaintiff spent \$500,000 to obtain a Department of Environmental Conservation mining permit in reliance upon local permission, subsequently retracted after the Town enacted the Zoning Law, to mine sand and gravel on its property as of right. Furthermore, after obtaining the permit, plaintiff allowed two sand and gravel companies to remove 400 tons of material for testing, removed timber throughout the property, surveyed and staked out the locations of the mining areas and the haul road, drilled many test holes, designed and obtained steel for a required bridge, and dug and monitored water table wells. The Town's action resulted in serious loss rendering plaintiff's improvements essentially valueless. *Glacial Aggregates LLC v Town of Yorkshire*, 14 NY3d 127.

4. Nonconforming Use — Vested Rights.—In an action for a judgment declaring that plaintiff had acquired a vested right to operate a sand and gravel mine on its property notwithstanding the town's enactment of a zoning ordinance limiting mining subsequent to plaintiff's acquisition of the property, the evidence was sufficient for a jury to conclude that the property was used for a nonconforming purpose, as distinguished from a mere contemplated use, at the time the zoning ordinance became effective. Plaintiff spent \$500,000 to obtain a Department of Environmental

MUNICIPAL CORPORATIONS—Cont'd

Conservation mining permit in reliance upon local permission, subsequently retracted after the Town enacted the Zoning Law, to mine sand and gravel on its property as of right. Although mining permits are not a prerequisite to establishing prior nonconforming use rights, they are nevertheless strong evidence of a manifestation of intent to mine a given area. Further, a party advancing a prior nonconforming use exception to a zoning ordinance must establish specific actions constituting an overt manifestation of its intent to utilize the property for the ascribed purpose at the time the zoning ordinance became effective. Here, after obtaining the permit, plaintiff allowed two sand and gravel companies to remove 40 truckloads or 400 tons of material for testing, removed timber throughout the property, surveyed and staked out the locations of the mining areas and the haul road, drilled many test holes, designed and obtained steel for a required bridge, and dug and monitored water table wells. *Glacial Aggregates LLC v Town of Yorkshire*, 14 NY3d 127.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles.

ASSUMPTION OF RISK.

1. Applicability to Student Injured at School while Sliding Down Bannister.—In a negligence action to recover damages for injuries the infant plaintiff sustained when he slid down and fell from a bannister while attending a summer program administered by defendants on their school premises, defendants were not entitled to assert an assumption of risk affirmative defense. The doctrine of assumption of risk, which does not sit comfortably with comparative causation, is justified for its utility in facilitating free and vigorous participation in athletic activities. It has not been applied outside the limited context of athletic and recreative activities, and its application must be closely circumscribed if it is not seriously to undermine and displace the principles of comparative causation. No suitably compelling policy justification has been advanced to permit an assertion of assumption of risk in the circumstances here, where the injury-producing activity, referred to by the parties as “horseplay,” is not one that recommends itself as worthy of protection, particularly not in its “free and vigorous” incarnation. Moreover, there was no nexus between the activity and defendants’ auspices, except perhaps negligence. *Trupia v Lake George Cent. School Dist.*, 14 NY3d 392.

INJURIES TO POLICE OFFICERS.

2. Scope of Firefighter Rule — Negligent Operation of Security Device in Police Parking Lot.—The “firefighter rule,” which bars common-law negligence recovery by firefighters and police officers for injuries that result from risks associated with their employment, barred plaintiff police officer from recovering damages for injuries he sustained when his vehicle was struck by a security gate that had been accidentally raised as he drove over it on his way into the police headquarters parking lot. The rule, applicable only in actions against a “police officer’s or firefighter’s employer or co-employee” (General Obligations Law § 11-106 [1]), bars an officer’s or firefighter’s recovery when the performance of his or her duties increased the risk of the injury happening, and did not merely furnish the occasion for the injury. The cause of the injury to plaintiff here—a high-security device protecting the police headquarters parking lot—was plainly a risk associated with the particular dangers inherent in police work. An act taken in furtherance of a specific police function—entry into a protected parking lot, which only plaintiff’s police credentials allowed him to enter—exposed plaintiff to the risk of this injury. Moreover, whether plaintiff was on duty or not at the time of his injury was not dispositive; police officers often face significant risks even when they are not technically at work. *Wadler v City of New York*, 14 NY3d 192.

NEGOTIABLE INSTRUMENTS.

See BILLS, NOTES AND CHECKS.

NEWSPAPERS.

See, also, LIBEL AND SLANDER, and other specific titles.

OPTICIANS.

See LICENSES; PHYSICIANS AND SURGEONS.

OPTOMETRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PARENT AND CHILD.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE; INFANTS; SCHOOLS; SOCIAL SERVICES, and other specific titles.

SUPPORT.

1. College Expenses.—In a nonjury trial in which plaintiff sought to recover a portion of the college expenses of the parties' sons under a marital settlement agreement, the parties charted their own course, effectively removing from the case the question whether certain trust funds set up to pay those costs were exhausted and thereby eliminating plaintiff's burden on that issue. The Appellate Division erred in holding that no evidence was adduced as to the means and abilities of the parties to contribute to their children's college education expenses. Such evidence was adduced, and, as a matter of law, defendant had sufficient means to contribute to his sons' college education expenses within the meaning of the parties' separation agreement. *Washington v Washington*, 14 NY3d 777.

VISITATION.

2. Rights of Nonparent — Civil Union Partner of Biological Parent Deemed Parent under Vermont Law.—Petitioner, who had entered into a civil union in Vermont with respondent one month before respondent gave birth to a child conceived by artificial insemination, was the parent of that child under Vermont law. Parties to a civil union in Vermont have all the same benefits, protections and responsibilities under law as are granted to spouses in a marriage, and as a child born by artificial insemination during a marriage is deemed the child of the husband even absent a biological connection, the same result pertains to the partner in a civil union with no biological connection to the child. The Vermont Supreme Court has held that a child born by artificial insemination to one partner of a civil union should be deemed the other partner's child under Vermont law for purposes of determining custodial rights following the civil union's dissolution. Although, unlike the case decided by the Vermont Supreme Court, the child here was conceived prior to the parties' civil union, there would be no reason for the Vermont Supreme Court, which had emphasized how important it was that the child was born during the civil union, to reach a different result about parentage based on that distinction. Entering into a civil union at a time when both partners know that one of them is pregnant by artificial insemination, as the parties did here, might present an even stronger case to support the nonbiological partner's parentage. *Debra H. v Janice R.*, 14 NY3d 576.

3. Rights of Nonparent — Civil Union Partner of Biological Parent Deemed Parent under Vermont Law — Comity.—In a visitation and custody proceeding brought by petitioner, who was not the biological or adoptive parent of respondent's child, but who had entered into a civil union with respondent in Vermont before the child was born and was considered to be the child's parent under Vermont law, the principles of comity required the recognition of petitioner as the child's parent under New York law. New York will accord comity to recognize parentage created by an adoption in a foreign nation, and there is no reason to withhold equivalent recognition where someone is a parent under a sister state's law. In light of the availability of second-parent adoption to New Yorkers of the same sex, recognition of parentage based on a Vermont civil union does not conflict with New York's public policy. Nor would comity undermine the certainty afforded to biological and adoptive parents and their children by the bright-line rule set forth in *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]), which held that only a child's biological or

PARENT AND CHILD—Cont'd

adoptive parent has standing to seek visitation under Domestic Relations Law § 70 against the wishes of a fit custodial parent. Whether there has been a civil union in Vermont is as determinable as whether there has been a second-parent adoption. *Debra H. v Janice R.*, 14 NY3d 576.

4. Rights of Nonparent.—*Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]), which held that only a child's biological or adoptive parent has standing to seek visitation under Domestic Relations Law § 70 against the wishes of a fit custodial parent, is still valid law. *Alison D.*, in conjunction with second-parent adoption, creates a bright-line rule that promotes certainty in the wake of domestic breakups otherwise fraught with the risk of disruptive battles over parentage as a prelude to further potential combat over custody and visitation. The Court of Appeals did not implicitly depart from *Alison D.* in *Matter of Shondel J. v Mark D.* (7 NY3d 320 [2006]), which held that a man who has mistakenly represented himself as a child's father may be estopped from denying paternity, and made to pay child support, when the child justifiably relied on the man's representation of paternity, to the child's detriment. There is no inconsistency in applying equitable estoppel to determine filiation for purposes of support, but not to create standing when visitation and custody are sought. The Legislature has drawn that distinction, inasmuch as Family Court Act § 418 (a) and § 532 (a) direct the courts to take equitable estoppel into account before ordering paternity testing, while Domestic Relations Law § 70 does not even mention equitable estoppel. *Debra H. v Janice R.*, 14 NY3d 576.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

PHYSICAL EXAMINATIONS.

See DISCLOSURE.

PHYSICIANS AND SURGEONS.

MALPRACTICE.

1. Failure to Monitor Patient.—In a medical malpractice action arising out of defendant physician's alleged negligence in failing to diagnose and treat plaintiff's lupus, leading to the loss of her kidneys, an order of the Appellate Division, which affirmed a judgment awarding plaintiff damages, was reversed and a new trial ordered. Although the Appellate Division majority correctly concluded that there was no inconsistency between the findings that defendant was not negligent in failing to diagnose the plaintiff's condition and that he was negligent in failing to monitor her, the jury's verdict was inconsistent in finding that defendant's failure to monitor the patient was a substantial factor in causing her injury, while the negligence of a nonparty physician, who performed a urinalysis on plaintiff indicating possible kidney damage and failed to transmit his urinalysis results to defendant, was not. *Midler v Crane*, 14 NY3d 877.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

POLITICAL PARTIES.

See ELECTIONS.

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles.

PROCEEDING AGAINST BODY OR OFFICER.

MANDAMUS.

1. Disbursement of State Funds Appropriated for Judicial Pay Raises.—In a hybrid CPLR article 78 proceeding/declaratory judgment action challenging the failure to adjust judicial compensation since 1998, mandamus did not lie to compel re-

PROCEEDING AGAINST BODY OR OFFICER—Cont'd

spondent State Comptroller to disburse all retroactive sums and pay the budgeted raises allocated in the 2006-2007 state budget for judicial salary reform. Chapter 51 of the Laws of 2006, addressing “JUDICIAL COMPENSATION REFORM,” contained a \$69.5 million budget item to adjust judicial compensation “pursuant to a chapter of the laws of 2006.” No subsequent chapter law, however, was enacted either amending the Judiciary Law salary schedules or directing the disbursement of the funds. Because judicial compensation was constitutionally required to be “established by law” (NY Const, art VI, § 25 [a]) and no subsequent chapter law was ever enacted, mandamus did not lie. *Matter of Maron v Silver*, 14 NY3d 230.

PROHIBITION.

2. When Remedy Available — Administrative Enforcement Proceeding for Violation of State Water Quality Laws Permitted.—A CPLR article 78 petition in the nature of prohibition did not lie to prevent respondent Department of Environmental Conservation (DEC) from bringing an administrative enforcement proceeding for the violation of state water quality laws against petitioners, the owners and operators of a hydroelectric dam. DEC is authorized pursuant to Clean Water Act § 401 (d) to enforce violations of New York’s water quality standards (33 USC § 1341 [d]). Petitioners failed to establish a clear legal right to relief or that prohibition would provide a more complete and efficacious remedy than the administrative proceeding and resulting judicial review. Nor did they clearly establish that DEC’s enforcement action was in excess of its jurisdiction. Whether DEC’s causes of action fall within the State’s power to determine that construction and operation of the project as planned would be inconsistent with one of the designated uses of the water should be determined, in the first instance, through the administrative process. Further, the administrative proceeding should address whether the dam, as a project exempt from certain Federal Power Act requirements, should be treated the same as a project licensed under the Act for the purpose of preemption analysis. *Matter of Chasm Hydro, Inc. v New York State Dept. of Envtl. Conservation*, 14 NY3d 27.

3. When Remedy Available — Resentencing of Criminal Defendant.—A CPLR article 78 proceeding seeking to prohibit the resentencing of defendant in order to correct an illegal sentence by adding a period of postrelease supervision (PRS) was dismissed since the record did not indicate that the resentencing judge had considered whether it was appropriate to impose a term of PRS. The court’s order scheduled the matter “for consideration of whether the inmate should be resentenced, and that the Clerk arrange for counsel for both parties to appear” on a specific date. Accordingly, there was no need to seek prohibition relief before the court determined the lawfulness of the sentence that was imposed or whether it would accept the served sentence without a term of PRS. *People v Williams*, 14 NY3d 198.

PRODUCTS LIABILITY.**DEFECTIVELY DESIGNED PRODUCT.**

1. Failure to Retrofit or Recall Product after Sale.—In plaintiff’s action to recover damages for injuries sustained when he fell from a personnel lift designed, manufactured and sold by defendant, the trial court committed harmless error when it submitted to the jury, as an alternative ground for liability, the question of whether defendant was negligent in failing to retrofit the product with interlocking outriggers or recall the product after its sale. In general, the duty of the seller of a product who discovers, after the sale, risks that were not known beforehand is a duty to warn. Here, there could be no successful claim that defendant breached any duty to warn, either pre-sale or post-sale, given Supreme Court’s holding that the warning contained in defendant’s product label advising against use of the product without outriggers was adequate. The facts of this case provided no justification for imposing a post-sale duty to recall or retrofit a product. Thus, the jury should not have been permitted to find that defendant was negligent in failing to recall or retrofit its product after the sale. However, the trial court’s error in submitting this theory to the jury had no impact on the outcome of the case. Plaintiff’s post-sale negligence claim, as presented at trial, was a duplicate of his design defect and

PRODUCTS LIABILITY—Cont'd

negligent design claims. Plaintiff merely asserted that defendant should have recalled or retrofitted the personnel lift for the same reasons that it should not have sold it in the first place—principally, because the outriggers were not interlocked. *Adams v Genie Indus., Inc.*, 14 NY3d 535.

2. Product “Not Reasonably Safe.”—In plaintiff’s action to recover damages for injuries sustained when he fell from a personnel lift designed, manufactured and sold by defendant, the evidence was sufficient to support the jury’s finding that the lift was defectively designed. In order to establish a prima facie case in strict liability or negligent design, the plaintiff must show that the manufacturer breached its duty to market safe products when it marketed a product designed so that it was not reasonably safe and that the defective design was a substantial factor in causing plaintiff’s injury. In determining if a product is “not reasonably safe,” the issue is whether, if the design defect were known at the time of manufacture, a reasonable person would conclude that the utility of the product did not outweigh the risk inherent in marketing a product designed in that manner. Plaintiff produced enough evidence for a jury to find that defendant’s product—a personnel lift without interlocked outriggers—was “not reasonably safe.” Expert testimony explained that outriggers would have made the lift more stable by distributing its weight over a wider area. Defendant’s own label warned against using the product without outriggers. It was thus reasonable to conclude that an interlock, making use without outriggers impossible, would have increased the safety of the product. Plaintiff also offered evidence from which a jury could find that at the time the product was sold, it was technologically possible, at minimal cost, to design the product with interlocked outriggers. *Adams v Genie Indus., Inc.*, 14 NY3d 535.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER.

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles.

RAILROADS.

See, also, CARRIERS.

REAL ESTATE BROKERS.

See BROKERS.

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles.

RECEIVERS.

APPOINTMENT.

1. Appointment of Postjudgment Receiver to Administer Defendants’ Intangible Personal Property.—In an action brought by plaintiff lender to enforce a guaranty of payment executed by the nondomiciliary defendants, Supreme Court did not abuse its discretion in appointing a postjudgment receiver pursuant to CPLR 5228 to administer defendants’ intangible personal property for purposes of satisfying plaintiff’s outstanding judgment. The intangible property consisted of defendants’

RECEIVERS—Cont'd

ownership/membership interests in various out-of-state business entities. A receivership has been held especially appropriate when the property interest involved is intangible, lacks a ready market, and presents nothing that a sheriff can work with at an auction. In light of the complexity of defendants' intangible ownership interests in various entities, defendants' disregard for discovery orders regarding their finances, the danger of insolvency if a receiver were not appointed, and the lack of marketability of the intangible property interests, the appointment of a receiver was warranted. *Hotel 71 Mezz Lender LLC v Falor*, 14 NY3d 303.

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles.

RESIDENCE.

See DOMICILE.

RES JUDICATA.

See JUDGMENTS.

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles.

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles.

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles.

EDUCATION OF CHILDREN WITH DISABILITIES.

1. "Services" Include Individual Aides.—The individual aide that respondent's son, a private school student who had been diagnosed with attention deficit hyperactivity disorder, needed in order to help him learn fell within the statutory definition of "services" to be provided by petitioner school district (Education Law § 3602-c [1] [a]). Although an aide does not directly provide instruction, he or she facilitates the child's education and provides services related to instruction. The definition of services was intended to include a wide range of educational resources for students with disabilities. *Matter of Board of Educ. of Bay Shore Union Free School Dist. v Thomas K.*, 14 NY3d 289.

2. Place Where Services Provided.—Respondent's son, a private school student who had been diagnosed with attention deficit hyperactivity disorder and needed an individual aide in order to help him learn, was entitled to have the aide provided to him at his private school. Education Law § 3602-c, known as the dual enrollment statute, requires the provision of special education programs "on an equitable basis" to students who attend nonpublic schools (Education Law § 3602-c [2] [b] [1]). Although the dual enrollment statute does not mandate that a school district provide services at a nonpublic school for each student, the pertinent question is what the educational needs of the particular student require. Here, upon reviewing petitioner school district's determination to provide the aide at a public school within the district and not at respondent's private school, both the Impartial Hearing Officer and the State Review Officer agreed that the individual aide must be provided at the private school in order to be effective and to meet respondent's individual educational needs. As a practical matter, if petitioner's position had been up-

SCHOOLS—Cont'd

held, it would have been necessary for the child to withdraw from the school his parents selected for him in order to receive the required services. *Matter of Board of Educ. of Bay Shore Union Free School Dist. v Thomas K.*, 14 NY3d 289.

TEACHERS.

3. Termination of Probationary Teacher — Notice.—A probationary teacher who was terminated for misconduct but not notified of his termination until two days prior to the effective date thereof, was entitled to an award of 28 days' salary since the school district failed to comply with the 30-day notice provision of Education Law § 3019-a, and the proper remedy was one day's pay for each day the notice was late. The compensation remedy was appropriate notwithstanding that the 28 days fell during summer vacation. *Matter of Vetter v Board of Educ., Ravena-Coeymans-Selkirk Cent. School Dist.*, 14 NY3d 729.

SECURED TRANSACTIONS.**SECURITY AGREEMENTS.**

1. Breach of Indenture Agreement — Duty of Indenture Trustee to Deliver Copies of Reports Filed with Securities and Exchange Commission.—Plaintiffs, the secondary holders of notes issued by a nonparty corporation under an indenture agreement with defendant bank as indenture trustee, failed to state a cause of action for breach of contract based on the now bankrupt corporation's alleged filing of false Securities and Exchange Commission (SEC) reports with defendant. The indenture agreement provided that the corporation was to file with defendant copies of all reports that it was "required to file with the SEC pursuant to Section 13 or 15 (d) of the [Securities] Exchange Act," and that failure of the corporation to do so, if not corrected within 60 days of notification by defendant, would constitute default by either party. The section of the indenture agreement requiring the filing of SEC reports was a mandated provision based on the requirements of section 314 (a) (1) of the Trust Indenture Act of 1939 (codified at 15 USC § 77nnn [a] [1]), which was intended simply to ensure that an indenture trustee was provided with up-to-date reports on a company's financial status, by requiring the company to send the trustee a copy of filed financial reports. Indenture agreements containing the required section 314 (a) delivery provisions refer to the Securities Exchange Act only to identify the types of report that should be forwarded to indenture trustees. They do not create contractual duties on the part of the trustee to assure that the information contained in any report filed is true and accurate. That is consistent with the limited, ministerial functions of indenture trustees, and with the plain language of the indenture agreement here, which stated that "[d]elivery of such reports, information and documents [filed with the SEC] to the Trustee is for informational purposes only." *Racepoint Partners, LLC v JPMorgan Chase Bank, N.A.*, 14 NY3d 419.

SEPARATION.

See HUSBAND AND WIFE.

SLANDER.

See LIBEL AND SLANDER.

SPORTING EVENTS.

See THEATRES AND SHOWS.

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF.

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS.

STATUTES.**RETROACTIVE APPLICATION OF STATUTE.**

1. Statutory Provision Applicable to Future Transactions Based on Events Occurring Prior to Effective Date.—The penalty imposed upon petitioner licensed engineer

STATUTES—Cont'd

by the Commissioner of the New York City Department of Buildings (DOB) whereby, pursuant to Administrative Code of the City of New York § 26-124 (c) (recodified as Administrative Code § 28-211.1.2), the Commissioner was authorized to refuse to accept any application or other document submitted by petitioner to the DOB for a period of two years followed by a three-year probationary period, and which was based on negligent acts committed by petitioner prior to the enactment of the statutory provision, did not amount to an improper retroactive application of the provision. Where the requirements for engaging in a specific professional activity are amended to govern future eligibility, a statute does not operate retroactively notwithstanding that its application may be triggered by an event which occurred prior to its effective date. Administrative Code § 26-124 (c), enacted for the purpose of promoting public safety and preventing the waste of taxpayer money by eliminating the filing of false information with the DOB, authorizes the Commissioner to refuse to accept applications or documents from any person found to have knowingly or negligently submitted false materials. By its terms, section 26-124 (c) aims to regulate future professional activity. The fact that petitioner's inability to file papers with DOB for a future period of time was predicated on prior false filings did not render the Commissioner's application of the provision retroactive. *Matter of St. Clair Nation v City of New York*, 14 NY3d 452.

SUBPOENA.

See WITNESSES.

SUMMONS.

See PROCESS.

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

TAXATION.**TAX ON CIGARETTES AND TOBACCO PRODUCTS.**

1. Cigarettes Sold on Indian Reservations — Qualified Reservation Property.—The two convenience stores operated by plaintiff Cayuga Indian Nation on parcels of real property that fell within plaintiff's aboriginal reservation and were reacquired by plaintiff after purchasing them on the open market, were located on "qualified reservation" property within the meaning of Tax Law § 470 (16) (a). The term "reservation" in Tax Law § 470 (16) (a) refers to reservation lands recognized by the federal government. Although plaintiff had entered into transactions transferring title to its aboriginal reservation property—including the convenience store parcels that were later reacquired—the property retained its reservation status under federal law. Every federal court that has examined whether the Cayuga reservation was disestablished or diminished by Congress has answered that question in the negative. Moreover, when plaintiff purchased the convenience store properties, its application to the United States government to have the parcels taken in trust on behalf of the tribe was processed as a request pertaining to "on reservation" land, and the United States Department of Interior, Bureau of Indian Affairs, has identified the land in question as within the limits of the Cayuga reservation. In the absence of contrary federal authority, plaintiff's convenience store properties met the definition of a "qualified reservation" under Tax Law § 470 (16) (a). And though plaintiff could not assert sovereign power over its convenience store properties for the purpose of avoiding real property taxes, Tax Law § 470 (16) itself makes a distinction between reservation property (subdivision [a]) and property over which an Indian nation or tribe has sovereign authority (subdivision [b]). *Cayuga Indian Nation of N.Y. v Gould*, 14 NY3d 614.

2. Cigarettes Sold on Indian Reservations.—The absence of an appropriate legislative or regulatory scheme governing the calculation and collection of cigarette sales taxes that distinguishes between federally exempt retail sales to Indians occurring on a "qualified reservation" and non-exempt sales to other consumers precluded

TAXATION—Cont'd

reliance on Tax Law § 471 as the sole basis to sanction plaintiff Indian tribe, the operator of two convenience stores in which cigarettes were sold, for alleged noncompliance with the New York Tax Law. Although Tax Law § 471 generally imposes a sales tax on cigarettes sold in New York and sales taxes are due when non-Indian consumers purchase cigarettes from Indian retailers, the Legislature did not view Tax Law § 471 as a sufficient regulatory or statutory predicate for the collection of sales taxes from Indian retailers. Rather, the Legislature concluded that a system—either statutory or regulatory in form—must be adopted before Indian retailers would be required to act as intermediaries for the collection of state cigarette sales taxes. A system of ad hoc enforcement by local District Attorneys, without implementation of an appropriate calculation and collection methodology, would not be consistent with legislative intent. *Cayuga Indian Nation of N.Y. v Gould*, 14 NY3d 614.

TOWNS.

See MUNICIPAL CORPORATIONS.

TRIAL.

HARMLESS AND PREJUDICIAL ERROR. *See* PRODUCTS LIABILITY, 1.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles.

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles.

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION.

VILLAGES.

See MUNICIPAL CORPORATIONS.

WELFARE.

See SOCIAL SERVICES.

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles.

ZONING.

See MUNICIPAL CORPORATIONS.

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- 202 (Cause of action accruing without state). *Portfolio Recovery Assoc., LLC v King*, 14 NY3d 410.
- 208 (Tolling; infancy, insanity). *Heslin v County of Greene*, 14 NY3d 67.
- 901 (a) (2) (Prerequisites to class action; common questions of law or fact). *City of New York v Maul*, 14 NY3d 499.
- 1012 (b) (2) (Parties; intervention as of right). *People v Smith*, 14 NY3d 906.
- 4404 (Posttrial motion for judgment and new trial). *Cuadrado v New York City Tr. Auth.*, 14 NY3d 748; *Anderson v Young & Rubicam*, 14 NY3d 909; *Butler v New York City Tr. Auth.*, 14 NY3d 909.
- 5201 (Debt or property subject to enforcement; proper garnishee). *Hotel 71 Mezz Lender LLC v Falor*, 14 NY3d 303.
- 5201 (c) (1) (Debt or property subject to enforcement; proper garnishee for particular property or debt). *Hotel 71 Mezz Lender LLC v Falor*, 14 NY3d 303.
- 5228 (Enforcement of money judgments; receivers). *Hotel 71 Mezz Lender LLC v Falor*, 14 NY3d 303.
- 5511 (Permissible appellant and respondent). *Adams v Genie Indus., Inc.*, 14 NY3d 535; *Matter of Niagara Frontier Transp. Auth. (International Longshoremen's Assn., Local 2028)*, 14 NY3d 749; *Matter of McDonald v Reed*, 14 NY3d 758; 68-69 *Woodhaven Blvd. Holding Corp. v Exxon Mobil Corp.*, 14 NY3d 837.
- 5513 (b) (Time to move for permission to appeal). *Inter-City Tire & Auto Ctr., Inc. v Sterling Natl. Bank*, 14 NY3d 824; *Matter of Rivers v Alexander*, 14 NY3d 836; *Matter of Diallo v Diallo*, 14 NY3d 854; *Matter of Level 3 Communications, LLC v DeBellis*, 14 NY3d 855; *People ex rel. Kirkland v Artus*, 14 NY3d 857; *Matter of Price v Southwest Airlines, Inc.*, 14 NY3d 858; *Matter of Union Indem. Co. of N.Y.*, 14 NY3d 859; *Matter of Kendra C.R. (Charles R.)*, 14 NY3d 870; *Benjamin v New York City Dept. of Health*, 14 NY3d 880; *Duque v Pace Univ.*, 14 NY3d 903; *Walter v Walter*, 14 NY3d 912; *Matter of McKinnon v Fischer*, 14 NY3d 935.
- 5601 (Appeals to Court of Appeals as of right). *Matter of Helgason v New York State Div. of Hous. & Community Renewal*, 14 NY3d 764; *Matter of Reynoso v Fischer*, 14 NY3d 767; *People v DePonceau*, 14 NY3d 812; *Matter of Brown v Fischer*, 14 NY3d 852; *Singh v City of N.Y. Div. of Hous. Preserv. & Dev.*, 14 NY3d 858; *People ex rel. Grant v Connel*, 14 NY3d 911.
- 5601 (a) (Appeals to Court of Appeals as of right; dissent). *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 740; *Gartech Elec. Contr. Corp. v Coastal Elec. Constr. Corp.*, 14 NY3d 748; *Matter of Richelis S. (Richard S.)*, 14 NY3d 767; *Matter of Erin C. v Peter H.*, 14 NY3d 855.
- 5601 (b) (2) (Appeals to Court of Appeals as of right; constitutional grounds). *People ex rel. Tislon v Rock*, 14 NY3d 857.
- 5602 (Appeals to Court of Appeals by permission). *Matter of Labita*, 14 NY3d 749; *Matter of Walker v Hamlett*, 14 NY3d 751; *People v DePonceau*, 14 NY3d 812; *People ex rel. Graham v Walsh*, 14 NY3d 856; *People ex rel. Rodriguez v Conway*, 14 NY3d 857; *People ex rel. Talbert v Conway*, 14 NY3d 857; *Harris v Department of Hous. Preserv. & Dev.*, 14 NY3d 867; *People ex rel. Multrow v Conway*, 14 NY3d 872; *People ex rel. Ramsey v Conway*, 14 NY3d 873.
- 5602 (a) (Appeals to Court of Appeals by permission). *People v Steinke*, 14 NY3d 856.

CIVIL PRACTICE LAW AND RULES—Continued

- 5602 (a) (1) (ii) (Appeals to Court of Appeals by permission). *Superb Gen. Contr. v City of New York*, 14 NY3d 906.
- 5602 (a) (2) (Appeals to Court of Appeals by permission). *Gold v Rockville Ctr. Police Dept.*, 14 NY3d 867.
- 5611 (When Appellate Division order deemed final). *Butler v New York City Tr. Auth.*, 14 NY3d 909.
- 6202 (Debt or property subject to attachment; proper garnishee). *Hotel 71 Mezz Lender LLC v Falor*, 14 NY3d 303.
- 7511 (b) (1) (iii) (Arbitration; vacating or modifying award; award in excess of arbitrator's power). *Matter of New York City Tr. Auth. v Transport Workers Union of Am.*, *Local 100*, 14 NY3d 119.

CIVIL SERVICE LAW.

- § 75 (Removal and other disciplinary action). *Matter of New York State Off. of Children & Family Servs. v Lanterman*, 14 NY3d 275.
- § 76 (Appeals from determinations in disciplinary proceedings). *Matter of New York State Off. of Children & Family Servs. v Lanterman*, 14 NY3d 275.

CORRECTION LAW.

- Art 6-C (Sex Offender Registration Act). *People v Gravino*, 14 NY3d 546.
- § 601-d (Postrelease supervision; certain cases). *People v Williams*, 14 NY3d 198.

CRIMINAL PROCEDURE LAW.

- Art 65 (Use of closed-circuit television for certain child witnesses). *People v Wrotten*, 14 NY3d 33.
- 1.20 (16) ("Criminal action" defined). *Cayuga Indian Nation of N.Y. v Gould*, 14 NY3d 614.
- 1.20 (18) ("Criminal proceeding" defined). *Cayuga Indian Nation of N.Y. v Gould*, 14 NY3d 614.
- 30.30 (1) (a) (Speedy trial; time limitations). *People v Price*, 14 NY3d 61.
- 30.30 (4) (g) (Speedy trial; time limitations; excludable periods of time; exceptional circumstances). *People v Price*, 14 NY3d 61.
- 65.10 (3) (Closed-circuit television; general rule; declaration of vulnerability). *People v Wrotten*, 14 NY3d 33.
- 195.10 (Waiver of indictment; in general). *People v Pierce*, 14 NY3d 564.
- 195.20 (Waiver of indictment; written instrument). *People v Pierce*, 14 NY3d 564.
- 200.20 (2) (c) (Indictment; what offenses may be charged; joinder of offenses and consolidation of indictments; "joinable" defined). *People v Pierce*, 14 NY3d 564.
- 216.05 (9) (b) (Judicial diversion program for certain felony offenders; court procedures; violation of condition of release; summary hearing). *People v Fiammegta*, 14 NY3d 90.
- 310.30 (Jury deliberation; request for information). *People v Ochoa*, 14 NY3d 180; *People v Kadarko*, 14 NY3d 426.
- 380.30 (Time for pronouncing sentence). *People v Williams*, 14 NY3d 198.
- 400.15 (Procedure for determining whether defendant is second violent felony offender). *People v Konstantinides*, 14 NY3d 1.
- 440.40 (Motion to set aside sentence; by People). *People v Williams*, 14 NY3d 198.
- 450.90 (Appeal to Court of Appeals from order of intermediate appellate court; in what cases authorized). *People v DePonceau*, 14 NY3d 812.
- 460.20 (Certificate granting leave to appeal to Court of Appeals). *People v Otero*, 14 NY3d 738; *People v Cain*, 14 NY3d 786; *People v Cartwright*, 14 NY3d 787; *People v Rivera*, 14 NY3d 789; *People v Tyrell*, 14 NY3d 789; *People v Jacob*, 14 NY3d 835; *People v Moss*, 14 NY3d 835; *People v Andrade*, 14 NY3d 904; *People v Jenkins*, 14 NY3d 905.
- 690.15 (2) (Search warrants; what and who are subject to search thereunder). *People v Mothersell*, 14 NY3d 358.

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- § 70 (Habeas corpus for child detained by parent). *Debra H. v Janice R.*, 14 NY3d 576.

DOMESTIC RELATIONS LAW—Continued

- § 111 (1) (b) (Adoption; consent; father). *Matter of Doe*, 14 NY3d 100.
- § 111 (5) (Adoption; whose consent required; readoption). *Matter of Doe*, 14 NY3d 100.
- § 115-b (Special provisions relating to consents in private placement adoptions). *Matter of Doe*, 14 NY3d 100.
- § 236 (B) (5) (d) (Equitable distribution; disposition of property; factors to be considered). *Howard S. v Lillian S.*, 14 NY3d 431.
- § 236 (B) (5) (d) (14) (Equitable distribution; disposition of property; consideration of any factor expressly found to be just and proper). *Howard S. v Lillian S.*, 14 NY3d 431.

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- § 3019-a (Notice of termination of service by teachers). *Matter of Vetter v Board of Educ., Ravena-Coeymans-Selkirk Cent. School Dist.*, 14 NY3d 729.
- § 3602-c (Apportionment of moneys to school districts for provision of services to pupils attending nonpublic schools). *Matter of Board of Educ. of Bay Shore Union Free School Dist. v Thomas K.*, 14 NY3d 289.
- § 3602-c (1) (a) (Apportionment of moneys to school districts for provision of services to pupils attending nonpublic schools; “services” defined). *Matter of Board of Educ. of Bay Shore Union Free School Dist. v Thomas K.*, 14 NY3d 289.
- § 3602-c (2) (b) (1) (Apportionment of moneys to school districts for provision of services to pupils attending nonpublic schools). *Matter of Board of Educ. of Bay Shore Union Free School Dist. v Thomas K.*, 14 NY3d 289.

ELECTION LAW.

- § 1-104 (22) (“Residence” defined). *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.
- § 8-400 (Absentee voting; application for ballot). *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.
- § 8-402 (1) (Absentee voting; review of application by board of elections). *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.
- § 8-402 (2) (Absentee voting; review of application by board of elections). *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.
- § 9-112 (1) (Canvass ballots; validity of ballots). *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.

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- Art 27, tit 14 (Brownfield Cleanup Program). *Matter of Lighthouse Pointe Prop. Assoc. LLC v New York State Dept. of Envtl. Conservation*, 14 NY3d 161.
- 27-1405 (2) (Brownfield Cleanup Program; “brownfield site” defined). *Matter of Lighthouse Pointe Prop. Assoc. LLC v New York State Dept. of Envtl. Conservation*, 14 NY3d 161.

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- 5-4.1 (Action by personal representative for wrongful act, neglect or default causing death of decedent). *Heslin v County of Greene*, 14 NY3d 67.
- 11-3.2 (b) (Action for injury to person or property survives despite death of person in whose favor or against whom cause of action existed; action by personal representative for injury to person or property). *Heslin v County of Greene*, 14 NY3d 67.

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- § 296 (Unlawful discriminatory practices). *Zakrzewska v New School*, 14 NY3d 469.

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- Art 5 (Paternity proceedings). *Matter of H.M. v E.T.*, 14 NY3d 521.
- Art 5-B (Uniform Interstate Family Support Act). *Matter of H.M. v E.T.*, 14 NY3d 521.
- § 413 (1) (a) (Parents’ duty to support child). *Matter of H.M. v E.T.*, 14 NY3d 521.

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§ 532 (a) (Genetic marker and DNA tests). *Debra H. v Janice R.*, 14 NY3d 576.

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§ 20 (Meaning of terms; day, computation). *People v Assi*, 14 NY3d 335.

§ 25-a (Extension of time where performance of act is due on Saturday, Sunday or public holiday). *People v Assi*, 14 NY3d 335.

GENERAL MUNICIPAL LAW.

§ 50-e (5) (Notice of claim; application for leave to serve late notice). *Heslin v County of Greene*, 14 NY3d 67.

§ 50-i (1) (Presentation of tort claims; commencement of actions). *Heslin v County of Greene*, 14 NY3d 67.

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§ 11-106 (1) (Compensation for injury or death to police officers and firefighters or their estates). *Wadler v City of New York*, 14 NY3d 192.

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§ 5102 (d) (No-fault automobile insurance; “serious injury” defined). *Linton v Nawaz*, 14 NY3d 821.

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§ 2-b (3) (General powers of courts of record; devise and make new process and forms of proceedings). *People v Wrotten*, 14 NY3d 33.

§ 44 (8) (Suspension of judges). *Matter of Anderson*, 14 NY3d 813.

§ 221 (Salary of judges of Court of Appeals). *Matter of Maron v Silver*, 14 NY3d 230.

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§ 240 (1) (Scaffolding and other devices for use of employees; duties of contractors and owners to supply safety devices). *Gallagher v New York Post*, 14 NY3d 83; *Belding v Verizon N.Y., Inc.*, 14 NY3d 751.

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Art 10 (Sex offenders requiring civil commitment or supervision.) *Matter of Larry TT.*, 14 NY3d 825.

§ 47.01 (a) (Mental hygiene legal service). *Hirschfeld v Teller*, 14 NY3d 344.

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§ 8-107 (13) (b) (Employer’s liability for unlawful discriminatory practice based upon conduct of employee or agent). *Zakrzewska v New School*, 14 NY3d 469.

§ 8-107 (13) (e) (Unlawful discriminatory practices; mitigation of damages). *Zakrzewska v New School*, 14 NY3d 469.

§ 14-115 (a) (Discipline of members of police force). *Matter of City of New York v Patrolmen’s Benevolent Assn. of the City of N.Y., Inc.*, 14 NY3d 46.

§ 26-124 (c) (Former) (Housing and buildings; false statements in certificates, forms, written statements, applications, reports or certificates of correction). *Matter of St. Clair Nation v City of New York*, 14 NY3d 452.

§ 28-211.1.2 (New York City construction codes; enforcement; additional penalty for false statements). *Matter of St. Clair Nation v City of New York*, 14 NY3d 452.

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- Art I, § 12 (Security against unreasonable searches, seizures and interceptions). *People v Mothersell*, 14 NY3d 358.
- Art III, § 11 (Legislature; members not to be questioned for speeches). *Matter of Maron v Silver*, 14 NY3d 230.
- Art VI, § 3 (b) (Jurisdiction of Court of Appeals). *Matter of Labita*, 14 NY3d 749; *People v DePonceau*, 14 NY3d 812; *People ex rel. Graham v Walsh*, 14 NY3d 856; *People ex rel. Rodriguez v Conway*, 14 NY3d 857; *People ex rel. Talbert v Conway*, 14 NY3d 857; *People ex rel. Multrow v Conway*, 14 NY3d 872; *People ex rel. Ramsey v Conway*, 14 NY3d 873.
- Art VI, § 3 (b) (2) (Jurisdiction of Court of Appeals). *People ex rel. Tislon v Rock*, 14 NY3d 857.
- Art VI, § 5 (b) (Power of appellate courts upon appeal from judgment or order; transfer of appeals taken to improper appellate court). *People ex rel. Tislon v Rock*, 14 NY3d 857.
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- Art VI, § 25 (a) (Compensation and retirement of judges and justices; compensation established by law and not to be diminished during term of office). *Matter of Maron v Silver*, 14 NY3d 230.
- Art IX, § 2 (c) (Home rule powers of local governments; power to enact local laws not inconsistent with state law). *Zakrzewska v New School*, 14 NY3d 469.

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- Art 485 (Hate crimes). *People v Assi*, 14 NY3d 335.
- § 10.00 (7) (“Person” defined). *People v Assi*, 14 NY3d 335.
- § 15.05 (1) (Culpability; “intentionally” defined). *People v Taylor*, 14 NY3d 727.
- § 15.05 (4) (Culpable mental states; “criminal negligence” defined). *People v Caban*, 14 NY3d 369.
- § 60.01 (2) (d) (Revocable dispositions; sentence of imprisonment and sentence of probation or conditional discharge). *People v Zephrin*, 14 NY3d 296.
- § 65.00 (Sentence of probation). *People v Zephrin*, 14 NY3d 296.
- § 65.15 (1) (Calculation of periods of probation and of conditional discharge). *People v Zephrin*, 14 NY3d 296.
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§ 485.05 (Hate crimes). *People v Assi*, 14 NY3d 335.

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22 NYCRR 500.5 (b) (Sealed documents and confidential material). *Matter of SLS Residential, Inc. v New York State Off. of Mental Health*, 14 NY3d 912.

22 NYCRR 500.22 (b) (2) (Motions for permission to appeal in civil cases). *People ex rel. Perez v Hourihane*, 14 NY3d 936.

22 NYCRR 500.23 (a) (1) (iii) (Amicus curiae relief). *Hurrell-Harring v State of New York*, 14 NY3d 833.

22 NYCRR 500.27 (Discretionary proceedings to review certified questions from federal courts and other courts of last resort). *Giordano v Market Am., Inc.*, 14 NY3d 832; *Kramer v Phoenix Life*, 14 NY3d 833; *City of New York v Golden Feather Smoke Shop, Inc.*, 14 NY3d 880.

RULES OF STATE BOARD OF ELECTIONS.

9 NYCRR 6210.13 (A) (2) (Absentee voting counting equipment; standards for determining valid votes; failure to follow instructions for marking ballot). *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.

9 NYCRR 6210.13 (A) (3) (Absentee voting counting equipment; standards for determining valid votes; when mark considered valid). *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.

9 NYCRR 6210.13 (A) (8) (Absentee voting counting equipment; standards for determining valid votes; manual counting of ballots; when required). *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.

9 NYCRR 6210.13 (A) (11) (Absentee voting counting equipment; standards for determining valid votes; abandoned ballot). *Matter of Stewart v Chautauqua County Bd. of Elections*, 14 NY3d 139.

SESSION LAWS.

2000, ch 107 (Hate Crimes Act of 2000). *People v Assi*, 14 NY3d 335.

2004, ch 738, § 23 (Drug reform laws; resentencing). *People v Acevedo*, 14 NY3d 828.

TAX LAW.

§ 470 (16) (a) (Tax on cigarettes and tobacco products; “qualified reservation” defined). *Cayuga Indian Nation of N.Y. v Gould*, 14 NY3d 614.

§ 470 (16) (b) (Tax on cigarettes and tobacco products; “qualified reservation” defined). *Cayuga Indian Nation of N.Y. v Gould*, 14 NY3d 614.

§ 471 (Imposition of cigarette tax). *Cayuga Indian Nation of N.Y. v Gould*, 14 NY3d 614.

UNITED STATES CODE.

15 USC § 77nnn (a) (1) (Trust indentures; reports by obligor; evidence of compliance with indenture provisions; periodic reports). *Racepoint Partners, LLC v JPMorgan Chase Bank, N.A.*, 14 NY3d 419.

33 USC § 1341 (d) (Water pollution prevention and control; permits and licenses; certification; limitations and monitoring requirements of certification). *Matter of Chasm Hydro, Inc. v New York State Dept. of Envtl. Conservation*, 14 NY3d 27.

UNITED STATES CONSTITUTION.

4th Amend (Unreasonable searches and seizures prohibited). *People v Mothersell*, 14 NY3d 358.

5th Amend (Double jeopardy). *People v Williams*, 14 NY3d 198.

6th Amend (Jury trials for crimes; right to counsel). *People v Wrotten*, 14 NY3d 33; *People v Baker*, 14 NY3d 266.

14th Amend (Due process of law). *People v Mothersell*, 14 NY3d 358.

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

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|--|--|
| 1. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change defendant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 2. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufty to Edward R. Lutfy. |
| 3. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change contructive to constructive. |
| 4. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 5. 54 NY2d 137 (People v Baldi) | At 53 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 6. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 7. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |
| 8. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 9. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |
| 10. 80 NY2d 1030 (People v Sallito) | Change the title entry from Salito to Sallito. |

11. **85 NY2d 139** (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) At 85 NY2d 146, second paragraph, line 13, change lead to led.
12. **88 NY2d 41** (Town of Orangetown v Magee) At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733.
13. **88 NY2d 400** (People v Huston) At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c].
14. **93 NY2d 382** (BDO Seidman v Hirshberg) At 93 NY2d 391, line 25, change former employer to former employee.
15. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
16. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).
17. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.
18. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).
19. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.
20. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.

Errata

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| 21. 7 NY3d 703 (Matter of Park v Kapica) | Change the page number of the reported below citation from 802 to 801. |
| 22. 8 NY3d 944 (People v Charriez) | In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U). |
| 23. 9 NY3d 923 (People v Jacobs) | In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868. |
| 24. 11 NY3d 875 (People v Ford) | On line 5 of the Summary, change Bronx County to New York County. |
| 25. 13 NY3d 511 (Matter of Goldstein v New York Urban Dev. Corp.) | At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition]. |